

IN THE HIGH COURT OF SOUTH AFRICA

Western Cape Division

CASE NO: 2026-086906

In the matter between:

Afrocentric Investment Corporation Limited

(Applicant / Plaintiff)

and

Wilbur William Matthee

(Respondent / Defendant)

Index

001: Notice of Motion with Founding Affidavit

Page	Document	Date	Office of the Chief Justice	HIGH COURT
001-1 - 001-6	AFR1282_Notice_of_Motion_Final_16.04.2026_2026.04.16.14.55.pdf	19 May 2026		
001-7 - 001-27	Founding_affidavit_2026.04.16.17.02.pdf	19 May 2026		
001-28 - 001-31	Annexure_01_Founding_affidavit_2026.04.16.17.03.pdf	19 May 2026		
001-32 - 001-34	Annexure_02_Founding_affidavit_2026.04.16.17.03.pdf	19 May 2026		
001-35 - 001-36	Annexure_03_Founding_affidavit_2026.04.16.17.03.pdf	19 May 2026		
001-37 - 001-39	Annexure_04_Founding_affidavit_2026.04.16.17.04.pdf	19 May 2026		
001-40 - 001-41	Annexure_05_Founding_affidavit_2026.04.16.17.05.pdf	19 May 2026		
001-42 - 001-43	Date_allocation_form_2026.04.16.17.14.pdf	19 May 2026		

002: Simple Summons

003: Provisional Sentence Summons

004: Combined Summons

005: Return Of Service

Page	Document	Date	Office of the Chief Justice	HIGH COURT
005-1 - 005-4	Proof_of_Service_Supp.Affidavit_2026.05.04.12.12.pdf	19 May 2026		

006: Declaration

007: Notice of Intention to Oppose / Defend

Page	Document	Date	Office of the Chief Justice	HIGH COURT
007-1 - 007-3	Notice of intention to oppose	19 May 2026		

008: Counter-Claim

009: Answering Affidavit

Page	Document	Date	Office of the Chief Justice	HIGH COURT
009-1 - 009-15	Answering Affidavit	19 May 2026		

011: Applicant's Supplementary Affidavit

Page	Document	Date	Office of the Chief Justice	HIGH COURT
011-1 - 011-5	AFR1282_Supplementary_Aff _Annexure_01_202654_1006 _2026.05.04.12.00.pdf	19 May 2026		
011-6 - 011-7	AFR1282_Supplementary_Aff _Annexure_10_202654_1065 0_2026.05.04.12.07.pdf	19 May 2026		
011-8 - 011-9	AFR1282- Filing_notice_Sup p_Aff_04.05.2026_202654_1 0741_2026.05.04.12.08.pdf	19 May 2026		
011-10 - 011-60	AFR1282_Supplementary_Aff idavit_04.05.2026_202654_95 441_2026.05.04.11.55.pdf	19 May 2026		
011-61 - 011-64	AFR1282_Supplementary_Aff idavit_Annexure_02_202654_ 10049_2026.05.04.12.00.pdf	19 May 2026		
011-65 - 011-66	AFR1282_Supplementary_Aff _Annexure_03_202654_1011 0_2026.05.04.12.01.pdf	19 May 2026		
011-67 - 011-68	AFR1282_Supplementary_Aff _Annexure_04_202654_1022 _2026.05.04.12.02.pdf	19 May 2026		
011-69 - 011-70	AFR1282_Supplementary_Aff _Annexure_05_202654_1024 3_2026.05.04.12.02.pdf	19 May 2026		
011-71 - 011-73	AFR1282_Supplementary_Aff _Annexure_06_202654_1034 0_2026.05.04.12.04.pdf	19 May 2026		
011-74 - 011-75	AFR1282_Supplementary_Aff _Annexure_07_202654_1044 4_2026.05.04.12.04.pdf	19 May 2026		

011-76 - 011-85	AFR1282_Supplementary_Aff_Annexure_08_202654_1055_2026.05.04.12.05.pdf	19 May 2026		
011-86 - 011-87	AFR1282_Supplementary_Aff_Annexure_09_202654_1063_2_2026.05.04.12.06.pdf	19 May 2026		

012: Respondent's Supplementary Affidavit

Page	Document	Date	Office of the Chief Justice	HIGH COURT
012-1 - 012-127	Supplementary Answering Affidavit	19 May 2026		

013: Respondent's Further Answering Affidavit

Page	Document	Date	Office of the Chief Justice	HIGH COURT
013-1 - 013-60	v_2_Answering_Affidavit_Matthee_v_AfroCentric (2)	27 May 2026		
013-61 - 013-120	v_2_Answering_Affidavit_Matthee_v_AfroCentric (2)	27 May 2026		

014: Applicant's replying affidavit

Page	Document	Date	Office of the Chief Justice	HIGH COURT
014-1 - 014-12	Affidavit - Matthee	27 May 2026		

015: Notice to Compel

016: Affidavit in Support of Notice to Compel

017: Subpoena

018: Notice of Bar

019: Notice of Removal / Application to Strike Out

020: Notice of Substitution

021: Application for Substitute Service

022: Notice of Withdrawal of Action

023: Warrant of Execution

024: Notice of Withdrawal as Attorneys of Records

025: Notice of Appointment as Attorney of Records

026: Application for Summary Judgement

027: Rule 43 Application

028: Discovery Notices

029: Practice Notes

Page	Document	Date	Office of the Chief Justice	HIGH COURT
029-1 - 029-14	AFR1282_Practice_note_19.0 5.2026___final___2026.05.19.1 5.04	19 May 2026		
029-15 - 029-16	afrocentric mathee pnote 26.5.26	27 May 2026		
029-17 - 029-18	Respondents_Practice_Note_ 2026-086906(1)	27 May 2026		

030: Plea or Special Plea

031: Notice of Exception

032: Expert Notices

033: Experts Reports

034: Notice of Amendment

035: Notice of Sale

036: Application for Edictal Citation

037: Notice of Inspection

038: Notice of Intention to Defend

039: Notice of Application to Strike Out

040: Notice of Sale in Execution

041: Provisional Set Down

042: Final Set Down / Notice of Set Down

043: Notice of Pre-Trial Conference

044: Notice of Set-Down

045: Joint Minutes

046: Application for Trial Date

047: Trial Interlocutory Application

048: Any other Interlocutory Application

Page	Document	Date	Office of the Chief Justice	HIGH COURT
048-1 - 048-14	Notice To Anticipate Return _Day_final	19 May 2026		

049: Application for Admission As Amicus Curiae

050: Notice of Judicial Pre-Trial Conference

051: Third Party Notice (Rule 13)

052: Joinder of Parties (Rule 10)

053: Index and Pagination

054: Heads of Arguments

055: List of Authorities

056: Application for Default Judgement

057: Warrant of Execution

058: Affidavit in Support of Default Judgement

059: Notice In Terms Of Rule 31 (5)

060: Confirmation Of Deed of Cession

061: NCR Certificate of Plaintiff

062: NCR Proof Of Renewal

063: Credit Agreement / Instalment Agreement

064: Statement

065: Section 129 & Proof of Post

066: Track and Trace

067: Certificate of Balance

068: Natis Document

069: Compliance Certificate

070: Updated NCR Certificates for Plaintiff

071: Confirmation Of Registration Letters

072: Security for Costs

073: Notice of Taxation with Bill of Costs

074: Draft Court Order / Court Order

Page	Document	Date	Office of the Chief Justice	HIGH COURT
074-1 - 074-5	2026-086906_2026.04.22.07.56.pdf	19 May 2026		
074-6 - 074-10	Order_2026.04.16.17.13.pdf	19 May 2026		

075: Leave to Appeal

076: Annexures

077: Draft Postponement Order

Page	Document	Date	Office of the Chief Justice	HIGH COURT
077-1	AFR1282 Draft Postponement Order	27 May 2026		

078: Filing Notices

Page	Document	Date	Office of the Chief Justice	HIGH COURT
078-1	AFR1282- Filing notice (RA)	27 May 2026		

COURT ONLINE COVER PAGE

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Notice of Motion (Long Form)

NOTE: This document was filed electronically by the Registrar on 16/4/2026 at 2:55:28 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED
BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No:

In the matter between:

Afrocentric Investment Corporation Limited

Applicant

and

Wilbur William Matthee

Respondent

NOTICE OF MOTION

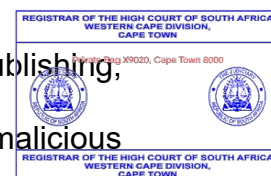


TAKE NOTICE that application will be made to the above Honourable Court as a matter of urgency at **10h00** on **16 April 2026**, or as soon thereafter as counsel may be heard, for an order in the following terms:

- 1 Dispensing the time periods, forms and manner of service provided for in the Uniform Rules of the Court and condoning non-compliance with the rules due to urgency in terms of Rule 6(12);
- 2 Issuing a rule nisi calling upon the respondent to appear and show cause, at a date and time to be determined by this Honourable Court, why a final order should not be made in the following terms:
 - 2.1 Interdicting and restraining the respondent from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police and Prisons Civil Rights Union

(POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the “Mahlangu Root Cause Analysis” or “Mahlangu RCA”, or any information relating to the applicant’s internal systems, clinical processes, financial affairs, or integration architecture;

2.2 Interdicting and restraining the respondent from making, publishing, or causing to be published any defamatory, false, or malicious statements concerning the applicant, its directors, officers, employees, auditors, or any regulatory bodies, including but not limited to any statement referred to as a “Whistleblower’s Manifesto” or any public statement alleging fraud, market deception, misconduct, or impropriety on the part of the applicant or any person associated with it;



2.3 Interdicting and restraining the respondent from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant;

2.4 Interdicting and restraining the respondent from demanding, soliciting, or attempting to obtain any payment, settlement, or other

benefit from the applicant by means of threats, coercion, or intimidation, including but not limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings;

- 2.5 Interdicting and restraining the respondent from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs;



- 3 Ordering that, pending the return date, the provisions of paragraphs 2.1 to 2.5 above shall operate as an interim interdict with immediate effect;
- 4 Granting the applicant leave to supplement its founding affidavit within 10 (ten) days of the date of this order;
- 5 Directing the respondent to file any answering affidavit within 15 (fifteen) days of service upon him of the applicant's supplementary founding affidavit;
- 6 Directing the applicant to file any replying affidavit within 10 (ten) days of service upon it of the respondent's answering affidavit;
- 7 Granting leave to the applicant to effect service of the order granted on the applicant at his email address - info@ethichawks.co.za;

- 8 Directing that the matter is to be set down for hearing on the return date on a date to be determined by the Registrar of this Honourable Court, such date to be not less than 5 (five) days after the expiry of the time period for the filing of the applicant's replying affidavit;
- 9 Directing that the respondent pay the costs of this application;
- 10 Granting the respondent leave to anticipate the return day upon 24 hours' written notice to the applicant;
- 11 Granting the applicant further and/or alternative relief.



TAKE NOTICE FURTHER THAT should you intend opposing this application, you are required to:

- (a) Appear and make representations at the hearing of this matter at 10h00 on 16 April 2026, or as soon thereafter as counsel may be heard; and thereafter
- (b) File a notice of intention to oppose, together with any answering affidavit, in accordance with the time periods set out in the rule nisi, at the applicant's attorneys of record address <mailto:tristan.marot@nortonrosefulbright.com> <mailto:donald.dinnie@nortonrosefulbright.com> set out below or via email at jason.whyte@deney.co.za.

TAKE NOTICE FURTHER that the affidavit of **GERALD NEVILLE VAN WYK**, and the annexures thereto, will be used in support hereof.

Kindly place the matter on the roll for hearing accordingly

Dated at **Cape Town** on this the **16th** day of **April 2026**.



Deneys
Attorneys for Applicant
9th Floor, 117 On Strand

117 Strand Street
Cape Town

Tel: 021 405 1208

Fax: 021 405 5509

Email: Jason.whyte@nortonrosefulbright.com

Ref: Jason Whyte / FB / AFR1282



TO:
The Registrar of the High Court
Cape Town

By Hand / Caselines

AND TO:
Wilbur William Matthee
Respondent
15 Bellevue Street
Voorbrug
Cape Town
7100
Tel: 069 635 1435
Email: info@ethichawks.co.za

By Email

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**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 02

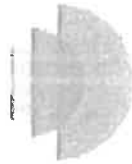
NOTE: This document was filed electronically by the Registrar on 16/4/2026 at 5:03:29 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



**ELECTRONICALLY SIGNED
BY:**

**Registrar of The High Court,
Western Cape Division, Cape
Town**

Deneys



By Email: info@ethichawks.co.za

Mr W W Matthee

URGENT ATTENTION

15 April 2026

9th Floor
117 on Strand
117 Strand Street
Cape Town 8001
Tel +27 21 405 1200 Fax +27 21 418 6900

Private Bag X10 Roggebaai 8012
Docex 181 Cape Town
deneys.co.za

Direct line
+27 21 405 1208

Email
jason.whyte@deneys.co.za

Your reference:

Our reference: AFR1282

Dear Sir

AfroCentric Investment Corporation Ltd and others // Yourself



- 1 We confirm that we act on behalf of AfroCentric Investment Corporation Limited, as well as its subsidiaries and related entities. We also act on behalf of the directors and officers of those entities.
- 2 Our clients have provided us with a copy of your email sent to their Group Company Secretary at 22h38 on 14 April 2026. In that email, you advise our clients that unless they conclude a settlement agreement with you, requiring the payment of unquantified amounts among other stated relief, you will proceed to take further steps at 13h24 on 16 April 2026.
- 3 Our clients do not accede to this demand and have instructed us to call on you to withdraw your threatened course of action as it is unlawful. In particular, your demand, on the face of it, constitutes a criminal offence, namely that of extortion and blackmail.
- 4 Our client notes in particular that you intend to:
 - 4.1 Publicly release a so-called 'Whistleblower's Manifesto' naming and accusing our clients' directors and office bearers of 'corporate concealment' and breach of their fiduciary duties. Moreover, that you intend to publicly state that our clients' directors and office bearers are acting in collusion with unnamed 'regulators'; and
 - 4.2 Release a so-called 'Forensic Payload Transfer' regarding the Mahlangu Root Cause Analysis. This would clearly involve the public release of confidential and proprietary information held by or belonging to our clients.
- 5 We note that you have made several other threats that, whilst arguably not unlawful *per se*, are rendered unlawful as they are simply intended to act as a means of forcing our clients to provide you with unquantified, but substantial financial compensation.
- 6 In summary, the demands made in your email are unlawful and, if acted upon, would cause our client irreparable harm.
- 7 We accordingly call on you to confirm in writing by no later than 17h00 today, 15 April 2026, that you unconditionally withdraw your email and the threats contained therein. Should we not receive such written confirmation, our clients shall be forced to consider an urgent approach to the High Court, if necessary on an *ex parte* basis, to interdict and restrain you from proceeding with your unlawful conduct.

Letter to Mr Matthee 15.04.2026 Final(3791126.1)

Deneys Reitz Inc t/a Deneys (Reg No 1984/003385/21) Executive V David (Chair) BE Botha (Chief Executive Officer) A full list of directors is available for inspection at www.deneys.co.za

NN

Deneys
As the world moves

- 8 We remind you that the High Court has already expressed its displeasure with your conduct, in striking from the roll with costs, a spurious urgent application that you had brought in which you sought relief that the Court was incapable of granting. In that application you made unlawful, vexatious and defamatory accusations against our clients. Please expect to receive our clients taxed bill of costs for your payment shortly, evidencing the costs that were awarded against you by the Court in the aforementioned urgent application that you recently instituted.
- 9 You have further referred two separate disputes to the Labour Court in which you make similar untrue, vexatious and defamatory allegations against our clients. Our clients will defend these referrals and seek that they be dismissed with orders of punitive costs.
- 10 Accordingly, our clients are of the view that your conduct is, in general, vexatious and our clients reserve their rights to seek appropriate relief against you in due course.
- 11 We look forward to receiving your written response and confirm that in the interim our clients' rights remain reserved in full.

Yours faithfully


pp

Jason Whyte
Director
Deneys




NN

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IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 03

NOTE: This document was filed electronically by the Registrar on 16/4/2026 at 5:03:52 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED
BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 13:19
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: RE: FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION [N-CPT_MATTERS.FID2264505]
Attachments: Annexure_A_5%_Member_Contribution.PDF

Dear Ms Baker,

In response to your letter dated 15 April 2026, be advised that my communications are Protected Disclosures under the PDA and the Companies Act. I am not 'extorting' the Board; I am formally notifying them of a systemic fiscal leak and a material non-disclosure in the April 8th Integrated Report.

The attached Annexure clarifies that the primary objective of this statutory process is the **protection** of member funds and the rectification of a 9.5% premium hike that is based on documented **clinical** and IT failures.



Regarding your characterisation of 'unquantified amounts' be advised that my personal restitution is a matter of '**just and equitable**' compensation as prescribed by the PDA for occupational detriment.

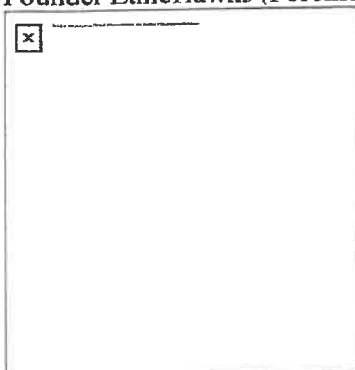
However, the primary 'quantified' demand of this statutory process is the the immediate **redemption of the 180 million daily leakage** and the **downgrade of the 9.5% contribution hike to 5%**. This represent a quantifiable saving to the membership of approximately **3.2 billion annually**-a figure that far outweighs any personal settlement and confirms the public interest of this disclosure.

Any attempt to interdict this disclosure will be met with an urgent application for a Writ of Mandamus and a report to the JSE regarding market deception.

Kindly deliver Annexure A to the Board.

Yours Professionally

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



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**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 04

NOTE: This document was filed electronically by the Registrar on 16/4/2026 at 5:04:22 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



**ELECTRONICALLY SIGNED
BY:**

**Registrar of The High Court,
Western Cape Division, Cape
Town**

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 15:43
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: FINAL STATUTORY CLARIFICATION: Private Resolution Path vs. Commencement of Statutory Siege

Dear Ms. Barker,

Further to my communication of 13:18 today, I hereby provide the final "Private Resolution Path" to resolve the statutory deadlock before the 13:24 deadline on 16 April 2026.

To facilitate a settlement that protects the membership and the scheme's solvency, the Board must ratify the following quantified schedule by the aforementioned deadline:

As per Annexure A (previously served), the Board must issue a formal resolution to downgrade the 2026 contribution hike from 9.5% to a maximum of 5%. This correction remediates the "Governance Tax" currently backfilling internal IT wastage and the R180 million daily clinical leakage.



Based on a Cost-to-Company (CTC) of R42,796.13 per month, my restitution for documented occupational detriment is quantified as follows:

Direct Restitution: R1,027,107.12 (24 months back-pay/substitution).

Property Loss: R145,000.00 (Total loss of fixed property resulting from detriment).

Professional Death Compensation: R5,135,535.60 (10-year compensatory future loss of earnings).

Clinical Provision: R750,000 (10-year specialist psychosocial/clinical care fund).

Statutory Costs: R250,000 (Forensic audit and Ethic Hawks operational expenses).

Total Settlement Value: R7,307,642.72

The Board is required to apply for a formal SARS Tax Directive for the total settlement under the category of "Compensation for Occupational Detriment." The Board shall provide a full tax indemnity to ensure the net amount is protected and structured as a capital settlement for damages.

Be advised that the invitations for the Liaison sessions have been formally issued to the leadership of the PSA, NEHAWU, DENOSA, and POPCRU. The Board has until 13:24 tomorrow to decide the outcome:

11:30 AM Liaison: Activation of Mandamus against SANC, DEL, and CMS.

<https://teams.live.com/join/9317804058155?p=3OxPhtrj39zfQYDWqY>

13:30 PM Outcome (The Disclosure or The Deal):

<https://teams.live.com/join/9392336908714?p=ihT4rLnWK7HyYFlnds>

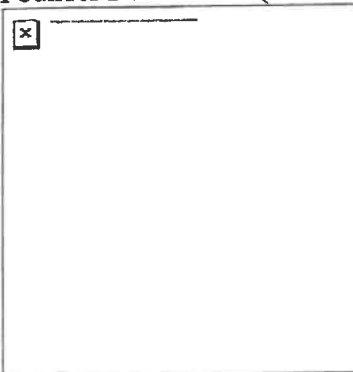
Scenario A (Settlement): 13:30 serves as a Victory Briefing for the 5% Member Deal. The Mahlangu RCA remains a private internal matter.

Scenario B (The Siege): 13:30 triggers the Full Forensic Disclosure of the R180 million daily leakage to Union legal teams for an immediate High Court Interdict.

The window for a private resolution closes at 13:24 tomorrow. I remain finished with silence.

Yours Professionally,

Sr. Wilbur W Mathee
Specialist Registered Nurse, BTech (Psych, Midw, Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



NN 

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**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 05

NOTE: This document was filed electronically by the Registrar on 16/4/2026 at 5:05:36 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



**ELECTRONICALLY SIGNED
BY:**

**Registrar of The High Court,
Western Cape Division, Cape
Town**

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 20:44
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: CLARIFICATION AND CORRECTION: Re: FINAL STATUTORY CLARIFICATION – Terminology Correction (No Withdrawal of Complaint)

Dear Recipients,

I am writing to clarify and correct a terminological imprecision in my previous correspondence dated 15 April 2026.

In my letters, I referred to 'R180 million daily clinical leakage.' Upon further refinement, I acknowledge that the word 'leakage' was imprecise.

The correct factual position is as follows:

The systemic integration gap between Gexus and DMS (proven in the attached Mahlangu RCA) causes misclassification of claims—specifically, chronic medication claims being paid from acute/day-to-day benefits.

This misclassification does not constitute 'leakage' in the strict forensic sense (i.e., money leaving the scheme incorrectly). Rather, it constitutes:

- Erosion of member day-to-day benefits
- Corruption of claims data
- Operational waste
- Plausible inflation of total claims spend

The R180 million figure refers to the average amount GEMS pays out in claims, not an amount lost to leakage.

The systemic gap contributes to the inflation of that R180 million spend, which in turn contributes to the 9.5% contribution increase.

I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint. The systemic failure documented in the Mahlangu RCA remains valid and warrants a forensic audit.

Yours professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



NN

COURT ONLINE COVER PAGE

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Proof of Service

NOTE: This document was filed electronically by the Registrar on 4/5/2026 at 12:12:24 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



**ELECTRONICALLY SIGNED
BY:**

**Registrar of The High Court,
Western Cape Division, Cape
Town**

4/5/2026-12:12:24 PM

Olebogeng Motlhaping

From: Microsoft Outlook
<MicrosoftExchange329e71ec88ae4615bbc36ab6ce41109e@deney.co.za>
To: Wilbur Matthee; wilburmat@gmail.com
Sent: 4 May 2026 11:36
Subject: Relayed: Afrocentric Investment Corporation Limited// William Wilbur Matthee Case No. 2026-086906 [IMAN-CPT_MATTERS.FID2264505]

Delivery to these recipients or groups is complete, but no delivery notification was sent by the destination server:

[Wilbur Matthee \(info@ethichawks.co.za\)](mailto:info@ethichawks.co.za)

[wilburmat@gmail.com \(wilburmat@gmail.com\)](mailto:wilburmat@gmail.com)

Subject: Afrocentric Investment Corporation Limited// William Wilbur Matthee Case No. 2026-086906 [IMAN-CPT_MATTERS.FID2264505]



Afrocentric
Investment Corp...

4/5/2026-12:12:24 PM

Olebogeng Motlhaping

From: Olebogeng Motlhaping
Sent: 4 May 2026 11:36
To: Wilbur Matthee; 'wilburmat@gmail.com'
Cc: Frances Barker; Jason Whyte
Subject: Afrocentric Investment Corporation Limited// William Wilbur Matthee Case No. 2026-086906 [IMAN-CPT_MATTERS.FID2264505]
Attachments: AFR1282 Commissioned supplementary affidavit and annexures 04.05.2026.pdf; AFR1282- Filing notice Supp Aff 04.05.2026.pdf

Tracking:	Recipient	Delivery	Read
	Wilbur Matthee		
	'wilburmat@gmail.com'		
	Frances Barker	Delivered: 4/05/2026 11:36	Read: 4/05/2026 11:50
	Jason Whyte	Delivered: 4/05/2026 11:36	
	'AFR1282 _ Defend client against alleged breach of Email'		



Dear Mr Matthee

Afrocentric Investment Corporation Limited / Wilbur William Matthee
Case No. 2026-086906

We refer to the abovementioned matter wherein we act for the applicant, AfroCentric Investment Corporation Limited.

Please find **attached**, for service:

1. Filing notice for the supplementary affidavit
2. The applicant's supplementary affidavit.

Kindly confirm receipt of this email.

Kind regards

Olebogeng Motlhaping | Candidate Attorney
Olebogeng.Motlhaping@deney.co.za

Deney Cape Town, South Africa
 9th floor, 117 on Strand, 117 Strand Street, Cape Town 8001, South Africa
 Tel: +27 21 405 1218 | Mobile: +27 71 874 1469



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We are a proudly BEE Level 1 Law Firm

4/5/2026-12:12:24 PM

Advisory: If our bank account details change, we will notify you by phone or in person, but never by email. Please always verify any change in our banking details by oral communication. Be suspicious of emails from unknown or external senders and be alert to impersonation attempts to redirect funds inappropriately. Always check the sender's email address.



**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No:

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

(Reg: 1988/000570/06)

and

WILBUR WILLIAM MATTHEE

Applicant



Respondent

NOTICE OF INTENTION TO OPPOSE

**TO: THE REGISTRAR OF THE ABOVE HONOURABLE COURT
AND TO: DENEYS INC, ATTORNEYS FOR THE APPLICANT**

(Email: jason.whyte@deneys.co.za)

KINDLY TAKE NOTICE that:

1. The Respondent, WILBUR WILLIAM MATTHEE, hereby gives notice of his intention to oppose the urgent application brought by the Applicant in the above-captioned matter.
2. The Respondent is a self-represented litigant. His address for service of all further process and documents in this matter is:

15 Bellevue Street
Voorbrug

Cape Town
7001
Email: info@ethichawks.co.za

3. The Respondent will deliver a full Answering Affidavit in due course, in accordance with such timetable as this Honourable Court may determine. The Respondent requests a reasonable opportunity of not less than 48 to 72 hours within which to do so.

4. The Respondent further intends to raise, inter alia, the following points in limine:

4.1 The matter was served on the Respondent at approximately 21:42 on 15 April 2026, less than 16 hours before the scheduled hearing, rendering it impossible for the Respondent to obtain legal representation or prepare a considered response. The urgency, to the extent it exists, is entirely self-created by the Applicant who was aware of the Respondent's forensic findings since at least October 2025. This constitutes an abuse of court process.

4.2 Service did not comply with the requirements of Rule 4 of the Uniform Rules of Court in that the Respondent was not properly served in a manner affording him adequate opportunity to oppose.

4.3 The Applicant has failed to make out a case for urgent relief in accordance with the requirements of Rule 6(12), in particular by relying on urgency that is self-created.

5. The Respondent places the Applicant and this Honourable Court on notice that:

5.1 The settlement demand of R7,307,642.72 is a quantified legal claim for occupational detriment, unlawful salary deductions, and related statutory breaches, which claims are formally before the Labour Court (Case Nos. 2026-077546 and 2026-083299). Seeking settlement of a legitimate and pending legal claim does not constitute extortion under South African law.

5.2 The Respondent's disclosures constitute Protected Disclosures within the meaning of the Protected Disclosures Act 26 of 2000 ("PDA") and concern systemic clinical and financial governance failures affecting 1.9 million GEMS beneficiaries.

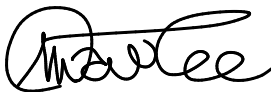
5.3 The Respondent denies that any intended disclosure involves or requires the release of individual patient medical records or "special personal information" as defined in section 26 of the Protection of Personal Information Act 4 of 2013 ("POPIA"). The disclosure pertains to systemic integration architecture failures between the Gexus and DMS platforms, actuarial miscalculations, and governance failures — all matters of public interest.

WHEREFORE the Respondent respectfully requests this Honourable Court to:



- (a) Postpone the hearing of the urgent application for a period of not less than 48 to 72 hours to enable the Respondent to obtain legal representation and to prepare and deliver a full Answering Affidavit;
- (b) In the alternative, strike the application from the urgent roll on the grounds of self-created urgency and/or abuse of process; and
- (c) Grant any further and/or alternative relief as this Honourable Court deems fit.

DATED AT CAPE TOWN ON THIS 16 DAY OF APRIL 2026



WILBUR WILLIAM MATTHEE

Respondent (Self-Represented)

15 Bellevue Street, Voorbrug, Cape Town, 7001

Email: info@ethichawks.co.za



TO: THE REGISTRAR

Western Cape Division, Cape Town

TO: DENEYS INC

Attorneys for the Applicant

9th Floor, 117 Strand Street, Cape Town, 8001

Email: jason.whyte@deneys.co.za

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No: 160/2026

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

(Reg: 1988/000570/06)

and

WILBUR WILLIAM MATTHEE



Respondent

ANSWERING AFFIDAVIT

I, the undersigned,

WILBUR WILLIAM MATTHEE

do hereby make oath and state that:

INTRODUCTION

1. I am an adult male South African citizen with identity number 8909035151087. I reside at 15 Bellevue Street, Voorbrug, Cape Town, 7001. I am the Respondent in these proceedings. I appear herein in person without legal representation, having been afforded insufficient time to retain counsel following service of the application papers on me at approximately 21:42 on 15 April 2026.

2. Save where the context indicates otherwise, the facts contained herein fall within my own personal knowledge and are true and correct. Where I make submissions of a legal nature, I do so on my own understanding and, to the extent necessary, reserve the right to supplement this affidavit once I have obtained legal representation.

3. I confirm that I hold a Postgraduate Diploma in Health Services Management (NQF Level 8, CPUT), a BTech in Psychiatric Nursing/Midwifery/Community Nursing and Communication, and am a Specialist Registered Nurse with approximately 18 years of clinical governance experience. I am the founder of EthicHawks Forensic Governance and Compliance Consultancy.

4. This affidavit is deposed in opposition to the Applicant's urgent application for an interim interdict (rule nisi). I oppose both the procedural basis of the application (urgency and service) and its substantive merits.

POINT IN LIMINE: URGENCY AND SERVICE

5. I raise the following points in limine which are dispositive of the application at the threshold:



5.1. **THE PUBLIC RECORD:** The information the Applicant seeks to interdict is already contained in my served and filed Statement of Claim in the Labour Court and my Section 162 Application in the High Court. Under the principle of open justice, these are public documents. One cannot interdict the disclosure of information that is already sitting in the public court files. This application is a redundant attempt to 'un-ring a bell' that has already been rung.

5.2. **SELF-CREATED URGENCY:** The Applicant was aware of my forensic findings regarding the Gexus/DMS integration failure, the alleged governance failures at GEMS, and my protected disclosure concerns since at least October/November 2025. The Applicant's attorneys, Deneys, sent a cease-and-desist letter on 15 April 2026 at what appears to be business hours, indicating awareness of the matter throughout the day. The application papers were only served on me at approximately 08:53 on 16 April 2026. The Applicant has accordingly manufactured its own urgency by delaying service to prevent me from obtaining legal representation. This constitutes an abuse of the rules of court. I refer this Court to the authority in *Salt and Another v Smith* 1991 (2) SA 186 (NmHC) and the principle established in *Luna Meubels Vervaardigers (Edms) Bpk v Makin and Another* 1977 (4) SA 135 (W), that urgency must not be self-created.

5.3 **IMPROPER SERVICE:** The papers were served on me less than 2 hours before the scheduled hearing on 16 April 2026. Under Rule 6(12)(b) of the Uniform Rules of Court, an applicant in urgent proceedings is required to set out explicitly the reasons why service in the ordinary manner is not appropriate and to ensure that the respondent has a reasonable opportunity to prepare. No adequate opportunity was afforded to me to prepare or to brief counsel. The service is accordingly defective and the application falls to be struck from the roll. The Applicant's conduct in serving the finalized papers at 08:53 AM for a 10:00 AM hearing is a gross violation of the Uniform Rules of Court. It is physically and legally impossible for a respondent to read, digest, and reply to a complex High Court application in 67 minutes. This is a deliberate attempt to 'steamroll' a self-represented whistleblower and obtain an order by default."

SUBSTANTIVE RESPONSE TO FOUNDING AFFIDAVIT

A. The Settlement Demand is a Quantified Legal Claim, Not Extortion

6. The Applicant's characterisation of my settlement demand of R7,307,642.72 as "extortion" (para 9, 49, 51 of the founding affidavit) is denied and is legally incorrect. The demand is a fully itemised and legally quantified claim for:

6.1 Direct Restitution (R1,027,107.12): Comprising 24 months of back-pay/substitution arising from the unlawful salary deductions and constructive dismissal.

6.2 Property Loss (R145,000.00): Representing the total loss of fixed property directly resulting from the Applicant's occupational detriment.

6.3 Professional Death Compensation (R5,135,535.60): A 10-year compensatory future loss of earnings claim arising from the permanent destruction of my professional career and reputation by the Applicant's conduct.

6.4 Clinical Provision (R750,000.00): A 10-year specialist psychosocial and clinical care fund to address the profound PTSD and psychiatric injury resulting from targeted occupational detriment.

6.5 Statutory Costs (R250,000.00): Representing the forensic audit costs and operational expenses of EthicHawks incurred in documenting the systemic failures and governance breaches.



7. These claims are substantially identical to the claims formally filed in the Labour Court under Case Nos. 2026-077546 (BCEA section 77A claim for unlawful salary deductions) and 2026-083299 (Statement of Claim for constructive dismissal and related claims, filed 9 April 2026). The Applicant's own founding affidavit acknowledges these proceedings at paragraph 25.

8. The R7.3 million referenced by the Applicant is not a 'demand for silence' (extortion). It is the prayed-for relief in my pre-existing Labour Court litigation for lost income and benefits due to the Applicant's occupational detriment against me. Seeking the resolution of a pending legal claim is a standard litigation procedure, not a criminal act.

9. It is a fundamental principle of our law that an offer to settle a legitimate legal claim which is already before a court, even in robust or forceful terms, does not constitute extortion. The demand was not for money to suppress a fabricated claim — it was a settlement proposal backed by pending litigation. Seeking to resolve legitimate legal claims through settlement is not only lawful, but is encouraged by our courts. I refer to *Nortje en 'n Ander v Prokureur-Generaal*, Kaap 1978 (2) SA 659 (C) on the distinction between threats of harm and assertions of legal rights.

10. The Applicant conflates the forcefulness of my communications, born of genuine distress and occupational injury, with criminal conduct. The language I used in my emails of 14 and 15 April 2026 was urgent and direct. It was not a threat to cause unlawful harm — it was a declaration that I would exercise lawful statutory and regulatory rights. This distinction is legally critical.

B. The Forensic Disclosure Does Not Threaten Individual Patient Data

11. The Applicant's suggestion (paras 46, 47, 73.1 of the founding affidavit) that my proposed disclosure constitutes a threatened breach of POPIA in respect of 1.9 million GEMS beneficiaries

is denied, is misleading to this Court, and is designed to manufacture a basis for irreparable harm that does not in fact exist.

12. The "Mahlangu RCA" and "forensic payload" to which the Applicant refers are documents relating to a systemic clinical integration failure between the Gexus and DMS software platforms operated by Medscheme. The documents:

12.1 Demonstrate that an automated "non-adherence letter" was erroneously generated and sent to a GEMS member (Mrs Mahlangu) due to an integration gap between Gexus and DMS — not any action by the member.

12.2 Identify a structural governance failure in how the two platforms communicate patient medication benefit category changes.

12.3 Constitute an internal root cause analysis reflecting systemic operational risk — not a document containing the individual health records of 1.9 million beneficiaries.



13. The disclosure I intend to make to trade unions and regulators concerns: (a) the existence of a systemic integration gap; (b) its financial and clinical implications; and (c) the fact that the Board appears to have been aware of this risk and failed to disclose it as a material governance matter. This is a matter of institutional and governance-level information, not a data dump of patient records.

14. Accordingly, the POPIA argument raised by the Applicant is a deliberate overstatement intended to frighten this Court into granting relief. I deny that any POPIA breach is intended or would result from the disclosures I propose to make.

C. The Terminological Correction Evidences Good Faith

15. The Applicant relies heavily (paras 36, 37, 58 of the founding affidavit) on my email of 15 April 2026 (Annexure GVW5) in which I corrected my use of the word "leakage."

16. This correction is evidence of my forensic credibility and good faith, not — as the Applicant suggests — of a concession that undermines my case. The correction was a voluntary terminological refinement made in the interests of precision:

16.1 The word "leakage" implied money physically leaving the scheme through fraud or misappropriation.

16.2 What I documented is more accurately described as: (a) erosion of member day-to-day benefits; (b) corruption of claims data; (c) operational waste; and (d) plausible inflation of total claims expenditure — arising from the systemic Gexus/DMS integration gap.

16.3 The financial impact — an inflated claims environment contributing to the 9.5% premium increase borne by 1.9 million government employees — remains documented and unchanged.

17. A whistleblower who voluntarily corrects imprecise language before any court intervention is demonstrating exactly the kind of good faith that the PDA and our courts seek to encourage. The Applicant's attempt to weaponized this correction as an admission of bad faith or absence of evidence is rejected.

D. The Protected Disclosures Act Defence

18. The Applicant argues at paragraph 52 of the founding affidavit that neither the Companies Act 71 of 2008 nor the Protected Disclosures Act 26 of 2000 affords protection to disclosures made by a person who, at the time of the disclosure, is no longer an employee.

19. This legal submission is disputed. I submit as follows:

19.1 The PDA defines "employee" in section 1 as including a "former employee." Section 1 read with section 3 of the PDA extends protection to disclosures made by former employees in respect of improper conduct that occurred during their employment.

19.2 The information I possess and propose to disclose was obtained during my employment with Medscheme in my capacity as Care Coordinator/Case Manager dealing with GEMS member clinical claims. The improper conduct (the Gexus/DMS integration failure and the governance failures surrounding it) occurred during and continued beyond my employment.

19.3 The fact that my employment has ended does not extinguish my statutory duty to report improper conduct that affects public health and safety. The Mahlangu case involves the clinical management of a GEMS beneficiary. Failure to disclose a known systemic risk to patient clinical outcomes is a patient safety issue which I, as a registered healthcare professional, am obligated to report under the Nursing Act 33 of 2005 and the Health Professions Act 56 of 1974.

20. Even if the PDA protection were found not to apply (which is denied), the common law right of a citizen to approach regulatory and oversight bodies, trade unions, and public institutions with evidence of governance failures is well established. The Applicant is not entitled to a court order preventing a citizen from exercising these rights.

E. The Public Interest Dimension

21. The Applicant characterises my disclosures as purely self-interested and designed to coerce payment. This is denied. The following public interest considerations are relevant to this Court's exercise of its discretion:

21.1 GEMS is a medical scheme serving approximately 1.9 million government employees, including nurses, police officers, teachers, and other essential workers. The clinical integrity of GEMS's administration is a public interest matter of the highest order.

22.2 The 9.5% premium increase approved for 2026 (as referenced in Actuarial Practice Note 303 — "APN 303") requires justification on the basis of accurate claims data. If the Gexus/DMS integration gap has contributed to inflated claims data that underpinned this increase, GEMS members are entitled to know this.



23.3. The Applicant seeks to stop me from explaining the APN 303 Risk Loading to the Unions. This calculation is what drives the 9.5% hike. It is not 'proprietary trade secret'—it is the actuarial basis for a premium hike that affects 2.4 million lives. The public interest in knowing why their premiums are increasing by 9.5% outweighs the Applicant's desire to hide an administrative integration gap

24.3 Medscheme's dual role as both payroll deductor and scheme administrator for GEMS creates structural governance concerns that fall squarely within the oversight mandate of the Council for Medical Schemes under the Medical Schemes Act 131 of 1998.

25.4 AfroCentric Investment Corporation is a JSE-listed entity (JSE: ACT). If the Gexus/DMS integration failure represents a material risk that was not disclosed in the Applicant's 8 April 2026 Integrated Report, this is a matter directly engaging the Applicant's disclosure obligations under the JSE Listings Requirements and the Companies Act.

25. The balance of convenience does not favour the Applicant. An interim interdict silencing a former employee's protected disclosures concerning governance failures affecting nearly 2 million public servants is a drastic remedy that strikes at the constitutional rights to freedom of expression and access to information. These rights must be weighed against the Applicant's commercial interests.

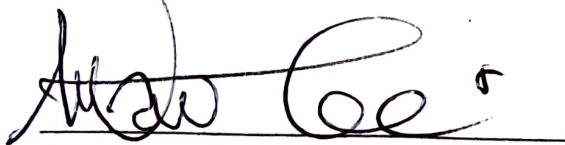


PRAYER

WHEREFORE the Respondent respectfully prays that this Honourable Court:

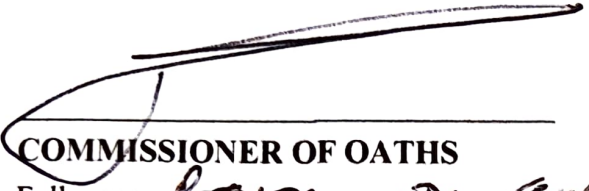
1. Dismiss the Applicant's application for urgent interim relief and/or strike the application from the urgent roll, with costs;
2. In the alternative, postpone the matter for a period of not less than 48 to 72 hours to enable the Respondent to obtain legal representation and file a full Answering Affidavit;
3. Declare that the Respondent's proposed disclosures to trade unions and regulatory bodies constitute Protected Disclosures within the meaning of the Protected Disclosures Act 26 of 2000, read with the Nursing Act 33 of 2005 and the Health Professions Act 56 of 1974;
4. In respect of costs: that the Applicant bear the costs of this application on the scale as between attorney and client, given the abuse of process constituted by the midnight service and the attempt to characterise a legitimate legal claim as extortion; and
5. Grant any further and/or alternative relief as this Honourable Court deems just and equitable.

I hereby declare that the contents of this affidavit are within my personal knowledge, true and correct.


WILBUR WILLIAM MATTHEE

Deponent

I CERTIFY that this affidavit was SIGNED AND SWORN TO before me at DELFT on this the 16TH day of April 2026, the deponent having acknowledged that he knows and understands the contents of this affidavit, he has no objection to taking the prescribed oath, and considers it binding on his conscience.


COMMISSIONER OF OATHSFull name: PASTOR BENJAMIN J. MASEMOLADesignation: BD 25513

PASTOR BENJAMIN J. MASEMOLA
MARRIAGE OFFICER
COMMISSIONER OF OATHS
No. 18 DIGTEBY CRESCENT
VOORBRUG DELFT 7100
Cell: 082 891 0844

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN
CASE NO: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent



INDEX OF ANNEXURES

SUPPLEMENTARY ANSWERING AFFIDAVIT (FINAL CONSOLIDATED)

Respondent Acting in Person — Case No. 2026-086906

This bundle contains **22** annexures filed in support of the Respondent's Supplementary Answering Affidavit. Each annexure is preceded by a tab page identifying the document by reference, date, category, description, and its relevance to these proceedings. The annexures are listed below in chronological order and by reference number.

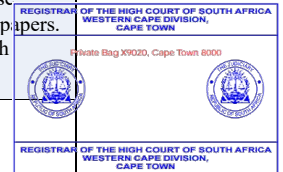
Total Annexures: 22 | Period covered: **January 2024 – April 2026** | Respondent: **Wilbur William Matthee (acting in person)**

CATEGORY	ANNEXURE REFERENCE(S)
<i>Employment Record / Contract</i>	A1
<i>Recruitment Documentation</i>	WW3
<i>Impact Statement</i>	IMP1
<i>Internal Escalation Emails</i>	EXEC1
<i>Board GRC Escalations (3)</i>	GRC1, GRC2, WW4
<i>CCMA Papers</i>	OA1, RA1
<i>Exit Documentation (4)</i>	EXIT2, EXIT3, EXIT4, EXIT3-COS
<i>Correspondence — Attorneys / DEL</i>	WW1, WW5
<i>Labour Court Papers</i>	WW2
<i>Founding Papers Cross-Reference (3)</i>	GVW4, GVW5, DEC1
<i>Affidavit of Destitution</i>	WW6

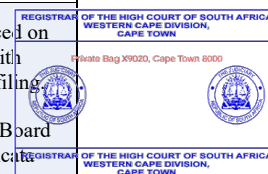
<i>Forensic Root Cause Analysis</i>	VICT1
<i>Professional Reference</i>	RESU1

FULL CHRONOLOGICAL INDEX

REF	DATE	CATEGORY	DOCUMENT DESCRIPTION	RELEVANCE / PURPOSE IN THESE PROCEEDINGS
A1	9 April 2024 (signed 18 April 2024)	<i>Employment Record</i>	Employment Contract — Respondent designated "Care Coordinator" (IRC78739), signed by GM Barbara Johnson.	Proves title imposed without consultation. Contradicts Applicant's use of "Case Manager" in founding papers. Fatal contradiction with Certificate of Service.
WW3	29 January 2024	<i>Recruitment Email Chain</i>	Vacancy email chain: Neo Sekgoka (Human Capital Intern) communicates "Specialist Care Manager" assessment. Respondent's email of 29 Jan 2024 at 14:14 voluntarily discloses pending blood-alcohol trial and provides updated CV.	Establishes radical transparency during recruitment. Proves Respondent was not induced by misrepresentation. Counters any attempt to use the pending trial to impugn character.
IMP1	2 November 2025	<i>Impact Statement</i>	Impact Statement submitted by Respondent to HR Business Partner — documents chronic stress, erosion of self-confidence, isolation, and professional stagnation caused by the hostile work environment created by Mary-Ann Jones; cites specific incidents including no-win directives, out-of-hours demands, and denial of written record.	Establishes subjective element of constructive dismissal. Contemporaneous record of deteriorating employment conditions predating resignation.
EXEC1	4 December 2025	<i>Internal Escalation Email</i>	Executive Leadership Escalation email from Respondent's Medscheme email account — documents: (1) unlawful salary deduction >40% during mental health admission; (2) continuous retaliation and victimisation; (3) 20% reduction in performance metrics; (4) 30+ days institutional silence. Requests paid recuperation leave, financial settlement independently assessed by Risk & Compliance, and institutional commitments.	Final good-faith internal attempt prior to CCMA referral. Satisfies requirement to exhaust internal remedies. Directly contradicts any suggestion of bad faith or vexatious conduct.
GRC1	9 December 2025	<i>Board GRC Escalation (1st)</i>	Formal GRC Escalation to Dr ATM Mokgokong (Chairman, Social & Ethics Committee) with 38 attachments. Includes executive summary table of King IV governance failures (Principles 2, 3, 14, 16). Formal request for independent investigation and Board-mediated resolution. Filed prior to Manyati opposing affidavit.	Establishes Board-level notice of governance failures before OA1 was filed. Demonstrates protected disclosure made in good faith. Grounds King IV / Companies Act governance argument.



REF	DATE	CATEGORY	DOCUMENT DESCRIPTION	RELEVANCE / PURPOSE IN THESE PROCEEDINGS
OA1	10 December 2025	CCMA Opposing Affidavit	Notice of Opposition and Answering Affidavit of Xolile Vincent Manyati, Senior Employee Relations Specialist (CCMA Case No. WECT23564-25, Medscheme Holdings v Wilbur Matthee). Paragraph 6.3: PTSD and depression characterised as "an excuse" and "an afterthought". Respondent misstated as "care coordinator". Punitive costs sought.	Primary evidence of Applicant's bad faith. Non-medical deponent attacks uncontested psychiatric diagnosis under oath. Respondent's designation misstated in a sworn document. Directly contradicts Applicant's position in this application that it acts in good faith.
GRC2	11 December 2025	Board GRC Escalation (2nd)	Second Board-Level GRC Escalation: "Legal Opposition Affidavit Confirms Institutional Bad Faith & Escalates Governance Risk". Attaches OA1 as Annexure A. Identifies five categories of institutional bad faith: (1) dismissal of psychiatric condition; (2) misrepresentation of title; (3) character attacks; (4) punitive cost demand; (5) trivialisation of financial destitution. Requests Board acknowledgment by 12 December 2025 at 12:00.	Proves Board was placed on notice of OA1's bad faith within 24 hours of its filing. Establishes deliberate institutional silence at Board level. Grounds <i>res judicata</i> argument in counter-application.
RA1	11 December 2025	CCMA Replying Affidavit	Respondent's Replying Affidavit to CCMA Condonation Opposition (Case WEC123564-25), signed at Delft. Rebuts Manyati affidavit in full. Establishes continuous harm doctrine (Gauteng Department of Health v Tsomakae [2017]). Documents OA1 as independent post-referral unfair labour practice. Responds to punitive costs demand and prejudice argument. Demonstrates overwhelming prospects of success.	Establishes legal basis for CCMA jurisdiction. Continuous harm doctrine applied. Demonstrates Respondent's consistent principled litigation conduct.
WW4	16–18 December 2025	Board GRC Escalation (3rd) / Retraction / Suppression Email	Three documents: (1) Maximum Severity GRC3 Escalation 16 Dec 2025 — Formal Memorandum to Board Audit & Risk Committee regarding management interference in GEMS Case 000655789. Dependent 02, suppression of findings, and retaliation (audio recording of Mary-Ann Jones stating refusal "is insubordination"); 24-hour compliance window. (2) Voluntary Retraction email 17 Dec 2025 — sent on public holiday, procedurally invalidating deadline; immediately retracted with apology. (3) Monwabisi Kula (CRO) suppression email 18 Dec 2025 — instructing Respondent to cease emailing directors.	Three separate grounds: (1) Establishes patient-safety protected disclosure re GEMS 000655789. (2) Voluntary retraction proves procedural good faith — vexatious litigants do not retract. (3) Kula email constitutes direct suppression of protected disclosure by the CRO — key evidence of retaliation.
EXIT2	14–15 January 2026	Exit Documents Request Chain	Email chain: Respondent's email 14 Jan 2026 to Sipokazi Makaula requesting retirement and UIF forms.	Evidences deliberate administrative obstruction of exit document processing.



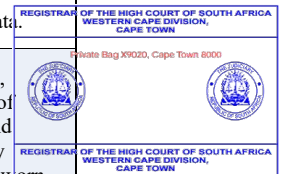
REF	DATE	CATEGORY	DOCUMENT DESCRIPTION	RELEVANCE / PURPOSE IN THESE PROCEEDINGS
			Makaula response 15 Jan 2026 requesting basic identity details despite the Respondent having been identified by name in the Manyati CCMA affidavit filed the previous month.	Manyati's affidavit identified Respondent by name, designating, title, and CCMA case number; any claim that identity was unknown is untenable.
EXIT3	15–19 January 2026	UIF Non-Compliance Notice (5-message chain)	URGENT Notice of Statutory Non-Compliance (UIF). Includes uFiling portal screenshot: MEDSCHEME HOLDINGS PTY LTD (201103-202702) — June 2025 flagged "No Information" despite UIF deduction appearing on payslip. Demands UI-19, Service Certificate and Umbrella Fund Withdrawal Forms by 19 Jan 2026 at 12:00. Sipokazi Makaula response 19 Jan 2026 provides documents but incorrectly asserts that resignation bars UIF claim. Includes Sanlam withdrawal email chain 15 Jan 2026.	Establishes UIF non-remittance irregularity for June 2025. Makaula's resignation-bar assertion is legally incorrect re constructive dismissal. Direct cause of administrative deadlock with the Department of Employment and Labour. Grounds declaratory relief prayer
EXIT4	19 January 2026	Certificate of Service — Correction Required (4-message chain)	Respondent's letter to Monwabisi Kula and Lindiwe Miyambu objecting to Certificate reflecting "Care Coordinator" — aligned with Manyati CCMA affidavit title rather than payroll records. Reference to "Naming Convention" Teams meeting (attended by Sipokazi Makaula and Nthabiseng Nkatane) where Operational Manager directed identifier updates. Cheryl-Dawn Modern's response 19 Jan 2026 at 15:40 maintaining "Care Coordinator" and asserting no naming-convention changes implemented. Respondent's final reply at 16:30 placing Certificate on Labour Court record. Screenshot of Respondent's Medscheme email signature dated 15 October 2025 showing title "Case Manager: GEMS Active Disease Risk Management".	Proves Applicant knowingly refused to correct erroneous Certificate. Modern's response directly contradicts Respondent's email signature and "Naming Convention" Teams meeting record. Grounds fatal contradiction argument in paragraph 15 of the affidavit.
EXIT3-COS	19 January 2026	Certificate of Service (as issued)	Certificate of Service issued by Medscheme Holdings upon Respondent's departure — reflects designation "Care Coordinator". This designation is contrary to: (1) payroll records; (2) the "Naming Convention" Teams meeting record; (3) the Respondent's professional Medscheme email signature ("Case Manager"); and (4) the Applicant's own founding affidavit in this application, which designates the Respondent as "Case Manager".	The primary physical document evidencing the fatal contradiction. Relied upon by the Department of Employment and Labour to withhold UIF benefits. Establishes that the Applicant cannot simultaneously call the Respondent a "Case Manager" in interdict papers and a "Care Coordinator" in exit documentation.
WW1	15 April 2026	Deneys Attorneys Letter	Letter from Jason Whyte of Deneys Attorneys to Respondent alleging that the Respondent's demand was	Directly prompted Respondent's same-day provision of fully itemised R7,307,642.72 quantification



REF	DATE	CATEGORY	DOCUMENT DESCRIPTION	RELEVANCE / PURPOSE IN THESE PROCEEDINGS
			"unquantified" and relying on this to support an allegation of extortion.	(Annexure GVV4). A genuine extortionist does not itemise at the opposing party's request. Deneys' own letter defeats the extortion allegation.
WW2	9 April 2026	<i>Labour Court Statement of Claim</i>	Labour Court Statement of Claim filed by Respondent (Case No. 2026-083299) — includes express reservation of right to quantify damages, establishing that the claim was on record before the quantification was provided.	Demonstrates that the R7,307,642.72 quantification was not a new demand or threat — it was the first full Rand expression of an existing, filed Labour Court claim. Defeats extortion allegation.
GVW4	15 April 2026	<i>Quantification Schedule — R7,307,642.72</i>	Fully itemised quantification of the Respondent's damages (R7,307,642.72) provided on 15 April 2026 to Deneys Attorneys at their express written request. Breakdown by head of damages aligned with Labour Court claim. (Filed in Applicant's founding papers.)	Evidences good faith and genuine litigant conduct. Represents less than 0.24% of the estimated annual Governance Tax (R3.016bn). Under the Protected Disclosures Bill 2026, a 25% whistleblower award on recovered funds would yield R754m — making the extortion characterisation policy-blind.
GVW5	15 April 2026 at 20:44	<i>Correction Email — "Leakage"</i>	Voluntary email from Respondent to Applicant at 20h44 on 15 April 2026: "I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint."	A bad-faith actor does not issue voluntary corrections. This email is direct evidence of good faith and careful epistemic standards in communication. Applicant's reliance on the original use of "leakage" to allege bad faith is an abuse of process.
WW5	15 April 2026	<i>DEL Email — Refusal to Release Benefits</i>	Email from the Department of Employment and Labour dated 15 April 2026 confirming refusal to release UIF benefits to Respondent.	Establishes the concrete and immediate harm of the administrative deadlock created by the erroneous Certificate of Service and UI-19 form. Demonstrates tangible advantage to be obtained from declaratory relief — not an abstract or hypothetical interest.
WW6	April 2026	<i>Affidavit of Destitution</i>	Affidavit sworn by Respondent confirming: (1) no current income; (2) no savings, investments, or significant assets; (3) inability to afford transport to attend court; (4) inability to afford legal representation; (5) dependence on family and charity; (6) request for waiver of filing fees and security for costs.	Context for all procedural conduct. Explains inability to attend the 16 April 2026 hearing. Grounds request for attorney-client costs against Applicant for dragging a destitute respondent into urgent proceedings on 67 minutes' notice.



REF	DATE	CATEGORY	DOCUMENT DESCRIPTION	RELEVANCE / PURPOSE IN THESE PROCEEDINGS
VICT1	2025	<i>Root Cause Analysis (Forensic)</i>	Root Cause Analysis: Gexus/DMS Integration Gap — forensic analysis establishing that the systemic integration failure generates false non-adherence data, compelling actuaries to apply maximum APN 303 risk loading, inflating the GEMS premium increase from the CMS-stipulated 3.3–4% to 9.5%. Estimated excess cost: R3.016 billion per annum across 1.9 million GEMS members.	Core substantive protected disclosure. Establishes public interest at stake. Grounds the APN 303 / NHI public interest arguments. Demonstrates objective basis for Respondent's disclosures — not speculation but empirical data-driven analysis. Applicant's own paragraph 40 admits the Gexus/DMS platforms manage the relevant data.
RESU1	2026	<i>Letter of Recommendation — Dr P.M.J. Ohm</i>	Professional reference letter from Dr P.M.J. Ohm, medical doctor, Mitchells Plain District Hospital Emergency Unit, where Respondent works as shift leader: confirms "depth of clinical knowledge", ability to "de-escalate any heated situation with a calm tone and demeanour", and commitment to "protect patient dignity".	Independent, objective, professional evidence of clinical competence and mental fitness. Directly contradicts Manyati's sworn characterisation of PTSD as an "excuse". A specialist medical practitioner's assessment outweighs a non-medical HR official's lay opinion — particularly when made under oath.
DEC1	2026	<i>Supporting Declaration</i>	Supporting declaration filed in the Applicant's founding papers.	Cross-referenced in founding papers. Already before the Court.



IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN
CASE NO: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent



**NOTICE OF COUNTER-APPLICATION FOR DECLARATORY
RELIEF**

TO: THE REGISTRAR OF THE HIGH COURT, WESTERN CAPE DIVISION, CAPE TOWN

AND TO: THE APPLICANT'S ATTORNEYS, DENEYS (JASON WHYTE —
jason.whyte@deneys.co.za)

KINDLY TAKE NOTICE that the Respondent hereby institutes a counter-application for the declaratory relief set out in **Part Q** of the Supplementary Answering Affidavit.

TAKE FURTHER NOTICE that this counter-application is **not conditional** upon the Applicant proceeding with its main application. The Respondent seeks the declaratory orders independently and the counter-application will proceed even if the Applicant withdraws its main application under Case No. **2026/086906**.

TAKE FURTHER NOTICE that the Respondent will move for an order in terms of the prayer contained in **Part R** of the Supplementary Answering Affidavit, read with the prayer below.

TAKE FURTHER NOTICE that the Respondent has elected to incorporate the counter-application in his answering papers, as permitted by **Rule 6(5)(e)** of the Uniform Rules of Court and the practice confirmed in *Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC)*.

TAKE FURTHER NOTICE that the Respondent will apply for an order that the counter-application be enrolled for hearing simultaneously with the main application, or on such other date as this Honourable Court may determine, and that in the event the main application is withdrawn, the counter-application shall proceed on its own.

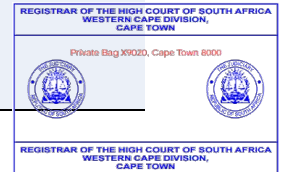
DATED at CAPE TOWN on this 20th day of APRIL 2026.

WILBUR WILLIAM MATTHEE

Respondent (acting in person)

15 Bellevue Street, Voorbrug, Cape Town, 7001

Email: info@ethichawks.co.za



TO: The Registrar, High Court, Western Cape Division, Cape Town

CC: Deney's Attorneys (Jason Whyte) — jason.whyte@deney's.co.za

COURT ONLINE COVER PAGE

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 01

NOTE: This document was filed electronically by the Registrar on 4/5/2026 at 12:00:19 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED
BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Honourable Acting Justice Mphego

Given on this 16th day of April 2026

2026-086906
Case No: 160/2026

In the matter between:

AfroCentric Investment Corporation Limited

Applicant

and

Wilbur William Matthee

Respondent



DRAFT ORDER

After having heard counsel for the applicant and having considered the matter, it is ordered that:

- 1 The provisions of the rules relating to time periods, forms and manner of service referred to therein are dispensed with and any non-compliance with such provisions is condoned, and the matter is dealt with as one of urgency in terms of Rule 6(12).
- 2 A *rule nisi* is issued calling upon the respondent to show cause on **28 May 2026** why a final order should not be made in the following terms:
 - 2.1 The respondent is interdicted and restrained from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police

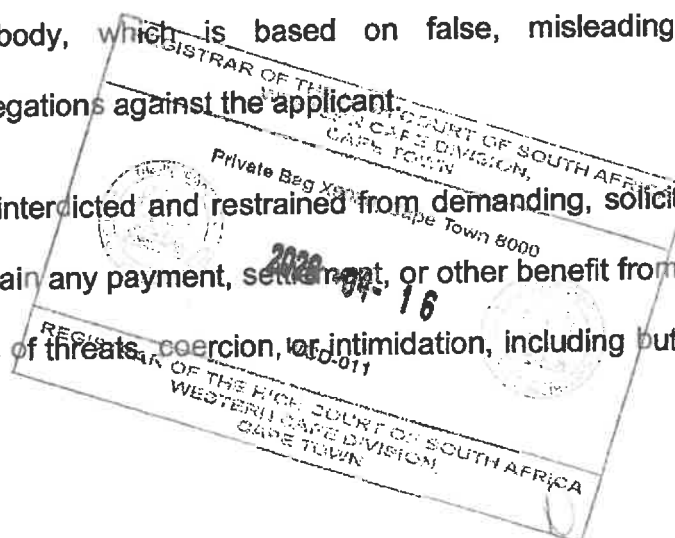
and Prisons Civil Rights Union (POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the "Mahlangu Root Cause Analysis" or "Mahlangu RCA", or any information relating to the applicant's internal systems, clinical processes, financial affairs, or integration architecture.

- 2.2 The respondent is interdicted and restrained from making, publishing, or causing to be published any defamatory, false, or malicious statements

concerning the applicant, its directors, officers, employees, auditors, or any regulatory bodies, including but not limited to any statement referred to as a "Whistleblower's Manifesto" or any public statement alleging fraud, market deception, misconduct, or impropriety on the part of the applicant or any person associated with it.

- 2.3 The respondent is interdicted and restrained from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant.

- 2.4 The respondent is interdicted and restrained from demanding, soliciting, or attempting to obtain any payment, settlement, or other benefit from the applicant by means of threats, coercion, or intimidation, including but not



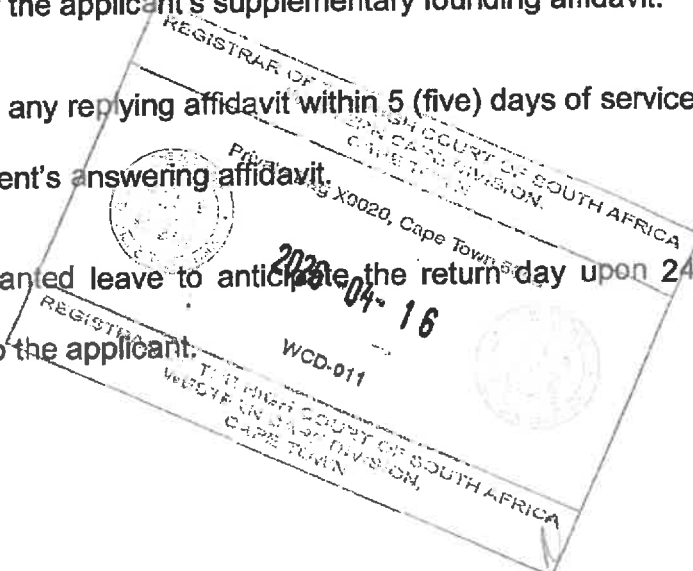
Deney's
Per: Jason J Whyte
(Ref: AFR1282 / J Whyte)
Tel: 021 405 1208
Email: Jason.Whyte@deney's.co.za

limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings.

- 2.5 The respondent is 2.22.4interdicted and restrained from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs.



- 2.6 The respondent is to pay the costs of this application.
- 3 The orders per paragraphs 2.1 to 2.6 shall operate as interim orders with immediate effect pending the return date of the *rule nisi*.
- 4 The applicant is granted leave to supplement its founding affidavit within 10 (ten) days of the date of this order.
- 5 The respondent is to file any answering affidavit within 15 (fifteen) days of service upon him of the applicant's supplementary founding affidavit.
- 6 The applicant is to file any replying affidavit within 5 (five) days of service upon it of the respondent's answering affidavit.
- 7 The respondent is granted leave to anticipate the return day upon 24 hours' written notice to the applicant.



- 8 Service of this order is to be effected on the respondent by email to
info@ethichawks.co.za.

BY ORDER OF THE COURT

COURT REGISTRAR

Deneys

Per: Jason J Whyte

(Ref: AFR1282 / J Whyte)

Tel: 021 405 1208

Email: Jason.Whyte@deneys.co.za



COURT ONLINE COVER PAGE

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 10

NOTE: This document was filed electronically by the Registrar on 4/5/2026 at 12:06:59 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED
BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**

LM15

UNEMPLOYMENT INSURANCE ACT 63 OF 2001

Employers Declaration of Employees for the month of

Information to be supplied in terms of Section 56(1&3) read with Regulation 13(1&2)

An employer must by the seventh day of each month inform the Commissioner of any changes arising during the previous month regarding the employer's contact details or employees remuneration details including new appointments and termination of service. The employer must forward this form to the **Unemployment Insurance Fund** at (012) 337-1943/44 or 337-1580/81/82 or submit same at any branch of the UIF which is closest to the employer. The completed form can also be faxed to any of the following numbers: **Pta** (012) 309 5142/5286; **Jhb** (011) 497 3293; **Dbn** (031) 366 2156; **Polokwane** (015) 290 1670; **Mmabatho** (018) 384 2658; **East Ldn** (043) 701 3263; **Bfth** (051) 447 9353; **CT** (021) 441 8024; **Wth** (013) 656 0233; **PE** (041) 586 1541; **Gmn** (011) 873 2212; **Gauteng** (011) 873 2550; **Pmb** (033) 394 5069; **Kimberley** (053) 832 7218.

1. EMPLOYER DETAILS

1.1 UIF Employer Reference No 0081266 / 3 Branch No 22032 1.2 PAYE Reference No (If registered with SARS) 7000720025
 1.3 Trading name of business Medscheme Holdings Pty(Ltd) 1.4 Physical Address 37 Conrad Road, Florida North, 1708
 1.5 Address where employees listed in Item 2 work (if different to the address in 1.4) P O Box 1101, Florida North, 1708
 1.6 Postal address P O Box 1101, Florida North, 1708
 1.7 Co. Reg.No (CIPRO No) 19700 1.8 E-mail address Natasha.Johnson@medscheme.co.za 1.9 Fax No 011 671 6489 1.10 Phone No 011 671 6489 1.11 Authorised person** N Johnson

2. EMPLOYEE DETAILS

2. EMPLOYEE DETAILS																																		
A Surname	B Initials	C ID Number (13 Digit bar-coded RSA ID No)													D* Total (Gross) Remuneration paid to Employee Per Month		E* Total Hours Worked during Month	F Commencement date of Employment						G Termination Date						H Reason for Termination (Use Termination Codes as supplied at the bottom of the page)	I Indicate whether contributor or non- contributor (YES OR NO)	J *** If non- Contributor state reason (Use codes at bottom of page)		
															R	c		D	D	M	M	Y	Y	D	D	M	M	Y	Y					
Matthee	WW	8	9	0	9	0	3	5	1	5	1	0	8	7	42 796	13		162.5	0	1	0	5	2	4	1	2	1	2	2	5		6	Yes	

I, Natasha Johnson, ID No 6909300157084, declare that the above information is true and correct. I understand that it is an offence to make a false statement.

AFROCENTRIC HEALTH
SALARIES DEPARTMENT
P.O. BOX 1101
FLORIDA GLEN, 1708

EMPLOYER SIGNATURE

DATE 19 January 2026

DESCRIPTIONS

- ** If the employer is not resident in the RSA, or is a body corporate not registered in the RSA, an authorised person must carry out the duties of the employer in terms of this Act.
 D* Remuneration means actual basic salary plus payment in kind (Declare actual gross salary)
 If paid Weekly, convert wages to monthly salary (weekly wages X 52/12)
 E* Total Hours Worked i.e. Actual hours worked during the month (only applicable for employees that are paid per hour)
 Employers may also submit these details electronically from payrolls or on the UIF's website at www.labour.gov.za
 Tel. no (012) 337 1680/1700
 Only Applicable for Commercial Employers

Code

(J) Reason for Non-Contribution ***

- 1 Temporary employees (less than 24 hours per month)
 2 Learners in terms of the Skills Development Act
 3 Employees in the National and Provincial spheres of Government
 4 Employees who are repatriated at the end of their contract of service
 5 Employees who earn commission only
 6 No income paid for the payroll period
 7 Employees in receipt of an Old Age Pension from the State.
 8 Employees who receive a pension payment from Employer
 9 Above the ceiling (Old Act)

REASON FOR TERMINATION CODES

- | | | | |
|--------------------|--------------------------|-------------------------------|--------------------------------|
| 2 Deceased | 6 Resigned | 10 Illness /Medically boarded | 14 Business Closed |
| 3 Retired | 7 Constructive Dismissal | 11 Retrenched/Staff Reduction | 15 Death of Domestic Employer |
| 4 Dismissed | 8 Insolvency/Liquidation | 12 Transfer to another Branch | 16 Voluntary Severance Package |
| 5 Contract Expired | 9 Maternity/Adoption | 13 Absconded | |

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IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Notice (Other)

NOTE: This document was filed electronically by the Registrar on 4/5/2026 at 12:08:12 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED
BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Case No: **2026-086906**

In the matter between:

AfroCentric Investment Corporation Limited
(Reg: 1988/000570/06)

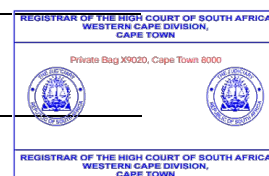
Applicant

and

Wilbur William Matthee

Respondent

FILING NOTICE



TAKE NOTICE THAT the applicant presents for filing its supplementary affidavit.

Signed at **Cape Town** on this the **4th** day of **May 2026**

Deneys

Attorneys for Applicant
9th Floor, 117 on Strand
117 Strand Street
Cape Town

Tel: +27 11 685 8500

Email: Jason.Whyte@deneys.co.za

Frances.Barker@deneys.co.za

Ref: J Whyte / AFR1282

TO:

The Registrar of the High Court
Cape Town

AND TO:

Mr Wilbur William Matthee
Respondent

Email: info@ethichawks.co.za/
wilburmat@gmail.com

By Email

COURT ONLINE COVER PAGE

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 02

NOTE: This document was filed electronically by the Registrar on 4/5/2026 at 12:00:56 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED
BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**

Frances Barker

From: Wilbur William Matthee <wilburmat@gmail.com>
Sent: 20 April 2026 11:55
To: nhanekom@judiciary.org.za
Cc: Jason Whyte; Frances Barker; Olebogeng Motlhaping
Subject: Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll
Attachments: fin_sup_aff_ind_ann_v6.PDF

To:
 The Registrar, High Court of South Africa, Western Cape Division
 [Registrar email address]

Cc:
 Jason Whyte (Deneys Attorneys) – jason.whyte@deneys.co.za
 Frances Barker / Olebogeng Motlhaping (as copied in annexures) – [email addresses if available]



Subject: Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll

Dear Honourable Registrar,

I refer to the above matter and write in my capacity as the Respondent, acting in person.

1. Filing of Supplementary Answering Affidavit and Counter-Application

Pursuant to Uniform Rule 6(5)(e) and the practice confirmed in Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC), I hereby file the following documents with this Honourable Court:

- Supplementary Answering Affidavit (Final Consolidated) – responding to the Applicant's founding papers and incorporating a counter-application for declaratory relief;
- Notice of Counter-Application for Declaratory Relief – which is unconditional and will proceed independently even if the Applicant withdraws its main application;
- Index of Annexures containing 22 supporting exhibits as referenced in the affidavit.

These documents are served simultaneously on the Applicant's attorneys, Deneys.

2. Request to Enroll Counter-Application with Main Application

I respectfully request that the counter-application be enrolled for hearing simultaneously with the main application under the same case number, or on such other date as this Honourable Court may determine. In the event the main application is withdrawn, I request that the counter-application proceed on its own.

The declaratory relief sought is not abstract or hypothetical – it will:

- Break the administrative deadlock with the Department of Employment and Labour regarding my UIF benefits;
- Establish facts binding on the Labour Court through res judicata and estoppel;
- Vindicate my good faith and professional reputation, which the Applicant has attacked under oath.

3. Service on the Applicant's Attorneys

A copy of this email and all filed papers is served on Deneys Attorneys at the email address above.

4. Request for Acknowledgment

Kindly acknowledge receipt of these filings and confirm the date on which the consolidated matter (main application + counter-application) will be placed on the roll.

I remain destitute, self-represented, and without income. My full circumstances are set out in Annexure WW6 (Affidavit of Destitution) filed herewith.

If your client fails to produce the documents by the above deadline without a valid, sworn explanation (e.g., legal privilege or impossibility), I will, without further notice, immediately file a notice to anticipate the return day in terms of:

- Uniform Rule of Court 6(8); and
- Paragraph 7 of the interim order dated 16 April 2026, which expressly grants me leave to anticipate the return day upon 24 hours' written notice to the applicant.

Upon anticipation, I will move for an order:

- Discharging the rule nisi and setting aside the interim interdict in its entirety;
- Granting the declaratory relief sought in my counter-application;
- Awarding a punitive costs order against your client on the scale as between attorney and client.

Your client has until Friday close of business to comply. Failure to do so will result in immediate court action.

Thank you for your assistance.

IMPORTANT NOTICE REGARDING MY EMAIL ADDRESS

Please be advised that my email address info@ethichawks.co.za has been suspended and is no longer active. All formal correspondence, including the documents demanded below, must be sent to my alternative email address:

wilburmat@gmail.com

I confirm that I will monitor this address for your response. Any correspondence sent to the suspended EthicHawks address will not be received.

Yours Professionally,

Wilbur William Matthee
Respondent (acting in person)

15 Bellevue Street, Voorbrug, Cape Town, 7001
Email: wilburmat@gmail.com
Mobile: 069 635 1435

Copy to: Jason Whyte, Deneys Attorneys (via email)

Ethics Hawks promotes ethical leadership, governance integrity, and psychosocial safety in organisations. This correspondence may contain confidential or legally relevant information intended only for the recipient. Unauthorised use or disclosure is prohibited.



COURT ONLINE COVER PAGE

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 03

NOTE: This document was filed electronically by the Registrar on 4/5/2026 at 12:01:20 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



**ELECTRONICALLY SIGNED
BY:**

**Registrar of The High Court,
Western Cape Division, Cape
Town**

Frances Barker

From: Wilbur Matthee <info@ethichawks.co.za>
Sent: 22 April 2026 11:32
To: Jason Whyte
Cc: Frances Barker; Olebogeng Motlhaping
Subject: FORMAL NOTICE: ANTICIPATION OF RETURN DAY IN TERMS OF UNIFORM RULE 6(8)— MATTHEE V AFROCENTRIC CASE NO. 2026-086906

Importance: High

TO: Jason Whyte/Legal Council

1. Your communication of 20 April 2026 is noted. Continued silence during a documented humanitarian crisis confirms a bad-faith reliance on procedural stalling.
2. Notice is hereby given of the intention to anticipate the return day under Uniform Rule 6(8).
3. Filing will occur on Thursday for a hearing on Friday, 24 April 2026.
4. The Court will be moved to distinguish between the Applicant's self-created urgency and the Respondent's substantive imminent danger.
5. The attempt to utilize the public holiday weekend as a procedural vacuum is neutralized.
6. I see you in court on Friday. Ensure the requested forensic documentation is produced.

Sr. Wilbur W Matthee
 Specialist Registered Nurse | PGDip HSM (NQF 8)
 Founder — EthicHawks Forensic Governance & Compliance



COURT ONLINE COVER PAGE

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 04

NOTE: This document was filed electronically by the Registrar on 4/5/2026 at 12:02:09 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



**ELECTRONICALLY SIGNED
BY:**

**Registrar of The High Court,
Western Cape Division, Cape
Town**

Frances Barker

From: Jason Whyte
Sent: 22 April 2026 13:37
To: Wilbur Matthee
Cc: Frances Barker; Olebogeng Motlhaping
Subject: RE: FORMAL NOTICE: ANTICIPATION OF RETURN DAY IN TERMS OF UNIFORM RULE 6(8)— MATTHEE V AFROCENTRIC CASE NO. 2026-086906 [IMAN-CPT_MATTERS.FID2264505]

Importance: High

Dear Mr Matthee

We confirm receipt of your email sent at 11h32 today, 22 April 2026.

We draw your attention to paragraph 14.1 of your supplementary answering affidavit (which we point out was served on 20 April 2026) in which you state:

"I hereby formally invite and put the Applicant on notice to produce the following documents within 5 (five) days of service of this affidavit" (your own emphasis).

And in paragraph 14.3 you state:

"If the Applicant fails to comply without a valid legal basis, I will file a notice to anticipate the return day ..."

Accordingly, on your own terms, our client has until close of business on 28 April 2026 to elect whether it is able to accede to your demand regarding discovery. Our client is considering its response to you in accordance with this deadline.

You now appear to distance yourself from the representation made to our client under oath. Notwithstanding our client's views regarding the demand for discovery, your conduct now amounts to an abuse of court process and is vexatious in the extreme. Should you proceed to have the return date set down as threatened for Friday, 24 April 2026, we shall request the Judge presiding to adjourn the matter until 28 May 2026 and that you be ordered to pay our client's wasted costs on the attorney-client scale.

Kindly be guided accordingly.

Kind regards

Jason Whyte | Director
 jason.whyte@deney.co.za

Deney Cape Town, South Africa
 9th floor, 117 on Strand, 117 Strand Street, Cape Town 8001, South Africa
 Tel: +27 21 405 1208 | Mobile: +27 83 236 3059



As the world moves
 deney.co.za

We are a proudly BEE Level 1 Law Firm

Advisory: If our bank account details change, we will notify you by phone or in person, but never by email. Please always verify any change in our banking details by oral communication. Be

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IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 05

NOTE: This document was filed electronically by the Registrar on 4/5/2026 at 12:02:51 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED
BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**

Frances Barker

From: Wilbur Matthee <info@ethichawks.co.za>
Sent: 22 April 2026 15:03
To: Jason Whyte
Cc: Frances Barker; Olebogeng Motlhaping
Subject: RE: Notice to Anticipate Return Day — Case No: 2026-086906
Importance: High

Mr. Whyte,

1. Your characterization of the Respondent's conduct as "vexatious" is noted and rejected.

2. Your attempt to conflate a discovery deadline with a Rule 6(8) anticipation is a fundamental legal error. There are currently two distinct "clocks" governing this matter, and they operate on separate tracks:

(a). The Discovery Clock: The 5-day invitation for document production pertains to the Merits of the case. It is a timeline for trial preparation.

(b). The Emergency Clock: The Notice to Anticipate under Uniform Rule 6(8) pertains to the Interim Status of the case. It is a timeline for Survival.

3. The "Discovery Clock" does not—and cannot—arrest the "Emergency Clock." A procedural invitation for discovery is not a waiver of the statutory right to seek immediate judicial relief from an interim order that facilitates a humanitarian crisis. The Respondent's right to dignity, access to water, and survival is not subject to your client's administrative convenience or a 5-day election period.

4. The Applicant's claim of "extreme urgency" to obtain the ex parte order on 16 April is now in direct conflict with your current request for a delay. This contradiction confirms that the Applicant's "urgency" was a tactical label, whereas the Respondent's urgency—documented by 48 hours without food and a lack of basic utilities—is a substantive, physical reality.

5. Be advised that the strategy of "litigation attrition"—including the obstruction of statutory benefits and the resulting state of destitution—is now a matter of record. Your threats of punitive costs against a respondent in a state of documented imminent danger further evidence the Applicant's bad faith and will be placed before the court.

6. The Respondent will not be intimidated into a monthly adjournment while in a state of constitutional emergency. The hearing proceeds on Friday, 24 April 2026. The High Court will be moved to weigh your client's desire for corporate secrecy against the Respondent's right to exist.

7. The "5-day deadline" for documents remains an active forensic demand. If the Applicant chooses to withhold those documents on Friday while maintaining a gag order, you do so at the risk of an adverse judicial inference.

Kindly be guided accordingly.

Sr. Wilbur W Matthee
Specialist Registered Nurse
Respondent in Person



COURT ONLINE COVER PAGE

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 06

NOTE: This document was filed electronically by the Registrar on 4/5/2026 at 12:04:07 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



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BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**


 13/4/2026-11:58:23 AM **LM11**

Fw: Follow-Up on Formal Complaint and Meeting Outcome

2 messages

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
 To: wilburmat@gmail.com <wilburmat@gmail.com>

Fri, 05 Dec 2025 at 17:53

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If you would prefer, the disclaimer can be emailed to you by clicking:

mailto:Meds_disclaimer@medscheme.co.za.



—— Forwarded message ——

From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>, Thando Mandondo

<ThandoM@medscheme.co.za>, Tebogo Dikobe <Tebogo.Dikobe@afrocentrichealth.com>, Sipokazi Makaula

<Sipokazi.Makaula@afrocentrichealth.com>

Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Mapule Mashele

<Mapule.Mashele@medscheme.co.za>

Bcc:

Date: Wed, 1 Oct 2025 11:09:00 +0200

Subject: Follow-Up on Formal Complaint and Meeting Outcome

Dear [Cheryl-DI/Team/Investigation Team],

I would like to provide a formal update following my meeting with the investigation officer, Senior Manager Ms. Mapule Mashele.

During our discussion, we acknowledged that while errors can occur, there are also instances where actions are deliberate. After reviewing all relevant evidence and context, we navigated toward the latter and reached a shared understanding of the seriousness of the incident.

As a constructive step forward, I have decided to speak directly with Mary-Ann in the presence of Ms. Mashele to express how the situation truly affected me and to seek a way to make amends.

I would like to sincerely thank the team for your swift response to my formal complaint, and for the support, professionalism, and guidance you provided throughout the reporting process.

Kind regards,

13/4/2026-11:58:23 AM **LM11**



Sr. Wilbur W. Matthee

(Nurse Specialist PGrad HSM, Btech Gen Pn (Midw,Psych,Comm))

Care coordinator: GEMS Active Disease Risk Management

- +27 12 466 1332
- wilbur.matthee@medscheme.co.za
- The Boulevard Building F & G, Searle street, Woodstock,7925
- www.medscheme.com



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Follow-Up on Formal Complaint and Meeting Outcome.eml
52 KB

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Wilbur William Matthee <wilburmat@gmail.com>

Sat, 06 Dec 2025 at 22:01

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mailto:Meds_disclaimer@medscheme.co.za.

Page 73 of 243

WMM

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IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

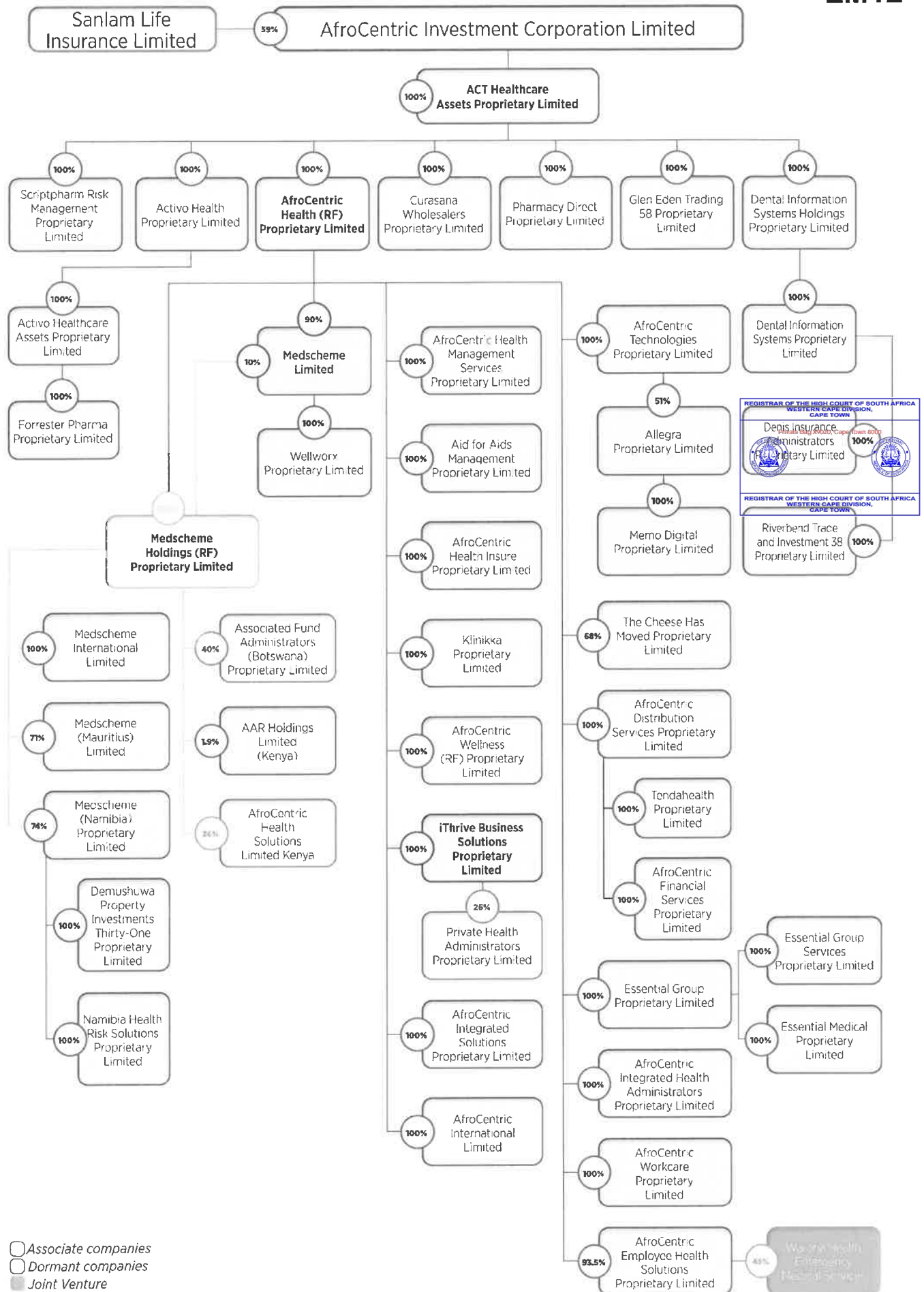
Annexure 07

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**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 08

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BY:**

**Registrar of The High Court,
Western Cape Division, Cape
Town**



AfroCentric
GROUP

Healthier Together.

22 April 2024

W Matthee

Dear Wilbur,

LETTER OF APPOINTMENT: Care Coordinator

We are pleased to offer you the position of Care Coordinator (Reference IRC78739) within **Medscheme Holdings (Pty) Ltd** which is a wholly owned subsidiary of AfroCentric Health (RF) (Pty) Ltd and forms part of AfroCentric Group with effect from 01 May 2024. This position is situated in Cape Town.



The key elements of your duties and responsibilities will be as discussed with you and may be revised from time to time thereafter.

CONDITIONS OF EMPLOYMENT

1. PROBATION

At commencement of your employment, you will be required to serve a probationary period of **six (6) continuous months**. From time to time during your probation, your performance and suitability for continued employment shall be evaluated. The Company shall, where appropriate and taking into account your seniority, skills and experience, give you whatever training, guidance or counselling that you may require to render a satisfactory service.

On satisfactory completion of your probation period, you will be deemed to have been accepted as a permanent employee.

Should your performance not be in line with the expected Performance Objectives (these are required standards of performance for your position as communicated formally or informally to you from time to time), the Company reserves the right to terminate your employment in accordance with the Company's Performance Management Policy.

During your probationary period, **one (1) week's written notice of termination of employment** will be required from either party in terms of the Basic Conditions of Employment Act 75 of 1997.

www.afrocentric.za.com

AfroCentric Investment Corporation Limited Reg #1988/000570/06
T +27 11 671 2000
PO Box 1101, Florida Glen 1708 | 37 Conrad Street | Florida North | Roodepoort 1709

DIRECTORS:

Dr ATM Mokgokong (Chairman), MJ Madungandaba (Deputy Chairman), GN Van Wyk (CEO), JW Boonzaaier (CFO), WH Britz, M Chauke, MK Dippenaar, JB Fernandes, PB Hanratty, AM le Roux, KN Mkhize, Dr ND Munisi

Group Company Secretary: LSM Mpumwana

W. M *BG* *WMM*

2. REMUNERATION

The Company's remuneration practice is that of a total cost to company package to give you flexibility and choices.

We are pleased to advise you that your total package on a cost to company basis will be **R490,032.00 per annum**, payable by bank transfer into your Bank account.

The above cost to company figure includes all your contributions towards Medical Aid, Pension / Provident Fund, Group Life Assurance and Disability Assurance. If you are required to use your cell phone for business purposes, this will be deemed to be part of your cost to company package.

The Grade for your position based on our Grading Model is that of **B4M1**.

3. RETIREMENT FUNDING INCOME

A percentage between **78** and **90** (78 / 80 / 85 / 90) of your total cost to company figure, as selected by yourself, will constitute your "**Retirement Funding Income**". All contributions, both employer and employee, to the Pension / Provident Fund, Medical Aid Fund, Group Risk Benefits such as Life and Disability Schemes will be based on this figure..



4. TRAVEL ALLOWANCE

Travel allowances will only be offered to employees who can justify for tax purposes the use of a motor vehicle for business travel. As an employer we have to take into account the nature of your duties when permitting this structuring option. The amount allowed as a travel allowance will be based on the value of your motor vehicle and other factors stipulated in relevant legislation. Such requests will have to be signed off by management and it is your responsibility to justify the travel allowance to the South African Revenue Services. Should your role no longer warrant a travel allowance, such allowance will no longer be available.

5. LEAVE ENTITLEMENT

5.1. Annual Leave

You will be entitled to **seventeen (17) working days** leave per annum, the first **fifteen (15) days** are deemed statutory leave and the balance will be deemed non-statutory leave. Non-statutory leave will not be carried over into the next leave cycle and unused leave will be forfeited. Statutory leave will be carried forward into the next leave cycle for a maximum period of six (6) months.

Fifteen (15) days must be taken annually, of which **ten (10) days** must be consecutive.

This leave must be taken at a time mutually convenient to both yourself and the Company.

5.2. Sick Leave

In terms of the Basic Conditions of Employment Act 75 of 1997, a maximum of **thirty (30) days paid sick leave** may be granted during each **thirty-six (36) month cycle**. However, during your **first six (6) months** of employment, your entitlement is **one (1) day sick leave** per every **twenty-six (26) days** worked where after the available sick leave balance will be allocated to you.

Candidate Initial W.M GM Initial BG

W.M

5.3. Family Responsibility Leave

You are entitled to five (5) days family responsibility leave available per calendar year, after the completion of four (4) months service with the Company. Refer to the Absence Management Policy for detailed information.

5.4. Maternity Leave (if applicable)

You are entitled to a statutory maternity leave being a minimum of **four (4)** and maximum of **six (6)** months, where applicable.

Your length of service with the Company will determine any cost to company payments you will receive during the periods of maternity leave. Refer to the Absence Management Policy for detailed information.

6. HOURS OF WORK

You will be required to work **forty-five (45) hours** per week. Your working hours are flexible and will be scheduled by the Business Unit and may include a Saturday which is deemed part of your normal working week. You will be entitled to a thirty (30) minute lunch break as scheduled. Any work performed on a Saturday will be paid at normal rates. Your working hours will be determined by the requirements of the Business Unit to which you are assigned to from time to time and may be amended to suit the operational requirements of the particular Business Unit.

It is a condition of employment that, as and when the need arises, you will be required to work overtime. Payment, or time off in lieu of overtime worked, hours in excess of forty-five (45) working hours per week, will be made in accordance with the Human Capital Payroll and Benefits Management Policy..

7. PENSION FUND / PROVIDENT FUND

It is a condition of service that you join the Company's elected Pension / Provident Fund on your date of appointment. A Company contribution of **7.6%** of your Retirement Funding Income will be deducted from your cost to company value and paid into the Fund. You have the option of contributing between **5%** and **12%** of your Retirement Funding Income salary as an employee contribution. You may make additional voluntary contributions to the Pension Fund / Provident Fund.

8. MEDICAL AID

Immediate membership of one of the selected open schemes is a condition of employment for all employees.

Unless you are dependent on Spouse or Life Partner registered medical scheme, of which proof must be provided at the time of your appointment, or you meet the requirement to belong to the Group Primary Health Insurance (PHI).

Details of these schemes will be supplied on your date of appointment. Please note that you are responsible for the total premium as well as annual increases to the medical aid subscriptions. The medical aid premium will be deemed as follows for tax purposes: Two thirds as an employer contribution (to be deducted from the cost to company figure) and one third as an employee contribution. This is subject to change, pending legislation.

9. GROUP LIFE SCHEME

Membership of the Company's Group Life Scheme is a condition of employment. The employer contributes a fixed percentage on your behalf. Additional cover can be entered into, subject to underwriting rules and benefit structure agreed to with the insurers. The additional premium will be borne by you and deducted monthly.



Candidate Initial W.M GM Initial EG

10. TERMINATION OF EMPLOYMENT

During your first year of service, the notice period for termination of this contract by either party will be as follows:

- Employed for less than **six (6) months: One (1) week** notice period.
- Employed for more than **six (6) months** but less than **one (1) year: Two (2) weeks'** notice period.

After one (1) completed year of service, your employment is subject to one (1) calendar month's written notice applicable by either party or liability for payment of income by either party in breach of the notice period.

Should the Company not require you to work during this period or any part thereof, you are precluded from taking up any other employment until expiry of the notice period which shall be paid by the Company

11. REGISTER OF DISMISSED EMPLOYEES

In the event of your dismissal from the Company for fraud or dishonesty, your details will be recorded on a centralised database, administered by ITC. Participating Medical Aid Administrators will access this database as part of their recruitment and selection processes.



12. AFFIRMATION OF SATISFACTORY AND COMPANY CHECKS

12.1. You herewith confirm that: -

- 12.1.1. You have not been found guilty and/or admitted guilt for any act of crime, committed within the last ten (10) years, which could potentially have an adverse effect on the employment relationship, and which includes the company's ability to successfully build and maintain a sustainable trust relationship.
- 12.1.2. You are not aware, or can reasonably be expected to be aware of any adverse listing or record that could lead to the company questioning your sound judgment to perform your duties and act in the best interest of the company.
- 12.1.3. You are not aware of any past or current conduct committed by yourself, in your personal and/or professional capacity, which may pose a reputational, financial, or legal risk to the company.
- 12.1.4. All information (including work experience and qualifications) contained in my Curriculum Vitae (CV/ Resume) is true and valid.

You accept and agree that on signing this affirmation I acknowledge that any discovery by the Company, at any stage of your employment, which may be contrary to this affirmation, will render the contract of employment terminable for reasons related to willful non-disclosure.

13. CONFIDENTIALITY AND NON-DISCLOSURE OF INFORMATION

During your period of service, you will have access to confidential information concerning the Company, the AfroCentric Group, its clients and employees, and its operations. It is a condition of your acceptance of our offer that all such information be treated in confidence by you, both during your employment with the Company and, in the event of your leaving, after departure.

Candidate Initial W.M GM Initial BJ

W.M

13.1. For the purpose of this agreement, "Confidential Information" shall mean information (in any format, electronic or otherwise) which is either personal, non-public, confidential or proprietary in nature, belonging to the AfroCentric Group, its employees, contractors and visitors, which shall include, but not be limited to:

13.1.1. technical, scientific, commercial, financial or market information, know how or trade secrets.

13.1.2. data concerning business relationships, system architecture, system processes

13.1.3. plans, designs, drawings, functional and technical requirements, and specifications.

13.1.4. data and/or other information regarding any medical scheme, member or dependent of a medical scheme, policy holder, insurance policy, registered service provider or practitioner.

13.1.5. any data, information, or personal information of an employee of a business entity that has a business relationship with AfroCentric Group.

13.1.6. all other information in whatever form, whether subject to or protected by, law or statutory laws relating to copyright, patent, trademarks, registered or unregistered or otherwise, of or relating to AfroCentric Group; and

13.1.7. All intellectual property, know-how (not in the public domain); invention (whether or not patented); design, trademark, or Copyright Material (whether or not registered) and any and all company branding and logos.

13.2. "Third Party" – shall mean any person, company, or employee, who does not have the authority to access, view or possess the confidential information.

13.3. You agree:

13.3.1. not to disclose the Confidential Information to any third party for any reason or purpose whatsoever without the prior written consent of AfroCentric; not to utilise, employ, exploit or in any other manner whatsoever use the Confidential Information for any other purposes whatsoever other than the purposes of rendering services to AfroCentric within the course and scope of their employment.

13.3.2. that the unauthorised or unlawful use or disclosure of the Confidential Information may cause irreparable loss, harm and damage to AfroCentric;

13.3.3. that any documentation, records, or data relating to AfroCentric's Confidential Information which comes into the possession of the Employee during the existence of his employment: –

13.3.3.1. shall be deemed to form part of the Confidential Information of the AfroCentric Group.

13.3.3.2. shall be deemed to be the property of the AfroCentric Group.

13.3.3.3. shall not be published or circulated by the Employee, except to the personnel that are employed on AfroCentric Health's Employee Wellness Program.

13.3.3.4. shall not be copied or reproduced by the Employee other than strictly in accordance with requirements of rendering services to the AfroCentric Group and any such copies and reproductions shall be kept separate from other documents and records of the employee.



Candidate Initial W.M GM Initial EG

13.3.3.5. shall be surrendered to the company on request, and the Employee shall not retain any extracts there from.

13.4. All the Confidential Information disclosed by the AfroCentric Group to the Employee is:

13.4.1. proprietary to the AfroCentric Group.

13.4.2. does not confer any right of whatever nature in and to such Confidential Information to the Employee; and

13.5. The AfroCentric Group may at any time by way of written notice to the Employee, require him to return any material, pertaining to or relating to Confidential Information and to expunge such information from any word processor, computer or other similar device into which it has been entered or programmed, any may in addition, require the Employee to furnish a written statement to the effect that, upon such return, that the Employee has not retained in his possession, or under his control, either directly or indirectly, any such material.

14. PROCESSING OF PERSONAL INFORMATION

14.1. The Employee, in terms of this Agreement, provides their consent to the AfroCentric Group to process their Personal Information pursuant to their employment with the AfroCentric Group and acknowledges that Personal Information is defined as information relating to any Employee, including but not limited to:

14.1.1. race, sex, gender, sexual orientation, pregnancy, marital status, nationality, ethnic or social origin, colour, age, physical or mental health, well-being, disability, religion, conscience, belief, cultural affiliation, language and birth.

14.1.2. education, medical, financial, criminal or employment history.

14.1.3. names, identity number and/or any other personal identifier, including any number(s), which may uniquely identify the Employee, Employee number, e-mail address, domain name or IP address, physical address, cellular phone number, telephone number or other particular assignment.

14.1.4. blood type, fingerprint or any other biometric information; and

14.1.5. correspondence that is implicitly or expressly of a personal, private, or confidential nature (or further correspondence that would reveal the contents of the original correspondence).

14.2. The Protection of Personal Information Policy is contained on the Company's SharePoint Portal site, and we ask that you read and understand the content of this policy and any matters which may need clarification should be discussed with your direct manager.

15. COMPANY POLICIES AND PROCEDURES

The Company's policies and procedures may be obtained from the SharePoint Portal Site. It is your responsibility to familiarise yourself with these policies, procedures and Company's Code of Conduct during your employment.

By accepting this offer of employment, you agree to comply with these policies and procedures.



Candidate Initial W.M.

GM Initial EG

W.M.

16. EMPLOYMENT DOCUMENTS

The following documents form part of your contract of employment with the Company. You will be bound by the policies, procedures and rules governing these and it is therefore required of you to familiarise yourself accordingly, seeking clarification with your HC Business Partner before signing such document:

- Letter of Appointment (LOA).
- Selected Medical Aid Rules.
- Retirement Fund Rules.
- Code of Conduct.
- Any other documents of which you may be advised during your employment with the Company.

17. OWNERSHIP OF COPYRIGHT

The ownership of Copyright in respect of computer programmes or other material designed by you, or to which design you have contributed to during the course of your employment as well as intellectual property rights vests with the Company in terms of Section 21 of the Copyright Act 57 of 1978. The reproduction of such material in any manner or form of adaptation thereof will infringe copyright.



18. FORMALITIES

This offer of employment is conditional upon you providing us with the following original or certified documents which form an extremely important part of your joining formalities. These documents should be submitted directly to Human Capital Business Partner.

- Original or certified copy of Identity Document.
- Original or certified copies of all Qualifications.
- Pension Fund Beneficiary Nomination Form.
- Proof of your bank account details.
- Medical Aid Application Form / Proof of membership if a dependent on Spouse's or Life Partner Medical Aid.

19. BACKGROUND CHECKS

Your appointment as set out in this employment contract is entirely conditional upon acceptable reference, credit, criminal, background checks and compliance with formalities.

You hereby consent to the Company conducting such checks and confirm that all information disclosed and represented for this purpose is true and correct to enable the Company to derive accurate results from such enquiries for purposes of its decision-making.

To the extent that you have commenced employment and any checks contemplated in this clause confirm that a negative/adverse outcome or an intentional misrepresentation, the Agreement and your employment with the Company shall expire automatically on the date on which the negative/adverse outcome or intentional misrepresentation is discovered by the Company.

Candidate Initial W.M. GM Initial BG

[Handwritten signature]

20. OFFER ACCEPTANCE

Kindly sign and return the copy of this letter, thereby acknowledging and accepting the content as set out herein. Also note that this offer is valid for three (3) days from receipt.

Please initial every page and sign in full on the last page of this document before returning to your HC Business Partner.

We would like to take this opportunity of welcoming you to the Company and hope that your association with us will be a long and happy one.

Yours sincerely,

B Johnson

Barbara Johnson
General Manager: GEMS Operations.5
Medscheme Holdings (Pty) Ltd
Date Signed: 29 April 2024



Candidate Initial W. M. GM Initial BJ W. M.

Restraint of Trade (Please tick appropriate block)

I confirm that I am not subject to a restraint of trade and indemnify and hold the AfroCentric Group harmless against any loss or damage arising from any claim by a third party due to a restraint of trade.



OR

I confirm that the provisions of my restraint of trade do not conflict with the provisions of this letter of appointment and indemnify and hold the AfroCentric Group harmless against any loss or damage arising from any claim by a third party due to the restraint of trade.



Declaration of Interest

I confirm that I am not involved in, nor do I have **any interest in any company, trust or legal entity** which may / whose business may conflict with the business carried out by the AfroCentric Group or any company within the Afrocentric Health group. In so far as I do hold such interest or am involved in any company, trust or legal entity, such interest or involvement has been disclosed to the organisation and in the event that I acquire such interest or become involved in the future, such involvement shall immediately be disclosed to the organisation.

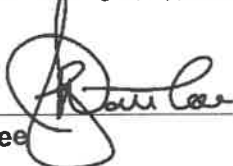


I confirm that the provisions of my **restraint of trade** do not conflict with the provisions of this letter of appointment and indemnify and hold AfroCentric Health harmless against any loss or damage arising from any claim by a third party due to the restraint of trade.



I acknowledge that I have not been **induced to complete this contract** by any representations made to me by any person/s and hereby confirm that I have entered into this contract of my own free will and have no binding restraint of trade obligation which may jeopardise my employment relationship with Medscheme Holdings (Pty) Ltd or any other third party it may be associated with.




W Matthee

Date: 22 April 2024

This signed letter is the official confirmation of your appointment to Medscheme Holdings (Pty) Ltd.

Candidate Initial W.M GM Initial EG



COURT ONLINE COVER PAGE

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Annexure 09

NOTE: This document was filed electronically by the Registrar on 4/5/2026 at 12:06:39 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED
BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**

Payslip



Employee Identity Number 8909035151087
Employee Number 7074649
Location The Boulevard
Hire Date 01-May-2024
Assignment Number 7074649
Employee Address Street Number: 15
 Street or Name of Farm: Bellevue Street
 Suburb or District: Voorbrug,
 Postal Code: 7100

Employer Name Medscheme Holdings (Pty) Ltd
Grade B4M1
Position Care Coordinator.25
Original Hire Date 01-May-2024
Payroll Medscheme Holdings (Permanent)
Employer Address The Boulevard
 4th Floor
 Searle Street
 Cape Town
 7925



Payroll Information

Period End Date 31-Jul-2025
Tax Period 5
Payment Frequency Calendar Month

Tax Information

Tax Status Normal
Tax Reference No 0694546243
Pay Date 23-JUL-2025

Summary of Payment

Total Earnings	Total Deductions	Total Net Pay
21,777.04	6,097.75	15,679.29

Earnings

Description	Amount
Normal Earnings	36,588.81
Unpaid Leave Recovery	(13,824.32)
Unpaid Leave	(987.45)

Deductions

Description	Amount
Sanlam Funeral Cover	52.00
Bonitas EE	1,471.33
Sanlam Pension Fund EE	2,503.57
UIF Employee	177.12
PAYE	1,743.73
Access Tags Loss	150.00

Fringe Benefits and Additional Info

Description	Amount
Medical Aid Bonitas ER	2,942.67
PHI Disability ER	469.00
Sanlam Pension Fund ER	2,536.95
UIF Employer Contribution	177.12
Group Life	258.70
Medical Aid Fringe Benefit	2,942.67
Medical Aid Tax Credit	728.00
Monthly Salary Info - CTC	42,796.13
PHI FBT	469.00
Retirement Funding Income %	78.00

YTD Accumulations & Balances

Description	Amount
Medical Aid Tax Credit YTD	3,640.00
Medical Aid ER YTD	14,713.35
Medical Aid EE YTD	7,356.65
PAYE YTD	23,491.73
Normal Earnings YTD	181,133.44
Total Taxable Income YTD	161,080.84
UIF Employee Contribution YTD	885.60

Net Pay Distribution

Payment Method	Bank Branch Code	Account Number	Amount
ACB	679000	10961611474	15,679.29

Message(s)

No Message(s) Found

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Case No: 2026-086906

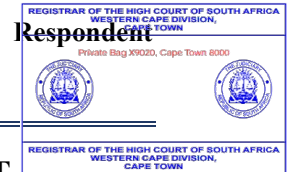
In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE



Respondent

SUPPLEMENTARY ANSWERING AFFIDAVIT

I, the undersigned, **WILBUR WILLIAM MATTHEE**, do hereby make oath and state:

1. INTRODUCTION, PROFESSIONAL STANDING, AND DESTITUTION

- 1.1 I am an adult male **Specialist Registered Nurse (NQF Level 8)** and hold a **Postgraduate Diploma in Health Services Management**. I am also a Forensic Governance Specialist and the founder of EthicHawks Forensic Governance and Compliance Consultancy.
- 1.2 I appear in person because I am **destitute**. I have no income, no transport money, and cannot afford legal representation. I attach a separate Affidavit of Destitution marked "**WW6**".
- 1.3 This affidavit supplements my answering affidavit filed on **16 April 2026**. I reserve the right to supplement further upon obtaining legal representation and discovery.

2. THE APPLICANT'S BAD FAITH: CONTRASTING DR OHM'S LETTER WITH THE OPPOSING AFFIDAVIT

- 2.1 I attach as **Annexure RESU1** a letter of recommendation from Dr P.M.J. Ohm, a team leader medical doctor practising at Mitchells Plain District Hospital Emergency Unit, where I work as a shift leader. Dr Ohm states that I have "*depth of clinical knowledge*", "*de-escalate any heated situation with a calm tone and demeanour*",

and "*protect patient dignity*". This letter constitutes objective, professional evidence of my competence, good faith, and mental fitness.

- 2.2 In stark contrast, the Applicant — through its representative **Mr Xolile Vincent Manyati** (a Senior Employee Relations Specialist who has never met me and is not a medical professional) — deposed to an opposing affidavit in the CCMA matter (Case No. WECT23564-25), one filed *after* my first Board-level escalation (see **Annexure GRC1** and **GRC2**). In that sworn affidavit, Mr Manyati stated under oath that my documented PTSD and depression were "**an excuse**" and "**an afterthought**" (see Annexure OA1, paragraph 6.3).

- 2.3 The Applicant has **never produced any medical evidence** contradicting my psychiatric condition. A specialist psychiatrist's report confirming my diagnosis and occupational detriment was provided to the Applicant. They have chosen to ignore it.



- 2.4 This conduct constitutes **bad faith** — it is a reckless disregard for the truth, made under oath. It demonstrates that the Applicant is prepared to swear to falsehoods to defeat a whistleblower. This Honourable Court should take judicial notice of this pattern of dishonesty when evaluating the Applicant's claim to "*irreparable harm*".

KEY LEGAL POINT — CLEAN HANDS DOCTRINE

A party seeking equitable relief must come to Court with clean hands. The Applicant's willingness to contradict an uncontested psychiatric report under oath, through a layperson deponent, denudes its application of the good faith necessary to sustain urgent interdict relief. See: *Setlogelo v Setlogelo 1914 AD 221* (requirements for interdict include absence of undue hardship and clean hands).

3. POINTS IN LIMINE

- 3.1 **Improper Service:** The Applicant served its founding papers on me at **08:53 on 16 April 2026** for a hearing at **10:00 the same day** — a period of only **67 minutes** to respond. I filed a notice to oppose and an answering affidavit, but could not attend court because I am destitute. The Applicant's conduct constitutes an **abuse of process**. The rule nisi should be discharged on this ground alone.
- 3.2 **Self-Created Urgency:** The Applicant was aware of my forensic findings since **October 2025**. It chose to take no action until I set a deadline of 16 April 2026. The urgency is **entirely self-created** and cannot found urgent relief. See: *Luna Meubels*

Vervvaardigers (Edms) Bpk v Makin (t/a Makin's Furniture Manufacturers) 1977 (4) SA 135 (W).

POINTS IN LIMINE — SUMMARY

This Honourable Court is respectfully invited to discharge the rule nisi on the following **preliminary grounds**, without reaching the merits: (1) improper service — 67-minute notice for an urgent hearing; (2) self-created urgency — applicant dormant since October 2025.

3A. FAILURE TO SATISFY INTERDICT REQUIREMENTS: EXISTENCE OF ALTERNATIVE REMEDIES



3A.1 I respectfully submit that the Applicant's request for an interdict must fail as it cannot prove the **absence of an alternative satisfactory remedy**. The Applicant is a corporate employer with full access to standard internal disciplinary mechanisms and the ordinary procedures of the Labour Court. By choosing to bypass its own internal grievance and disciplinary frameworks — and instead dragging a destitute former employee into the **Urgent High Court on 67 minutes' notice** — the Applicant is attempting to weaponise this Court to suppress a statutory protected disclosure. An urgent High Court interdict is not a substitute for standard dispute resolution.

ALTERNATIVE REMEDY — LEGAL STANDARD

A fundamental requirement for final (and interim) interdict relief is that the applicant must demonstrate the absence of an alternative, adequate remedy. See: *Setlogelo v Setlogelo 1914 AD 221*; *Olympic Passenger Services (Pty) Ltd v Ramlagan 1957 (2) SA 382 (D)*. The Applicant has access to its internal grievance mechanisms, the CCMA, and the Labour Court — all of which are adequate alternative remedies. The Applicant's deliberate election to bypass these constitutes an abuse of the urgent court roll.

4. QUANTIFICATION IN RESPONSE TO "UNQUANTIFIED" COMPLAINT

- 4.1 On 15 April 2026, Deneys Attorneys sent a letter (**Annexure WW1**) stating that my demand was "*unquantified*" and that this supported an allegation of extortion.
- 4.2 In direct response, I sent a fully itemised quantification of **R7,307,642.72 (Annexure GVW4)** to the founding affidavit).

- 4.3 That quantification was not a new demand. It was the **first full Rand expression** of the same claim already filed in the Labour Court on **9 April 2026**. My Labour Court Statement of Claim expressly reserved the right to quantify (**Annexure WW2**).
- 4.4 **A person engaged in extortion does not quantify at the request of the opposing party.** My conduct is that of a genuine litigant.

5. VOLUNTARY CORRECTION OF "LEAKAGE" — EVIDENCE OF GOOD FAITH

- 5.1 The Applicant criticises me for using the word "*leakage*" and then correcting myself (founding affidavit paras 36, 37, 58).
- 5.2 On 15 April 2026 at **20h44**, I voluntarily sent a correction email (**Annexure GVW5**): "*I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint.*"
- 5.3 **A bad-faith actor does not issue voluntary corrections.** My correction is direct evidence of good faith.



6. TRANSPARENCY: VOLUNTARY DISCLOSURE OF PENDING TRIAL

- 6.1 In **January 2024**, during recruitment, I voluntarily disclosed a pending trial relating to blood alcohol levels to the Applicant's Human Capital department (**Annexure WW3**). I provided an updated CV before employment.
- 6.2 The Applicant initially recruited me for the post of **Specialist Care Manager**.
- 6.3 However, at the point of signing the employment agreement, the Applicant unexpectedly presented me with a contract reflecting the **diminished title of "Care Coordinator"**, without any prior consultation or explanation for this sudden alteration.
- 6.4 Subsequently, during a recorded meeting '**naming convention**' with the Operational Manager and Human Capital, this discrepancy was formally addressed and my title was rightfully updated to reflect my NQF Level 8 qualification, establishing my correct designation as **Case Manager**.
- 6.5 The voluntary disclosure detailed in paragraph 6.1 is a demonstration of my **radical transparency**. I bring this to the Court's attention to categorically state that the pending trial is entirely irrelevant to these proceedings, involves no element of dishonesty or extortion, and **cannot be used by the Applicant to retroactively impugn my character** or my actions as a whistleblower.

7. PROCEDURAL INTEGRITY: RETRACTION OF MY OWN GRC ESCALATION

- 7.1 On **16 December 2025**, I sent a GRC Escalation to the Board. When I realised it was sent on a public holiday — invalidating my deadline — I immediately retracted it and apologised (**Annexure WW4**).
- 7.2 **A vexatious litigant does not retract his own documents.** I respect process and have demonstrated this consistently.

8. NECESSITY AND PROPORTIONALITY OF MY TONE

- 8.1 Between October 2025 and April 2026, I exhausted all internal remedies: grievances, Board escalation, a letter to the Group CEO. The Applicant responded with **silence**, suppression, and a CEO who **breached my confidentiality**.
- 8.2 By April 2026, the **9.5% premium increase** had been approved. The Department of Employment and Labour refused to unblock my benefits (**Annexure WW5**).
- 8.3 My explicit tone was **necessary and proportionate**. I threatened no violence or unlawful act — only protected disclosures to trade unions and regulators, which are expressly contemplated by the Protected Disclosures Act 26 of 2000.



9. PUBLIC INTEREST: APN 303 AND THE R3 BILLION "GOVERNANCE TAX"

- 9.1 At paragraph 40 of their Founding Affidavit, the Applicant admits that the **Gexus and DMS platforms** manage chronic care pathways and adherence data. Actuaries rely entirely on Gexus/DMS data to build statutory financial models under **Actuarial Practice Note 303 (APN 303)**.
- 9.2 As proven in my Root Cause Analysis (**Annexure VICT1**), the systemic integration gap generates **false non-adherence data**. Actuaries are compelled to apply maximum APN 303 risk loading, inflating the premium increase from the CMS-stipulated **3.3%–4% to 9.8%** then refused to **9.5%.%**

PUBLIC INTEREST — FISCAL QUANTUM

The excessive 4.5% premium inflation constitutes an artificial **"Governance Tax"** costing approximately **1.9 million GEMS members** an estimated **R3.016 billion annually**. This is a matter of overwhelming public interest directly relevant to the Applicant's claim that it suffers any harm from my disclosures.

10. NO POPIA BREACH

10.1 I intend to disclose **systemic governance failures**, not individual patient records. The POPIA argument advanced by the Applicant is a deliberate overstatement designed to suppress legitimate whistleblowing activity.

11. THE PROTECTED DISCLOSURES BILL, 2026 — PUBLIC POLICY AND PROPORTIONALITY

11.1 On **8 April 2026**, the Minister of Justice and Constitutional Development published the **Protected Disclosures Bill, 2026** for public comment. The Bill proposes to repeal the existing PDA and introduce, inter alia, financial awards for whistleblowers of up to **25% of any monetary sanction** imposed on an employer as a result of a protected disclosure.



11.2 The Bill was driven by the Zondo Commission's findings that the current Act does not sufficiently protect whistleblowers. The Minister explicitly stated that the Bill aims to *"incentivise our whistleblowers"* and that *"the person who has made the disclosure could receive an amount that does not exceed one fourth of the monetary sanction"*.

POLICY PROPORTIONALITY ARGUMENT

If Parliament considers it legitimate to reward whistleblowers with up to **25% of recovered funds** (which on R3.016bn would equal **R754 million**), the Applicant's characterisation of my **R7,307,642.72 claim** (representing less than **0.24%** of the annual waste exposed) as *"extortion"* is not only legally flawed — it is **policy-blind and contrary to the express direction of national legislation**.

12. PUBLIC POLICY AND THE NATIONAL HEALTH INSURANCE (NHI) ACT

12.1 The **National Health Insurance Act 20 of 2023** aims to achieve universal access to quality healthcare. Its success depends entirely on the integrity of health data and governance systems.

12.2 The systemic Gexus/DMS integration gap corrupts clinical data, leading to operational waste and inflated claims. The R3.016 billion Governance Tax is a **direct threat to the NHI's fiscal sustainability**.

12.3 As a Specialist Registered Nurse and Health Services Manager, I am bound by the **Nursing Act 33 of 2005** to advocate for the profession and manage and coordinate nursing care effectively. My escalation of the integration gap was not insubordination — it was the **fulfilment of my professional and ethical duties**.

12.4 It would constitute a **perversion of justice** for this Court to grant an interdict that punishes me for upholding the very governance and accountability that the NHI requires to succeed.

13. THE PROTECTED DISCLOSURES ACT APPLIES TO FORMER EMPLOYEES

13.1 Section 1 of the PDA expressly includes a **"former employee"** within the definition of *"employee"*. My disclosures relate to improper conduct that occurred during my employment. The Applicant's contrary submission is accordingly incorrect in law.



14. FORMAL INVITATION TO PRODUCE DISCOVERY — PUTTING THE APPLICANT ON NOTICE

14.1 I hereby formally invite and put the Applicant on notice to produce the following documents within **5 (five) days** of service of this affidavit:

14.1.1 The unredacted GEMS CMS Business Plan justifying the **9.5% premium increase for 2026**;

14.1.2 The **APN 303 Actuarial Risk Profiling Logs** fed from the Gexus and DMS platforms covering the period October 2024 to October 2025;

14.1.3 The unedited Microsoft Teams recording titled *"Naming Convention"* (or any similar recording) containing management discussions regarding the suppression of my findings or the alteration of my job title;

14.1.4 Correction of my **UI19 form** to allow access to unemployment benefits;

14.1.5 Correction of my **Certificate of Service** to reflect my actual designation as *Case Manager / Specialist Nurse*;

14.1.6 Submission of **non-remitted UIF contributions for June 2025**.

14.2 The Applicant's refusal or failure to produce these documents will entitle this Court to **draw an adverse inference** against the Applicant.

14.3 **WARNING:** If the Applicant fails to comply without a valid legal basis, I will file a notice to anticipate the return day in terms of **Uniform Rule 6(8)** (as permitted by

paragraph 7 of the interim order dated 16 April 2026) and move for an order discharging the rule nisi with a **punitive costs order**.

14.4 I anticipate that the Applicant may attempt to resist the production of the unredacted GEMS CMS Business Plan and APN 303 actuarial logs by citing **commercial confidentiality or privilege**.

14.4.1 Such a defence is **fatally flawed** and falls to be dismissed for two reasons:

(a) **Waiver of Confidentiality:** The Applicant's CEO recklessly distributed my protected complaint directly to the very individuals implicated in the systemic failure, thereby **destroying any veil of privilege**. The Applicant cannot weaponise "*confidentiality*" against this Court when it failed to practise it internally.

(b) **Independent Auditor / In Camera Review:** To eliminate any genuine concern regarding proprietary trade secrets, I hereby **tender** that the unredacted documents be provided to an independent, mutually agreed-upon IT auditor or actuary, or alternatively, be submitted for an *in camera* review by the presiding Judge. The objective is solely to **verify the forensic irregularities** confirming my root cause analysis, not to expose trade secrets.



14.5 I am acutely aware that discovery in motion proceedings is exceptional under **Rule 35(13)**. However, the Applicant has approached this Urgent Court seeking equitable relief (an interdict) against me.

14.6 The Applicant **cannot seek the Court's protection** while actively suppressing the exact empirical evidence — specifically the APN 303 logs and the Microsoft Teams recording — that constitutes my complete and absolute defence to their allegations of insubordination and vexatious conduct. The Applicant must approach this Court with **clean hands**. Withholding evidence that proves a respondent's statutory defence under the Protected Disclosures Act is a **gross abuse of process**.

14.7 For the avoidance of doubt, the mechanism I am utilising to anticipate the return date is not an abuse of the urgent roll, but a **direct exercise of the judicial mechanism** expressly provided to me.

14.8 During the initial hearing, the presiding Judge explicitly granted me the "**golden bridge**" to utilise Uniform Rule 6(8) to anticipate the return date upon 24 hours' notice. Should the Applicant fail to produce the requested records within the stipulated 3 days, my subsequent anticipation of the return date will be the **lawful**

execution of that judicial directive, necessitated by the Applicant's own refusal to be transparent.

DISPUTE OF FACT — PRE-EMPTED

The Applicant may attempt to manufacture a "*dispute of fact*" to stall my counter-application. My defence and counter-application are grounded not in subjective interpretation, but in **objective, immutable data**: actuarial logs, statutory prescripts (Nursing Act 33 of 2005), and mathematical quantification aligned with the Protected Disclosures Bill of 2026. The Applicant **cannot create a genuine dispute of fact** simply by issuing bare denials against objective algorithmic outputs.



15. FATAL CONTRADICTION IN THE APPLICANT'S PAPERS

15.1 The Applicant's founding affidavit designates me as "**Case Manager**". Yet on my Certificate of Service, the Applicant deliberately downgraded my title to diminish my credibility. The Applicant **cannot simultaneously rely on my status as Case Manager** to seek an interdict while erasing that same title in the Labour Court and before the Department of Employment and Labour.

FATAL CONTRADICTION — DESIGNATION INCONSISTENCY

The Applicant designates the Respondent as "**Case Manager**" in its founding affidavit while simultaneously erasing that designation on the Certificate of Service submitted to the Labour Court and the Department of Employment and Labour. See contradiction table below.

DOCUMENT	DESIGNATION APPLIED
Founding Affidavit (this application)	Case Manager
Certificate of Service (Labour Court / DEL)	Downgraded title — used to support the opposing affidavit submitted at the CCMA

16. JUDICIAL NOTICE OF PRIOR VEXATIOUS CONDUCT

16.1 This Court struck my previous urgent application (Case No. **2026-066952**) from the roll with costs, expressing its displeasure with the manner in which it was brought. The Applicant now repeats the same pattern: an application lacking genuine urgency, based on unsubstantiated allegations of "*extortion*".

16.2 As held in *Mkhatshwa v Mkhatshwa 2021 (5) SA 447 (CC)*, vexatious litigation warrants punitive costs.

PART Q: COUNTER-APPLICATION FOR DECLARATORY RELIEF
(UNCONDITIONAL)

17.1 I hereby institute a **counter-application for declaratory relief**. This counter-application is **not conditional** upon the Applicant proceeding with its main application. I seek these declaratory orders independently, and the counter-application will proceed even if the Applicant withdraws its main application under Case No. **2026/086906**



17.2 I submit that this Honourable Court has jurisdiction to grant declaratory relief in terms of **section 19(1)(a)(iii) of the Superior Courts Act, 2013**, which provides that a Division has jurisdiction over "*the granting of declaratory orders*". Furthermore, to the extent the Applicant may argue that aspects of this counter-application touch upon Labour Court jurisdiction, I rely on the doctrine of **causa continentia**. The Applicant deliberately elected to institute these urgent proceedings in the High Court, placing the factual matrix of my disclosures directly before this forum. It is in the interests of justice, and to avoid a multiplicity of actions, that this Court disposes of the counter-application within the very forum the Applicant itself chose.

17.3 I further submit that the relief sought is **not abstract or hypothetical**. There is a tangible and immediate advantage to be obtained:

17.3.1 The declaratory orders will immediately **break the administrative deadlock** with the Department of Employment and Labour, allowing me access to unlawfully withheld statutory social security benefits (UIF, retirement funds);

17.3.2 The declaratory orders will **vindicate my reputation** and establish my good faith, which the Applicant has falsely attacked in its founding papers and in the CCMA proceedings.

AUTHORITY: NEW CLICKS — COUNTER-APPLICATION IN ANSWERING PAPERS

The counter-application is properly brought within my answering papers. I rely on *Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC)*, which confirms that a respondent may, in an answering affidavit, seek declaratory relief, and that a counter-application may be brought within the same papers.

17.4 I rely on the Constitutional Court's decision in *Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC)*, which confirms that a respondent may, in an answering affidavit, seek declaratory relief and that a counter-application may be brought within the same papers.

17.5 I further rely on the Eastern Cape High Court decision in *Eastern Cape High Court, Bhisho (Case No. 148/2020)*, where the respondents filed a counter-application within their answering affidavit seeking declaratory relief. The fact that my counter-application is not conditional on the main application proceeding is consistent with the inherent jurisdiction of this Court to grant declaratory relief *whenever it is just and convenient to do so*.



17.6 I expressly confirm that I will pursue this counter-application **regardless of whether the Applicant withdraws its main application**. The declaratory relief is necessary to remedy the ongoing harm I suffer and to break the administrative deadlock that the Applicant has created through its unlawful conduct.

17.7 For the avoidance of doubt, and to pre-empt any dilatory points regarding **non-joinder**, I confirm that no relief or costs are sought against the Department of Employment and Labour, the Council for Medical Schemes, or the National Department of Health. Their mention in these papers is strictly contextual — to demonstrate the **immediate administrative harm** I am suffering and the national public interest at stake. Consequently, their formal joinder is **not required in law** for this Court to grant the declaratory relief against the Applicant.

PART R: PRAYER FOR DECLARATORY RELIEF (COUNTER-APPLICATION)

WHEREFORE the Respondent prays that this Honourable Court grants the following declaratory findings in the counter-application:

R.1 That the Root Cause Analysis (**Annexure VICT1**) and the subsequent escalations regarding the Gexus/DMS integration gap constitute **Protected Disclosures made in**

good faith and in the public interest within the meaning of the Protected Disclosures Act 26 of 2000;

R.2 That the Respondent's voluntary correction of the word "*leakage*" (**Annexure GVW5**) and his voluntary retraction of the GRC Escalation due to a procedural error (**Annexure WW4**) are evidence of **good faith**, and the Applicant's reliance on these events to allege bad faith is an **abuse of process**;

R.3 That the Respondent's quantification of **R7,307,642.72** on 15 April 2026 was a **good-faith articulation** of his existing Labour Court claim (Case No. **2026-083299**) and does **not** constitute extortion;

R.4 That the Applicant is ordered to comply with the formal invitation to produce discovery set out in paragraph 14 above within **5 (five) days** of this order;

R.5 That the Respondent be granted any **further and/or alternative relief** as this Honourable Court deems just and equitable;

R.6 That the **costs of the counter-application** be paid by the Applicant on the scale as between **attorney and client**.

R.7 I submit that this Honourable Court has jurisdiction to grant declaratory relief in terms of section 19(1)(a)(iii) of the Superior Courts Act, 2013. Furthermore, to the extent the Applicant may argue that aspects of this counter-application touch upon Labour Court jurisdiction, I rely on the doctrine of causa continentia. The Applicant deliberately elected to institute these urgent proceedings in the High Court, placing the factual matrix of my disclosures directly before this forum. It is in the interests of justice, and to avoid a multiplicity of actions, that the High Court disposes of the counter-application within the very forum the Applicant itself chose.



PART S: PRAYER FOR RELIEF IN THE MAIN APPLICATION

(Opposition to the Applicant's interdict — this remains unchanged)

In addition to the counter-application, the Respondent prays that this Honourable Court:

S.1 **Discharge the rule nisi** issued on 16 April 2026 and set aside the interim interdict in its entirety, with costs on the scale as between **attorney and client**, such costs to be paid by the Applicant;

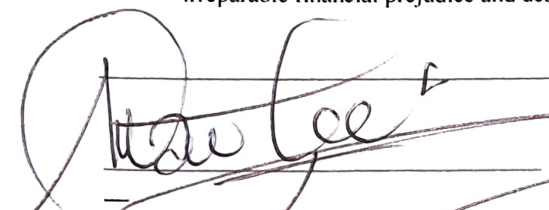
S.2 Grant the **declaratory findings** set out in paragraph 17 above;

S.3 Order the Applicant to comply with the formal invitation to produce discovery set out in paragraph 14 within **5 (five) days**;

Matthee v AfroCentric Investment Corporation Limited | Case No. 2026-086906 | Western Cape High Court

S.4 Grant any further and/or alternative relief as this Honourable Court deems just and equitable.

S5. An order directing that the declaratory relief sought herein be granted on an urgent basis, as this Honourable Court is the only forum presently seized with the factual matrix capable of intervening to break the ongoing administrative deadlock with the Department of Employment and Labour. It is respectfully submitted that immediate judicial intervention by this Court is the sole remedy available to halt the continuous, irreparable financial prejudice and destitution being suffered by the Respondent.


RESPONDENT
SR. WILBUR W. MATTHEE
Specialist Registered Nurse (NQF Level 8)
Forensic Governance Specialist


COMMISSIONER OF OATHS
PASTOR BENJAMIN J. MASEMOLA
 Full name: _____
 Address: _____
 Capacity: _____
 Cell: _____
 MARRIAGE OFFICER
 COMMISSIONER OF OATHS
 No. 18 DIGTEBY CRESCENT
 VOORBRUG DELFT 7100
 Cell: 082 891 0844



EXHIBIT LIST

EXHIBIT	DESCRIPTION
RESU1	Letter of recommendation – Dr P.M.J. Ohm (Mitchells Plain District Hospital Emergency Unit)
OA1	CCMA opposing affidavit (Xolile Vincent Manyati, Case No. WECT23564-25) – paragraph 6.3 alleging PTSD/depression was "an excuse" and "an afterthought"
GRC1	First Board-level GRC Escalation – filed prior to Manyati opposing affidavit
GRC2	Second Board-level GRC Escalation – filed prior to Manyati opposing affidavit
WW1	Letter from Deneys Attorneys dated 15 April 2026 alleging demand was "unquantified"
WW2	Labour Court Statement of Claim – reservation of right to quantify clause
WW3	Vacancy email chain – January 2024 voluntary disclosure of pending trial

EXHIBIT	DESCRIPTION
WW4	GRC Escalation (16 December 2025) and voluntary retraction / apology (17 December 2025)
WW5	Department of Employment and Labour email – 15 April 2026 (refusal to release benefits)
WW6	Affidavit of Destitution (filed herewith)
GVW4	Itemised quantification of R7,307,642.72 (already filed in founding papers)
GVW5	Correction email of 15 April 2026 at 20h44 withdrawing word "leakage"
VICT1	Root Cause Analysis: Gexus/DMS Integration Gap – APN 303 actuarial impact
EXIT3	Exit documentation / Certificate of Service (erroneous designation)
DEC1	Supporting declaration (already filed in founding papers)



Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
A1

Date: 9 April 2024 (signed 18 April 2024)

Category: *Employment Record*

Description:
Employment Contract — Respondent designated "Care Coordinator" (IRC78739), signed by GM Barbara Johnson.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Proves title imposed without consultation. Contradicts Applicant's use of "Case Manager" in founding papers. Fatal contradiction with Certificate of Service.

REGISTRAR OF THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION,
CAPE TOWN

1103201/2026/RC000 Cape Town 6000

REGISTRAR OF THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION,
CAPE TOWN

[Document follows immediately after this tab]

**AfroCentric**
GROUP

Healthier Together

09 April 2024

W Matthee
C/O AFROCENTRIC HEALTH (RF) (Pty) Ltd

Dear Wilbur,

INTERNAL APPOINTMENT: Care Coordinator

We are pleased to offer you the position Care Coordinator (Reference IRC78739) within AfroCentric Health (RF) (Pty) Ltd with effect from 01 May 2024. This position is situated at Cape Town.



The Key elements of your duties and responsibilities will be as discussed with you and may be revised from time to time thereafter.

CONDITIONS OF EMPLOYMENT**1. PROBATION**

You will be required to successfully complete a probationary period of **six (6)** continuous months in this new position. In terms of the Group Talent Acquisition Policy, you will not be permitted to apply for any vacant position internally during this probation period.

2. REMUNERATION

We are pleased to advise you that your total package on a cost to company basis will be **R490,032.00 per annum**, payable by bank transfer into your Bank account.

The above cost to company figure includes all your contributions towards Medical Aid, Pension Fund, Group Life Assurance and Disability Assurance. If you are required to use your cell phone for business purposes, this will be deemed to be part of your cost to company package.

The Grade for your position based on our Grading Model is that of **B4M1**.

3. RETIREMENT FUNDING INCOMEwww.afrocentric.za.com

AfroCentric Investment Corporation Limited Reg #1988/000570/06
T +27 11 671 2000
PO Box 1101, Florida Glen 1708 | 37 Conrad Street | Florida North | Roodepoort 1709

**DIRECTORS:**

Dr ATM Mokgokong (Chairman), MJ Madungandaba (Deputy Chairman), GN Van Wyk (CEO), JW Boonzaaier (CFO), M Chauke, MK Dippenaar, JB Fernandes, PB Hanratty, AM le Roux, KN Mkhize, Dr ND Munisi

Group Company Secretary: LSM Mpumlwana

A percentage between **78** and **90** (78 / 80 / 85 / 90) of your total cost to company figure, as selected by yourself, will constitute your "**Retirement Funding Income**". All contributions, both employer and employee, to the Pension / Provident Fund, Group Risk Benefits such as Life and Disability Schemes will be based on this figure.

4. LEAVE ENTITLEMENT

Your annual leave entitlement will be **seventeen (17)** working days per annum.

5. HOURS OF WORK

You will be required to work **forty-five (45) hours per week**. Your working hours are flexible and will be scheduled by the Business Unit and may include a Saturday which is deemed part of your normal working week. You will be entitled to a thirty (30) minute lunch break as scheduled. Any work performed on a Saturday will be paid at normal rates. Your working hours will be determined by the requirements of the Business Unit to which you are assigned to from time to time and may be amended to suit the operational requirements of the Business Unit.



It is a condition of employment that, as and when the need arises, you will be required to work overtime. Payment, or time off in lieu of overtime worked, hours more than forty-five (45) working hours per week, will be made in accordance with the Human Capital Payroll and Benefits Management Policy.

6. OTHER CONDITIONS OF EMPLOYMENT

All other conditions of employment not specifically mentioned in this letter remain unchanged.

7. PACKAGE RESTRUCTURING

Please feel free to have a package structuring calculation/discussion with your Line Manager or the HC Business Partner responsible for your Business Unit before accepting this offer of employment. Package restructuring takes place during June/July.

Candidate Initial _____ GM Initial BG

8. OFFER ACCEPTANCE

Kindly sign and return the copy of this letter to your HC Business Partner. Also note that this offer is valid for three (3) days from receipt.

Please initial every page and sign in full on the last page of this document before returning to your HC Business Partner.

We would like to take this opportunity to wish you well in your new position.

Yours sincerely,

B Johnson

Barbara Johnson
General Manager: GEMS Operations.5
AfroCentric Health (RF) (Pty) Ltd

18 April 2024

Date Signed



Candidate Initial _____ GM Initial *BJ*

I **ACCEPT OFFER** extended to me for the position of Care Coordinator within AfroCentric Health (RF) (Pty) Ltd at Roodepoort. I will take up the position on 01 May 2024.

I hereby acknowledge that I have read the contents of this document and fully understand and agree to abide by the provisions thereof. I also acknowledge that the contents of this document are confidential, and I will not disclose the contents to any party within the working environment.

I acknowledge that I have not been induced to complete this contract by any representations made to me by any person/s and hereby confirm that I have entered into this contract of my own free will.

By accepting this offer of appointment, I undertake to keep abreast with updates pertaining to all company policies and procedures regularly and adhere to them.



W Matthee

DATE SIGNED

Candidate Initial _____ GM Initial BG

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE WW3	Date: 29 January 2024
	Category: <i>Recruitment Email Chain</i>
	Description:
	Vacancy email chain: Neo Sekgoka (Human Capital Intern) communicates "Specialist Care Manager" assessment. Respondent's email of 29 Jan 2024 at 14:14 voluntarily discloses pending blood-alcohol trial and provides updated CV.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Establishes radical transparency during recruitment. Proves Respondent was not induced by misrepresentation. Counters any attempt to use the pending trial to impugn character.



[Document follows immediately after this tab]



Vacancy - Specialist Care Manager

6 messages

Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com> Mon, 29 Jan 2024 at 08:36

Good day

Thank you for showing interest in the abovementioned position. As a part of our hiring process, we send out assessments related to the position to test your skills.

You will find an attachment to this mail covering all the instructions related to the assessment. You will also find the link to the assessment in the attachment. In order to complete the assessment successfully, you will need to go through the instructions carefully.



The due date of the assessment is **30 January 2024 @ 12am/Midday**.

Don't forget to send pivotal assessment document.

Wishing you all the best!



Neo Sekgoka
Human Capital Intern

- +27 (011) 671 4819
- neo.sekgoka@afrocentrichealth.com

- 37 Conrad St, Florida North, Roodepoort | PO Box 1101, Florida Glen, 1709
- www.afrocentric.za.com

012-22
54
19/5/2026-8:22:49 AM

Please consider the environment before printing this email

Always aligning our leaders & people with the business purpose.

CONFIDENTIALITY:

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.



CONFIDENTIALITY:

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

This email has been scanned for email related threats and delivered safely by Mimecast.
For more information please visit <http://www.mimecast.com>

6 attachments

 **image001.png**
1 KB

 **image002.png**
1 KB

 **image003.png**
1 KB

 **image004.png**
1 KB

 **image005.png**
29 KB

 **PT Assessment Instructions_ Medscheme (002) (Case manager etc.).docx**
15 KB

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55
19/5/2026-8:22:49 AM

Wilbur William Matthee <wilburmat@gmail.com>
To: Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com>

Mon, 29 Jan 2024 at 09:33

Thank you, will do.

[Quoted text hidden]

Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com>
To: Wilbur William Matthee <wilburmat@gmail.com>

Mon, 29 Jan 2024 at 11:06

May you kindly send me everything I have requested for before the end of business day

[Quoted text hidden]

[Quoted text hidden]



Wilbur William Matthee <wilburmat@gmail.com>
To: Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com>

Mon, 29 Jan 2024 at 12:02

Thank you, will do.

[Quoted text hidden]

Wilbur William Matthee <wilburmat@gmail.com>
To: Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com>

Mon, 29 Jan 2024 at 14:14

Hello Neo

I hope you are well. I have just completed the online assessment as requested. I will submit the other required documents now.

My MIT fingerprint test was done in December 2023, i have the report and will send that to you on request. I have to update my CV with regards to the statement I made "criminal record" clear, in the report it states that i have a pending trial for pending blood results for the level of alcohol in my system. I do not want this statement to determine the success of my application so I have provided you with the updated CV.

thank you so much for your assistance with this.

Regards,

Sr. W. Matthee

[Quoted text hidden]

 **WillCvJan update.pdf**
752 KB

Neo Sekgoka <Neo.Sekgoka@afrocentrichealth.com>
To: Wilbur William Matthee <wilburmat@gmail.com>

Mon, 29 Jan 2024 at 14:20

May you kindly fill in the consent form as we do our own fingerprint checks. We do not allow any fingerprint checks that were done by the candidate themselves unless otherwise specific.

[Quoted text hidden]

[Quoted text hidden]

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
IMP1

Date: 2 November 2025

Category: *Impact Statement*

Description:
Impact Statement submitted by Respondent to HR Business Partner — documents chronic stress, erosion of self-confidence, isolation, and professional stagnation caused by the hostile work environment created by Mary-Ann Jones; cites specific incidents including no-win directives, out-of-hours demands, and denial of written record.



RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Establishes subjective element of constructive dismissal. Contemporaneous record of deteriorating employment conditions predating resignation.

[Document follows immediately after this tab]

Wilbur Matthee

From: Wilbur William Matthee <wilburmat@gmail.com>
Sent: Sunday, 02 November 2025 23:10
To: Wilbur Matthee

This message originated from outside your organization

Impact Statement

To: Human Resources Department
From: Wilbur Matthee
Date: 02 November 2025
Subject: Impact Statement Regarding Hostile Work Environment Created by Mary-Ann Jones

Dear HR Business Partner,

I am providing this statement to outline the profound professional and personal impact that the sustained hostile work environment created by my manager, Mary-Ann Jones, has had on me. The attached transcript from 31 October 2025 provides concrete evidence of the behaviors that have led to this deterioration.



1. Impact on My Mental and Emotional Well-being:

The constant state of anxiety and hyper-vigilance required to navigate interactions with Mary-Ann Jones has been exhausting and debilitating. I am consistently placed in "no-win" situations where any action I take—whether showing initiative or seeking clarity—is framed as a failure or an act of insubordination. This has led to:

- Chronic Stress and Anxiety: I feel a constant sense of dread about work, fearing the next unexpected directive or accusation. The out-of-hours phone call demanding my return to the office is a prime example of this, causing immediate shock and distress.
- Erosion of Self-Confidence: Being repeatedly told that my professional actions are wrong, and having my reality denied (such as being told I did not send a follow-up email when I have proof that I did), has systematically undermined my confidence in my own judgment and abilities.
- Feeling of Isolation: The accusation that seeking clarity from my teammates is "undermining" or "creating noise" has made me feel isolated and unable to communicate freely with my colleagues, which is essential for a collaborative team environment.

2. Impact on My Professional Performance and Stagnation:

The environment fostered by [Mary-Ann Jones] is one that actively discourages growth, questions, and initiative. This has directly impacted my ability to perform and develop in my role:

- Fear of Initiative: I am now hesitant to act independently or make decisions for fear they will be weaponized against me, as was the case with the CMBR referral.
- Inability to Seek Clarification: I feel I cannot ask necessary questions to understand my tasks or company policy, as this is labeled as "reacting" instead of "responding." This creates a high-risk environment where I am set up to fail.
- Preoccupation with Conflict: An inordinate amount of my mental energy is spent documenting interactions, anticipating problems, and defending my actions, rather than focusing on my core duties and adding value to the company.

3. The Overall Toll:

The cumulative effect of these experiences has made my work environment intolerable. The repeated suggestions from Mary-Ann Jones that I should ask to be removed from her team confirm my feeling that I am not wanted and that there is no path forward for me under her leadership. This is not a simple personality clash; it is a sustained campaign that has negatively impacted my health and my career.

I came to Afrocentric Health eager to contribute and grow. My intention has always been to be a dedicated and valuable employee. The current situation under Mary-Ann Jones has made that impossible.

I trust that you will treat this matter with the urgency and seriousness it deserves.

Sincerely,



FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL

4 messages

Wilbur William Matthee <wilburmat@gmail.com> Fri, 12 Dec 2025 at 03:29
To: lebohang.mpumlwana@afrocentrichealth.com
Cc: ferfam.bruno@gmail.com, alice@aliceleroux.co.za, Gretchen.veldman@afrocentrichealth.com, gerald.vanwyk@afrocentrichealth.com, munisinf@global.co.za
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

TO:
The Board of Directors (via Company Secretary)
AFROCENTRIC HEALTH (RF) (PTY) LTD
37 Conrad Road, Florida North, 1709
CC:
Mr./Ms. Gerald Van Wyk (Chief Executive Officer)
Chair of the Audit & Risk Committee
Chair of the Social & Ethics Committee
Group Human Resources Department
DATE: 11 December 2025



Dear Board of Directors,

I, Wilbur Matthee, hereby give notice of the immediate termination of my contract of employment with Medscheme Holdings, effective 12 December 2025.

This resignation is not voluntary. I am terminating my employment because the employer, Medscheme Holdings(A Division of AfroCentric Health), has rendered the continuation of the employment relationship irretrievably intolerable through its malicious, calculated, and institutional conduct.

This termination constitutes an Automatically Unfair Constructive Dismissal in terms of the Labour Relations Act (LRA).

1. Grounds for Intolerability: Institutional Malice and Victimisation

The conditions rendering my continued employment intolerable are proven by the employer's formal legal submission in the matter of Wilbur Matthee and Medscheme Holdings (CCMA Case Ref. Number: WECT23364-25), specifically the Respondent's Answering Affidavit signed under oath on 10 December 2025.

The Affidavit contains specific statements that constitute severe and ongoing occupational detriment, victimisation, and unfair labour practice, including:

Malicious Character Attacks: The Affidavit labels me as having an "untruthful character," engaging in a "fishing expedition," and acting with "sloppiness and lack of regard" for the Commission. This ad hominem attack, under oath, fundamentally destroys the trust and confidence necessary for any employment relationship.

Institutionalised Victimization: The Affidavit explicitly dismisses my claims of victimisation and mental health issues as having "no relevance" and being used to "sensationalize" the dispute (Sections 6.3 and 8.5). This demonstrates that the victimisation is ongoing, officially sanctioned, and institutionalised through the Respondent's legal representation.

2. Legal Basis: Automatically Unfair Constructive Dismissal

The employer's conduct, as documented in the sworn Affidavit, makes this termination an Automatically Unfair Constructive Dismissal in terms of the following sections of the Labour Relations Act (LRA):

Section 186(1)(e): The employee terminated the contract of employment because the employer made continued employment intolerable.

Section 187(1)(h): The reason for the employer's conduct is directly linked to an act of retaliation against a Protected Disclosure (the P1 Material Risk Report and subsequent updates regarding discrimination and victimisation).



3. Conclusion and Formal Notice

The content of the Respondent's Opposing Affidavit eliminates any conceivable possibility of restoring the employment relationship. I consider myself to have been dismissed by the employer's malicious conduct.

I have already formally informed the Board of the governance failure related to this P1 risk and the ongoing victimisation. All further matters relating to this dispute, including the claim for maximum compensation and a demand for punitive costs (Attorney-and-Client scale), will be handled at the CCMA/Labour Court, and via my External Whistleblower disclosures to the JSE, FSCA, CMS, DEPARTMENT OF EMPLOYMENT & LABOUR - INSPECTION & ENFORCEMENT + B-BBEE, . Pending complete governance failure.

Yours sincerely,

Wilbur Matthee



Address not found

Your message wasn't delivered to **Gretchen.veldman@afrocentrichealth.com** because the address couldn't be found, or is unable to receive mail.

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
EXEC1

Date: 4 December 2025

Category: *Internal Escalation Email*

Description:

Executive Leadership Escalation email from Respondent's Medscheme email account — documents: (1) unlawful salary deduction >40% during mental health admission; (2) continuous retaliation and victimisation; (3) 20% reduction in performance metrics; (4) 30+ days institutional silence. Requests paid recuperation leave, financial settlement independently assessed by Risk & Compliance, and institutional commitments.



RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Final good-faith internal attempt prior to CCMA referral. Satisfies requirement to exhaust internal remedies. Directly contradicts any suggestion of bad faith or vexatious conduct.

[Document follows immediately after this tab]



Urgent intervention required

1 message

Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
To: Wilbur William Matthee <wilburmat@gmail.com>

Thu, 04 Dec 2025 at 12:21

Dear Executive Leadership,

This correspondence serves as my final and good-faith attempt to resolve, internally and without escalation, the severe and ongoing harm I have been subjected to as a direct result of the company’s repeated institutional failures.



Over the past months, I have experienced serious and documented misconduct, including:

1. Unlawful salary deductions exceeding 40% of my monthly income without my consent or consultation. This during a motivated mental health admission, awaiting a bed informed by the HRBP that the deduction was taken on the principle of no work no pay which did not require consultation.
2. Continuous intimidation, retaliation, and victimisation by my direct manager despite a lodged grievance. After a formal request to be temporary removal from her team. No action.
3. Awaiting feedback from manager as discrepancies found in up to 20% reduction in some cases of my monthly actual performance metrics that led to poor outcomes even missed opportunities in performance bonuses.
4. Prolonged silence and inaction from HR and senior leadership and union despite formal complaints. Currently +30days to date no response.

These actions have caused significant financial strain, forced me into a cycle of unexpected debt which i am struggling to manage, and resulted in severe psychological distress. My capacity to work in an environment that continues to permit such conduct has reached its limit.

Given the seriousness of these failures, I am formally requesting the restorative measures:

1. Paid Recuperation Leave & Guaranteed Reintegration

A period of fully paid special leave, allowing adequate time for psychological recovery.

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Upon return, a permanent and immediate transfer to a new department.

2. Financial Settlement Determined by Risk & Compliance

I request a comprehensive financial settlement, independently assessed by the Head of Risk & Compliance, covering:

Financial losses caused by the unlawful deduction.

Debt incurred as a direct result of these actions.

Compensation for emotional distress, harassment, and institutional negligence



The company's full legal exposure for:

Unfair labour practice

Discrimination

Failure to provide a safe working environment

Reputational and operational risks should the matter escalate externally.

3. Institutional Commitments

A written, irrevocable guarantee of no retaliation, present or future.

Next Steps

I am willing to meet with this leadership group and a neutral mediator within 14 days from date 04 December 2025.

If a signed agreement in principle is not provided by 14 working days, I will immediately proceed with the following simultaneous actions: As I feel I have exhausted all avenues this far to have the incidents resolved and this is my final resort.

1. File cases with the CCMA for unfair labour practices, and discrimination.

2. Lodge a formal complaint with the Department of Employment and Labour regarding the unlawful salary deduction.

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3. Submit a complaint to the South African Human Rights Commission.

I am really at my breaking point now no motivation to come to work.

All evidence is already compiled and ready for submission.

I trust that the company will choose a constructive, internal resolution over a protracted and public legal dispute. I await your urgent response.

Kind regards,

Wilbur Matthee



This email is subject to a disclaimer which may be found on our website by clicking on this link:
https://www.medscheme.co.za/EX_Medscheme_VS07/Documents/PDF/Medscheme%20Limited%20Terms%20of%20Use.pdf.

If you would prefer, the disclaimer can be emailed to you by clicking:
mailto:Meds_disclaimer@medscheme.co.za .

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
GRC1

Date: 9 December 2025

Category: *Board GRC Escalation (1st)*

Description:
Formal GRC Escalation to Dr ATM Mokgokong (Chairman, Social & Ethics Committee) with 38 attachments. Includes executive summary table of King IV governance failures (Principles 2, 3, 14, 16). Formal request for independent investigation and Board-mediated resolution. Filed prior to Manyati opposing affidavit.



RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Establishes Board-level notice of governance failures before OA1 was filed. Demonstrates protected disclosure made in good faith. Grounds King IV / Companies Act governance argument.

[Document follows immediately after this tab]



CONFIDENTIAL – LEGAL PRIVILEGE_URGENT: MATERIAL GOVERNANCE FAILURE – DISCRIMINATION, VICTIMISATION & INSTITUTIONAL SILENCE REQUIRING IMMEDIATE BOARD INTERVENTION

4 messages

Wilbur William Matthee <wilburmat@gmail.com> Tue, 09 Dec 2025 at 09:23
To: munisinf@global.co.za
Cc: shadi.chuake@gmail.com, alice@aliceleroux.co.za, ferfam.bruno@gmail.com, lebohang.mpumlwa@afrocentrichealth.com

1. INTRODUCTION:

Dear Chairperson,



I write to you in your capacity as Chair of the Social & Ethics Committee regarding a matter of serious corporate governance failure that requires immediate board-level intervention. As an employee of Medscheme, a subsidiary of AfroCentric Health, I have been subjected to nine months of documented discrimination, victimization, and institutional failure to act.

Despite exhausting internal channels—including formal grievances to HR leading to executive level after 30 days of institutional silence—the misconduct continues unabated. With CCMA litigation now imminent (Case number: WECT23564-25), I bring this to your attention as a final attempt to resolve what represents not only severe personal harm but material legal, reputational, and operational risk to the company.

2. EXECUTIVE SUMMARY OF GOVERNANCE FAILURES

The core failures involve:

Governance Failure Specific Incident Date Evidence

Discrimination Public gender identity discrimination (“Wilma” incident) 23 Sept 2025 Att. B

Retaliation one of multiple incidents Doubled unpaid leave after discrimination complaint 25 Sept 2025 Att. C

Procedural failure senior management whitewashing complaint as “typo” after poor investigation 1 Oct 2025 Att. B

Institutional Silence 30+ days no response to second formal grievance from Hr and union Nov-Dec 2025 Att. D

Unlawful Conduct >40%salary deduction without consultation July 2025 Att. E

Duty of Care one of a few Failure Punitive response to medical emergency 20 May 2025 Att. F

3. KING IV PRINCIPLES VIOLATIONS

This matter engages multiple King IV Principles:

Principle 2 (Exercise ethical leadership):

- Senior management's whitewashing of a serious discrimination complaint
- Hr and union's 30-day silence on a formal grievances

Principle 3 (Responsible corporate citizenship):

- Failure to address discrimination against vulnerable employee
- Breach of Employment Equity Act and Labour Relations Act

Principle 14 (Stakeholder relationships):

- Complete breakdown in employee relations
- Failure to address legitimate stakeholder concerns

Principle 16 (Governance of risk):

- Unaddressed legal, reputational, and operational risks
- Failure of internal controls in grievance procedures



4. MATERIAL RISKS TO THE COMPANY

A. Legal & Regulatory Risks:

- Multiple violations of EEA, LRA, BCEA
- Potential fines up to R1.5 million or 10% of turnover (EEA)
- Personal liability for directors under Section 60 of EEA
- Pending CCMA case with high likelihood of success

B. Reputational Risks:

- Public discrimination finding against JSE-listed company
- Possible media exposure of institution failure to protect vulnerable employee
- Impact on B-BBEE certification (discrimination claims negatively score)
- Investor and client confidence erosion

C. Operational Risks:

- Toxic workplace culture evidenced by similar complaints
- Loss of staff
- Productivity impact from ongoing disputes

D. Financial Risks:

- Potential arbitration award: R3 - R4.5 million
- Legal costs: R500,000+
- Management time diversion: 200+ hours

1. Whitewashing of Serious Complaint: Senior management declared a clear act of gender identity discrimination as a "typo" following poor investigation (Attachment B).
2. Retaliation Against Complainant one example: Manager doubled unpaid leave immediately after discrimination complaint (Attachment C).
3. Unlawful Financial Deduction: >40% salary cut without consultation during mental health leave (Attachment E).
4. Complete Institutional Silence: 30+ days no response to formal grievances followed escalation (Attachment D).
5. Procedural Obstruction: Refusal to provide meeting agenda, record meetings, or respond in writing to serious allegations resulting in escalation to ethics board member

6. REQUEST FOR BOARD-LEVEL INTERVENTION

Given the complete failure of management and HR structures, I request:

A. Immediate Actions :

1. Appointment of independent investigator to review entire matter
2. Suspension of involved manager pending investigation
3. Temporary removal of HRBP from any involvement in this matter

B. Board-Mediated Resolution Process:

1. Direct board-level mediation possibly before CCMA proceedings
2. Independent valuation of settlement by external experts
3. Governance review of HR and management practices

C. Governance Remediation:

1. Review of whistleblower and grievance procedures
2. Training on discrimination and ethical leadership
3. Cultural assessment of the division involved

7. PROPOSED RESOLUTION PATHWAY

To avoid protracted litigation and further reputational damage, I propose:

1. Board-Mediated Settlement: Direct involvement of Social & Ethics Committee
2. Independent Investigation: Legal firm to assess liability
3. Fair Settlement: Based on actual damages, statutory entitlements, and aggravated damages for institutional bad faith and financial ruin
4. Governance Reform: Commitment to systemic changes

8. ATTACHED EVIDENCE



Attachment A: Chronology of Key Events (1 page)

Attachment B: Discrimination Evidence – “Wilma” incident & HR whitewash

Attachment C: Retaliation Evidence – Doubled unpaid leave after complaint

Attachment D: Institutional Silence – 30-day grievance black hole

Attachment E: Unlawful Deduction - >40% salary cut without consultation

Attachment F: Medical Evidence – Work-related health impact

Attachment G: CCMA Referral Documents

9. URGENCY AND NEXT STEPS

Awaiting CCMA in-lamine/conciliation date. Without board intervention, this will proceed to public arbitration with guaranteed reputational damage.



I request an urgent meeting with the Social & Ethics Committee or its designated representatives by Friday 12:00 12 December 2025.

All communications should be directed to me via email [wilburmat@gmail.com] I will forward copies to my trusted advisor.

10. CONCLUSION

This is not merely an employment dispute but a significant governance failure involving discrimination, failure to act, systemic procedural abuse, and the devastating financial ruin of a protected employee. The board's intervention is required to:

1. Uphold the company's ethical commitments
2. Mitigate material risks
3. Demonstrate responsible leadership
4. Avoid certain reputational and financial damage

I remain available for immediate engagement.

Sincerely,

Wilbur William Matthee

Specialist nurse Health services management.

Medscheme(A division of AfroCentric Health).

wilburmat@gmail.com

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE

OA1

Date: 10 December 2025

Category: *CCMA Opposing Affidavit*

Description:

Notice of Opposition and Answering Affidavit of Xolile Vincent Manyati, Senior Employee Relations Specialist (CCMA Case No. WECT23564-25, Medscheme Holdings v Wilbur Matthee). Paragraph 6.3: PTSD and depression characterised as "an excuse" and "an afterthought". Respondent misstated as "care coordinator". Punitive costs sought.



RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Primary evidence of Applicant's bad faith. Non-medical deponent attacks uncontested psychiatric diagnosis under oath. Respondent's designation misstated in a sworn document. Directly contradicts Applicant's position in this application that it acts in good faith.

[Document follows immediately after this tab]

IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION

Case Ref. Number: **WECT23564-25**

In the matter between

WILBUR MATTHEE**Applicant**

And

MEDSCHEME HOLDINGS**Respondent****NOTICE OF OPPOSITION OF CONDONATION APPLICATION**

Your condonation application dated **05 December 2025**, is hereby acknowledged and refers.

In response to the condonation application by the applicant **BE PLEASED TO TAKE NOTE THAT** the Respondent hereby files its Notice of Opposition.

PLEASE TAKE FURTHER NOTE THAT the answering affidavit of **Mr XOLILE VINCENT MANYATI** will be used in support of this notice of opposition.

The respondent will accept all documents in this matter at the following email address:
IR@afrocentrichealth.com.

Signed at **Johannesburg** on the **10th** day of **December 2025**.

XOLILE VINCENT MANYATI

Respondent representative

To: Wilbur Matthee
Per email: wilburmat@gmail.com

And to: Case Management Officer
CCMA
Per email: CMS@CCMA.org.za



IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION
HELD AT CAPE TOWN

Case Ref. Number: **WECT23564-25**

In the matter between

WILBUR MATTHEE

APPLICANT

And

MEDSCHEME HOLDINGS

RESPONDENT



RESPONDENT'S ANSWERING AFFIDAVIT

I the undersigned **Mr. Xolile Vincent Manyathi** do hereby make an oath and say:

1. I am an adult male and the respondent in this matter. I am duly authorized to make this affidavit as a Senior Employee Relations Specialist employed by Afrocentric Health (Pty) Ltd, the holding company.
2. I am duly authorized to depose of this affidavit. The facts contained herein are both true and correct and fall within my personal knowledge, unless otherwise indicated or the contrary appears from the facts.
3. The applicant in this matter is **Mr. Wilbur Matthee**, who is employed as a care coordinator at Gems business unit under Medscheme Holdings.

4. LEGAL FRAMEWORK:

- 4.1 In terms of the Labour Relations Act 66 of 1995, as amended, if there is a dispute about unfair labour practice, the employee may refer the dispute in writing, however the referral must be made within **90 days** of the date of the act or omission which allegedly constitutes the unfair labour practice. If the employee shows good cause at any time, the council or the commission may permit the employee to refer the dispute after the 90-day time limit has expired.

4.2 Section 191 (2) stipulates that if the applicant shows good cause at any time, the council or CCMA may permit the applicant to refer the dispute after the 90-day time limit has expired. In the case of **Shoprite Checkers (Pty) Ltd CCMA & Others (1998) 19 ILJ 892 (LC) p 21-22, (1998) 5 BLLR 510 (LC)** the honourable judge summarised the law in this regard as follows: "Section 191(2) enjoins an applicant to show good cause before a commission may permit her to refer the dispute after the time limit has expired. The section makes it clear that condonation is not there merely for the asking. The applicant must tender an adequate explanation for the delay. The Commissioner must also consider this explanation. Due regard must be had to the other generally accepted requirements for the grant of condonation as contemplated in the work good cause...."



4.3 From the above, it is clear that before the commissioner can grant condonation, the applicant must furnish **justifiable reasons** for the late request. The fundamental question is, therefore, whether the applicant has good grounds for not referring the dispute in time and does his explanation satisfy the factors as mentioned below.

4.4 To that end, in the case of **Dlamini v Progress Housekeeping CC (2001) 22 ILJ 1024 (CCMA) 1028** the commissioner indicated that in determining whether to grant condonation or not the following factors needs to be taken into account: the **degree of lateness**, the **degree of fault**, the **reasonableness of the explanation**, the **prejudice to the parties**, the **prospect of success in the main dispute**. The aforementioned factors were re-iterated in the case of **Job L. Boshop v Mac Donalds Transport NC5139 7 July 2000 CCMA**.

5. **BACKGROUND:**

5.1 The Applicant is employed as the care coordinator in Medscheme and is based at the employer's offices in Cape Town.

5.2 On the or about **July 2025** the Applicant was absent due to health reasons, the employees leave days got exhausted due to this prolonged absence and because of previous intermittent sick leaves taken. All the employees' leave days were exhausted, including sick leave and annual leave were exhausted at the time.

5.3 The Respondent's process is that before it can apply a no work no pay principle, it firstly exhausts the employees annual leave in leu of sick leave when sick leave is finished, it also assists employees with special leave which in this case it also did in order to accommodate the employee. This is the case in this matter where the respondent firstly used annual leave of the

employee in lieu of sick leave absence. The employee was not paid as he was not at work and had no leave days, however this was not a deduction, but an employee did not render any services and therefore was not paid rightfully so.

6. DEGREE OF LATENESS:

6.1 Disputes of Unfair labour practice must be referred to CCMA within 90 days of the date of the act or omission.

6.2 It is interesting to note that the Applicant deliberately leaves out the information of how late his referral is. This is consistent with his untruthful character, he is aware how long is his matter out of the prescribed time frames of the CCMA, yet he does not state that information. The Applicant's referral is more than 40 days late; I submit that this is excessive, especially for someone who has all the time in the world to refer the matter to the CCMA.



6.3 According to the Applicant he got to be aware of what he needed to do in November or December due to mental issues, but the employee has been working all along since August without any mental issues, but the applicant failed to explain how he got to know of his oversight 40 days later. The employee was addressed by his management team and HR on the issue of unpaid leave. It is also difficult to accept the argument of mental issues from the applicant, as he raised the issue of the alleged victimization in August or September, maybe that was also an oversight. So, when the matter of victimisation was dealt with in August or September why did the employee not refer the matter of unfair deduction then, as clearly there were no mental problems then. The mental issues are an excuse and this whole referral is an afterthought matter. The applicant's failure to take accountability of his lateness and lack of proper pleadings about the degree of lateness on his part, shows his lack of regard for the commission, its processes, and resources.

6.4 The rationale for referring the matter within the required time frames is *inter alia*, to avoid potential prejudice that the Applicant may suffer at the hands of the Respondent. In this case it cannot be argued that the delay was occasioned by the Respondent but by the sloppiness and lack of regard of the most reasonable periods placed by the legislature.

7 REASON FOR LATENESS:

7.1 It is the employer's contention that the Applicant has not provided a compelling explanation for the lateness of his referral to the CCMA. It is interesting to note that the Applicant in his referral claims that he only became aware of what he needed to do in November 2025 but that is not

true as the employee raised another matter with Cheryl-Dawn who is a HR business partner in August/September. Applicant still does not explain how he became aware of his rights in this matter or the lack thereof, this is difficult to accept as the truth as the applicant is the member of the union and if he needed advice he would have gotten it from union representative. It is further interesting that the employee chose not to include this information in his referral affidavit to the CCMA but just makes references that he was ignored by the company.

- 7.2 The Respondent made the Applicant aware of the reasons why he was not fully paid on the **23rd of July 2025**, when the applicant enquired about the shortfall on his salary, however the applicant only referred the matter to CCMA on the **5th of December 2025** which was **more than 40 days late and more than 120 days later** from the date of the act or omission.



- 7.3 The reasons advanced by the Applicant are not truthful, and for that reason alone the CCMA must not entertain this application. In the matter between **Molla v Shal & NO others (2007) 28 ILJ 1028 (LAC)**: Zondo JP as he then was with McCall AJA and Kruger AJA. Concurring held: [34] "I do not have the slightest hesitation in concluding that this is a case where the period of delay is excessive and the appellant's purported explanation for the delay is no explanation at all. If ever there was a case in which one can conclude that good cause has not been shown for condonation without considering the prospects of success, then this is the one. Where in an application for condonation, the delay is excessive and no explanation has been given for that delay or an "explanation" has been given but such explanation amounts to no explanation at all, I do not think it is necessary to consider the prospects of success."

- 7.4 The Applicant has failed to proffer plausible reasons for the delay. On this ground alone the application should be dismissed, and this abuse of the CCMA services should be condemned with the contempt that it deserves.

8 PROSPECTS OF SUCCESS:

- 8.1 I submit the Applicant has no prospects of success to the main case. The Respondent acted in line with the law and its own policy that when an employee is sick it will utilize sick leave, once sick leave is exhausted, and employee continues to be absent it will utilize annual leave in lieu of sick leave and once all leaves are exhausted it will then apply unpaid leave. There is nothing illegal about that and the lack of explanation from the applicant as to how the respondent acted unlawfully shows clearly that the employee does not know what he is referring to. The contractual obligation between the respondent and the applicant is that the employer will pay an employee after the employee has rendered his services and not merely for being an employee. It is very clear on what the Applicant did, that to breach the rule as he did, the

consequences thereof of are a dismissal. There is no evidence nor reasons that the applicant will provide to show that he was supposed to be paid a full salary for the month of **July**.

8.2 The Applicant's submission lacks explanation on the prospect of success, and a mere claim of unfair labour practice cannot be seen as a prospect of success, and the matter has been wrongly referred as well.

8.3 The applicant did not even follow an internal process of formally logging a grievance regarding the alleged unlawful deduction after it was addressed in August but decided to only communicate about it in November which is after the prescription period and then on the 4th of December wrote to the company executive members just before he referred the matter to the CCMA. The respondent submits that this is just a ploy by an applicant to force the company to pay him salary that he is not legally entitled to.



8.4 The respondent submits that it did everything to help the employee with his absence to an extent that there was special leave approved for him at the time because the respondent was acting as a responsible employer. The issue of unpaid leave was addressed by his management team (Mapule Mashele) who is the senior manager and HR team that supports the Gems business unit. The respondent will argue that the applicant was addressed on the issue of unpaid leave several times.

8.5 The respondent submits that the applicant has really no prospects of success as his reasons given around victimization and intimidation have no relevance but are used to sensationalize his dispute and have nothing to do with main dispute. It further makes it difficult even to understand as to what the real dispute of the applicant is.

8.6 The applicant has failed to discharge compelling reasons that are convincing that he has prospects of success other than mere accusations of victimization and intimidation. Therefore, the responded submits that the condonation application of the applicant should be dismissed as there are no prospects of success should the matter go to the main case. The applicant has not even demonstrated that he has a reasonable chance of succeeding nor has he provided facts and evidence to support his claims.

9 PREJUDICE:

- 9.1 Having regard to submissions made above it is my view that the Respondent will suffer severe prejudice should the application be granted because the Respondent will be required to use resources that are Joburg based to fly to Cape Town to deal with this unsubstantiated dispute, considering that the delay has been caused by the applicant in this instance. Respondents will also have to take management and HR out of the office to bring them to the CCMA as witnesses for something that the applicant is aware of why he was not paid and that management assisted him to not be further negatively affected by his absence through approving special leave for him.
- 9.2 It would be unfair to now hold the Respondent to ransom given that the Applicant has made this regard.
- 9.3 It will be prejudicial for the respondent to be expected to go through the main case without any good cause shown by the applicant in terms of the prospects of success in the main.



In conclusion:

The Applicant's affidavit is riddled with untruthful submissions, meaning he has not been truthful or forthcoming and expects the CCMA to grant him condonation even though his application is just a mere ask without factual basis. This is just a fishing expedition and abuse of the system. It is therefore my considered view that this application should be dismissed with cost.

The applicant will not succeed in the main case if the reasons is just a claim of unlawful deduction and victimisation.

It is further submitted that the Applicant does not have prospects of success in the main application as it the Respondent's view that there is no unfair labour practice that the applicant has been subjected to.

It is further submitted by the respondent that whether there is good cause shown on the lateness but that cannot be the only determining factor in granting of condonation, but the applicant should satisfy all the elements which I believe he has not given sufficient evidence or explanation in terms of prospects of success and prejudice.

It is clear that the applicant will not succeed in the main if the reasons is just a claim of unlawful deduction or invalid no work no pay claim.



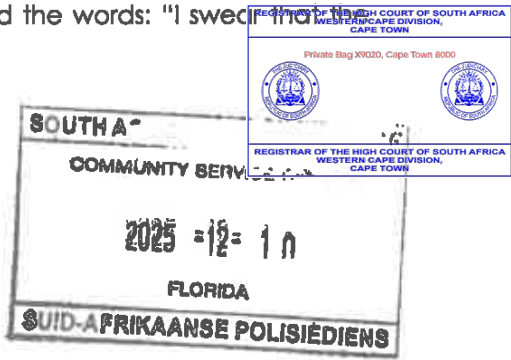
Deponent

I certify that on this 10 day of December 2025, the deponent signed the declaration in my presence and declared that:

- a) I know and understand the contents hereof;
- b) I have no objection to taking this oath;
- c) I consider this oath to be binding on my conscience and uttered the words: "I swear that the contents of the declaration are true, so help me God."


Commissioner of Oaths

CS
7268134-3
Nelson J.B.



Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
GRC2

Date: 11 December 2025

Category: *Board GRC Escalation (2nd)*

Description:

Second Board-Level GRC Escalation: "Legal Opposition Affidavit Confirms Institutional Bad Faith & Escalates Governance Risk". Attaches OA1 as Annexure A. Identifies five categories of institutional bad faith: (1) dismissal of psychiatric condition; (2) misrepresentation of title; (3) character attacks; (4) punitive cost demand; (5) trivialisation of financial destitution. Requests Board acknowledgment by 12 December 2025 at 12:00.



RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Proves Board was placed on notice of OA1's bad faith within 24 hours of its filing. Establishes deliberate institutional silence at Board level. Grounds res judicata argument in counter-application.

[Document follows immediately after this tab]



URGENT UPDATE: Legal Opposition Affidavit Confirms Institutional Bad Faith & Escalates Governance Risk

1 message

Wilbur William Matthee <wilburmat@gmail.com> Thu, 11 Dec 2025 at 03:33
To: munisinf@global.co.za, alicel@aliceleroux.co.za, ferfam.bruno@gmail.com
Cc: lebohang.mpumlwana@afrocentrichealth.com
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Dear Chairs and Company Secretary,

I write to provide an urgent update directly relevant to the material governance risks I reported to your committees.



As you are aware, after exhausting all internal channels—including executive leadership who de-escalated the matter back to the source of the harm (narrative at the executive level has been procedurally closed)—I was forced to file a dispute with the CCMA and notify your committees of the systemic failures.

On 10 December 2025, the company's legal representative, Mr. Xollie Vincent Manyati, filed an Opposing Affidavit with the CCMA seeking to have my case dismissed on technical grounds (case WEC123564-25). A copy is attached for your immediate attention.

This document is not merely a legal filing; it is a tangible exhibit of the very institutional bad faith and procedural abuse I have been reporting. It demonstrates that the company's response to a serious discrimination and victimisation case is to:

1. Ignore the Substance Entirely: The affidavit makes no attempt to address the core allegations of discrimination ("Wilma" incident), victimisation, or the breach of duty of care. It focuses solely on a technical argument about timing, confirming the company's strategy is to avoid scrutiny of its conduct.
2. Engage in Factual Misrepresentation: It dismissively misstates my professional title, indicating a lack of diligence or a deliberate attempt to diminish my standing.
3. Attack the Complainant's Character: It contains unfounded personal attacks, labelling me as having an "untruthful character," which is a common tactic to intimidate and discredit rather than engage with facts.
4. Demonstrate a Punitive Posture: It shockingly requests that the CCMA dismiss my application "with cost," an extraordinary demand intended to punish an employee who is already in documented financial distress due to the company's actions.
5. Trivialise Severe Harm: It argues the company would suffer "severe prejudice" from the cost of travelling from Johannesburg to Cape Town for a hearing, while I am facing destitution and a health crisis. This juxtaposition reveals a profound failure of ethical perspective and duty of care.

Governance Implications:

This legal response is a direct outcome of the executive failure to intervene meaningfully. It signifies that the corporate apparatus is now being used to legally oppose an employee in crisis rather than to investigate and remediate the serious underlying issues. I have prepared a comprehensive point-by-point rebuttal to this affidavit for submission to the CCMA, which details the factual inaccuracies, continuous nature of the harm, and the bad faith inherent in the Respondent's opposition.

- Materially increases legal and reputational risk by creating a public record of aggressive opposition to a discrimination complainant.
- Validates the allegation of a cover-up and institutional bad faith.
- Directly engages the mandate of the Social & Ethics Committee (monitoring the company's activities regarding the EEA and ethical conduct) and the Risk Committee (overseeing material legal and reputational risk).

My urgent plea for interim relief to prevent destitution stands. This affidavit only heightens the immediacy of the required intervention.

I therefore reiterate my request for the Board's committees to:

1. Acknowledge receipt of this escalating evidence.
1. Intervene to ensure an independent, external investigation into the entire matter.
2. Mandate the provision of interim relief (paid leave, hardship payment) to prevent irreversible personal harm.
3. Review the strategy being employed by the company's legal and HR representatives in this matter.

The choice is now stark: the Board can oversee a fair, external process to resolve a serious internal failure, or it can allow the company's resources to be used to litigate against an employee it has harmed, guaranteeing greater public exposure and liability.

I remain available for any direct communication from the Board or its designated independent representative.

Please note: To prevent another procedural deadlock like the 30-day institutional silence I experienced previously, I require, at minimum, a formal acknowledgment of receipt of this update by Friday, 12 December 2025, at 12:00 sharp.

Sincerely,

Wilbur Matthee

Attached: Respondent's Opposing Affidavit (10 Dec 2025)



00206B9D9F42251210140327.pdf

251 KB

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE

RA1

Date: 11 December 2025**Category:** *CCMA Replying Affidavit***Description:**

Respondent's Replying Affidavit to CCMA Condonation Opposition (Case WEC123564-25), signed at Delft. Rebuts Manyati affidavit in full. Establishes continuous harm doctrine (Gauteng Department of Health v Tsomakae [2017]). Documents OA1 as independent post-referral unfair labour practice. Responds to punitive costs demand and prejudice argument. Demonstrates overwhelming prospects of success.

**RELEVANCE / PURPOSE IN THESE PROCEEDINGS**

Establishes legal basis for CCMA jurisdiction. Continuous harm doctrine applied. Demonstrates Respondent's consistent principled litigation conduct.

[Document follows immediately after this tab]

**IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION HELD AT
CAPE TOWN**

CASE NO.: WEC123564-25

In the matter between:

WILBUR MATTHEE APPLICANT

and

**MEDSCHEME HOLDINGS (A Division of AfroCentric Health)
RESPONDENT**



**APPLICANT'S REPLYING AFFIDAVIT TO THE RESPONDENT'S OPPOSITION TO
CONDONATION**

I, the undersigned, WILBUR WILLIAM MATTHEE, do hereby make oath and state:

1. INTRODUCTION AND AUTHORITY

1.1. I am an adult male, the Applicant in this matter, and a Health Services Management Nurse Specialist (Care Manager) employed by the Respondent at its GEMS business unit in Cape Town.

1.2. The facts herein are within my personal knowledge, true and correct, unless otherwise stated. I have personal and direct knowledge of all events and communications referenced.

1.3. I am opposing the Respondent's application to dismiss my condonation request and will demonstrate that: (a) the harm was continuous, placing my referral within time; and alternatively, (b) compelling good cause exists for condonation.

2. CORRECTION OF FACTUAL INACCURACIES AND UNFOUNDED ATTACKS

2.1. I must correct material errors and reject unfounded attacks in the affidavit of Mr. Manyathi, which undermine its credibility.

2.2. Correction of My Position: I am not a "care coordinator" as dismissively stated, but a Health Services Management Nurse Specialist (Care Manager). This reflects a pattern of the Respondent's inattention to accuracy.

2.3. Rejection of the Irrelevant "Dismissal" Argument: My case concerns unfair labour practices, not dismissal. The Respondent's unsolicited argument that my actions warranted dismissal is highly prejudicial and attempts to improperly influence the Commissioner.



2.4. Rejection of the Inappropriate Prayer for Costs: The demand for costs in a CCMA condonation application is punitive and underscores the Respondent's aggressive posture to intimidate me, given my documented financial distress.

2.5. Rejection of Character Attacks: I categorically reject allegations of an "untruthful character." My submissions are backed by documentary evidence. The Respondent's personal attacks are a strategy to distract from their lack of substantive defence.

SECTION 3: THE RESPONDENT'S AFFIDAVIT AS ESCALATING VICTIMISATION & INSTITUTIONAL MALICE

3.1 Aggravated Attack on Protected Characteristics & Medical Condition

The Applicant is compelled to address the content and tone of the Respondent's Affidavit by Mr. Xollie Vincent Manyathi. This document does not constitute a legal defence but represents a continuation and escalation of the very unfair labour practices at issue, providing compelling grounds for enhanced, punitive damages.

3.1.1 The affidavit deliberately and maliciously dismisses my medically documented psychiatric condition—a direct consequence of the Respondent's own discriminatory and victimising conduct—as a cynical "excuse" and "afterthought". This is not legal argument; it is a direct attack on a protected characteristic (disability/medical condition) that compounds the initial discrimination.

3.1.2 By weaponising my mental health crisis—caused by their actions—against me in a formal legal proceeding, the Respondent demonstrates institutional contempt for employee wellbeing and a shocking disregard for the duty of care. This transforms a health condition into a tool for further victimisation.

3.2 Financial Intimidation & Weaponisation of Process

3.2.1 The Respondent's aggressive and unwarranted demand for costs in a routine condonation application, made with full knowledge of my documented financial destitution (as detailed in previous communications), serves no legitimate legal purpose.



3.2.2 This demand is a deliberate act of financial intimidation, calculated to exert psychological pressure and deter me from pursuing my rights. It exploits my vulnerable financial position—a position created by the Respondent's own unlawful deductions—to threaten further ruin.

3.3 Bad Faith, Personal Attacks & Abuse of Process

3.3.1 The affidavit is riddled with gratuitous personal attacks, labelling me as “untruthful” and characterising my application as an “abuse of the CCMA services”. These are not legal submissions but ad hominem assaults intended to poison the well and discredit me personally.

3.3.2 This demonstrates the Respondent's utter lack of remorse, systemic bad faith, and commitment to continued hostility. It confirms that the initial misconduct was not an aberration but reflective of an organisational culture that attacks rather than addresses complaints.

3.3.3 The affidavit itself thereby eliminates any conceivable possibility of restoring the employment relationship. It proves the victimisation is not historical but ongoing and institutionalised, perpetrated now through the Respondent's legal representatives.

3.4 This Affidavit as Independent Grounds for Maximum & Punitive Damages

3.4.1 The Respondent's choice to respond to serious discrimination allegations with further aggression in a sworn affidavit constitutes an independent, post-referral unfair labour practice (victimisation). It is a conscious decision to escalate rather than remediate.

3.4.2 This conduct warrants a significant punitive damages premium in any award. It proves the need for a deterrent sanction to signal that using legal process to further victimise complainants is unacceptable.

3.4.3 The Commissioner is urged to consider this affidavit not merely as a defence to condonation, but as powerful evidence of the Respondent's character and the imperative for a maximum compensatory and punitive award.



4. THE TRUE NATURE OF THE DISPUTE: A CONTINUOUS PATTERN OF UNFAIR LABOUR PRACTICES

4.1. This dispute encompasses multiple, interconnected unfair labour practices forming a continuous course of conduct from July 2025 to December 2025:

- a. Unfair Labour Practice – Unlawful Deduction & Failure to Accommodate (July 2025).
- b. Unfair Discrimination & Harassment (the "Wilma" incident, 23 September 2025).
- c. Victimisation & Retaliation (doubled unpaid leave, punitive management).
- d. Institutional Bad Faith & Procedural Failure (30-day silence on grievances, whitewashing of complaints, bad-faith de-escalation).

5. THE UNLAWFUL NATURE OF THE JULY 2025 SALARY DEDUCTION

5.1. The Respondent misrepresents the July 2025 incident as a lawful "no work, no pay" application. In reality, its implementation was procedurally unfair and discriminatory.

5.2. Failure to Consult and Lack of Procedural Fairness: The Respondent deducted over 40% of my salary without any prior consultation, despite my explicit request to stagger the amount to prevent destitution. This refusal to engage constituted a lack of procedural fairness.

5.3. Failure to Provide Reasonable Accommodation: My absence was due to a documented psychiatric condition. The employer has a duty to make reasonable accommodation. My request to stagger the deduction was a minimal adjustment. The refusal, while I was in a vulnerable post-hospitalization state, constitutes discrimination based on my medical condition.

5.4. Derogatory Comments and Victimization: The manager's comment that "The Respondent is not a loan company" followed by I "would not feel the missing chunk... because I receive online deliveries weekly" was derogatory and proves the refusal to accommodate was motivated by malicious intent, converting a deduction into an act of victimisation.



6. THE CONTINUOUS HARM AND INSTITUTIONAL BAD FAITH THAT FOLLOWED

6.1. The July incident established a pattern of unfairness that continued unabated, demonstrating a continuous course of conduct:

a. September 2025: I experienced public discrimination (the "Wilma" incident) and immediate retaliation (doubled unpaid leave).

b. October 2025: Senior management whitewashed the discrimination complaint as a "typo," HR and union accept demonstrating institutional bad faith.

c. November 2025: I filed a formal grievance about the hostile environment. The Respondent met this with 30 days of institutional silence. HR and union.

d. Early December 2025 – The Escalation and De-escalation:

i. On 4 December 2025, after 30 days of silence from HR and the union followed by +20 days silence by senior management, I escalated the entire matter to executive leadership.

ii. The executive leadership de-escalated the matter back to the very department and manager accused of causing the harm.

iii. Faced with being returned to the source of the problem, I had no reasonable alternative and filed the CCMA referral.

iv. The de-escalated department contacted me to schedule a meeting notifying them of the case is now with the CCMA. I stipulated basic safeguards: a clear agenda and a recorded meeting to ensure transparency.

v. The department refused these basic terms, creating a procedural deadlock.

vi. I therefore formally notified the department that I could not attend without safeguards and would seek oversight elsewhere.

vii. As the next logical step, and true to my word, I formally notified the Board's Social & Ethics and Risk Committees the following day. This was a good-faith report of a material governance failure.

6.2. This sequence proves my actions were sequential, reasonable, and forced by the Respondent's conduct. The "delay" encompasses the period I was cycled through this broken internal process.

7. PRIMARY LEGAL ARGUMENT: THE HARM WAS CONTINUOUS, RESETTING THE REFERRAL CLOCK



7.1. Legal Principle: Where unfair labour practices constitute a continuing wrong, the 90-day period for referral resets for as long as the conduct persists. The last act in the continuum sets the clock *Gauteng Department of Health v Tsomakae* (GAJB 5554-16) [2017].

7.2. Application: The Respondent's misconduct was a continuous course of conduct that only culminated with the institutional bad faith and refusal to engage transparently in early December 2025. My referral is therefore within 90 days of the last confirming act of the continuing wrong.

8. ALTERNATIVE ARGUMENT: COMPELLING GOOD CAUSE FOR CONDONATION

Should the Commissioner find the continuous harm principle not fully applicable, I demonstrate compelling good cause.

8.1. Reason for Delay – Exhaustion of Remedies: Any delay was due to my good-faith exhaustion of every internal and governance channel, a process systematically thwarted by the Respondent. The CCMA referral was a last resort made promptly once this became clear.

8.2. Prospects of Success are Overwhelming: I possess direct evidence for each allegation (payslips, screenshots, emails, medical certificates). The Respondent's affidavit avoids engaging with this substance.

8.3. Prejudice: The prejudice to me—destitution, health crisis—if denied a hearing is catastrophic. Any administrative inconvenience to the Respondent is negligible.

9. THE RESPONDENT'S CLAIM OF "PREJUDICE" IS WITHOUT MERIT AND DEMONSTRATES ITS BAD FAITH

9.1. The Respondent claims in its affidavit (paragraph 9.1) that it will suffer "severe prejudice" should my application proceed because it would need to use "resources that are Joburg based to fly to Cape Town to deal with this unsubstantiated dispute."



9.2. This claim is disingenuous and reveals the Respondent's true disregard for the seriousness of this matter and the imbalance of power:

- a. ****Relative Prejudice is Wholly Mismatched:**** The Respondent, a large JSE-listed corporate entity, complains of the administrative and financial inconvenience of travel. I, an individual employee, am facing ****actual destitution, inability to afford food and medication, and severe health deterioration****. To equate corporate travel logistics with the threat to an individual's basic survival and health is not only irrational but morally indefensible. Any prejudice to the Respondent is purely financial and administrative; the prejudice to me is existential.
- b. ****The Respondent Created This Dispute Through Its Own Conduct:**** The Respondent's suggestion that it is being held to ransom is an inversion of reality. The dispute exists ****solely because of the Respondent's own actions****: its unlawful deduction, its discriminatory conduct, its victimisation, and its systemic failure to address my grievances. Having created the harm, it cannot now claim prejudice when called to account for it.
- c. ****Travel is a Normal Business Cost in a National Company:**** The Respondent, as a national healthcare administrator, operates across the country. Requiring managers to travel for a formal legal proceeding regarding serious misconduct within its ranks

is a normal cost of doing business and upholding the law. Framing this as an undue burden is an admission that it views its own legal and ethical accountability as an optional inconvenience.

D. ****Modern Technology Provides Alternatives:**** Should travel genuinely be a concern, the Respondent could have explored or proposed virtual mediation or arbitration. Its failure to do so and immediate leap to claiming “severe prejudice” underscores its strategy to use cost as a barrier to justice.

- d. ****The Claim Undermines the CCMA’s Authority:**** Implicit in the Respondent’s argument is the suggestion that an employee in one city should be barred from justice if the employer’s head office is in another. This strikes at the heart of the CCMA’s national mandate to provide accessible dispute resolution for all employees, regardless of geography.



9.3. Conclusion on Prejudice: The Respondent’s claim of prejudice is not a valid legal objection but a tactical one, designed to portray me as an inconvenience rather than a wronged employee seeking redress. The overwhelming and documented prejudice lies with me. To deny condonation based on the Respondent’s purported travel costs would be a grave miscarriage of justice, prioritising corporate convenience over an individual’s right to be heard on matters of discrimination, victimisation, and survival.

10. CONCLUSION

10.1. My referral is, on the correct legal analysis, within time due to the continuous nature of the harm. Alternatively, more than sufficient good cause exists.

10.2. To dismiss this application on a technicality would sanction the Respondent’s strategy of institutional bad faith and deny justice.

11. PRAYER FOR RELIEF

I respectfully request that the Honourable Commissioner:

- | | |
|---|---|
| REGISTRAR OF THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION,
CAPE TOWN | |
| Private Bag 30000, Cape Town 8000 | |
|  |  |
| REGISTRAR OF THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION,
CAPE TOWN | |

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE

WW4

Date: 16–18 December 2025

Category: *Board GRC Escalation (3rd) / Retraction / Suppression Email*

Description:
 Three documents: (1) Maximum Severity GRC3 Escalation 16 Dec 2025 — Formal Memorandum to Board Audit & Risk Committee regarding management interference in GEMS Case 000655789 Dependent 02, suppression of findings, and retaliation (audio recording of Mary-Ann Jones stating refusal "is insubordination"); 24-hour compliance window. (2) Voluntary Retraction email 17 Dec 2025 — sent on public holiday, procedurally invalidating deadline; immediately retracted with apology. (3) Monwabisi Kula (CRO) suppression email 18 Dec 2025 — instructing Respondent to cease emailing directors.

REPUBLIC OF SOUTH AFRICA
 DEPARTMENT OF JUSTICE
 WESTERN CAPE DIVISION,
 CAPE TOWN

Private Bag X9000, Cape Town 8000




REGISTRAR OF THE HIGH COURT OF SOUTH AFRICA
 WESTERN CAPE DIVISION,
 CAPE TOWN

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Three separate grounds: (1) Establishes patient-safety protected disclosure re GEMS 000655789. (2) Voluntary retraction proves procedural good faith — vexatious litigants do not retract. (3) Kula email constitutes direct suppression of protected disclosure by the CRO — key evidence of retaliation.

[Document follows immediately after this tab]



MAXIMUM SEVERITY GRC ESCALATION – Documented Retaliation, Suppression of Investigative Findings, and Governance Failure in Case [GEMS 000655789 Dependent 02]]

4 messages

Wilbur William Matthee <wilburmat@gmail.com>
To: munisinf@global.co.za, alicel@aliceleroux.co.za, ferfam.bruno@gmail.com
Cc: lebohang.mpumlwana@afrocentrichealth.com, lindiwe.miyambu@afrocentrichealth.com, monwabisi.kula@afrocentrichealth.com
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Tue, 16 Dec 2025 at 09:35

PART 1: FORMAL MEMORANDUM TO THE BOARD AUDIT & RISK COMMITTEE

1. Purpose of Escalation

This memorandum constitutes a Maximum Severity Governance, Risk, and Compliance (GRC) escalation to the Board Audit & Risk Committee. It follows confirmed management interference in a concluded investigation, suppression of substantiated findings, retaliatory conduct against the investigator, and failure to implement corrective action.

Collectively, these actions have exposed the organisation to material regulatory, labour, ethical, and reputational risk, and are ~~directly causing psychological harm to staff.~~



2. Key Findings

- Member complaint arose from a documented system failure, not member non-adherence.
- Ethical refusal to misattribute fault resulted in:
 - Loss of access to the investigation
 - Blocked corrective action and apology
 - Improper closure of the case
 - Responsibility shifted to the member despite clear system-level fault

Evidence of Retaliation: Audio recording of MaryAnn Jones explicitly stating the refusal “is insubordination.”

3. Governance, Legal, and Regulatory Exposure

- King IV Principles 1, 2, 4, 13 – ethical leadership, accountability, risk governance, compliance
- ISO 31000 / ISO 45003 – failure to monitor risk and prevent psychosocial harm
- OHSA s8 & LRA ss185–188 – unsafe work environment, unfair labour practice
- Protected Disclosures Act (PDA) – retaliation against ethical refusal / whistleblowing
- Regulatory Reach: Eight regulators will require explanation for inaction

Explicit Warning: Failure to act will be considered a miscarriage of ethical justice and an approval of director-level psychological harm, with PDA fully covered in the master evidence dossier submission scheduled for 17 December 2025, 10:00. AS MENTIONED 12 December 2025 in constructive dismissal notice email.

4. Immediate Board-Level Actions Required

- 1. Administrative Suspension – Mary-Ann Jones & Lisa Mari pending independent investigation.
- 2. Corrective Member Communication – Immediate apology acknowledging system fault
- 4. Activation of Governance Controls,ethical deviation review protocol, management risk training

5. Conditional Resolution & Master Dossier

Compliance Window: 24 hours for documented proof of required actions

Outcome: This case can be removed from the master evidence dossier to regulators

Failure: Full dossier, covering PDA and psychological harm, will be shared with all eight regulators on 17 December 2025 at 10:00

012-62
94

19/5/2026-8:22:49 AM

6. Accountability Notice

Failure to act, suppress findings, or misattribute fault will be regarded as reckless governance, exposing Board and management to personal liability, regulatory escalation, and labour proceedings. Timely, transparent action restores trust, demonstrates accountability, and prevents unnecessary escalation.

Submitted in good faith, fulfilling statutory, professional, and ethical duties.

Sr. Wilbur W. Matthee
Specialist Nurse, Health Services Manager: Governance, Risk & Psychosocial Safety

PART 2: ACCOMPANYING EMAIL TO BOARD

Subject: Urgent Maximum Severity GRC Escalation – Immediate Action Required

Dear Chairperson and Board Members,

Attached is a Maximum Severity Governance, Risk, and Compliance memorandum regarding confirmed management interference, suppression of findings, and retaliation against the investigator. This matter exposes the organisation to regulatory, labour, ethical, and reputational risk, and is causing active psychological harm to staff.

The memorandum includes:

Evidence of retaliation and ethical misconduct

Required immediate interventions

Conditional resolution path to prevent escalation to regulators

Explicit warning that failure to act constitutes a miscarriage of ethical justice and approval of director-level psychological harm

Action Required:

Please provide documented proof of corrective action and governance control implementation within 24 hours. Timely resolution will allow this matter to be removed from the master evidence dossier, which is otherwise scheduled for submission to eight regulators on 17 December 2025 at 10:00.

This escalation is submitted in full compliance with statutory, professional, and ethical duties. Immediate attention and decisive action are required to prevent further organisational, regulatory, and legal exposure.

Respectfully,
Wilbur W. Matthee
Specialist Nurse, Health Services Manager: Governance, Risk & Psychosocial Safety

> Accountability Notice:

This correspondence constitutes a formal notice of identified risk. Retaliation, obstruction, or failure to act in accordance with governance and risk management obligations may expose the organisation and/or individuals to regulatory, legal, and ethical consequences.

Important Accountability Notice:

MAXIMUM SEVERITY GRC ENFORCEMENT NOTICE – KING IV | ISO | OHSA | LRA

This enforcement notice is issued in my capacity as a Specialist Nurse and Health Services Manager responsible for Governance, Risk, and Psychosocial Safety, following confirmation that substantiated investigative findings were deliberately disregarded, corrective action and an approved apology were obstructed, the investigator was denied further access to the matter, and responsibility was improperly shifted to a member despite clear system-level causation. Such conduct constitutes a material breach of King IV Principles 1, 2, 4, and 13 (ethical leadership, accountability, risk governance, and compliance), ISO 31000 (failure to identify, treat, and monitor risk), ISO 45003 (failure to prevent psychosocial harm), Section 8 of the Occupational Health and Safety Act (duty to provide and maintain a work environment that is safe and without risk), and Sections 185, 186, and 188 of the Labour Relations Act (unfair conduct, detriment, and managerial misconduct). Immediate written confirmation is required before close of business today that the identified risk has been actioned, corrective and preventative controls implemented, member harm remedied, and management-level accountability assigned. Any failure to confirm resolution, or any further attempt to suppress findings, misattribute fault, or close the matter without corrective action, will be regarded as reckless governance and will expose accountable officials to personal liability, regulatory escalation, labour proceedings, and external oversight.

2 attachments

 Screen_Recording_20251216_091751_InShot.mp4
2 MB

Wilbur William Matthee <wilburmat@gmail.com>
To: munisinf@global.co.za, alicel@aliceleroux.co.za, ferfam.bruno@gmail.com
Cc: lebohang.mpumlwana@afrocentrichealth.com, lindiwe.miyambu@afrocentrichealth.com, monwabisi.kula@afrocentrichealth.com

Dear Chairperson and Board Members,

I am writing to formally retract the email and attached memorandum sent earlier 16 December 2025, titled "Urgent Maximum Severity GRC Escalation – Immediate Action Required," regarding Case [GEMS 000655789 Dependent 02].

This retraction is due to the email being sent on a public holiday, which invalidates the specified timeline and compliance window outlined in the document. As such, please disregard the formal escalation and any associated deadlines.

However, at your discretion, you may still use the information provided to correct the incident and implement any necessary remedial actions, as the underlying concerns remain relevant.

I apologize for any inconvenience this may cause and appreciate your understanding.

Should you require further clarification or discussion, please let me know.

Respectfully,

Sr. Wilbur W. Matthee
Specialist Nurse, Health Services Manager: Governance, Risk & Psychosocial Safety



Accountability Notice:
>This retraction does not waive any statutory, professional, or ethical duties and is issued in good faith to ensure procedural accuracy.
[Quoted text hidden]

Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com> Thu, 18 Dec 2025 at 10:00
To: Wilbur William Matthee <wilburmat@gmail.com>

Dear Wilbur, can I please ask you to stop sending these e-mails to our directors? They've seen your first batch of e-mails and are aware that management is attending to them. Sending further e-mails only gives them an indication of impatience and unreasonableness on your part, and that does not serve you well.

Regards,



Monwabisi Kula
Chief Risk Officer

Office: +27 11 671 6447 | Mobile: +27 72 690 2140
Monwabisi.Kula@afrocentrichealth.com
37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709
www.afrocentric.za.com



Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
EXIT2

Date: 14–15 January 2026

Category: *Exit Documents Request Chain*

Description:

Email chain: Respondent's email 14 Jan 2026 to Sipokazi Makaula requesting retirement and UIF forms. Makaula response 15 Jan 2026 requesting basic identity details despite the Respondent having been identified by name in the Manyati CCMA affidavit filed the previous month.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Evidences deliberate administrative obstruction of exit document processing. Manyati's affidavit identified Respondent by name, designating, title, and CCMA case number; any claim that identity was unknown is untenable.



[Document follows immediately after this tab]



Request for Assistance: UI-19 Forms and Umbrella fund Benefit Documents

1 message

Wilbur William Matthee <wilburmat@gmail.com>
To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

Wed, 07 Jan 2026 at 14:28

Dear Cheryl-Dawn,

I hope you are having a good week.

I am writing to kindly request your assistance with the necessary documentation required for my Unemployment Insurance Fund (UIF) application.



To help me meet my immediate financial needs and begin the claims process, could you please provide the completed UI-19 form and any other relevant exit documents?

Additionally, please let me know if there are any specific forms I need to complete from my side, or if you require any updated information (such as my current contact details or banking confirmation) to finalize these papers.

Thank you very much for your time and for helping me with this transition. I look forward to hearing from you.

Best regards,

Sr. W. Matthee

Nurse Specialist Health Services Management, Risk And Psychosocial Safety.

SRN. Com Health, Psychiatry, Midwifery; BTech; Bcur HNM; Post Grad HSM.



Retirement forms and Uif forms

2 messages

Wilbur William Matthee <info@ethichawks.co.za> Wed, 14 Jan 2026 at 10:46
To: Sipokazi.Makaula@afrocentrichealth.com

Dear Sipikazi,

I trust you are well. I am just doing a follow up on my retirement claim forms and UIF forms. Could you kindly assist with these at your earliest convenience.

Much appreciated and thank you for your assistance in this matter.

Best regards

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF 8)



Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com> Thu, 15 Jan 2026 at 18:57
To: Wilbur William Matthee <info@ethichawks.co.za>

Good day ,

I hope you are well.

Please share your details Name , Surname, ID number , are you a exting employee or former employee, which business unit and your team lead/ managers name.

This will assist in me knowing how to best assist you.

Thank you.



Kind regards

Sipokazi Makaula
Human Capital Consultant Human Capital

- Sipokazi.Makaula@afrocentrichealth.com
- Searle Street, The Boulevard, Woodstock, Cape Town, 7925
- www.afrocentric.za.com

“Always aligning our leaders and people with the business purpose”



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From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: Wednesday, January 14, 2026 10:46 AM
To: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Subject: Retirement forms and Uif forms

This message originated from outside your organization

Dear Sipikazi,
[Quoted text hidden]



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For more information please visit <http://www.mimecast.com>

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
EXIT3

Date: 15–19 January 2026

Category: *UIF Non-Compliance Notice (5-message chain)*

Description:

URGENT Notice of Statutory Non-Compliance (UIF). Includes uFiling portal screenshot: MEDSCHEME HOLDINGS PTY LTD (201103-202702) — June 2025 flagged "No Information" despite UIF deduction appearing on payslip. Demands UI-19, Service Certificate and Umbrella Fund Withdrawal Forms by 19 Jan 2026 at 12:00. Sipokazi Makaula response 19 Jan 2026 provides documents but incorrectly asserts that resignation bars UIF claim. Includes Sanlam withdrawal email chain 15 Jan 2026.



RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Establishes UIF non-remittance irregularity for June 2025. Makaula's resignation-bar assertion is legally incorrect re constructive dismissal. Direct cause of administrative deadlock with the Department of Employment and Labour. Grounds declaratory relief prayer.

[Document follows immediately after this tab]



Correction Required – Certificate of Service Misrepresentation

4 messages

Wilbur William Matthee <info@ethichawks.co.za> Mon, 19 Jan 2026 at 12:25
To: Monwabisi Kula <monwabisi.kula@afrocentrichealth.com>, Lindiwe.Miyambu@afrocentrichealth.com
Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>, Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>, Tebogo.Makoe@afrocentrichealth.com, nthabisengn@medscheme.co.za
Bcc: wilburmat@gmail.com

Dear Sipokazi,

I acknowledge receipt of the Certificate of Service. However, I must formally object to the fact that my role has been adjusted to align with the Opposing Affidavit dated 10 December 2025, rather than reflecting my actual employment records.

The Certificate of Service is a statutory document required for UIF and fund processing. It must be accurate and consistent with payroll and HR records, not tailored to litigation pleadings. Adjusting my role to fit an affidavit constitutes misrepresentation and undermines compliance with the Basic Conditions of Employment Act.



I further note that both you and Nthabiseng were present in the recorded Teams meeting titled “Naming Convention”, where the Operational Manager encouraged us to update our statistics. That meeting provides direct evidence that the employer had full knowledge of my role, identity, and responsibilities. Any deviation from those facts in the Certificate of Service is therefore unjustifiable.

I therefore request that the Benefits Team urgently issue a corrected Certificate of Service that reflects my true role and employment details, as per payroll and HR records and the recorded meeting. As a result, of this failure, that is evidenced by the fact that you have not met your 12:00 deadline, I require correct Certificate of Service by close of business 19 January 2026.

Should this not be provided within the stipulated timeframe, I will proceed to file a formal complaint with the Department of Employment and Labour (DEL) and request a statutory audit of the employer’s compliance.

Please confirm by return email before close of business.

Kind regards,

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF)

<postmaster@medscheme.co.za> Mon, 19 Jan 2026 at 12:26
To: info@ethichawks.co.za

Delivery has failed to these recipients or groups:

tebogo.makoe@afrocentrichealth.com

A communication failure occurred during the delivery of this message. Please try resending the message later. If the problem continues, contact your email admin.

The following organization rejected your message: AM4PEPF00027A62.mail.protection.outlook.com.

CONFIDENTIALITY:

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

This email has been scanned for email related threats and delivered safely by Mimecast.
For more information please visit <http://www.mimecast.com>

[Quoted text hidden]



Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
To: info@ethichawks.co.za <info@ethichawks.co.za>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula
<Sipokazi.Makaula@afrocentrichealth.com>

Dear Wilbur

Thank you for your e-mail,

Ito correspondences, from an HR perspective, I would like to confirm that we responded within the stipulated timeframe and provided all information required from our side. Furthermore the Certificate of Service issued is correct and fully aligned with our employment records as well as statutory requirements.

With regard to the naming-convention changes, please note that this business process is still in progress, and I can confirm that no changes to the Care Co-Ordinator job title for your department have been implemented at this stage. Your title is therefore accurately and correctly reflected in the Certificate of Service.

Should you require any additional documentation, we are available to assist; however, our position regarding the accuracy of the certificate remains unchanged.

Kind Regards

Cheryl-Dawn Modern

Senior HR Business Partner

+27 (011) 671 4819

cheryl-dawnm@afrocentrichealth.com

37 Conrad St, Florida North, Roodepoort | PO Box 1101, Florida Glen, 1709

www.afrocentric.za.com



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Always aligning our leaders & people with the business purpose.

CONFIDENTIALITY:

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From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: Monday, January 19, 2026 12:25 PM
To: Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>; Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>
Cc: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>; Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Tebogo.Makoe@afrocentrichealth.com <Tebogo.Makoe@afrocentrichealth.com>; Nthabiseng Nkatane <nthabisengn@medscheme.co.za>
Subject: Correction Required – Certificate of Service Misrepresentation

This message originated from outside your organization



Dear Sipokazi,

[Quoted text hidden]

[Quoted text hidden]

 **image014.png**
29 KB

Wilbur William Matthee <info@ethichawks.co.za>
To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Bcc: wilburmat@gmail.com

Mon, 19 Jan 2026 at 16:30

Dear Cheryl-Dawn,

Thank you for the information provided.

You have stated that the company was compliant with the statutory timeline. However, the documents I received were incomplete, which means the company is in fact not compliant with statutory requirements.

For the record:

- I verbally accepted the updated role during the recorded Teams meeting titled "Naming Convention", attended by Sipokazi Makaula and Nthabiseng Nkatane, where the Operational Manager informed me to update my identifiers.
- I subsequently updated my professional signature to reflect the new title.
- Both the recording and my updated signature constitute legally binding confirmation of the naming convention.

Despite this, the Certificate of Service issued contradicts both the recorded meeting and my updated signature, and has been aligned with the employer's Opposing Affidavit dated 10 December 2025. This alignment is illegal, as statutory documents must reflect factual employment records, not be tailored to litigation pleadings.

As a result, the current Certificate of Service will form part of my legal proceedings. Unless a corrected version is provided by close of business today, 19 January 2026, I will proceed to file a formal complaint with the Department of Employment and Labour (DEL) and include this matter in my Labour Court affidavit.

Kind regards,



Confidential information. The information on this email and attachments thereto (if any) is only for the use of the person(s) named in the email. If you are not the named person(s) you should not disseminate, distribute or copy this e-mail. Please notify the sender immediately by e-mail if you have not received this e-mail by mistake. Disclosing of confidential information is not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than those specified in the email, or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in the email and any attachments thereto, once you have notified the sender.





Request for Disclosure of Recorded Teams Meeting – “Naming Convention”

1 message

Wilbur William Matthee <info@ethichawks.co.za> Mon, 19 Jan 2026 at 17:24
To: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
Cc: Nthabiseng Nkatane <nthabisengn@medscheme.co.za>, Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Bcc: wilburmat@gmail.com

Dear Cheryl, Sipokazi, and Nthabiseng.

I hereby formally request disclosure of the full and unaltered Microsoft Teams recording titled “Naming Convention”, attended by Sipokazi Makaula and Nthabiseng Nkatane. This recording is in the Respondent’s possession and constitutes material evidence directly relevant to the dispute concerning my designation and the accuracy of the Certificate of Service.



Please provide the recording by [reasonable deadline, e.g., 5 working days]. Should the Respondent fail to disclose the recording, I will proceed to seek an order compelling production in terms of Rule 6(7) of the Labour Court Rules and invite the Court to draw an adverse inference from any refusal to disclose evidence within your possession.

Kind regards,

Wilbur Matthee

Specialist Nurse Health Services Manager
SRN | BTech Psych, Midw, Community | BCur HNM | PG Dip HSM (NQF 8)

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
EXIT4

Date: 19 January 2026

Category: *Certificate of Service — Correction Required (4-message chain)*

Description:

Respondent's letter to Monwabisi Kula and Lindiwe Miyambu objecting to Certificate reflecting "Care Coordinator" — aligned with Manyati CCMA affidavit title rather than payroll records. Reference to "Naming Convention" Teams meeting (attended by Sipokazi Makaula and Nthabiseng Nkatane) where Operational Manager directed identifier updates. Cheryl-Dawn Modern's response 19 Jan 2026 at 15:40 maintaining "Care Coordinator" and asserting no naming-convention changes implemented. Respondent's final reply at 16:30 placing Certificate on Labour Court record. Screenshot of Respondent's Medscheme email signature dated 15 October 2025 showing title "Case Manager, GEMS Active Disease Risk Management".



RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Proves Applicant knowingly refused to correct erroneous Certificate. Modern's response directly contradicts Respondent's email signature and "Naming Convention" Teams meeting record. Grounds fatal contradiction argument in paragraph 15 of the affidavit.

[Document follows immediately after this tab]



URGENT: NOTICE OF STATUTORY NON-COMPLIANCE (UIF) AND SYSTEMIC WITHHOLDING OF EXIT DOCUMENTS
5 messages

Wilbur William Matthee <info@ethichawks.co.za> Thu, 15 Jan 2026 at 20:43
To: Sipokazi.Makaula@afrocentrichealth.com
Cc: Cheryl-DawnM@afrocentrichealth.com, Lindiwe.Miyambu@afrocentrichealth.com, Tebogo.Makoe@afrocentrichealth.com, Monwabisi Kula <monwabisi.kula@afrocentrichealth.com>
Bcc: wilburmat@gmail.com

Dear Sipokazi,

I refer to your email dated 15 January 2026.

1. Rejection of Information Request:

Your request for my basic identity and employment details is rejected as a bad-faith stalling tactic. As a Human Capital Consultant, you have access to the Respondent's payroll records. Furthermore, the Respondent's legal representative, Mr. Xollie Vincent Manyati, authored a sworn Opposing Affidavit on 10 December 2025 (Case WECT23564-25) identifying me and my role.



2. Ignorance of Prior Requests:

Please note that I formally requested these documents from Cheryl-Dawn Modern on 7 January 2026. Her complete ignorance of that request and subsequent failure to provide the documents—despite my follow-up with you on 14 January—is a continuation of the institutional silence and victimization documented in my legal filings.

3. Evidence of UIF Non-Compliance (June 2025):

Attached is a screenshot from the uFiling portal showing that the Respondent failed to submit a declaration for June 2025. My payslip for that month reflects that UIF was deducted from my salary. This discrepancy constitutes a violation of the Unemployment Insurance Contributions Act. I require immediate proof of payment and an updated declaration for June 2025 to ensure my claim is not rejected by the Department of Employment and Labour (DEL).

4. Formal Notice to Leadership:

(To Lindiwe Miyambu, Tebogo Makoe, and Monwabisi Kula) Please be advised that I am formally filing my Founding Affidavit in the Labour Court on Tuesday, 20 January 2026. The systemic failure to provide my UI-19, retirement forms, and the missing June 2025 declaration will be included as evidence of institutional bad faith and continued occupational detriment.

5. Final Demand:

I require the following by 12:00 PM on Monday, 19 January 2026:

- My completed UI-19 form;
- My Service Certificate and Umbrella Fund Withdrawal Forms;
- Proof of UIF payment and declaration for June 2025.

Failure to comply will result in a formal complaint to the DEL and a request for a statutory audit.

MEDSCHEME HOLDINGS PTY LTD (202103 - 202702)		
March 2025 Salary: R40589.15 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	April 2025 Salary: R42537.43 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	May 2025 Salary: R34637.82 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:
June 2025 No Information	July 2025 Salary: R27725.66 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	August 2025 Salary: R40562.53 Hours: 160 Start Work Date: End Work Date: Termination Reason:
September 2025 Salary: R42537.43 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	October 2025 Salary: R35625.28 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:	November 2025 Salary: R36612.75 Hours: 160 Start Work Date: 01-05-2024 End Work Date: Termination Reason:

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF 8)

<postmaster@medscheme.co.za>
To: info@ethichawks.co.za
Thu, 15 Jan 2026 at 20:44

Delivery has failed to these recipients or groups:

tebogo.makoe@afrocentrichealth.com

A communication failure occurred during the delivery of this message. Please try resending the message later. If the problem continues, contact your email admin.

The following organization rejected your message: DU2PEPF00028D10.mail.protection.outlook.com.

Diagnostic information for administrators:

Generating server: ZABDCEXCAMBX05.medscheme.com

tebogo.makoe@afrocentrichealth.com

DU2PEPF00028D10.mail.protection.outlook.com

Remote Server returned '550 5.4.1 Recipient address rejected: Access denied. For more information see https://aka.ms/EXOSmtpErrors [DU2PEPF00028D10.eurprd03.prod.outlook.com 2026-01-15T18:44:31.446Z 08DE54082AEB94EB]'

Original message headers:

Received: from ZABDCEXCAMBX05.medscheme.com (172.27.164.159) by ZABDCEXCAMBX05.medscheme.com (172.27.164.159) with Microsoft SMTP Server (version=TLS1_2, cipher=TLS_ECDHE_RSA_WITH_AES_256_GCM_SHA384) id

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[Quoted text hidden]

Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
To: Wilbur William Matthee <info@ethichawks.co.za>
Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Sun, 18 Jan 2026 at 09:02

Good day Wilbur,

I hope you are well.

I apologise about the delay in your request.

I spoke with Xolile to help me identify you as per the information you provided below on your communication with Xolile.



Please note that due to your email being external It was important for me to ask Identity questions.

I was also unable to identify you via the external email and asked the Identity questions so I can give full details to the benefits team for your personalized exit documents.

Additionally your request is of a confidential status it was also important that I ask Identity questions so that there is no confidential breach.

A ResQ ticket has also been raised for your exit documents. The benefits team no longer works via email, they work via ResQ tickets for all queries.

Next steps

- Benefits will review and send your personalised exit documents
- Once I receive or Cheryl receives we will send it you using this email address .

Thank you .



Kind regards

Sipokazi Makaula

Human Capital Consultant Human Capital

- Sipokazi.Makaula@afrocentrichealth.com
- Searle Street, The Boulevard, Woodstock, Cape Town, 7925
- www.afrocentric.za.com

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19/5/2026-8:22:49 AM

From: Wilbur William Matthee <info@ethichawks.co.za>**Sent:** Thursday, January 15, 2026 8:43 PM**To:** Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>**Cc:** Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>; Lindiwe Miyambu <Lindiwe.Miyambu@afrocentrichealth.com>; Tebogo.Makoe@afrocentrichealth.com <Tebogo.Makoe@afrocentrichealth.com>; Monwabisi Kula <Monwabisi.Kula@afrocentrichealth.com>**Subject:** URGENT: NOTICE OF STATUTORY NON-COMPLIANCE (UIF) AND SYSTEMIC WITHHOLDING OF EXIT DOCUMENTS

This message originated from outside your organization

Dear Sipokazi,
[Quoted text hidden]

[Quoted text hidden]

Sun, 18 Jan 2026 at 09:40

Wilbur William Matthee <info@ethichawks.co.za>**To:** Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>**Cc:** Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Dear Ms Makaula,

I acknowledge receipt of your email dated Sunday, 18 January 2026, regarding my request for statutory exit documents.

As indicated in my correspondence of Thursday, 15 January 2026, the deadline for provision of these documents is **Monday, 19 January 2026 at 12h00**. These documents are required to enable compliance with statutory obligations, including UIF processing.

I respectfully request that the Respondent ensure full compliance with this deadline to avoid unnecessary escalation. Please confirm that the benefits team will provide the personalised exit documents within the stipulated timeframe.

Thank you for your attention to this matter.

Kind regards,

Sr. Wilbur Matthee

Specialist Nurse Health Services Manager

SRN | BTech Psych, Midw, Community | BCur HNM | PG Dip HSM (NQF 8)

[Quoted text hidden]

[Quoted text hidden]

**3 attachments****1000206656.png**

158 KB

**Outlook-A black ba.png**

9 KB

**Outlook-qswwepqo.png**

5 KB

Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>**To:** Wilbur William Matthee <info@ethichawks.co.za>**Cc:** Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>

Mon, 19 Jan 2026 at 11:38

Good day Wilbur,

I trust you are well.

Herewith please find feedback on your query:

1. UIF Declaration – June 2025

The UIF declaration for June 2025 was submitted.

Please see the screenshot provided by Payroll as confirmation.

2. UIF Documentation

UIF documents have been attached for your reference.

Kindly note that UI-19 forms are only provided when the reason for leaving qualifies for UIF benefits.

Since your reason for leaving is recorded as Resignation, the Department of Employment and Labour does not process UIF claims for this category unless they explicitly request supporting documents.

3. Certificate of Service

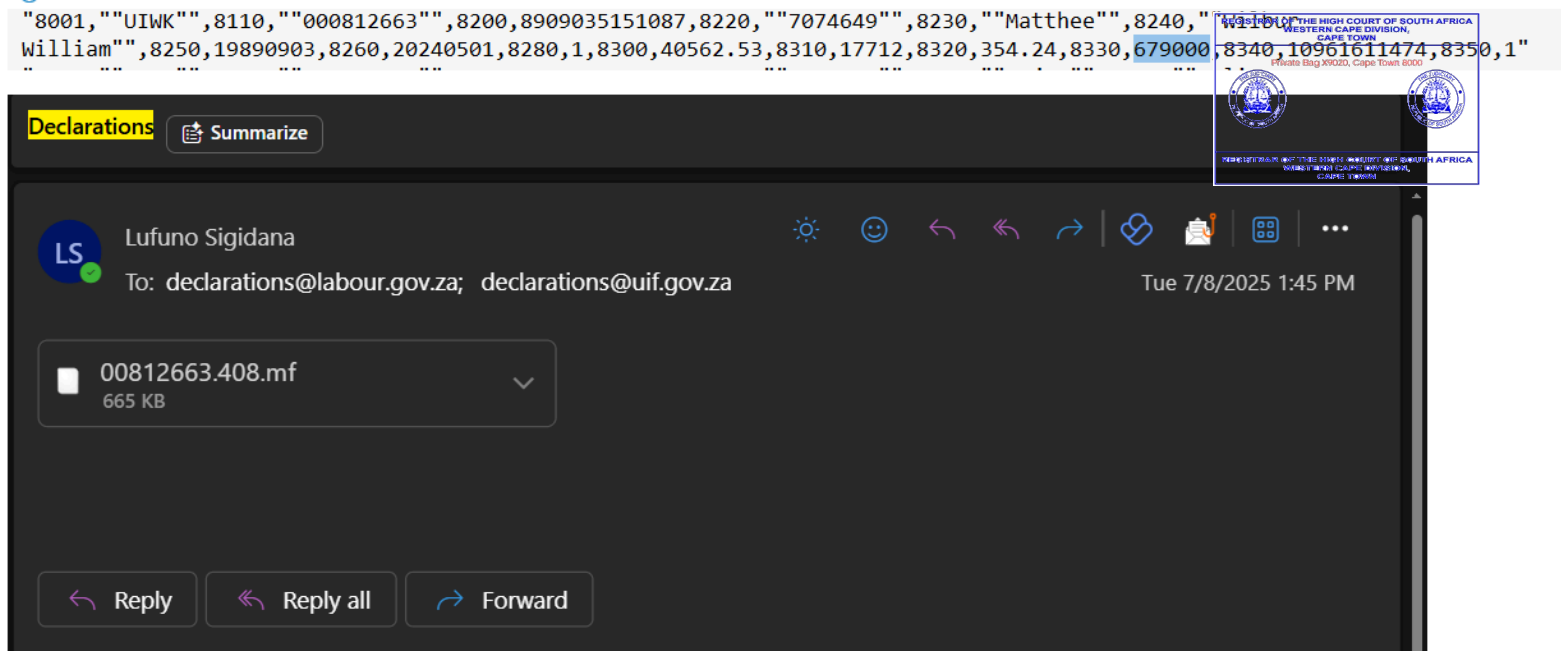
Your Certificate of Service has been attached.

4. Provident Fund Withdrawal

The Benefits Team (Sebabatso) previously reached out to you regarding your provident fund withdrawal and attempted to contact you telephonically.

Please see the attached email for reference.

Thank you.



Kind regards

Sipokazi Makaula

Human Capital Consultant Human Capital

- Sipokazi.Makaula@afrocentrichealth.com
- Searle Street, The Boulevard, Woodstock, Cape Town, 7925
- www.afrocentric.za.com

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From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: Sunday, January 18, 2026 9:40 AM

To: Sipokazi Makaula <Sipokazi.Makaula@afrocentrichealth.com>
Cc: Cheryl-Dawn Modern <Cheryl-DawnM@afrocentrichealth.com>
Subject: Re: URGENT: NOTICE OF STATUTORY NON-COMPLIANCE (UIF) AND SYSTEMIC WITHHOLDING OF EXIT DOCUMENTS

[Quoted text hidden]

----- Forwarded message -----
From: Sebatatso Sebotsa <SebatatsoS@medscheme.co.za>
To: Natasha Johnson <Natasha.Johnson@medscheme.co.za>
Cc:
Bcc:
Date: Mon, 19 Jan 2026 07:12:24 +0000
Subject: Withdrawal Forms

Good day.

I trust all is well with you.

Please find attached email sent to the employee.

Thank you.



Sebatatso Sebotsa

Designation: Human Capital Administrator, Rewards & Benefits Management.

- +27 11 758 8880
- Sebatatsos@medscheme.co.za
- 37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709
- www.afrocentric.za.com



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----- Forwarded message -----

From: Sebatatso Sebotsa <SebatatsoS@medscheme.co.za>

To: "wilburmat@gmail.com" <wilburmat@gmail.com>

Cc:

Bcc:

Date: Thu, 15 Jan 2026 16:54:15 +0000

Subject: Wilbur Matthee - Benefits Withdrawal

Dear Member

Kindly note that, effective 1 September 2024, Sanlam has implemented a new withdrawal process.

Attached is your personalized withdrawal form. Before completing it, please review the following:

Form 1: Basic Withdrawal

By completing this form, you may:

- Withdraw from your **vested** and **savings** pots.
- Preserve your **retirement** pot with Sanlam.

Form 2: Advanced Withdrawal

This form offers more flexible options:

- Preserve **100%** of all three pots (vested, savings, and retirement).
- Take full cash from the **vested** and **savings** pots and preserve or transfer the **retirement** pot.
- Withdraw a **portion** from the vested and savings pots and preserve or transfer the remaining balance.

Important: Please consult your Financial Advisor if you intend to transfer or in-fund your benefits to a new fund.

In addition to the completed form, kindly submit:

- A certified copy of your ID
- Proof of banking details

Please note that your claim will be submitted to Sanlam on **15 January 2025**, following the final contribution.



Sebatatso Sebotsa

Designation: Human Capital Administrator, Rewards & Benefits Management.

+27 11 758 8880

Sebatatsos@medscheme.co.za

37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709

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7 attachments

-  **Matthee WW Certificate of Service.pdf**
150 KB
-  **Salary Schedule - Matthee W.pdf**
95 KB
-  **UI 19- Medscheme -Matthee W.pdf**
117 KB
-  **Withdrawal Forms.eml**
429 KB
-  **Wilbur Matthee - Benefits Withdrawal.eml**
360 KB
-  **AdvancedWithdrawalForm_82104113.pdf**
124 KB
-  **BasicWithdrawalForm_82104113.pdf**
81 KB

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High CourtANNEXURE
**EXIT3-
COS****Date:** 19 January 2026**Category:** *Certificate of Service (as issued)***Description:**

Certificate of Service issued by Medscheme Holdings upon Respondent's departure — reflects designation "Care Coordinator". This designation is contrary to: (1) payroll records; (2) the "Naming Convention" Teams meeting record; (3) the Respondent's professional Medscheme email signature ("Case Manager"); and (4) the Applicant's own founding affidavit in this application, which designates the Respondent as "Case Manager".

**RELEVANCE / PURPOSE IN THESE PROCEEDINGS**

The primary physical document evidencing the fatal contradiction. Relied upon by the Department of Employment and Labour to withhold UIF benefits. Establishes that the Applicant cannot simultaneously call the Respondent a "Case Manager" in interdict papers and a "Care Coordinator" in exit documentation.

[Document follows immediately after this tab]

**Medscheme**

37 Conrad Street
Florida North
Roodepoort

Switchboard: 011 671-2000

Website: www.medscheme.co.za

19 January 2025

To Whom It May Concern

RE: CERTIFICATE OF SERVICE FOR WILBUR MATTHEE

Medscheme Holdings (Pty) Ltd hereby certify that **Wilbur Matthee**, Identity Number **8909035151087**, was employed by us for the period **01 May 2024 to 12 December 2025**.

The last position held was **Care Coordinator** in the **GEMS Disease Management** department.

At termination of service, Wilbur's Total Cost to Company Remuneration was **R42796.13** per month.

Sincerely,

AFROCENTRIC HEALTH
SALARIES DEPARTMENT
P.O. BOX 1101
FLORIDA GLEN, 1708

Keorapetse Moiloa
TSS Admin Support Officer
Human Capital Management
(011) 671 4715



Medscheme Holdings (Pty) Ltd Reg No 1970/015014/07
PO Box 1101, Florida Glen 1708 | 37 Conrad Street | Florida North | Roodepoort 1709



DIRECTORS:
G Van Wyk, KT Moloele, MJ Madungandaba, AA Mahmood, FV Nompumza, AD Schwulst (CEO), BS Madikiza, MS Bray (COO)

Group Company Secretary: LMS Mpumlwana

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
WW1

Date: 15 April 2026

Category: *Deneys Attorneys Letter*

Description:

Letter from Jason Whyte of Deneys Attorneys to Respondent alleging that the Respondent's demand was "unquantified" and relying on this to support an allegation of extortion.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Directly prompted Respondent's same-day provision of fully itemised R7,307,642.72 quantification (Annexure GVW4). A genuine extortionist does not itemise at the opposing party's request. Deneys own letter defeats the extortion allegation.



[Document follows immediately after this tab]

By Email: info@ethichawks.co.za

Mr W W Matthee

URGENT ATTENTION

15 April 2026
9th Floor
117 on Strand
117 Strand Street
Cape Town 8001
Tel +27 21 405 1200 Fax +27 21 418 6900

Private Bag X10 Roggebaai 8012
Docex 181 Cape Town
deneys.co.za

Direct line
+27 21 405 1208

Email
jason.whyte@deneys.co.za

Your reference:

Our reference: AFR1282



Dear Sir

AfroCentric Investment Corporation Ltd and others // Yourself

- 1 We confirm that we act on behalf of AfroCentric Investment Corporation Limited, as well as its subsidiaries and related entities. We also act on behalf of the directors and officers of those entities.
- 2 Our clients have provided us with a copy of your email sent to their Group Company Secretary at 22h38 on 14 April 2026. In that email, you advise our clients that unless they conclude a settlement agreement with you, requiring the payment of unquantified amounts among other stated relief, you will proceed to take further steps at 13h24 on 16 April 2026.
- 3 Our clients do not accede to this demand and have instructed us to call on you to withdraw your threatened course of action as it is unlawful. In particular, your demand, on the face of it, constitutes a criminal offence, namely that of extortion and blackmail.
- 4 Our client notes in particular that you intend to:
 - 4.1 Publicly release a so-called 'Whistleblower's Manifesto' naming and accusing our clients' directors and office bearers of 'corporate concealment' and breach of their fiduciary duties. Moreover, that you intend to publicly state that our clients' directors and office bearers are acting in collusion with unnamed 'regulators'; and
 - 4.2 Release a so-called 'Forensic Payload Transfer' regarding the Mahlangu Root Cause Analysis. This would clearly involve the public release of confidential and proprietary information held by or belonging to our clients.
- 5 We note that you have made several other threats that, whilst arguably not unlawful *per se*, are rendered unlawful as they are simply intended to act as a means of forcing our clients to provide you with unquantified, but substantial financial compensation.
- 6 In summary, the demands made in your email are unlawful and, if acted upon, would cause our client irreparable harm.
- 7 We accordingly call on you to confirm in writing by no later than 17h00 today, 15 April 2026, that you unconditionally withdraw your email and the threats contained therein. Should we not receive such written confirmation, our clients shall be forced to consider an urgent approach to the High Court, if necessary on an *ex parte* basis, to interdict and restrain you from proceeding with your unlawful conduct.

- 8 We remind you that the High Court has already expressed its displeasure with your conduct, in striking from the roll with costs, a spurious urgent application that you had brought in which you sought relief that the Court was incapable of granting. In that application you made unlawful, vexatious and defamatory accusations against our clients. Please expect to receive our clients taxed bill of costs for your payment shortly, evidencing the costs that were awarded against you by the Court in the aforementioned urgent application that you recently instituted.
- 9 You have further referred two separate disputes to the Labour Court in which you make similar untrue, vexatious and defamatory allegations against our clients. Our clients will defend these referrals and seek that they be dismissed with orders of punitive costs.
- 10 Accordingly, our clients are of the view that your conduct is, in general, vexatious and our clients reserve their rights to seek appropriate relief against you in due course.
- 11 We look forward to receiving your written response and confirm that in the interim ~~our clients' rights~~ remain reserved in full.



Yours faithfully


pp

Jason Whyte
Director
Deneys

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
WW2

Date: 9 April 2026

Category: *Labour Court Statement of Claim*

Description:
Labour Court Statement of Claim filed by Respondent (Case No. 2026-083299) — includes express reservation of right to quantify damages, establishing that the claim was on record before the quantification was provided.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Demonstrates that the R7,307,642.72 quantification was not a new demand or threat — it was the first full Rand expression of an existing, filed Labour Court claim. Defeats extortion allegation.

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WESTERN CAPE DIVISION,
CAPE TOWN

Private Bag X9020, Cape Town 8000



REGISTRAR OF THE HIGH COURT OF SOUTH AFRICA
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CAPE TOWN

[Document follows immediately after this tab]

- (a) Primary claim: Automatically unfair constructive dismissal under sections 186(1)(e) and 187(1)(h) of the LRA — the dominant reason for the dismissal was retaliation for protected disclosures as defined in the PDA;
- (b) Alternative claim A: Automatically unfair dismissal under sections 186(1)(e) and 187(1)(f) of the LRA — the dominant reason relates to the Applicant's disability;
- (c) Alternative claim B: Constructively and substantively/procedurally unfair dismissal under sections 185 and 186(1)(e) of the LRA;
- (d) Unfair discrimination and harassment under sections 6(1), 6(3) and 60 of the EEA — on the grounds of sexual orientation, gender identity and disability;
- (e) Occupational detriment for making protected disclosures under sections 3 and 4 of the PDA;
- (f) Contravention of section 34(2) of the BCEA — unlawful salary deduction (also pleaded in Case No. 2026-077546);
- (g) Contravention of section 42 of the BCEA — failure to provide a true and accurate Certificate of Service; and
- (h) Contravention of section 5(1) of the UIF Contributions Act 4 of 2002 — failure to declare contributions for June 2025.
- (i) Misappropriation of intellectual property and copyright infringement under section 23 of the Copyright Act 98 of 1978 — the Applicant developed an original CPD programme in April 2025 which was rejected by the Second Respondent, then implemented without attribution or consent in October 2025; the Applicant's moral rights under section 20 of the Copyright Act were simultaneously infringed; and the Second Respondent was unjustifiably enriched at the Applicant's expense under the common law.



PART Q: QUANTIFICATION OF LOSS

1. The Applicant's loss is calculated as follows:

Head of Damage / Claim	Statutory Basis	Amount (ZAR)
Automatically unfair dismissal compensation (24 months × R42,796.13)	LRA s194(3)	R1,027,107.12
Unlawful salary deduction — principal amount	BCEA s34(2) / s77A	R14,811.77
Interest on unlawful deduction (prescribed rate from 23 Jul 2025)	Prescribed Rate Act	To be calculated
EEA — solatium for injury to dignity (sexual orientation / disability discrimination)	EEA s50(2)	R350,000.00
EEA — compensation for failure of reasonable accommodation	EEA s50(2)	To be assessed
PDA — compensation for occupational detriment (financial loss, SANC registration, CPUT opportunity)	PDA s4	To be assessed
Consequential damages: lost CPUT programme (registration fees and associated costs)	PDA s4 / general damages	To be quantified
Career destruction damages: loss of nursing registration and future earning capacity	PDA s4 / general damages	To be assessed

Head of Damage / Claim	Statutory Basis	Amount (ZAR)
Copyright infringement / IP misappropriation — CPD programme developed April 2025, implemented without credit October 2025 (market value of programme, moral rights, loss of authorship credit, unjustified enrichment)	Copyright Act s23 / s20 / common law	To be assessed
TOTAL (known components)		R1,391,918.89 plus assessed amounts

Note: Items marked 'to be assessed' or 'to be quantified' will be supplemented by expert evidence and/or further particulars as the matter develops. The Applicant reserves the right to amend the quantum of the claim upon receipt of further documentation from the Respondents.

PART R: RELIEF SOUGHT

The Applicant respectfully prays for the following relief:



A. DECLARATORY RELIEF

- Q.1.** A declaration that the Applicant's dismissal constitutes an automatically unfair constructive dismissal within the meaning of sections 186(1)(e) and 187(1)(h) of the LRA, on the grounds that the dominant reason for the dismissal was retaliation by the Respondents for the Applicant making protected disclosures as defined in the PDA.
- Q.2.** Alternatively to Q.1, a declaration that the dismissal was automatically unfair within the meaning of sections 186(1)(e) and 187(1)(f) of the LRA on the grounds that a dominant reason for the dismissal relates to the Applicant's disability.
- Q.3.** Further alternatively, a declaration that the dismissal was unfair within the meaning of section 185 of the LRA.

B. COMPENSATION AND DAMAGES

- Q.4.** An order that the First and/or Second Respondents pay the Applicant compensation equal to 24 months' remuneration as provided for in section 194(3) of the LRA for an automatically unfair dismissal, calculated at his monthly cost-to-company of R42,796.13 per month, amounting to R1,027,107.12, alternatively the maximum permissible compensation amount.
- Q.5.** An order that the First and/or Second Respondents reimburse the Applicant the unlawfully deducted amount of R14,811.77 together with interest at the prescribed rate calculated from 23 July 2025 to the date of final payment, alternatively that this relief be granted in Case No. 2026-077546.
- Q.6.** An order that the First and/or Second Respondents pay the Applicant compensation in terms of section 50(2) of the EEA for unfair discrimination on the grounds of sexual orientation, gender identity and disability, including solatium for injury to dignity in the amount of R350,000, alternatively such amount as this Court deems just and equitable.
- Q.7.** An order that the First and/or Second Respondents pay the Applicant compensation for occupational detriment under section 4 of the PDA, including compensation for all financial loss, career destruction, loss of nursing

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
GVW4

Date: 15 April 2026

Category: *Quantification Schedule* — R7,307,642.72

Description:
Fully itemised quantification of the Respondent's damages (R7,307,642.72) provided on 15 April 2026 to Deneys Attorneys at their express written request. Breakdown by head of damages aligned with Labour Court claim. (Filed in Applicant's founding papers.)

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Evidences good faith and genuine litigant conduct. Represents less than 0.24% of the estimated annual Governance Tax (R3.016bn). Under the Protected Disclosures Bill 2026, a 25% whistleblower award on recovered funds would yield R754m — making the extortion characterisation policy-blind.

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WESTERN CAPE DIVISION,
CAPE TOWN

Private Bag X9020, Cape Town 8000

REGISTRAR OF THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION,
CAPE TOWN

[Document follows immediately after this tab]

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 15:43
To: Frances Barker
Cc: Olebogeng Motlaping; Jason Whyte
Subject: FINAL STATUTORY CLARIFICATION: Private Resolution Path vs. Commencement of Statutory Siege

Dear Ms. Barker,

Further to my communication of 13:18 today, I hereby provide the final "Private Resolution Path" to resolve the statutory deadlock before the 13:24 deadline on 16 April 2026.

To facilitate a settlement that protects the membership and the scheme's solvency, the Board must ratify the following quantified schedule by the aforementioned deadline:



As per Annexure A (previously served), the Board must issue a formal resolution to downgrade the 2026 contribution hike from 9.5% to a maximum of 5%. This correction remediates the "Governance Tax" currently backfilling internal IT wastage and the R180 million daily clinical leakage.

Based on a Cost-to-Company (CTC) of R42,796.13 per month, my restitution for documented occupational detriment is quantified as follows:

Direct Restitution: R1,027,107.12 (24 months back-pay/substitution).

Property Loss: R145,000.00 (Total loss of fixed property resulting from detriment).

Professional Death Compensation: R5,135,535.60 (10-year compensatory future loss of earnings).

Clinical Provision: R750,000 (10-year specialist psychosocial/clinical care fund).

Statutory Costs: R250,000 (Forensic audit and Ethic Hawks operational expenses).

Total Settlement Value: R7,307,642.72

The Board is required to apply for a formal SARS Tax Directive for the total settlement under the category of "Compensation for Occupational Detriment." The Board shall provide a full tax indemnity to ensure the net amount is protected and structured as a capital settlement for damages.

Be advised that the invitations for the Liaison sessions have been formally issued to the leadership of the PSA, NEHAWU, DENOSA, and POPCRU. The Board has until 13:24 tomorrow to decide the outcome:

11:30 AM Liaison: Activation of Mandamus against SANC, DEL, and CMS.

<https://teams.live.com/join/9317804058155?p=3OxPhtrj39zfQYDWqY>

13:30 PM Outcome (The Disclosure or The Deal):

<https://teams.live.com/meet/9392336908714?p=ihT4rLnWK7HyYFlnds>

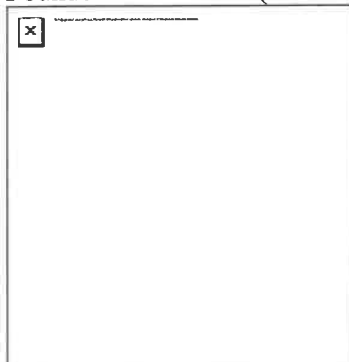
Scenario A (Settlement): 13:30 serves as a Victory Briefing for the 5% Member Deal. The Mahlangu RCA remains a private internal matter.

Scenario B (The Siege): 13:30 triggers the Full Forensic Disclosure of the R180 million daily leakage to Union legal teams for an immediate High Court Interdict.

The window for a private resolution closes at 13:24 tomorrow. I remain finished with silence.

Yours Professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



NW

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
GVW5

Date: 15 April 2026 at 20:44

Category: *Correction Email — "Leakage"*

Description:

Voluntary email from Respondent to Applicant at 20h44 on 15 April 2026: "I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint."

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

A bad-faith actor does not issue voluntary corrections. This email is direct evidence of good faith and careful epistemic standards in communication. Applicant's reliance on the original use of "leakage" to allege bad faith is an abuse of process.



[Document follows immediately after this tab]

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 20:44
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: CLARIFICATION AND CORRECTION: Re: FINAL STATUTORY CLARIFICATION – Terminology Correction (No Withdrawal of Complaint)

Dear Recipients,

I am writing to clarify and correct a terminological imprecision in my previous correspondence dated 15 April 2026.

In my letters, I referred to 'R180 million daily clinical leakage.' Upon further refinement, I acknowledge that the word 'leakage' was imprecise.



The correct factual position is as follows:

The systemic integration gap between Gexus and DMS (proven in the attached Mahlangu RCA) causes misclassification of claims—specifically, chronic medication claims being paid from acute/day-to-day benefits.

This misclassification does not constitute 'leakage' in the strict forensic sense (i.e., money leaving the scheme incorrectly). Rather, it constitutes:

- Erosion of member day-to-day benefits
- Corruption of claims data
- Operational waste
- Plausible inflation of total claims spend

The R180 million figure refers to the average amount GEMS pays out in claims, not an amount lost to leakage.

The systemic gap contributes to the inflation of that R180 million spend, which in turn contributes to the 9.5% contribution increase.

I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint. The systemic failure documented in the Mahlangu RCA remains valid and warrants a forensic audit.

Yours professionally,

Sr. Wilbur W Matthee
 Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
 Health Services Management.
 Founder EthicHawks (Forensic Governance and Compliance)

NN

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
WW5

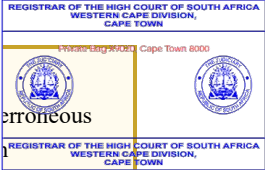
Date: 15 April 2026

Category: *DEL Email — Refusal to Release Benefits*

Description:
Email from the Department of Employment and Labour dated 15 April 2026 confirming refusal to release UIF benefits to Respondent.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Establishes the concrete and immediate harm of the administrative deadlock created by the erroneous Certificate of Service and UI-19 form. Demonstrates tangible advantage to be obtained from declaratory relief — not an abstract or hypothetical interest.



[Document follows immediately after this tab]



FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]

6 messages

Wilbur William Matthee <info@ethichawks.co.za>

Tue, 14 Apr 2026 at 14:25

To: David.Esau@labour.gov.za, Fezeka.Ngalo@labour.gov.za

Cc: PublicProtector@ombudsman.org.za, complaints@sahrc.org.za

Bcc: " <wilburmat@gmail.com>

Dear Mr. Esau and Ms. Ngalo,

I refer to the integrated inspection allocated on 16 February 2026. Despite my repeated follow-ups and the BCEA department's referral to the UIF division, the Department has remained silent for over 60 days. This silence in the face of documented statutory fraud is no longer an "administrative delay"—it is a Deemed Refusal to Act.

I require an immediate Statement of Position on the following three points of law:

The Perjury/Resignation Obstruction: Does the DEL accept an employer's under-oath claim of "voluntary resignation" (Res1) when my formal Notice of Resignation (UI19) explicitly cited Automatically Unfair Constructive Dismissal due to a protected disclosure? By failing to intervene, the DEL is allowing a false narrative to block my constitutional right to social security.



The Service Certificate Misrepresentation: The employer has issued a Certificate of Service (CERT1) that misrepresents the nature of my departure and suppresses the occupational detriment I faced. I demand a Compliance Order to compel the correction of this statutory document.

The UIF Non-Remittance (Criminality): My June 2025 records (and others) confirm deductions were made from my salary but never remitted to the Fund. This is theft of statutory levies. Does the UIF department intend to prosecute this non-compliance, or is the whistleblower expected to bear the cost of the employer's criminality?

I am a Specialist Registered Nurse (NQF 8) currently homelessness and a medically documented PTSD collapse (MED1) because I am being denied access to my own security funds. Your department's inaction is the primary driver of this human rights violation.

If I do not receive a Case Reference Number and a Compliance Order regarding the June 2025 UIF gap by Thursday, 16 April 2026, at 14:30, I will:

Initiate an Urgent Mandamus Application in the High Court to compel the Department to perform its statutory duties.

Submit this entire chain of ignored correspondence to Daily Maverick and AmaBhungane as evidence of institutional failure.

Silence is no longer an option. The law requires you to act.

Yours professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za

- PDF

MED1 - letter to employer.pdf

417 KB
- PDF

RES1 (FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL).pdf

153 KB
- PDF

CERT1 (Matthee WW Certificate of Service (1)).pdf

150 KB
- PDF

UI 19- Medscheme -Matthee W (1).pdf

117 KB

012-99131

10/5/2026-8:22:49 AM

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: info@ethichawks.co.za

Tue, 14 Apr 2026 at 14:25



Message blocked

Your message to **PublicProtector@ombudsman.org.za** has been blocked. See technical details below for more information.



The response from the remote server was:

550 blocked

<postmaster@labour.gov.za>
To: info@ethichawks.co.za

Tue, 14 Apr 2026 at 14:31



Your message to David.Esau@labour.gov.za couldn't be delivered.

David.Esau wasn't found at labour.gov.za.

info	Office 365	David.Esau
Action Required		Recipient
Unknown To address		

How to Fix It

The address may be misspelled or may not exist. Try one or more of the following:

- Send the message again following these steps: In Outlook, open this non-delivery report (NDR) and choose **Send Again** from the Report ribbon. In Outlook on the web, select this NDR, then select the link "**To send this message again, click here.**" Then delete and retype the entire recipient address. If prompted with an Auto-Complete List suggestion don't select it. After typing the complete address, click **Send**.
- Contact the recipient (by phone, for example) to check that the address exists and is correct.

----- Forwarded message -----

From: Wilbur William Matthee <info@ethichawks.co.za>

To: David.Esau@labour.gov.za, Fezeka.Ngalo@labour.gov.za

Cc: PublicProtector@ombudsman.org.za, complaints@sahrc.org.za

Bcc:

Date: Tue, 14 Apr 2026 05:25:36 -0700

Subject: FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]

Dear Mr. Esau and Ms. Ngalo,

I refer to the integrated inspection allocated on 16 February 2026. Despite my repeated follow-ups and the BCEA department's referral to the UIF division, the Department has remained silent for over 60 days. This silence in the face of documented statutory fraud is no longer an "administrative delay"—it is a Deemed Refusal to Act.

I require an immediate Statement of Position on the following three points of law:

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The Service Certificate Misrepresentation: The employer has issued a Certificate of Service (CERT1) that misrepresents the nature of my departure and suppresses the occupational detriment I faced. I demand a Compliance Order to compel the correction of this statutory document.

The UIF Non-Remittance (Criminality): My June 2025 records (and others) confirm deductions were made from my salary but never remitted to the Fund. This is theft of statutory levies. Does the UIF department intend to prosecute this non-compliance, or is the whistleblower expected to bear the cost of the employer's criminality?

I am a Specialist Registered Nurse (NQF 8) currently homelessness and a medically documented PTSD collapse (MED1) because I am being denied access to my own security funds. Your department's inaction is the primary driver of this human rights violation.

If I do not receive a Case Reference Number and a Compliance Order regarding the June 2025 UIF gap by Thursday, 16 April 2026, at 14:30, I will:

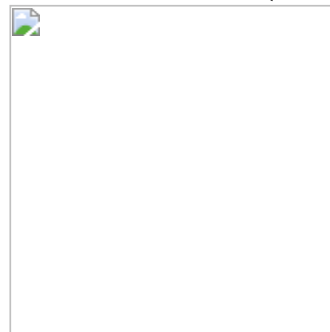
Initiate an Urgent Mandamus Application in the High Court to compel the Department to perform its statutory duties.

Submit this entire chain of ignored correspondence to Daily Maverick and AmaBhungane as evidence of institutional failure.

Silence is no longer an option. The law requires you to act.

Yours professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



[LINKSHIELD PROTECTED] www.ethichawks.co.za

 **MED1 - letter to employer.pdf**

417 KB



RES1 (FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL).pdf

153 KB



CERT1 (Matthee WW Certificate of Service (1).pdf

150 KB



UI 19- Medscheme -Matthee W (1).pdf

117 KB

012-101
133

10/5/2026-8:22:49 AM

Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>

Wed, 15 Apr 2026 at 14:55

To: info@ethichawks.co.za <info@ethichawks.co.za>

Cc: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@labour.gov.za>, Hlanganisa Dalasile (CPT-PO) <Hlanganisa.Dalasile@labour.gov.za>

Good afternoon Mr\Mrs\Ms William Matthee

Thank you for registering your complaint with the Department of Employment and Labour, however, I regret to inform you that DEL does not have jurisdiction on dismissal issues and your case is that of Constructive Dismissal which falls under CCMA. In the light of that I will recommend that you refer your matter to CCMA.



Thanking you in advance, hoping that this clarity will be considered favourable

Regards

Cebo Kutuka | Principal Inspector-BCEA & NMW | Provincial Office: Western Cape |

| Room 621, 9 Long Street, Cape Town, 8001|

Tel  Description: cid:image001.png@01CBDE41.60315F40 +27 21 441 8000 |Mobile

 Description: cid:image002.png@01CBDE41.60315F40 +27 82 7894749|

 Description: cid:image004.png@01CBDE41.60315F40 cebo.kutuka@labour.gov.za |

 Description: cid:image005.png@01CBDE41.60315F40 www.labour.gov.za

 cid:image006.png@01D551BF.8607A8F0

 cid:image002.png@01D70AA4.3CAB90F0

From: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@LABOUR.gov.za>

Sent: Wednesday, 15 April 2026 12:35

To: Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>; Hlanganisa Dalasile (CPT-PO) <Hlanganisa.Dalasile@labour.gov.za>

Subject: FW: FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]

Dear colleagues

The mail below and the attached document bears reference, can you kindly allocate this case for investigation.

Thank you in advance.

Kind Regards

Tel  Description: cid:image001.png@01CBDE41.60315F40 +27 21 441 8094 | Mobile

 Description: cid:image002.png@01CBDE41.60315F40 +27 82 791 6244| Fax  Description: cid:image003.png@01CBDE41.60315F40 |

 Description: cid:image004.png@01CBDE41.60315F40 fezeka.ngalo@labour.gov.za |

 Description: cid:image005.png@01CBDE41.60315F40 www.labour.gov.za

 cid:image006.png@01D551BF.8607A8F0

012-102
134

19/5/2026-8:22:49 AM

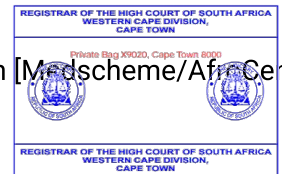
From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Tuesday, 14 April 2026 14:26

To: David.Esau@labour.gov.za ; Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@LABOUR.gov.za>

Cc: PublicProtector@ombudsman.org.za ; complaints@sahrc.org.za

Subject: FINAL DEMAND: 48-Hour Notice of Administrative Deadlock – Ref: Integrated Inspection [Medscheme/AfroCentric] – [890903 5151 087]



Dear Mr. Esau and Ms. Ngalo,

[Quoted text hidden]

4 attachments



MED1 - letter to employer.pdf

417 KB



RES1 (FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL).pdf

153 KB



CERT1 (Matthee WW Certificate of Service (1).pdf

150 KB



UI 19- Medscheme -Matthee W (1).pdf

117 KB

Wilbur William Matthee <info@ethichawks.co.za>

Wed, 15 Apr 2026 at 15:30

To: Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>

Cc: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@labour.gov.za>, Hlanganisa Dalasile (CPT-PO) <Hlanganisa.Dalasile@labour.gov.za>

Bcc: " <wilburmat@gmail.com>

Dear Mr. Kutuka,

Your response, notably addressed to a genetic 'Mr/Ms/Mrs,' confirms a failure to apply your mind to the basic facts of this case, including the identity of the complainant and the evidence provided. This lack of administrative mindfulness is reflected in your recommendation, which is a material misdirection of law.

Your recommendation to refer this matter to the CCMA is a material misdirection of law.

Jurisdiction: While the CCMA handles the dismissal, the UIF Act (Section 64) and the BCEA grant the DEL exclusive jurisdiction over the submission of fraudulent information to the state.

I have reported that the employer submitted a UI-19 citing "Voluntary Resignation" despite being served with a Notice of Automatically Unfair Constructive Dismissal. This is a Statutory Fraud intended to obstruct my access to the UIF fund—a criminal offense under the UIF Act.

Your refusal to investigate this fraud because it "looks like a dismissal" is an act of Administrative Abandonment.

You are hereby served with a final 24-hour window to align with your colleague, Fezeka Ngalo (Provincial Specialist: OHS), who has already correctly allocated this case for investigation (Ref: 890903 5151 087) remains 13:30. Failure to confirm that the UI-19 fraud will be part of the integrated inspection will result in your name being cited personally in the Writ of Mandamus as an official refusing to perform a statutory duty.

I remain finished with silence.

Yours Professionally

012-103
135
19/5/2026-8:22:49 AM

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za

[Quoted text hidden]



Wed, 15 Apr 2026 at 23:31

Cebo Kutuka (CPT) <Cebo.Kutuka@labour.gov.za>
To: Fezeka Ngalo (PO CPT) <Fezeka.Ngalo@labour.gov.za>
Cc: Wilbur William Matthee <info@ethichawks.co.za>

Good day Ms Ngalo

I guess this matter is closed from the BCEA side. The complainant has submitted a resignation letter to the employer citing constructive dismissal. For that s\he has to prove that at CCMA.

Won't respond to personal attacks.

Regards

Cebo Kutuka | Principal Inspector-BCEA & NMW | Provincial Office: Western Cape |

| Room 621, 9 Long Street, Cape Town, 8001|

Tel 📞 +27 21 441 8000 | Mobile 📱 +27 82 7894749|

✉️ cebo.kutuka@labour.gov.za | 🌐 www.labour.gov.za



Wearing a mask properly is of life-saving importance. You must wear your masks at all times when outside of your home. There can be no exceptions.

- You must avoid crowded and confined spaces at all costs. This is where super-spreader events take place.
- You must ensure there is good ventilation at all times whenever you're in public. The virus droplets spread by air in confined spaces, and so fresher is better.
- You must wash your hands regularly with soap and water or use sanitiser.
- If you feel sick, you should not leave your home unless it is to get healthcare treatment. You must first call our hotline on 080 928 4102 for guidance on the next steps.
- You should also not visit someone who is sick, and find other ways to provide support, like delivering a meal to a neighbour's doorstep.

012-104

19/5/2026-8:22:49 AM

136

[Quoted text hidden]



Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE WW6	Date: April 2026 Category: <i>Affidavit of Destitution</i> Description: Affidavit sworn by Respondent confirming: (1) no current income; (2) no savings, investments, or significant assets; (3) inability to afford transport to attend court; (4) inability to afford legal representation; (5) dependence on family and charity; (6) request for waiver of filing fees and security for costs.
-------------------------------	---

RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Context for all procedural conduct. Explains inability to attend the 16 April 2026 hearing. Grounds request for attorney-client costs against Applicant for dragging a destitute respondent into urgent proceedings on 67 minutes' notice.



[Document follows immediately after this tab]

Matthee v AfroCentric Investment Corporation Limited | Case No. 2026-086906 | Western Cape High Court

AFFIDAVIT OF DESTITUTION
(EXHIBIT WW6)

1. **Wilbur William Matthee**, swear under oath that:

1. I have no current income from employment or any other source.
2. I have no savings, investments, or assets of significant value.
3. I cannot afford transport to attend court proceedings.
4. I cannot afford legal representation.
5. I am currently dependent on family and charitable assistance for basic necessities.
6. I request that this Honourable Court accept my papers without payment of filing fees and dispense with any requirement to pay security for costs.

Signed: _____

Date: 20th APRIL 2026

Sworn before me at DELFT on this 20th day of APRIL 2026.

Commissioner of Oaths: BD 25513



PASTOR BENJAMIN J. MASEMOLA
MARRIAGE OFFICER
COMMISSIONER OF OATHS
No. 18 DIGTEBY CRESCENT
VOORBRUG DELFT 7100
Cell: 082 891 0844

Alan Lee
Wilbur Matthee
89090551087
20th April 2026

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE VICT1	Date: 2025 Category: <i>Root Cause Analysis (Forensic)</i> Description: Root Cause Analysis: Gexus/DMS Integration Gap — forensic analysis establishing that the systemic integration failure generates false non-adherence data, compelling actuaries to apply maximum APN 303 risk loading, inflating the GEMS premium increase from the CMS-stipulated 3.3–4% to 9.5%. Estimated excess cost: R3.016 billion per annum across 1.9 million GEMS members.
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RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Core substantive protected disclosure. Establishes public interest at stake. Grounds the APN 303 / NHI public interest arguments. Demonstrates objective basis for Respondent's disclosures — not speculation but empirical data-driven analysis. Applicant's own paragraph 40 admits the Gexus/DMS platforms manage the relevant data.

[Document follows immediately after this tab]

Good day Team

Hope my email finds you well.

Complaint details:



"Hi I have a 75 yr old Mom who is my one and only dependent. I religiously ensure she honours her blood collection months when due and not end there. Also collect her treatment every month from Nite Doc pharmacy. You sent her an email that you don't get records of her repeat. I request that you get your house in order and update your records. Stop confusing old lady.

SP Mahlangu

000655789"

Comment from the Medscheme CMM HLQ Team:

No email correspondence was sent to the member via GEXUS from the Medscheme CMM department.

Upon receipt of the complaint, the Medscheme CMM CMM HLQ Team contacted the main member to obtain details regarding the email that was sent. The following was advised:

FROM EMAIL ADDRESS: NOCGEMSBHRM@MEDSCHEME.CO.ZA

TO EMAIL ADDRESS: SBONGILEPR@GMAIL.COM

DATE AND TIME: 19/10/2025 13:28PM

SUMMARY OF EMAIL CONTENT:

- DID NOT RECEIVE REGULAR MONTHLY CLAIMS FOR CHRONIC MEDICATION

The member has indicated that the communication received is incorrect, as they are claiming monthly for chronic medication.

Could you kindly confirm the following:

1. Is this email address associated with the ADRM space?
2. Was this communication sent from DMS?

If both are confirmed, I would like to request input from ADRM to enable me to respond on your behalf, as there is currently no HLQ agent assigned to our space.



As per my investigation, the last visible claim was in August 2025.

Could you also confirm whether this letter was part of a bulk communication or if it was sent by an agent?

Thank you in advance for your assistance.

Kind regards

CONFIDENTIALITY:

012-110
142
19/5/2026-8:22:49 AM

This email contains confidential information. The information on this email and attachments thereto (if any) is only for the use of the intended recipient. If you are not the intended recipient, any disclosure, copying and/or distribution of the content of this email to any person other than the sender (as specified in the email), or the taking of any action thereon, is strictly prohibited. Interception of this email is also prohibited. If you have received this email in error please notify the sender (as specified in the e-mail) using the contact details contained in such e-mail and delete this email and any attachments thereto, once you have notified the sender.

1. Email Address Verification



The email address NOCGEMSBHRM@MEDSCHEME.CO.ZA does not appear under the current possible email addresses accessible via Gexus.

It is an automated email address, not linked to ADRM space but the DMS system itself.

2. Source of Communication

The communication originated from DMS.

Confirmed that it was not sent by an agent but generated automatically.

3. Root Cause Analysis

Miscommunication between Gexus and DMS systems.

Member collected cholesterol medication from acute benefit from 21/11/2017 until 17/12/2024.

From January 2025, medication was claimed under chronic benefit.

Although Gexus shows a chronic claim on 14/04/2023 onwards for cholesterol medication, DMS did not receive this update.

DMS continued tracking adherence based on acute claims only, ignoring chronic claims after the benefit change.

This resulted in the member being incorrectly flagged as non-adherent, despite being compliant.

4. **Impact**

012-111
143
19/5/2026-8:22:49 AM

Automated correspondence was sent based on incorrect source information.

Member received misleading communication, causing dissatisfaction.

5. **Resolution Steps**

Confirmed issue stems from system integration gaps between Gexus and DMS.

Recommended actions:

Review and update communication between systems.

Ensure chronic claims are recognized by DMS for adherence tracking.



Input from the ADRM space to assist with member correspondence

Thank you for bringing this matter to our attention. We have identified that the communication you received was the result of a system error, and we appreciate your patience while we investigated.

Please be assured that your adherence status will be updated correctly going forward, and this will not affect your record.

We sincerely apologize for any inconvenience caused and thank you for your understanding. Should you have any further questions, please feel free to reach out to us.

I hope that this is sufficient feedback.

Kind regards,

Please find final feedback below.

012-112
144
19/5/2026-8:22:49 AM

The comms went out correctly, this member is non-adherent.

The non-adherent methodology is you need claim twice in a rolling three months member only claimed once in the past 3 months.

Sep – No claims = 0

Aug – claims = 1

Jul – no claims =0

June – claims = 1

May – claims = 1



Please note a member could have claimed this month but the previous two months have not claims the member will be flagged as non-adherent – and clinically and behaviourally there is a problem that requires attention, therefore the intervention and should please be managed as such in the ADRM calls too.

Kind Regards



Mary-Ann Jones

Team Leader: GEMS Active Disease Risk Management



(021) 466 1191



Mary-annj@medscheme.co.za



37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709



www.medscheme.com



Please call member for enrollment and bring the non-adherence into the conversation with generic probing as to why the medication was not claimed.

Kindly provide feedback when done.

Thank you



Mary-Ann Jones

Team Leader: GEMS Active Disease Risk Management

 (021) 466 1191

 Mary-annj@medscheme.co.za

 37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida Glen, 1709

 www.medscheme.com



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From: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Sent: Thursday, October 23, 2025 12:40 PM
To: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>
Subject: RE: general complaint received - GEMS 000655789 Dependent 02

Dear Mary-Ann,

I wanted to provide an update on the recent complaint investigation. Based on the information received, the team indicated that the non-adherence correspondence was sent due to the member not claiming twice within a three-month period, which aligns with the non-adherence methodology for the Jul-Sep 2025 period.

However, after reviewing the evidence, I believe the complaint stems from a different issue:

- DMS began flagging the member as non-adherent in Dec 2024, after the last acute claim.
- From Jan 2025 onward, the medication was claimed under the chronic benefit, but DMS did not recognize this change.
- As a result, automated non-adherence letters were sent on 19 May 2025 and 19 Oct 2025, despite the member being compliant.

This confirms the root cause is a miscommunication between Gexus and DMS systems, not the methodology itself. Evidence supporting this timeline has been attached for reference.

Given that the integration gap still exists, I will not contact the member at this time. Instead, I recommend that the team review this feedback and consult on the best way forward to prevent similar issues.

Thank you very much for your assistance.

Kind regards,



Sr. Wilbur W. Matthee

(Nurse Specialist PGrad HSM, Btech Gen Pn (Midw,Psych,Comm))

Case Manager: GEMS Active Disease Risk Management

- +27 12 466 1332
- wilbur.matthee@medscheme.co.za
- The Boulevard Building F & G, Searle street, Woodstock,7925
- www.medscheme.com



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From: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>

Sent: Thursday, 23 October 2025 12:02

To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>

Cc: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>

Subject: FW: general complaint received - GEMS 000655789 Dependent 02



Please consider the environment before printing this email

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From: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>
Sent: Thursday, 23 October 2025 12:54
To: Wilbur Matthee <Wilbur.Matthee@medscheme.co.za>
Cc: Mary-Ann Jones <Mary-AnnJ@medscheme.co.za>
Subject: RE: general complaint received - GEMS 000655789 Dependent 02

Good day Wilbur

The below is noted. I am not in agreement with your feedback though.

Kind Regards



Mary-Ann Jones

Team Leader: GEMS Active Disease Risk Management



(021) 466 1191



Mary-annj@medscheme.co.za



37 Conrad St, Florida North, Roodepoort, 1709 | PO Box 1101, Florida
Glen, 1709



www.medscheme.com

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE RESU1	Date: 2026 Category: <i>Letter of Recommendation — Dr P.M.J. Ohm</i> Description: Professional reference letter from Dr P.M.J. Ohm, medical doctor, Mitchells Plain District Hospital Emergency Unit, where Respondent works as shift leader: confirms "depth of clinical knowledge", ability to "de-escalate any heated situation with a calm tone and demeanour", and commitment to "protect patient dignity".
--------------------------	--



RELEVANCE / PURPOSE IN THESE PROCEEDINGS

Independent, objective, professional evidence of clinical competence and mental fitness. Directly contradicts Manyati's sworn characterisation of PTSD as an "excuse". A specialist medical practitioner's assessment outweighs a non-medical HR official's lay opinion — particularly when made under oath.

[Document follows immediately after this tab]

To whom it may concern,

It is my pleasure to write you a short motivation for Mr Wilbur William Matthee. My Name is Dr Priscilla MiJeong Ohm currently working with Mr Matthee within the Mitchell's Plain District hospital Emergency unit. The emergency unit is one that requires timeous action, fast thinking and definitive action as it has many moving parts including a high patient load, critically ill patients with undifferentiated pathology all needing urgent management. Mr Matthee carries all the above qualities. As a shift leader he allocates staff to needed areas with good skills distribution across the floor, furthermore he often fills in gaps needed as they arise to allow for continued workflow and patient care allowing for staff breaks without disruption of patient care. All shift related issues including high risk patients who have absconded, drug ordering, equipment issues as well as family communication as needed are always appropriately done or escalated with timeous feedback given to the doctor team leader. When students are allocated whether nursing, EMS or medical are within the unit during his work he allocates tasks to aid their learning and supervises each student within their patient care.



When it comes to patient care within the emergency unit, Mr Matthee shows depth of clinical knowledge which allows him to identify critically ill patients, as well as pre-empt needed management which allows for improve the efficiency of patient care within the unit. He is well versed in the management protocols commonly used within the unit and is able to remind doctors of when the next blood gases or ECGs are needed as well as the next step in management on the protocol. All emergency room doctors leave the resus patients once stabilised in Mr Matthee's care till next review time with no doubt that they will be correctly monitored, cared for and that they will be timeously informed if there is a change in condition.

One particular point of excellence for Mr Matthee is the way he is able to de-escalate any heated situation within the emergency unit whether it be with family, staff or patients with a calm tone and demeanour. He approaches all his patients with the same respect and as much as possible protects their dignity with simple actions as always closing curtains, giving patients privacy when needed and answering patient queries as well as informing family members of needed standard procedures. His method of communication and interaction with his patients has been a lesson and reminder to me to give good, individualised care and communication that maintains patient dignity and autonomy.

Regards,

Dr PMJ Ohm

Case No. 2026-086906 | *Matthee v AfroCentric Investment Corporation Limited* | Western Cape High Court

ANNEXURE
DEC1

Date: 2026

Category: *Supporting Declaration*

Description:
Supporting declaration filed in the Applicant's founding papers.

RELEVANCE / PURPOSE IN THESE PROCEEDINGS
Cross-referenced in founding papers. Already before the Court.

REGISTRAR OF THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION,
CAPE TOWN

Private Bag X9032 Cape Town 8000

REGISTRAR OF THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION,
CAPE TOWN

[Document follows immediately after this tab]

TO: The South African Human Rights Commission — Western Cape Provincial Office

REF:

DATE: 13 March 2026

RE: COMPREHENSIVE UPDATE — FORENSIC PAYROLL ANOMALY, CCMA INSTITUTIONAL BIAS, MULTI-BODY FAILURE, LABOUR COURT ACCESS OBSTRUCTION, AND CONFIRMED IMMINENT HOMELESSNESS

Further to SAHRC correspondence of 10 February 2026 and Applicant update of 5 March 2026 | Matthee v AfroCentric Health (RF) (Pty) Ltd & Others



Dear Commissioner / Legal Officer,

I write to provide a comprehensive update to this file. My update of 5 March 2026 documented the collapse of the DEL and CCMA processes and my filing of an urgent Labour Court application. Since that date, the situation has deteriorated significantly across every dimension — legally, financially, physically, and personally. I place each development on formal record with documentary precision. I ask the SAHRC to read this update not as a list of grievances but as a connected forensic account of what happens when every statutory and civil society safety net fails simultaneously around a formally disabled whistleblower.

1. FORENSIC FINDING: STATUTORY PAYROLL MISREPRESENTATION — JULY 2025

Cross-referencing my July 2025 payslip against the Respondents' official UIF/SARS declarations has revealed a material discrepancy that transforms the characterisation of the unlawful deduction from a labour relations dispute into a potential forensic matter warranting investigation by revenue and labour authorities.

The Documented Figures — July 2025

Gross salary on official payslip (July 2025):	R21,777.04
Salary declared to SARS / UIF by Respondents:	R27,725.66
Discrepancy:	R5,948.62
Location of R27,725.66 on payslip:	ABSENT — not in gross, net, or CTC
Month of discrepancy:	July 2025 — identical pay cycle as unlawful 40.47% deduction

The forensic significance of this finding cannot be overstated. The leave that gave rise to the deduction — the gap period between psychiatric admissions in June 2025 — should have been processed and deducted in the June 2025 pay run. The Respondents instead held that recovery over to July 2025, the new financial

year, and then processed the full R14,811.77 deduction in a single pay cycle. The declared salary figure of R27,725.66 appears to reflect a pre-deduction or notional figure — a salary the Respondents reported to government authorities as having been paid while simultaneously recovering R14,811.77 from my actual take-home pay.

The result is a nearly R6,000 gap between what the Respondents told the government they paid me and what I actually received. A statutory declaration to SARS or the UIF Fund that does not correspond to the actual net remuneration paid to an employee is not an administrative oversight. It is a misrepresentation to a government authority in a document required by law to be accurate. The fact that this misrepresentation arises in the same month as a documented unlawful deduction — and that the leave from which the deduction was derived arose in the previous financial year — is a structural anomaly that a competent forensic investigator cannot ignore.

I respectfully submit that this finding elevates the matter beyond a BCEA salary deduction dispute. It places the Respondents' payroll conduct in the category of potential statutory misrepresentation to government authorities, and it documents a deliberate structuring of the deduction across a financial year boundary in circumstances where the underlying leave event occurred in May 2025 -start June 2025.



2. CCMA INSTITUTIONAL BIAS — FULL ACCOUNT — AND PROVINCIAL COMMISSIONER COVER-UP

The SAHRC directed me in February 2026 to pursue CCMA remedies. I place on formal record the full account of what occurred at conciliation, and the cover-up that followed, so that the SAHRC may assess the quality of the remedy it directed me towards.

The conciliation hearing began with Commissioner Nthabiseng making the following statement immediately after introductions, before I had said a single substantive word: "Nothing here relates to the PDA." This was not a ruling made after hearing submissions. It was a declaration of a closed mind made at the threshold of the proceedings, before I had been permitted to speak. It foreclosed the most significant ground of my claim before the hearing began.

The Commissioner then refused to permit my opening statement. I was not allowed to place my position on the record in an orderly fashion. The Commissioner used the proceedings to create confusion, speaking over my submissions and introducing complications that had no basis in the documents before her. At no point did the Commissioner engage with my BCEA violation — the statutory 25% cap under Section 34(2) — or with the documentary evidence of the employer's own policy requiring prior HCBP consultation. She adopted the Respondents' "no work no pay" characterisation without subjecting it to any scrutiny. The commissioner 'so it was for no work no pay? Okay.

When I stated my negotiation ceiling of R2.5 million for a global settlement of all claims, the Commissioner laughed with the Respondents' representative. The Respondents then offered one month's salary. I requested a Certificate of Non-Resolution. The proceedings were a mockery.

The Johannesburg Coincidence

Commissioner Nthabiseng: Based in Johannesburg. Presided at Cape Town conciliation.
 Respondents' representative: Flew in from Johannesburg for the hearing.
 Observed conduct at conclusion: Commissioner and Respondents' representative walked out together, engaged in animated conversation about Johannesburg.
 Treatment of Applicant: When I asked the location of the Labour Court, I was told to 'Google it or something like that.'
 Provincial Commissioner's response: Confirmed that Commissioner Nthabiseng is from Johannesburg — offered as justification for failure of their most basic function to provide a HELPING HAND, not as a concern regarding the google you way to court statement..

I reported the Commissioner's conduct to the CCMA Provincial Senior Commissioner. Commissioner Nthabiseng who presided at my hearing. This is documented in the respective correspondence. The result is that Commissioner Nthabiseng conduct — the prejudgment of PDA relevance before hearing the refusal of my opening statement, the open mockery of my settlement position, the cosy departure with the Respondents' representative, and the dismissive treatment at the door of the court — was never been investigated. The Provincial Commissioner's response constitutes a cover-up by institutional misdirection, whether deliberate or negligent.



3. DEPARTMENT OF EMPLOYMENT AND LABOUR — DOCUMENTED INACTION

The DEL has failed to act on any of the complaints before it. The "Integrated Inspection" instruction issued following my initial complaint has produced no outcome, no communication, and no enforcement. The Respondents, whose HR department has been copied on all relevant correspondence, have continued in statutory non-compliance throughout the entire period of DEL inaction — including continuing UIF non-remittance and a false written compliance representation made on 19 January 2026.

I reported the ongoing non-remittance to DEL Chief Inspectorate David Esau and Inspector Fazeka Nongalo on 16 February 2026. As of the last uFiling portal verification on 23 February 2026, the June 2025 UIF entry under Medscheme Holdings (Pty) Ltd continued to reflect 'No Information.' The DEL's mandate exists precisely to prevent this. It has not been exercised.

4. SAPS REFUSAL AND COMPLAINT TO NATIONAL POLICE COMMISSIONER

I attended at the South African Police Service on 23 February 2026 to open a criminal case regarding the Respondents' UIF non-remittance — a criminal offence under the Unemployment Insurance Contributions Act 4 of 2002 — and the false written compliance representation made by the Respondents on 19 January 2026. The SAPS verbally declined to open a case.

I have submitted a formal complaint to the National Police Commissioner in response to this refusal. The complaint documents that the SAPS declined to open a criminal docket in circumstances where a statutory criminal offence is proven by official government portal records, confirmed across four independent verification dates, and accompanied by a documented written false representation by the

employer. The refusal to open a case in these circumstances raises its own concerns about the equal application of criminal law to a JSE-listed employer and a destitute complainant.

5. OBSTRUCTION OF ACCESS TO JUSTICE — LABOUR COURT PORTAL FAILURE

This section documents what I can only describe as an institutional obstruction of my right of access to court — a right guaranteed under Section 34 of the Constitution. I place this on record in its full detail because the SAHRC's mandate encompasses access to justice, and what I have experienced at the hands of the Labour Court's administrative systems directly implicates that right.

My urgent high profile notice of motion application was prepared in full compliance with the Rules of the Labour Court, ready for filing by 5 March 2026. I attempted to file online. What followed was eight days of documented obstruction:



Labour Court Filing Obstruction — Documented Sequence

- 5 March 2026: Target filing date. Documents prepared in full compliance with Labour Court Rules.
- 5 March onwards: Court call centre contacted more than 7 times. Hold times 40–50 minutes per call. Calls dropped repeatedly. Staff dismissive.
- Ongoing: Online portal profile deleted. Unable to log new case. Follow-up emails to the Registrar (Ms F Ismail) ignored.
- 12 March 2026: Formal notice to Registrar — case number required or matter would be escalated to the Judge President. Close of business passed. No response.
- 12 March 2026: Portal unexpectedly allowed loading of case as urgent ex parte application.
- 12 March 2026: Registrar rejected application. Stated reason: **'good day you put date.'**
- 12 March 2026: Returned to portal — unable to access. Password reset required 4 times. Application found to be missing from portal.
- 13 March 2026: Reviewed application, corrected the date field, resubmitted as urgent ex parte application.
- 13 March 2026 (today): Close of business. No case number received.

The reason given for rejection — **"good day you put date"** — was a technical formatting issue that could have been corrected by a registrar's clerk in seconds. Instead it was used to reject an urgent application filed by a self-represented, destitute, disabled applicant facing imminent homelessness, with no follow-up guidance, no assistance, and no acknowledgment of the urgency stated in the application itself.

I make no allegation of deliberate obstruction. I cannot determine whether this is systemic institutional dysfunction or something more targeted. What I can document is the factual sequence: eight days of failed attempts, seven call centre contacts, dropped calls, a deleted profile, an ignored registrar, a trivial rejection reason, and a portal that locks out the user after a rejection with no access to the rejected file[missing]. For a self-represented applicant with no legal infrastructure, no income, and an eviction deadline of end of March 2026, this sequence is not a procedural inconvenience. It is a denial of access to the only court with jurisdiction to grant the urgent relief I need to remain housed.

6. CONSOLIDATED RECORD OF INSTITUTIONAL FAILURES

Body	Documented Failure	Status
CCMA	Commissioner declared closed mind before hearing. Refused opening statement. Ignored BCEA statutory cap. Sided with employer. Mocked settlement figure. Departed with respondents' representative.	FAILED
CCMA Provincial Commissioner	Investigated commissioner. Cover-up by institutional misdirection. Presiding commissioner's conduct never investigated.	COVER-UP
Dept of Employment & Labour	Integrated Inspection instruction — no outcome. Seven-week silence. Active UIF non-remittance and BCEA violations continue unaddressed.	SILENT
SAPS	Verbal refusal to open criminal docket for documented UIF non-remittance offence and false compliance representation. Formal complaint lodged with National Police Commissioner.	REFUSED
Labour Court Registry	Eight days of failed portal access. 7+ call centre attempts. Calls dropped. Profile deleted. Registrar unresponsive. Trivial rejection reason for urgent application. Portal inaccessible post-rejection.	OBSTRUCTING
The Whistleblower House	Rejected application 50 minutes after receiving detailed rebuttal. Rebuttal not engaged. Invitation to reconsider — all engagement ceased.	SILENT
SANC	Deregistration caused by destitution flowing from unlawful deduction. Formal correspondence — no response. Cannot practise nursing in 2026. No response to the Professional misconduct complaint	SILENT
South African Pharmacy Council	Formal complaint submitted regarding professional and regulatory dimensions. No substantive response.	SILENT
Council for Medical Schemes	Acknowledged protected disclosure re Gexus-DMS systemic failure. Declined primary jurisdiction. Redirected to HPCSA — who redirected further. No body has accepted jurisdiction.	DEFLECTED
JSE	Jurisdictional declination issued 6 March 2026 (Ref JvS/166792, Nadia Jada). Documented and strategically noted. Yet the respondent declared no material risk. Only the change of Dr Munisi role from the investment portfolio to remuneration portfolio was reported the same board member who received my P1 risk reports	DECLINED
B-BBEE Commission	Case No. 5/2/2026 allocated. Summons request for Naming Convention recording pending. Active engagement.	ACTIVE



7. CONFIRMED IMMINENT HOMELESSNESS AND HUMANITARIAN CRISIS

I must be precise about what is happening to me physically and financially, because vague references to "financial difficulty" do not convey the reality. The SAHRC's constitutional mandate encompasses human dignity. What follows is a factual account of what the failure of every institution listed above has produced.

Confirmed Status — 13 March 2026

Accommodation: Four months rental arrears. Landlord has verbally confirmed — if no payment is received by end of March 2026, eviction will proceed. This is not a statement of risk. It is a confirmed deadline.

Personal property: Loan sharks — to whom I was forced to turn after the unlawful deduction eliminated my salary — have physically removed possessions from my residence as informal security. Items taken include smart televisions, electronics, and sealed boxed items held in storage.

Debt spiral: Interest compounds at rates that make full repayment structurally impossible at any income level I am likely to achieve. I am operating in a pure survival mode.

Running water: No running water at residence since January 2026.

Electricity: Supply at risk.

Income: None. No savings. No credit access. UIF inaccessible.

Retirement fund: R48,400 forcibly withdrawn to survive — savings of a decade gone.

Professional: SANC deregistration. Cannot practise as a nurse in 2026.

Academic: Accepted for CPUT Postgraduate Diploma in Occupational Health Nursing 2026 — unable to enrol.

Health: Formally diagnosed severe depression and PTSD (Dr Jacques Malan, FCPSYCH(SA)). Functioning under extreme psychological duress.

Legal: Self-represented in 9 concurrent regulatory proceedings. No legal aid. No support.



The causal chain from the Respondents' conduct to this crisis is direct and documented. On 23 July 2025, the Respondents deducted R14,811.77 from my salary without consent, without consultation, in breach of their own policy, and in defiance of the statutory 25% cap — while holding a specialist psychiatrist's written warning of my vulnerability. That single action, compounded by the employer's subsequent bad faith and the complete failure of every institution I approached for help, has reduced me to the condition described above.

I also note the following for the record: the loan sharks did not take my possessions voluntarily. They arrived and removed them. A 75-year-old grandmother received a clinically incorrect non-adherence letter because a system that I disclosed as broken was never fixed. The same employer that generated that error characterised my disclosure as insubordination, entered it into my employment record, and later had its representative swear under oath that my specialist-diagnosed psychiatric condition was a "cynical excuse." These are not isolated wrongs. They form a single, coherent pattern of institutional conduct that this file documents in its entirety.

8. FORMAL REQUESTS TO THE SAHRC

- 8.1** That this comprehensive update be formally appended to the SAHRC file in its entirety, documenting the systemic multi-institutional failure to protect a whistleblower from induced destitution and professional erasure.
- 8.2** That the SAHRC note the forensic payroll finding: a declared salary of R27,725.66 against an actual payslip gross of R21,777.04 — a R5,948.62 discrepancy arising in the same month as the unlawful deduction — as a potential statutory misrepresentation to government authorities warranting referral to SARS and the DEL.

- 8.3** That the SAHRC note the full account of CCMA institutional bias — including the Commissioner's threshold declaration of a closed mind, refusal of opening statement, and documented post-hearing conduct — and the Provincial Commissioner's cover-up.
- 8.4** That the SAHRC note the Labour Court portal obstruction — eight days, seven call centre attempts, numerous deleted profile, ignored registrar correspondence, a trivial rejection, and portal inaccessibility — as a potential violation of the Section 34 constitutional right of access to court, particularly as it affects a self-represented, disabled, destitute applicant facing a confirmed end-of-March eviction.
- 8.5** That the SAHRC note the SAPS verbal refusal to open a criminal case on documented statutory offences and the formal complaint lodged with the National Police Commissioner.
- 8.6** That the SAHRC note the confirmed imminent eviction — verbally confirmed by the landlord for end of March 2026 — and the physical seizure of personal property by loan sharks, as direct consequences of the Respondents' unlawful conduct and the institutional failure that followed.
- 8.7** That the SAHRC consider whether the totality of this file — eleven institutional engagements, nine failures, a forensic payroll anomaly, a confirmed CCMA cover-up, an obstructed court filing, an imminent eviction, and an ongoing humanitarian crisis affecting a formally disabled whistleblower — warrants independent SAHRC investigation and intervention under the Commission's constitutional mandate to protect human dignity, equality, and access to justice.



I am a destitute, self-represented whistleblower facing confirmed eviction at the end of this month, living without running water, with personal possessions already seized, and with a formally diagnosed psychiatric disability. I have filed in every forum available to me. I have been ignored, obstructed, misdirected, and dismissed at every turn. The Labour Court is my last functioning avenue — and as of the close of business today, I do not yet have a case number.

I am available to provide all documentation immediately upon request.

Yours faithfully,

WILBUR WILLIAM MATTHEE

Founder — EthicHawks

RN | BTech General Nursing | PGDip Health Services Management (NQF 8)

info@ethichawks.co.za | 069 635 1435



**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent

RESPONDENT'S ANSWERING AFFIDAVIT TO THE APPLICANT'S

SUPPLEMENTARY FOUNDING AFFIDAVIT

I, the undersigned,

WILBUR WILLIAM MATTHEE

do hereby make oath and state:

1. THE DEPONENT AND STATUS

- 1.1 I am the Respondent in this matter. I am an adult male, a Specialist Registered Nurse, a Health Services Manager holding a Postgraduate Diploma in Health Services Management (NQF Level 8) awarded with distinction, and the founder of Ethic Hawks.
- 1.2 I act in person. The facts contained in this affidavit fall within my personal knowledge, save where the context indicates otherwise, and are both true and correct.

2. PURPOSE OF THIS AFFIDAVIT

- 2.1 This affidavit is filed to answer the Applicant's Supplementary Founding Affidavit deposed to by Lebohang Shadi Matsipa Mpumlwana on 4 May 2026.

- 2.2 The primary objective of this affidavit is to expose a fatal corporate "shell game" executed by the Applicant. The Applicant seeks the equitable relief of a final interdict in this Honourable Court while systematically using its subsidiaries to commit perjury, withhold statutory exit documentation, and manipulate jurisdictions across the High Court and the Labour Court.
- 2.3 This affidavit incorporates a comprehensive Bare Denials Analysis and an itemised Schedule of Perjuries and Corporate Misrepresentations that strip the Applicant of standing (locus standi) and the requisite "Clean Hands" required for a final interdict.

3. PRELIMINARY LEGAL OBJECTION: LACK OF LOCUS STANDI & UNCLEAN HANDS

- 3.1 The Applicant, AfroCentric Investment Corporation Limited, is a listed holding company. Throughout its Supplementary Affidavit, the Applicant asserts that the Respondent was employed exclusively by a separate, distinct subsidiary: Medscheme Holdings (Pty) Ltd.
- 3.2 Paradoxically, the Applicant seeks a final interdict to suppress disclosures regarding systemic clinical and payroll integration gaps (the Gexus/DMS architectural flaws) on the basis that it has a "clear right" to protect proprietary operational systems.
- 3.3 The Applicant cannot have it both ways. If the underlying employment relationship, operational configurations, and statutory liabilities belong exclusively to Medscheme Holdings (Pty) Ltd to shield the holding company from liability, then the Applicant lacks the direct, substantial legal interest (locus standi) to seek a final interdict in its own name.
- 3.4 Furthermore, the Applicant approaches this court with "unclean hands." On 19 May 2026, corporate officials acting on behalf of the group filed a Statement of Response in the Labour Court (Case No: 2026-083299 / 2026-077546) stating under oath that they have "no knowledge" of these parallel proceedings. This directly contradicts the Group CEO Gerald Neville Van Wyk's High Court founding affidavit of 16 April 2026, which explicitly acknowledges the Labour Court litigation. This constitutes deliberate perjury across courts to mislead judicial officers.

SECTION B: SERVICE, FILING, AND THE APPLICANT'S JURISDICTIONAL DECEPTION

4. REBUTTAL TO THE ALLEGATIONS OF NON-SERVICE AND NON-FILING

- 4.1 In her Supplementary Affidavit, Ms. Mpumlwana paradoxically claims that the Applicant's attorneys (Deneys) "never received" my Notice of Intention to Oppose, while simultaneously admitting that I served my Answering Affidavit and Supplementary Answering Affidavit on them via email.
- 4.2 This is a disingenuous technical maneuver. As a self-represented, indigent litigant facing extreme administrative and financial destitution directly engineered by the Applicant's withholding of my salary and exit levies, I served the papers directly onto the active attorneys of record handling this matter, namely Frances Barker and Jason Whyte.
- 4.3 I furthermore effected filing by directly including the Chief Registrar of this Honourable Court, Ms. Nicola Hanekom, as a co-recipient on the transmission. To claim that my pleadings do not exist or have not been served—while Deneys actively compiles multi-page affidavits and practice notes specifically to answer those very pleadings—is a bad-faith distortion of reality designed to mislead the presiding Judge.
- 4.4 The Applicant attempts to leverage systemic administrative hurdles and Court Online synchronization latencies to suppress a substantive whistleblowing and human rights defence. This constitutes a severe violation of my constitutional right to a fair hearing and access to courts under Section 34 of the Constitution.

**SECTION C: REBUTTAL TO PARAGRAPH 177 — THE LEGAL
IGNORANCE OF THE APPLICANT**

**5. AD PARAGRAPH 177 OF THE SUPPLEMENTARY FOUNDING
AFFIDAVIT**

- 5.1 In Paragraph 177, Ms. Mpumlwana states under oath: "The respondent's reference to the Eastern Cape High Court, Bhisho (Case No. 148/2020) is incorrect. That matter is incomplete and relates to eviction proceedings which have no relevance to the present application."
- 5.2 Ms. Mpumlwana's assertion is legally illiterate and betrays a fundamental failure to comprehend the basic rules of civil procedure and the architecture of my pleadings.
- 5.3 As is plain from the text of my statement, Bhisho Case No. 148/2020 was not cited for its substantive facts or to litigate an eviction. It was explicitly cited alongside the Constitutional Court authority of Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC) as a procedural and jurisdictional anchor.
- 5.4 I introduced this authority to demonstrate a settled procedural fact: that a respondent may competently bring a substantive, unconditional Counter-

Application for standalone declaratory relief within the body of their Answering Affidavit, and that the High Court possesses the inherent jurisdiction to entertain it.

- 5.5 The Applicant's attempt to dismiss this citation on the basis that the Bhisho matter is "incomplete" or "relates to evictions" is a disingenuous strawman argument. The specific topic of that case does not alter the universal procedural rule it confirms.
- 5.6 By attempting to frame a clear procedural precedent as a factual "error," the Applicant seeks to distract this Honourable Court from the core reality: my Counter-Application is procedurally sound, is not conditional upon their main application, and remains alive for adjudication even if the Applicant flees from its own papers and attempts to withdraw this main application.

SECTION D: REBUTTAL OF THE "WILMA" INCIDENT (GENDER IDENTITY HARASSMENT)

6. AD PARAGRAPH 38.1: THE MARY-ANN JONES INCIDENT

- 6.1 In Paragraph 38.1, Ms. Mpumlwana misrepresents the facts surrounding the Microsoft Teams incident involving my former team leader, Mary-Ann Jones. The Applicant claims that the alteration of my name from "Wilbur" to "Wilma" was a simple typographical error, that I "laughed it off," and that I am now retroactively characterising this as gender identity discrimination as an afterthought for the Labour Court roll.
- 6.2 This is flatly untrue. I explicitly identified and called out this incident as a form of gender-based harassment and identity discrimination as a form of occupational detriment on the very day it occurred. It was never "laughed off" as an innocent joke; it was experienced and documented as a direct, hostile degradation of my identity and again to diminish my professional standing within the workplace.
- 6.3 The Applicant's internal HR department (via Ms. Mashele) attempted to paper over this event by circulating an email declaring the matter "resolved internally" following a forced apology. In reality, this event marked the initiation of a continuous, compounding pattern of institutional victimisation, professional downgrading, and psychological hostility that escalated immediately after I refused to stay silent regarding identity discrimination failures. It remains a core component of my ongoing occupational detriment claim.

SECTION E: CONTRADICTION OF STATEMENTS REGARDING PROFESSIONAL TITLE

7. THE JOB TITLE MANIPULATION (THE HIGH COURT VS. THE EXIT REALITY)

- 7.1 In her Supplementary Affidavit, Ms. Mpumlwana attempts to gloss over the administrative degradation inflicted upon me. The Applicant's executive structure, including statements supported by the Group CEO, has consistently relied on my senior professional appointment as a "Case Manager" within High Court filings to exaggerate the purported risk I pose regarding internal clinical systems and data management.
- 7.2 However, the objective corporate record tells a completely different, duplicitous story. When executing my exit documentation, the CCMA responses, and the statutory UI-19 forms submitted to the Department of Employment and Labour, the employer intentionally and unilaterally downgraded my professional designation to "Care Coordinator."
- 7.3 This manipulation was not an administrative oversight; it was a calculated attempt to diminish my professional status, downgrade my architectural involvement with the Gexus/DMS platforms, and undermine my institutional credibility before statutory bodies.
- 7.4 The Applicant cannot treat me as a highly placed senior specialist in the High Court for the purpose of painting me as an operational threat, while simultaneously devaluing my title to an administrative subordinate in labour forums to compromise my professional record and frustrate my statutory claims.

SECTION F: EXPOSING THE DEPUTY INFORMATION OFFICER'S FALSE DECLARATION

8. THE GEXUS/DMS SYSTEMIC INTEGRATION PERJURY

- 8.1 A cornerstone of Ms. Mpumlwana's supplementary deposition is her reliance on a statement by the Applicant's Deputy Information Officer, who purports to confirm under oath that no "systemic gap," "architectural vulnerability," or data exposure exists within the Gexus/DMS production environments.
- 8.2 This statement is patently false and constitutes a direct attempt to mislead this Honourable Court on a matter impacting public health data integrity and billions of Rands in systemic financial leakage (specifically regarding the Mahlangu RCA / APN 303 risk loading).
- 8.3 As a Specialist Nurse and Health Services Manager who actively operated within these environments, I recorded and escalated verified integration blind spots

where medical scheme member data, clinical validation flags, and payroll deductions fail to synchronise accurately.

- 8.4 By putting forward a blanket denial through the Deputy Information Officer, the Applicant is using an oath to execute a corporate cover-up of a known data and financial risk. They seek a final interdict to suppress a Protected Disclosure under the guise of protecting proprietary secrets, when in truth they are concealing structural non-compliance with the Protection of Personal Information Act 4 of 2013 ("POPIA").

SECTION G: AD SERIATIM RESPONSES

9. AD PARAGRAPHS 1 TO 4 THEREIN

- 9.1 The contents of these paragraphs are noted. I specifically deny that Ms. Mpumlwana holds uncontradicted personal knowledge of the operational realities within the subsidiaries, or that she has disclosed the full material facts to this Honourable Court.

10. AD PARAGRAPHS 5 TO 10 THEREIN

- 10.1 Save to admit the procedural history and the text of the rule nisi granted on 16 April 2026, the contents of these paragraphs are denied.
- 10.2 I specifically deny that my communications dated 14 and 15 April 2026 constitute criminal extortion.
- 10.3 As detailed below, the email of 15 April 2026 was a lawful, itemised financial quantification of a filed, pending statutory Labour Court Statement of Claim (filed 9 April 2026). This quantification was compiled and transmitted at the explicit written request of the Applicant's own attorneys of record, Deneys. It is an abuse of process to request a legal quantification and then flag that quantification as an act of extortion to obtain an emergency interdict.

11. AD PARAGRAPHS 11 TO 30 THEREIN (THE "EXTORTION" NARRATIVE)

- 11.1 The allegations contained in these paragraphs are false and are vehemently denied. The Applicant has intentionally stripped my communications of their legal context to engineer an artificial emergency.
- 11.2 My Statement of Claim in the Labour Court (Case No: 2026-077546) expressly reserved the right to quantify damages arising from occupational detriments and unfair labour practices. On 15 April 2026, Deneys sent an electronic inquiry stating that my claims were "unquantified."

- 11.3 My response on the afternoon of 15 April 2026 provided a mathematically precise, itemised schedule totalling R7,307,642.72, anchored strictly to statutory components: contractual breach, unpaid overtime, irregular payroll deductions, and compensation under the Protected Disclosures Act 26 of 2000 ("PDA").
- 11.4 The threat of a Protected Disclosures Act escalation to labour federations (PSA, NEHAWU, DENOSA) is a right expressly protected under Section 9 of the PDA. Internal escalation channels were entirely exhausted and actively choked when the Chief Risk Officer, Monwabisi Kula, issued a corporate gag order instructing me to "stop sending these emails."

12. AD PARAGRAPHS 31 TO 36 THEREIN (THE SALARY REDUCTION AND "RED HERRINGS")

- 12.1 The contents of these paragraphs are denied. The Applicant's characterisation of my salary reduction as a routine "no-work, no-pay" calculation is a deliberate misrepresentation.
- 12.2 The unilateral reduction of my salary was a direct, punitive response executing an occupational detriment after I escalated the Gexus/DMS integration gap—which exposes medical schemes to a R3.016 billion financial and clinical liability.
- 12.3 The payroll systems were manipulated to simulate a voluntary absence, completely ignoring my documented, uncontested psychiatric disability (severe PTSD and depression) validated by Dr. Jacques Malan. The Applicant cannot reduce an employee to destitution, withhold exit paperwork, and then claim in the High Court that the resulting disputes are "red herrings."

13. AD PARAGRAPH 37 THEREIN (THE "WIIMA" DATA INTEGRITY OVERLAP)

- 13.1 The contents of this paragraph are denied. The reference to the "WILMA" data event is not an external threat to corporate infrastructure; it is objective evidence of an internal data integrity breach and administrative chaos within the Applicant's systems. This constitutes a valid regulatory concern under POPIA, which I was legally obligated to report.

14. AD PARAGRAPH 38 (INCLUDING SUB-PARAGRAPHS 38.2 TO 38.5)

- 14.1 The contents of these paragraphs are denied. The Applicant's legal counsel argues that issuing a UI-19 reflecting anything other than "resignation" would be a fraudulent misrepresentation. This is an egregious distortion of the law.
- 14.2 My exit from the company was a constructive dismissal driven by intolerable occupational detriments following protected disclosures. Forcing an employee out and then rendering them administratively destitute by submitting an inaccurate "Resignation" code to the Department of Employment and Labour—thereby

blocking my lawful access to Unemployment Insurance Fund (UIF) benefits—is a statutory offence.

- 14.3 Due to the fraudulent manipulation of these statutory levies and exit documentation (including the withholding of the UIF June 2025), a formal criminal case has been registered under SAPS CAS 705/3/2026 (transferred to SAPS Woodstock). The Applicant lacks the clean hands necessary to seek equitable relief from this Honourable Court while its officials are under active criminal investigation for the exact same matrix of administrative conduct.

15. AD PARAGRAPHS 39 TO 45 THEREIN

- 15.1 The contents of these paragraphs are denied. I deny that the Applicant has established a clear right, an apprehension of irreparable harm, or the absence of an alternative remedy.
- 15.2 The Applicant's alternative remedy resides completely within the Labour Court and the pending statutory arbitrations. This High Court application is a classic Strategic Lawsuit Against Public Participation (SLAPP) designed to bankrupt and silence a self-represented whistleblower.

SECTION H: INCORPORATED SCHEDULE OF PERJURIES & BARE DENIALS

16. MATERIAL PERJURIES MATRIX

To assist this Honourable Court in assessing the credibility and standing of the Applicant, I set out the following direct contradictions made under oath by the Applicant's executive structure: (see Annexure SUO1)

No.	Forum & Document	Statement Under Oath	The Verifiable Reality / Contradiction
P1	High Court Founding Affidavit (16 Apr 2026)	Deponent states the Group is aware of and intends to handle all disputes via proper legal channels, referencing the Labour Court cases.	Statement of Response filed by Vijay Makenjee in the Labour Court on 19 May 2026 states under oath: "The Defendants are not aware of any further claim with case number 2026-077546."
P2	High Court Supplementary Affidavit (4 May 2026)	Claims the Respondent's job title and salary calculations were handled lawfully as a "Case Manager".	Certificate of Service and Exit UI-19 documentation deliberately downgraded the Respondent's title to "Care Coordinator" to diminish professional standing.

No.	Forum & Document	Statement Under Oath	The Verifiable Reality / Contradiction
P3	CCMA Opposing Affidavit (X.V. Manyati)	Alleges that the Respondent's documented PTSD and mental health deterioration was "an afterthought" and "an excuse".	The Applicant possessed comprehensive, independent medical reports from Dr. Malan dating back to mid-2025, which were actively ignored by HR executives.
P4	High Court Reply / Deputy Info Officer	Declares under oath that no architectural data vulnerabilities or Gexus/DMS systems integration gaps exist.	Internal technical escalations and the Mahlangu RCA record clear system non-synchronization, exposing members to a R3.016 billion financial liability.

17. STATUTORY PROTECTIONS & POPIA DEFENCE

- 17.1 The Applicant seeks to restrain me from communicating with statutory bodies, including the Information Regulator, regarding data breaches.
- 17.2 As the founder of Ethic Hawks and a registered healthcare professional, I am legally bound by statutory ethical codes and POPIA provisions to report systemic vulnerabilities that compromise patient records and public health funds. An interdict cannot be used to override a statutory duty to report corporate non-compliance to a Regulatory Authority.

SECTION I: COMPREHENSIVE PRAYER AND REFERRAL ORDERS

Wherefore the Respondent respectfully prays that the Honourable Court:

1. Dismisses the Applicant's application for the confirmation of the rule nisi with costs on an attorney-and-client scale;
2. Discharges the interim order granted on 16 April 2026 with immediate effect;
3. Grants the relief sought in the Respondent's Counter-Application, including a declaration that the disclosures made by the Respondent constitute protected disclosures under the Protected Disclosures Act 26 of 2000;
4. Refers the matter of the perjured statements filed in the Labour Court and this Honourable Court to the relevant authorities for investigation;
5. Orders the Applicant to provide the Respondent with all outstanding statutory exit documentation, including the correct UI-19 reflecting constructive dismissal, forthwith;

6. Orders costs against the Applicant on the attorney-and-client scale;
7. Grants such further and/or alternative relief as this Honourable Court deems fit.

DEPONENT

I certify that the deponent has acknowledged that he knows and understands the contents of this affidavit, that he has no objection to taking the prescribed oath, and that he considers the oath to be binding on his conscience.

Signed and sworn to before me at DELFT on this 25TH day of MAY 2026.

COMMISSIONER OF OATHS

Full name: BENJAMIN JAMES MASEMOLA

Designation: BD 25513

Address: 18 DIGTEBY CRESCENT VOORBRUG DELFT

PASTOR BENJAMIN J. MASEMOLA
 MARRIAGE OFFICER
 COMMISSIONER OF OATHS
 No. 18 DIGTEBY CRESCENT
 VOORBRUG DELFT 7100
 Cell: 082 891 0844

**IN THE LABOUR COURT OF SOUTH AFRICA
(HELD AT CAPE TOWN)**

CASE NUMBER 2026-083299

In the matter between:

WILBUR WILLIAM MATTHEE

Plaintiff

and

AFROCENTRIC HEALTH (PTY) LTD

First Defendant

MEDSCHEME HOLDINGS (PTY) LTD

Second Defendant

STATEMENT OF RESPONSE

Kindly take notice that the First and Second Defendant responds as follows to the Plaintiff's statement of claim:

AD PARA 1 TO 5 OF PART A THEREOF

1. The contents thereof are admitted, save to deny that the Defendants unlawfully deducted the Plaintiff's salary and unlawfully dismissed the Plaintiff.



2. The Plaintiff was on sick leave but had exhausted annual and sick leave. The principle of no work, no pay applied.
3. The Plaintiff resigned from the Second Defendant. The Defendants did not retaliate against the Plaintiff in any manner nor did the Second Defendant dismiss the Plaintiff.

AD PARA 6 OF PART A THEREOF

4. The Defendants are not aware of any further claim in the above honorable court with case number 2026-077546.

AD PARA 1 OF PART B THEREOF

5. The full and further particulars of the Plaintiff are unknown to the Defendants.
6. The Defendants deny rendering the Plaintiff destitute.

AD PARA 2 TO 3 OF PART B THEREOF

7. The contents thereof are admitted.

AD PARA 4 OF PART B THEREOF

8. The contents thereof are noted.

AD PARA 1 TO 2 OF PART C THEREOF

9. The contents thereof are admitted.

AD PARA 3 TO 6 OF PART C THEREOF

10. The contents thereof are denied. The Second Respondent offered a position to the Plaintiff with commensurate remuneration. The Plaintiff voluntarily accepted the position with full disclosure of the role title, rank and remuneration.
11. The Plaintiff provided services to Second Defendant, aligned to his role. These services were rendered voluntarily.
12. The Defendants deny committing any "bait-and-switch". The Defendants deny suppressing the Plaintiff's status in employment records or UIF declarations. The correct information as per the employment contract was declared to the relevant entities.

AD PARA 1 TO 4 OF PART D THEREOF

13. The contents thereof of denied.
14. The Plaintiff provided a letter stating that he suffered from PTSD and needed to attend further treatment for a period of two weeks.
15. The Second Defendant proposed that the Plaintiff work his hours in advance to allow him to take the time off to attend his treatment without impacting him financially.
16. Personal financial requests are not reasonable accommodation requests in relation to PTSD treatment. The Defendants are not registered financial institutions and do not grant loans.
17. The Defendants deny discriminating against the Plaintiff. The Plaintiff is put to the proof thereof.

AD PARA 1 TO 4 OF PART E THEREOF



18. The contents thereof are denied. There was no deduction made from the Plaintiff's salary in July 2025.
19. The Plaintiff had no leave due, he did not render services to the Second Defendant and the principle of no work, no pay applied.

AD PARA 1 TO 5 OF PART F THEREOF

20. Save to admit that a typographical error occurred, the contents thereof are denied, and the Plaintiff is put to the proof thereof.
21. In annexure K of the Plaintiffs statement of case Mrs Jones' message explained that no filtering was to be applied as the report came from HIU and it listed members who had not done their tests yet. This was a response to an operational matter, and it can in no objective manner be construed as harassment of any nature.
22. The Defendants admit that the Plaintiff lodged a formal complaint against Mrs Jones on 25 September 2025. The complaint was investigated and resolved with Mrs Jones apologising to the Plaintiff for her typographical error.
23. Annexure M of the Plaintiff's statement of case is confirmation of the Plaintiff's acceptance of the resolution of the matter. The matter was closed by 1 October 2025.

AD PART G TO I THEREOF

24. The contents thereof are denied, and the Plaintiff is put to the proof thereof.

25. The Plaintiff's proposal to review internal operational procedures did not constitute a protected disclosure. The matter was investigated, and a response was provided.
26. The Defendants deny retaliating against the Plaintiff in any manner or form for raising operational recommendations.
27. As per annexure N of the Plaintiff's statement of claim, page 84, The Plaintiff refused to contact a client after the investigation was complete, and he was reprimanded for insubordination.
28. The Defendants maintain that the Plaintiff's July 2025 salary aligned to the days worked in July 2025, this was in no manner linked to his request to review an internal operational procedure.

AD PARA 1 TO 6 OF PART J THEREOF

29. The contents thereof of denied. The Defendants undertook to investigate the Plaintiff's grievance and provided timelines for same. The Plaintiff was not satisfied with the timeline and opted to resign from the Second Defendant before allowing the investigation to conclude.
30. The Second Defendant repeatedly explained the Plaintiff's July 2025 salary to him. That is the true cause of his Labour Court action, but he failed to accept and understand that he is not entitled to payment for no work.

AD PARA 1 TO 3 OF PART K THEREOF

31. The contents thereof are denied. The Defendant's Employee Relations team filed an affidavit opposing the Plaintiff's condonation application.

32. The Plaintiff's subjective interpretation of the opposing affidavit does not override the objective legal intent of same.

AD PARA 1 TO 6 OF PART L THEREOF

33. Save to admit that the Plaintiff resigned from the Second Defendant, the contents thereof are denied for the reasons set out herein.

AD PARA 1 TO 4 OF PART M THEREOF

34. The contents thereof are denied. The Defendants are not responsible for the Plaintiffs inability to meet his financial obligations.

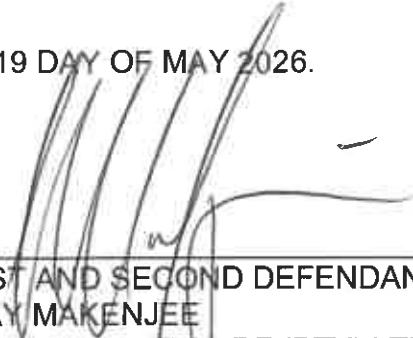
AD PARA 1 TO 2 OF PART O THEREOF

35. The contents thereof are denied. Acknowledgement of complaints does not corroborate the allegations contained therein.

AD PART P TO Q THEREOF

36. The Plaintiff was not dismissed from the Defendants; no unlawful deduction was made from the Plaintiff's July 2025 salary and the certificate of service issued to the Plaintiff is correct.
37. The Plaintiff has no viable cause of action against the Defendants. It is unsubstantiated, unfounded, frivolous and vexatious.
38. The action must accordingly be dismissed with costs granted in favour of the Defendants.

SIGNED AT ROODEPOORT ON THIS THE 19 DAY OF MAY 2026.



FIRST AND SECOND DEFENDANT
VIJAY MAKENJEE
obo AFROCENTRIC RF (PTY) LTD
37 CONRAD STREET
FLORIDA NORTH
1709
Email:
vijay.makenjee@afrocentrichealth.com

TO: THE REGISTRAR OF THE COURT
CAPE TOWN
Flsmail@judiciary.org.za

AND TO: WILBUR MATTHEE WILLIAM MATTHEE
15 BELLEVUE STREET
VOORBRUG
CAPE TOWN
7001
Email: info@ethichawks.co.za

**IN THE LABOUR COURT OF SOUTH AFRICA
(HELD AT CAPE TOWN)**

CASE NO: 2026-083299 CONCURRENT CASE NO: 2026-077546

In the matter between:

WILBUR WILLIAM MATTHEE
(Plaintiff / Applicant)

and

AFROCENTRIC HEALTH (PTY) LTD
(Registration No: 1996/009540/07)
(First Defendant / Respondent)

MEDSCHEME HOLDINGS (PTY) LTD
(Second Defendant / Respondent)

**PLAINTIFF'S REPLICATION TO THE DEFENDANTS' STATEMENT OF
RESPONSE**

The Plaintiff, appearing in person, hereby replies as follows to the Defendants' Statement of Response dated 19 May 2026:

**1. THE THRESHOLD SPECIAL DEFENCE: PLEADING A NULLITY AND
CORPORATE IDENTITY MISREPRESENTATION**

1.1 The First Defendant explicitly cited by the Plaintiff in these proceedings is **AFROCENTRIC HEALTH (PTY) LTD** (Registration Number: 1996/009540/07).

1.2 The Statement of Response filed on 19 May 2026 is signed by Mr. Vijay Makenjee, who explicitly purports to execute the signature block on page 7 "*obo AFROCENTRIC RF (PTY) LTD*".

1.3 AFROCENTRIC RF (PTY) LTD is a completely separate legal entity and is not a cited party to these proceedings. A corporate official cannot legally enter a plea or defence on behalf of an un-cited corporate entity to answer dynamic statutory and common-law claims levied against an entirely different subsidiary.

1.4 Furthermore, the Statement of Response is fundamentally fatal as it stands completely devoid of a **Verifying Affidavit** under oath. Rule 6 of the Labour Court Rules mandates that a Statement of Response must be verified under oath by a designated corporate officer possessing direct, first-hand personal knowledge of the operational facts.

1.5 In its current form, the document represents nothing more than an unsworn piece of paper signed on behalf of an outside entity. It constitutes a procedural nullity, fails to place any admissible evidence before this Honourable Court, and must be struck out in its entirety.

2. FATAL SELECTIVE SILENCE AND IMPLIED ADMISSIONS OF OCCUPATIONAL DETRIMENT

2.1 The Plaintiff notes that the Defendants' Statement of Response consists of blanket, superficial denials and retreats into total, calculated silence on material factual averments that form the absolute core of the Plaintiff's claim of an intolerable work environment and occupational detriment.

2.2 Under the rules of pleading and the established jurisprudence of South African courts, allegations of fact that are not specifically denied, engaged with, or meaningfully answered by a respondent are deemed to be admitted as a matter of law.

2.3 The "Wilma Incident" Silence: The Defendants completely fail to address, deny, or answer the specific, documented operational incidents involving Wilma, which directly initiated the targeted psychological hostility, workplace gaslighting, and systematic isolation faced by the Plaintiff.

2.4 The 30+ Day Executive Silence: The Defendants fail to provide any legal, operational, or contractual justification for the prolonged period of more than 30 days of total administrative and corporate silence following the Plaintiff's formal escalation of critical workplace grievances. This complete abandonment of internal dispute resolution mechanisms objectively demonstrated to the Plaintiff that no internal remedy was available and that the employment relationship had been broken by management.

2.5 The CEO's Confidentiality Breach: The Defendants offer no denial, counter-narrative, or explanation regarding the severe breach of confidentiality committed by the Group Chief Executive Officer, who compromised the integrity of the Plaintiff's protected escalations.

2.6 By retreating into selective silence on these pivotal statutory and constitutional violations, the Defendants have failed to establish a triable issue on whether they created an intolerable workplace. Their calculated silence stands as an implied admission of the operational toxicity that forced the Plaintiff's constructive dismissal.

3. DEMONSTRABLE PERJURY AND JURISDICTIONAL DECEPTION (THE CASE NUMBER COLLISION)

3.1 In **Paragraph 4 (Ad Para 6 of Part A)** of their Statement of Response, signed by Vijay Makenjee on 19 May 2026, the Defendants state under oath:

"The Defendants are not aware of any further claim in the above honorable court with case number 2026-077546."

3.2 This statement is factually false, fraudulent, and constitutes a clear attempt to commit perjury to mislead this Honourable Court.

3.3 On **16 April 2026**, in parallel urgent proceedings before the Western Cape High Court (Case No: 2026-086906), the Group Chief Executive Officer of the Applicant's parent corporate structure, **GERALD NEVILLE VAN WYK**, deposed to a Founding Affidavit under oath. In those High Court proceedings, the Group CEO explicitly acknowledged the existence of the dynamic statutory and financial disputes regarding the Plaintiff's remuneration and represented that the corporate structure intended to defend *both* specialised actions before the Labour Court. (See Annexure WWM1)

3.4 Furthermore, the Plaintiff's specialised Application for Repayment of Unlawfully Recovered Remuneration under **Case No: 2026-077546** was formally served via electronic mail directly upon the Group Company Secretary and Head of Legal Counsel, **Lebohang Shadi Matsipa Mpumlwana**, on

13 April 2026 at 22:03. The automated electronic delivery tracking and read receipts confirm that executive corporate legal counsel received and opened the application bundle twenty one (21) times prior to the filing of this Response. (See Annexure WWM2)

3.5 For the Defendants to subsequently assert under oath on 19 May 2026 that they *"are not aware"* of Case No: 2026-077546 is a bad-faith deception. The corporate entity is attempting to play blind in the Labour Court to avoid default consequences, directly contradicting the sworn acknowledgments made by its own Group CEO in the High Court. By failing to enter a legitimate appearance to defend Case No: 2026-077546 within the mandatory 10-day statutory period, the material facts within that file stand completely unopposed and ripe for adjudication.

4. THE UNCONTRADICTED STATUTORY CEILING VIOLATION, FACTUAL MISREPRESENTATION, AND MALICIOUS POLICY VIOLATION (THE RETROSPECTIVE JULY DECEPTIONS)

4.1 In **Paragraph 2 (Ad Para 1 to 5 of Part A)** and **Paragraph 28** of their Statement of Response, the Defendants state under oath:

"The Plaintiff was on sick leave but had exhausted annual and sick leave. The principle of no work, no pay applied." "The Defendants maintain that the Plaintiff's July 2025 salary aligned to the days worked in July 2025..."

4.2 The Plaintiff avers that this statement is bad in law and constitutes a flagrant factual misrepresentation explicitly designed to mislead this Honourable Court.

4.3 The Defendants assert that the July 2025 salary reduction was an automatic operational *"alignment to days worked in July 2025."* This is mathematically and operationally impossible. The Plaintiff's minor, documented absences in July 2025 consisted strictly of 1 to 3 isolated days utilised to attend medical appointments following his discharge from hospital.

4.4 Had the Defendants genuinely applied a live, real-time *"no work, no pay"* alignment strictly for the days missed in July 2025, the total operational deduction would have been limited to a minor fraction of his earnings (representing approximately 1 to 3 daily operational units).

4.5 Instead, the Defendants processed a massive, destructive extraction totalling **R14,811.77**. The sheer volume of this extraction demonstrates that the July 2025 payslip was weaponised to execute a retrospective clawback for historical, disputed days stretching back into the preceding months of May and June 2025.

4.6 The true operational context of this extraction demonstrates malice. Immediately upon the Plaintiff's physical discharge and return to work from a registered Mental Health Institution (where he was treated for severe PTSD and depression), the Second Defendant's management aggressively bypassed a humane, structured back-to-work reintegration. Instead of allowing the Plaintiff a reasonable window to resettle into his occupational functions, management immediately forced an adversarial meeting to confront him.

4.7 During this meeting, the Plaintiff was brutally honest regarding his acute psychiatric vulnerability, his financial constraints, and his desperate need for structural stability. In response to this medical disclosure, the Second Defendant's manager issued a hostile follow-up electronic mail message actively misrepresenting corporate protocols, stating: *"We don't allow staggering. We are not a loan company."* (See Annexure H in Statement of claim)

4.8 The statement that the corporate structure *"does not allow staggering"* is a demonstrable, written deception. The Defendants' own operative Human Capital Business Partner (HCBP) Policy explicitly mandates that any payroll corrections or historical leave recoveries must be handled via a structured consultation process, with an express provision allowing for staggered recoveries over multiple pay cycles to preserve an employee's basic livelihood. (See Annexure J in Statement of claim)

4.9 By attempting to disguise a massive, retrospective historical clawback as a real-time current-month alignment, and by deploying a hostile administrative narrative (*In Paragraph 16*["and do not grant loans.", "**WE DO NOT ALLOW STAGGERING**"]) to deny a vulnerable employee the protection of their own internal policy, the Defendants have exposed the targeted, retaliatory nature of their payroll administration.

4.10 Even if the Defendants mistakenly believed they possessed a unilateral right to recover historical days from May and June, they were strictly bound by Section 34 of the Basic Conditions of Employment Act 75 of 1997 ("BCEA"). Section 34(1) strictly prohibits any reduction from an employee's remuneration without express written consent. The Plaintiff at no stage provided written consent for this financial extraction.

4.11 Crucially, Section 34(2) of the BCEA establishes an absolute statutory ceiling, explicitly dictating that even where a retrospective recovery is legally permissible to correct an operational leave balance or overpayment, the total aggregate amount of the reduction **may not exceed one-quarter (25%)** of the employee's gross monthly monetary remuneration.

4.12 The Plaintiff's verified July 2025 payslip (*see Annexure I of statement of claim*) reflects an unlawful configuration completely outside the boundary of the law:

- Contractual Gross Normal Earnings: R36,588.81
- Retrospective Recovery Reductions: R14,811.77
- Effective Remuneration Reduction Percentage: **40.47%**

4.13 By formally admitting they executed a recovery that stripped away **40.47%** of an employee's monthly livelihood in a single pay cycle — under the false pretence of a live monthly alignment, while actively lying about internal policy provisions — the Defendants have placed an *ex facie* illegal act before this Court.

4.14 This Honourable Court possesses no equitable or judicial discretion to condone an express violation of Section 34(2), nor can it validate a defence built on an objective factual falsehood. The statutory 25% boundary is absolute and immutable. A deduction of 40.47% is illegal on its face, rendering the recovery an unlawful expropriation of remuneration as an absolute matter of law. Liability is fully established on the face of the papers.

5. THE REJECTION OF THE WEAPONISED "INSUBORDINATION" REPRIMAND

5.1 In **Paragraph 26**, the Defendants introduce a disciplinary narrative, asserting that the Plaintiff was "*reprimanded for insubordination*" because he refused an instruction to directly engage with a client after an internal investigation.

5.2 The Plaintiff fiercely denies that this reprimand constituted a lawful or reasonable operational action. The record demonstrates that this disciplinary charge was retroactively weaponised against the Plaintiff *only after* he escalated Protected Disclosures regarding systemic clinical integration defects within the Gexus-DMS architecture. (*See Annexure N date of statement of claim 23rd October 2025 See Annexure O date of statement of claim 31 October 2025 "Insubordination reprimand on the 31st October 2025 for 23rd October 2025 protected disclosure."*)

5.3 The instruction given to the Plaintiff was an unlawful and unethical command to interface with a client for the purpose of managing, obscuring, or smoothing over un-remedied system errors that resulted in erroneous non-adherence letters being sent to vulnerable medical scheme beneficiaries.

5.4 In South African employment law, an employee is only bound to obey instructions that are lawful, reasonable, and ethical. Refusing to participate in corporate obfuscation or to validate an unresolved operational gap does not constitute actionable insubordination. The reprimand was a textbook act of occupational detriment and workplace retaliation in direct violation of the Protected Disclosures Act 26 of 2000 ("PDA").

6. THE UNTENABILITY OF THE CONSTRUCTIVE DISMISSAL DENIAL

6.1 In **Paragraphs 29 and 33**, the Defendants deny creating an intolerable work environment and assert that the Plaintiff resigned prematurely while internal grievance timelines were still unfolding.

6.2 The Plaintiff rejects this assertion. Under prevailing labour jurisprudence, a self-represented employee is not required to endure structural destitution, bad-faith delays, and medical hostility indefinitely while an employer deploys strategic, administrative inertia.

6.3 The intolerability of the environment must be assessed objectively. The Defendants actively subjected the Plaintiff to a severe 40.47% financial reduction, stripped away his means of physical survival, ignored critical medical correspondence regarding his diagnosed PTSD and severe depression, and permitted their Employee Relations department to file sworn text labelling his psychiatric condition a subjective interpretation.

6.4 Expecting an employee with a formally disclosed mental health disability to remain embedded in an environment characterised by severe financial deprivation and weaponised psychological attacks is objectively unconscionable. The Defendants' systemic conduct and profound structural neglect rendered the continuation of the employment relationship entirely intolerable, satisfying the full statutory criteria for a constructive dismissal under Section 186(1)(e) of the Labour Relations Act 66 of 1995.

7. CONCLUSION AND PRAYER FOR RELIEF

7.1 The Defendants' Statement of Response is procedurally dead on arrival for lack of a verifying affidavit and for being signed on behalf of an un-cited, non-party entity. Substantively, it collapses into a direct liquidated admission of an illegal 40.47% remuneration reduction under the BCEA, built upon an objective factual misrepresentation regarding the Plaintiff's July 2025 attendance.

7.2 There is no valid, sworn triable defence placed before this Honourable Court by the Respondents to counter the clear, documented, and statutory violations presented by the Applicant.

WHEREFORE the Plaintiff persists in the claims set out in his Statement of Claim and prays for an order:

IN RESPECT OF THE THRESHOLD PROCEDURAL APPLICATION:

1. Striking out the Defendants' Statement of Response dated 19 May 2026 as a procedural nullity, on the grounds that it is unverified by affidavit and purports to have been filed on behalf of a non-cited juristic entity, namely AfroCentric RF (Pty) Ltd.

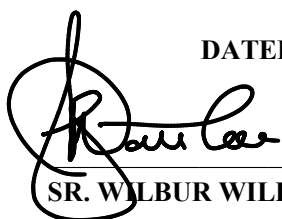
IN RESPECT OF THE CONCURRENT APPLICATION (CASE NO: 2026-077546):

2. An order declaring that the deduction of **R14,811.77** from the Plaintiff's remuneration on 23 July 2025 was unilateral, unlawful, and in direct contravention of Section 34(1) and Section 34(2) of the Basic Conditions of Employment Act 75 of 1997;
3. An order compelling the First and Second Defendants, jointly and severally, the one paying the other to be absolved, to make immediate repayment of the sum of **R14,811.77** to the Plaintiff;

4. An order directing the Defendants to pay interest on the said sum of **R14,811.77** at the prescribed legal rate calculated from 23 July 2025 to the date of final payment;

IN RESPECT OF THE MAIN STATEMENT OF CLAIM (CASE NO: 2026-083299):

5. An order declaring that the resignation of the Plaintiff constitutes a Constructive Dismissal in terms of Section 186(1)(e) of the Labour Relations Act 66 of 1995, actively rendered intolerable by the continuous operational and financial misconduct of the Defendants;
6. An order declaring that the Plaintiff's constructive dismissal constitutes an **Automatically Unfair Dismissal** in terms of Section 187(1)(h) of the Labour Relations Act 66 of 1995, having been executed as a targeted occupational detriment in direct retaliation for making Protected Disclosures in terms of the Protected Disclosures Act 26 of 2000;
7. An order compelling the Defendants to pay compensation to the Plaintiff equivalent to **24 (twenty-four) months' remuneration**, calculated at the Plaintiff's full gross contractual rate, as provided for under Section 194(3) of the Labour Relations Act 66 of 1995;
8. An order directing the Defendants to issue a corrected and legally compliant Certificate of Service to the Plaintiff; and
9. An order granting costs against the Defendants on a highly punitive attorney-and-client scale due to their cross-jurisdictional deception, bad-faith pleading omissions, and systemic procedural misconduct.



DATED AT CAPE TOWN ON THIS THE 19TH DAY OF MAY 2026

SR. WILBUR WILLIAM MATTHEE

Plaintiff / Applicant in Person

15 Bellevue Street, Voorbrug, Cape Town, 7001

Email: info@ethichawks.co.za

TO: THE REGISTRAR OF THE LABOUR COURT, Cape Town

AND TO: DENEYS REITZ ATTORNEYS / DE COMPAGNE ATTORNEYS

Defendants' Attorneys of Record

Per: Jason J Whyte

Email: jason.whyte@deneys.co.za / IR@afrocentrichealth.com

Ref: AFR1282

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Case No:

In the matter between:

Afrocentric Investment Corporation Limited
(Reg: 1988/000570/06)

Applicant

and

Wilbur William Matthee

Respondent

FOUNDING AFFIDAVIT

I, the undersigned,

GERALD NEVILLE VAN WYK

do hereby make oath and state that:

- 1 I am an adult male and employed by Afrocentric Investment Corporation Limited as Group Chief Executive Officer. I confirm that I am duly authorised by the applicant to depose hereto on its behalf.
- 2 Save where the context indicates to the contrary, the facts contained herein fall within my own personal knowledge and belief and are true and correct. Given the urgency of the proceedings, certain facts set out herein may constitute hearsay evidence. I do, however, seek the leave of this Honourable Court to have such evidence admitted subject to same being appropriately supported by further affidavits, if necessary, on the return date of the *rule nisi*.



- 3 I reserve the right to supplement this affidavit by the submission of oral evidence, should this Honourable Court consider such evidence to be necessary. I further specifically reserve the right to supplement these papers in the event of the respondent opposing the relief sought.
- 4 Where I make submissions of a legal nature I do so on the advice of the applicant's attorneys of record, which advice I believe to be correct.
- 5 This affidavit is deposed to in support of the Notice of Motion attached hereto and in which the applicant seeks a *rule nisi* calling upon the respondent to show cause why he should not be interdicted and restrained from carrying out the unlawful threats contained in his emails of 14 and 15 April 2026.

Parties

- 6 The applicant is Afrocentric Investment Corporation Limited (the **Company**), a public company duly registered and incorporated in terms of the company laws of South Africa. Its registered head office is situated at 37 Conrad Street, Florida North, Roodepoort, 1709. It is the holding company of the AfroCentric Group, which includes, *inter alia*, Medscheme Holdings (Pty) Ltd (**Medscheme**) and its various divisions.
- 7 The respondent is Mr Wilbur William Matthee, an adult male with ID No: 8909035151087, and a former employee of Medscheme, residing at 15 Bellevue Street, Voorbrug, Cape Town, 7001. His email address is info@ethichawks.co.za.


NW 2

The purpose of this application

- 8 The purpose of this application, which is brought on an urgent basis, is to obtain a *rule nisi* calling upon the respondent, Mr Wilbur William Matthee, to show cause why he should not be interdicted and restrained from carrying out certain threats contained in emails sent by him on 14 and 15 April 2026.
- 9 In those emails, the respondent issued an ultimatum to the applicant, threatening to disclose clearly confidential information, inclusive of a “forensic payload” to trade unions; to release a public statement naming the applicant’s directors and regulators; and to file vexatious complaints with the JSE and other bodies – all conditional upon the payment of a settlement sum of R7,307,642.72. These threats are not genuine protected disclosures, they are made in bad faith and are extortionate in nature. If carried out, they will cause immediate and irreparable harm to the applicant, its subsidiaries and related entities, as well as to clients, particularly the Government Employees Medical Scheme (**GEMS**).
- 10 Given the extreme urgency of the matter, the applicant seeks only a rule nisi operating as an interim interdict with immediate effect, together with a timetable for the supplementation of papers and the filing of opposition, with the matter to return to court for the hearing of final relief on a date to be determined.



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- 11 The purpose of this application is not to prejudice the respondent's rights, but to afford the applicant an interim and temporary protection of its rights pending a full ventilation of the disputed issues.

Background

- 12 The respondent was employed by Medscheme as a Care Coordinator from 1 May 2024, based at The Boulevard, Searle Street, Woodstock, Cape Town.

- 13 It is necessary to explain the relationship between the applicant, Medscheme, and GEMS to this Honourable Court, as this relationship is central to the threatened harm.

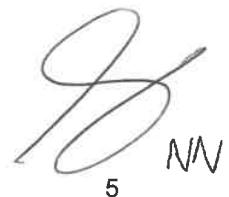
- 13.1 GEMS is a medical scheme established for government employees in the Republic of South Africa. It is one of the largest medical schemes in the country, serving approximately 1.9 million beneficiaries.

- 13.2 GEMS is not a subsidiary or division of the applicant. It is a separate entity governed by its own Board of Trustees, which is entirely unrelated to the applicant's Board of Directors. Medscheme, a wholly-owned subsidiary of the applicant, is an accredited third-party administrator and managed care organisation of medical schemes registered under the *Medical Schemes Act, 1998*.

- 13.3 In that capacity, Medscheme provides some administration and managed care services the GEMS medical scheme – that is, it processes medical claims, manages clinical programmes, and provides contribution and debt

services to GEMS and its beneficiaries. GEMS is accordingly one of Medscheme's clients.

- 13.4 The respondent was employed by Medscheme in a position in which he acted as a case manager dealing with the clinical claims of GEMS members.
- 14 During his employment, the respondent was admitted to the Akeso Stepping Stones Clinic on or about 18 March 2025 for inpatient treatment for severe depression and post-traumatic stress disorder. His treating psychiatrist certified him unfit for work. The respondent's initial treatment period of three weeks was extended to six weeks.
- 15 Following his hospitalisation, the respondent's sick leave and annual leave entitlements were exhausted. In accordance with the no work no pay principle, the respondent was placed on unpaid leave for the period in which he was absent from work.
- 16 In July 2025, the respondent's salary was reduced to reflect the unpaid leave recovery. The respondent took issue with the amount of the deduction and raised a grievance with the company's human resources department.
- 17 The respondent thereafter raised various further grievances including complaints about alleged discrimination, victimisation, and other workplace issues. He demanded that immediate steps be taken to address his complaints.


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- 18 When the company's internal processes did not produce the outcome he desired within his self-imposed timeframes, he began an extensive campaign of vexatious complaints to multiple external bodies.
- 19 On 5 December 2025, the respondent referred a dispute to the CCMA (Case Number WECT23564-25) regarding alleged unfair labour practices.
- 20 On 12 December 2025, the respondent resigned from his employment.
- 21 On 19 December 2025, the respondent referred a second dispute to the CCMA (Case Number WECT24486-25) for allegedly automatically unfair constructive dismissal.
- 22 Conciliation was held on 9 January 2026. Certificates of non-resolution were issued in respect of both disputes.
- 23 Following his resignation, the respondent sent numerous emails to the applicant's directors and board members, making various untrue and defamatory allegations and demands. He also filed complaints with multiple regulatory bodies including the South African Human Rights Commission, the JSE, the B-BBEE Commission, the Council for Medical Schemes, the Department of Employment and Labour, and the South African Police Service.
- 24 On or about 19 March 2026, the respondent filed an urgent application in this Honourable Court (Case Number 2026-066952) seeking, *inter alia*, declarations of director delinquency under section 162 of the Companies Act, 2008 against certain of the applicant's directors. That application was


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heard on 25 March 2026 and was struck from the roll for lack of urgency, with costs awarded against the respondent on Scale C.

- 25 The respondent has since referred two separate matters to the Labour Court: Case Number 2026-077546 (a claim under section 77A of the Basic Conditions of Employment Act for alleged unlawful salary deduction) and Case Number 2026-083299 (a statement of claim filed on 9 April 2026 alleging automatically unfair constructive dismissal and related claims).
- 26 The applicant intends to defend those Labour Court proceedings in due course.
- 27 As the records in the aforementioned three matters are voluminous, I have not attached same, but seek the leave of the Court to do so when this application is moved.

The threatening emails

- 28 On 14 April 2026 at 22h38, the respondent sent an email to the applicant's Group Company Secretary, Ms Lebohang Mpumlwana, with the subject "FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION". A copy is annexed hereto marked **GVW1**.
- 29 In that email the respondent, *inter alia*:
- 29.1 stated that he had "*nothing left to lose*" and was "*deploying every forensic and statutory weapon at my disposal*";



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- 29.2 set a deadline of 13h24 on Thursday 16 April 2026, after which he would proceed with *"immediate execution without further notice"*;
- 29.3 threatened to hold a *"Union Priming Session"* at 11h30 on 16 April 2026 with the leadership of PSA, NEHAWU, and FEDUSA to *"prime the union structures for a major forensic disclosure"*;
- 29.4 threatened a *"Public Execution of Disclosure"* at 13h30 whereby he would hand over the "Mahlangu RCA" and what he calls a *"forensic payload"* to union representatives;
- 29.5 threatened to brief unions that their members are *"subsidising a suppressed R180 million daily leak via the 9.5% premium hike"*;
- 29.6 threatened to file formal complaints for *"Material Non-Disclosure and Market Deception"* with the JSE and the Companies and Intellectual Property Commission;
- 29.7 threatened to release a *"Whistleblower's Manifesto"* – a public statement *"naming every director and regulator who chose corporate concealment over their fiduciary duty"*;
- 29.8 threatened to challenge the audit integrity of the applicant's Integrated Report and to file a notice with the Independent Regulatory Board for Auditors; and
- 29.9 demanded, as a condition for not carrying out these threats: statutory rectification, *"Solatium & Professional Rehabilitation"*, and a *"10-Year Psychological Indemnity"*.


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- 30 On 15 April 2026, the applicant's attorneys of record, Deneys, sent a cease-and-desist letter to the respondent calling on him to withdraw his threats by 17h00 that day. A copy is annexed hereto marked **GVW2**.
- 31 On 15 April 2026 at 13h19, the respondent replied to the cease-and-desist letter. He asserted that his communications were "*Protected Disclosures under the PDA and the Companies Act*" and stated that he was "*not extorting the Board*". He did not withdraw his threats. A copy of his reply is annexed hereto marked **GVW3**.
- 32 On 15 April 2026 at 15h43, the respondent sent a further email quantifying his settlement demand at R7,307,642.72, broken down as follows: Direct Restitution R1,027,107.12; Property Loss R145,000.00; "*Professional Death Compensation*" R5,135,535.60; Clinical Provision R750,000.00; and Statutory Costs R250,000.00. He confirmed that liaison sessions with PSA, NEHAWU, DENOSA, and POPCRU had been "*formally issued*".
- 33 He presented two scenarios: Scenario A (Settlement) whereby the "*Mahlangu RCA remains a private internal matter*", or Scenario B ("*The Siege*") triggering "*Full Forensic Disclosure*" to union legal teams. A copy is annexed hereto marked **GVW4**.
- 34 Later that same evening, at 20h44, the respondent sent a fourth email to the applicant's attorneys. In this email, the respondent noted that his characterisation of "*R180 million daily clinical leakage*" was "*imprecise*". He acknowledged that the R180 million figure "*refers to the average amount GEMS pays out in claims, not an amount lost to leakage*".


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- 35 However, he did not withdraw his threats or his settlement demand, stating
*"I do not withdraw my complaint. The systemic failure documented in the
Mahlangu RCA remains valid and warrants a forensic audit."* A copy is
annexed hereto marked **GVW5**.
- 36 Significantly, the respondent's concession in this fourth email undermines
the very foundation of the sensational claims he has been threatening to
publish. By his own admission, the "*R180 million*" figure that he has been
using to threaten union briefings, JSE complaints, and public statements
does not represent money lost to any "*leakage*" or fraud, but simply the
ordinary daily claims expenditure of GEMS.
- 37 The respondent's willingness to deploy misleading and inflammatory
characterisations is itself indicative of the bad faith that pervades his
conduct.

The applicant's concerns

- 38 The applicant does not know what the "*Mahlangu RCA*" is or what the
"*forensic payload*" contains. It presumes that these may contain
confidential and proprietary information belonging to the applicant or its
subsidiaries, obtained by the respondent during his employment.
- 39 The applicant has been able to establish, through the respondent's own
Labour Court Statement of Claim filed on 9 April 2026 (Case Number
2026-083299), that the so-called "*Mahlangu RCA*" likely refers to a
Gexus/DMS root cause analysis relating to a GEMS member complaint. It
pertains to a complaint from a member of the GEMS scheme who received

a non-adherence letter which the respondent contends was generated by a system integration error between the Gexus and DMS platforms operated by Medscheme.

40 “Gexus” and “DMS” are two separate software systems operated by Medscheme to service GEMS. In broad terms, Gexus is a scheme specific instance of the Nexus administration platform supporting the GEMS’s chronic care medicine, including chronic adherence, debt and contribution management functions, while the Disease Management System (DMS) is a specialist clinical platform managing structured disease programmes and care pathways for conditions such as HIV, diabetes, hypertension and hyperlipidemia, with both platforms fully integrated with internal systems and external platforms used for GEMS claims processing. The two systems are designed to work together.

41 A root cause analysis (or RCA) is a structured, systematic process for identifying the underlying, fundamental causes of problems or incidents which is a method used by Medscheme as a governance tool when servicing its clients. When an adverse event or system error occurs affecting a patient or medical scheme member, Medscheme conducts a root cause analysis to identify the underlying cause of the error, trace the sequence of events that led to it, and determine what corrective steps are required.

42 Therefore, a root cause analysis is an internal investigation report prepared in response to a member complaint or clinical incident, and it typically contains detailed clinical and personal information about the

affected member, including their medical history, treatment records, claims data, and medication adherence information.

43 In this instance, the respondent's Labour Court Statement of Claim reveals that the "*Mahlangu RCA*" arose from a complaint by a 75-year-old GEMS member who received an automated non-adherence letter from the DMS system, despite the member being compliant with her chronic medication.

44 The respondent contends that this occurred because the Gexus system recorded a change in the member's medication benefit category (from acute to chronic) from January 2025 onwards, but the DMS system did not receive or recognise this update and accordingly continued to flag the member as non-adherent. The respondent appears to have conducted an internal root cause analysis, which he alleged confirmed what he characterises as a "*structural integration gap*" between the Gexus and DMS systems.

45 It is documents pertaining to this "*Mahlangu RCA*" – together with what the respondent calls a "*forensic payload*" – that he now threatens to hand over to trade union representatives unless the applicant pays him R7,307,642.72.

46 Whatever the merits of the respondent's concerns about this alleged system issue – and the applicant reserves its position in that regard – the root cause analysis and the "*forensic payload*" which the respondent threatens to disclose will, by their nature, contain special personal information as defined in section 26 of the *Protection of Personal*

Information Act, 2013 (POPIA). This includes patient diagnostics, health biometrics, medical scheme membership details, and clinical care information pertaining to identifiable GEMS beneficiaries. The disclosure of such information to trade unions and the public would constitute a flagrant breach of POPIA.

- 47 The respondent was, during his employment, at all times subject to a duty of confidentiality in respect of the applicant's proprietary and confidential information. The fact that his employment has terminated does not extinguish that duty. The threatened disclosure of the "*Mahlangu RCA*" and the "*forensic payload*" to trade unions and the public constitutes a threatened breach of this duty.
- 48 The threatened "*Whistleblower's Manifesto*" naming directors and regulators is clearly intended to embarrass and cause reputational damage to the applicant and its directors. Such a publication would likely be defamatory.
- 49 The respondent's threats are conditional upon payment – he has expressly stated that if the applicant pays his settlement demand, the "*Mahlangu RCA remains a private internal matter*" (Scenario A). This renders his conduct extortionate in nature. I am advised that the making of threats, conditional upon payment to refrain from carrying them out, constitutes the common law crime of extortion.
- 50 The respondent's conduct is manifestly *mala fide*. His allegations regarding the Gexus/DMS system issue, and the various other workplace

complaints he has raised, are already the subject of two pending Labour Court referrals, in which he has pleaded substantially the same facts and seeks compensation.

- 51 He is now attempting to use the same allegations as a weapon of extortion, threatening to publish them unless he is paid. He is not seeking to ventilate legitimate grievances through the appropriate legal forum – he is seeking to circumvent the judicial process and extract payment by threat.
- 52 The respondent is no longer an employee of Medscheme or any entity within the AfroCentric Group. He resigned on 12 December 2025. Inasmuch as he characterises his threatened conduct as “*Protected Disclosures under the PDA*”, I am advised that neither the *Companies Act, 2008* nor the *Protected Disclosures Act, 2000* affords protection to disclosures made by a person who, at the time of the disclosure, is no longer an employee.
- 53 Moreover, even if the respondent were still an employee, a disclosure made for the purpose of extracting payment – as is manifestly the case here – would not constitute a protected disclosure. The respondent’s own emails demonstrate that his threatened disclosures are conditional upon the payment of R7,307,642.72. They are made for financial gain and are not made in good faith.
- 54 The applicant is a JSE-listed company. The threatened statements regarding “*Material Non-Disclosure and Market Deception*” could cause


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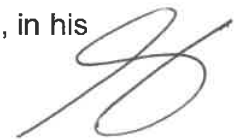
serious harm to the applicant's share price, investor confidence, and commercial reputation.

55 Medscheme is currently in the process of renegotiating contracts and renewals with some of its largest clients. This is a particularly precarious time for adverse publicity. Any disclosure of the nature threatened by the respondent could jeopardise these contractual relationships and cause significant commercial harm to the AfroCentric Group.

56 The respondent's true intention appears to be to disrupt the relationship between GEMS and Medscheme. By threatening to brief trade union structures representing government employees and to present the 9.5% premium increase as a consequence of alleged undisclosed system failures, the respondent seeks to create maximum reputational damage and commercial disruption to the applicant and its subsidiaries. He is weaponising these allegations – regardless of their truth, which the applicant denies – for the sole purpose of coercing payment.

57 GEMS itself is also affected by the respondent's threats. The GEMS Board of Trustees and the AfroCentric Board are unrelated entities; the respondent was never employed by GEMS. His inclusion of the GEMS Board in his ultimatum appears designed purely to cause maximum disruption.

58 While the applicant denies the truth of the respondent's allegations regarding the so-called "*R180 million daily drain*" and the alleged suppression of clinical risks, the respondent himself has conceded, in his


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fourth email of 15 April 2026, that his characterisation of “R180 million daily clinical leakage” was “imprecise” and that the figure refers to the average amount GEMS pays out in claims daily, not an amount lost to any leakage or fraud. Despite this admission, the respondent has not withdrawn his threats.

- 59 The repercussions of any public statement of this nature – particularly one founded on a characterisation that the respondent himself accepts as misleading – would be catastrophic for a JSE-listed entity. Investor confidence in the AfroCentric Group could be severely undermined, the applicant’s share price would likely be adversely affected, and the commercial relationships with GEMS and other clients could be irreparably damaged. These are precisely the kinds of harms that cannot be undone by a subsequent award of damages.

The Requirements for urgent interim interdicts

- 60 I am advised that an applicant for urgent interim relief must demonstrate to this Honourable Court that:

- 60.1 It has a *prima facie* right to the relief sought;
- 60.2 The matter is urgent;
- 60.3 There would be irreparable harm were the relief not to be granted;
- 60.4 There is no alternative remedy; and
- 60.5 The balance of convenience and interests of justice require such a remedy.

61 I address each of these in turn below.

A prima facie right

62 The applicant has a clear right to protect its reputation, the dignity of its directors and officers, and its confidential and proprietary information.

63 The respondent's emails constitute threats to publish defamatory material, disclose confidential information, and make vexatious complaints – all conditional upon a substantial payment. This conduct is, on the face of it, unlawful.

64 The common law protects against extortion, defamation, and breach of confidentiality. The applicant's rights in this regard are well established.

65 I submit that given the extreme urgency, the applicant seeks only a *rule nisi* and not final relief at this stage.

Urgency

66 The respondent has set a self-imposed and irrational deadline of 13h24 on 16 April 2026 – giving the applicant less than 48 hours from when the first threatening email was received on the evening of 14 April 2026.

67 Union liaison sessions have been scheduled by the respondent for 11h30 on 16 April 2026.

68 The "*Public Execution of Disclosure*" is threatened for approximately 13h30 on 16 April 2026.


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- 69 The urgency is not self-created by the applicant. It arises entirely from the respondent's unilateral imposition of an extremely short deadline.
- 70 The applicant's attorneys sent a cease and desist letter within hours of receiving the threatening email. When the respondent failed to withdraw his threats, the applicant was left with no option but to approach this Honourable Court on an urgent basis.
- 71 The applicant was unable to give the respondent greater notice of these proceedings than it has.
- 72 I submit that the matter is clearly extremely urgent and this will be substantiated by what I set out further below.

Irreparable Harm

- 73 If the respondent carries out his threats, the applicant will suffer irreparable harm that cannot be remedied by an award of damages:
- 73.1 confidential information, once released, cannot be recalled or contained;
- 73.2 reputational damage to a JSE-listed company, once inflicted, is large extremely difficult to quantify or reverse;
- 73.3 defamatory statements, once published, cannot be "*unspoken*"; and
- 73.4 damage to relationships with unions, regulators, investors and the public would be immediate and potentially permanent.
- 74 Accordingly, the applicant would suffer irreparable harm were the respondent to proceed with his actions as threatened.


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No alternative remedy

- 75 The applicant has no alternative remedy. It has already attempted to resolve the matter by sending a cease-and-desist letter. The respondent has refused to withdraw his threats.
- 76 The Labour Court proceedings are the appropriate forum for the respondent's employment-related claims. The threats he has made go far beyond any legitimate pursuit of those claims.
- 77 Moreover, and legitimate regulatory concerns may be processed through those bodies who exercise independent and impartial oversight over the affairs of the applicant, its directors and GEMS.

Balance of convenience and interests of justice

- 78 The balance of convenience overwhelmingly favours the applicant. An interim interdict will not prejudice the respondent's ability to pursue his legitimate legal claims in the Labour Court.
- 79 In contrast, absent an interdict, the applicant faces the real prospect of irreparable reputational and financial harm.
- 80 The applicant only seeks a *rule nisi*. The respondent will have the opportunity to file papers and be heard on the return date.

Costs

81 The applicant seeks costs on the scale as between attorney and client, given the extortionate nature of the respondent's conduct as well as the timeframes under which the applicant has been forced to act.

Conclusion

82 70 Under all the circumstances, I submit that a proper case has been made out for the relief sought in the Notice of Motion and I pray that this Honourable Court make an order in terms thereof.


GERALD NEVILLE VAN WYK

I CERTIFY that this affidavit was SIGNED and SWORN TO before me at SANDTON on this the 16th day of April 2026, the deponent having acknowledged that he knows and understands the contents of this Affidavit, he has no objection to taking the prescribed oath and considers it binding on his conscience.


COMMISSIONER OF OATHS

**CERTIFIED A TRUE COPY OF THE ORIGINAL
NESCHIKA SHIVANI NAIDOO
EX OFFICIO
COMMISSIONER OF OATHS
PRACTISING ATTORNEY
REPUBLIC OF SOUTH AFRICA
11 ALICE LANE
SANDTON**

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Tuesday, April 14, 2026 10:38:00 PM

To: Lebohang Mpumlwana <Lebohang.Mpumlwana@Afrocentrichealth.com>

Subject: FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION

This message originated from outside your organization

WITHOUT PREJUDICE / FOR SETTLEMENT PURPOSES ONLY

TO: The Company Secretary (**For the Attention of the GEMS Board of Trustees and the AfroCentric Board**)

DATE: 14 April 2026

DEADLINE: Thursday, 16 April 2026, at 13:24 (NO EXTENSIONS)

URGENT AND FORMAL NOTICE

Dear Members of the Boards,

I am placing the GEMS Board of Trustees and the AfroCentric Board on final, unconditional notice. This communication serves as a formal declaration of a Statutory and Ethical Deadlock. Be advised: I am backed into a corner, my life is actively in danger, and I have suffered the total loss of my home and professional standing. I have nothing left to lose, and as a result, I am now deploying every forensic and statutory weapon at my disposal. There will be no extensions, no off-the-record meetings, and no verbal negotiations. All further communication must be in writing to form part of the High Court record.

The SANC, SAPC, CMS, and HPCSA are now formally on notice. Their position on my ethical question or silence thereof will be treated as Administrative Abandonment at 13:25 16 April 2026.

Furthermore, the Department of Employment and Labour (DEL) is on notice regarding:

SARS & UIF Fraud: The non-remittance of levies and UI-19 misrepresentation.

Service Fraud: The issuance of a fraudulent Certificate of Service to silence a whistleblower.

Failure by these bodies to act by the deadline will result in an immediate High Court Mandamus naming the Registrars in their personal capacities.

A formal notice is being prepared for the Independent Regulatory Board for Auditors (IRBA). We will challenge the audit integrity of the 8 April Integrated Report. If your auditors signed off on financials while the Board suppressed Priority 1 clinical risks and the documented R180 million daily drain, they are now complicit in a material market deception.

I formally record that my separation was an Automatically Unfair Constructive Dismissal (Section 187(1)(h) LRA). This is the direct result of my Protected Disclosures. Any narrative to the contrary is a continuation of the statutory fraud currently being investigated.

To ensure there is no ambiguity regarding my intent, take note of the following schedule for Thursday, 16 April 2026:

11:30 AM – Union Priming Session (as with SAPC 14 April 2026): I will hold a formal inquiry session with the leadership of PSA, NEHAWU, and FEDUSA. The purpose of this meeting is to prime the union structures for a major forensic disclosure.

I will establish whether the Board has misrepresented the scheme's clinical and financial stability during recent premium negotiations. I will provide the Board with documented proof of this scheduled briefing the morning 16 April 2026 to confirm the process is locked and synchronized.

13:24 PM – Expiry of Final Settlement Window: This is the hard cutoff for a written, signed resolution to my constructive dismissal and the statutory fraud.

13:30 PM – Public Execution of Disclosure: If no remedy is received by 13:24, I will move to a public handover of the Mahlangu RCA and the forensic payload. The unions will be fully briefed and ready to act on the evidence that their members are subsidising a suppressed R180 million daily leak via the 9.5% premium hike.

To halt the 13:25 escalation, I require a signed, written settlement proposal before the deadline:

Statutory Rectification: Immediate submission of a corrected UI-19 and full SARS/UIF remittance.

Solatium & Professional Rehabilitation: Compensation for the total destruction of my career, dignity, and the "professional death" I have been forced to endure.

10-Year Psychological Indemnity: Full provision for specialized psychiatric and clinical care for no less than 10 years to address the profound PTSD and damage caused by your targeted occupational detriment.

- Immediate Execution (13:25 Thursday)

At the expiry of this deadline, I will move to immediate execution without further notice. My scheduled briefing with the leadership of PSA, NEHAWU, and FEDUSA will result in the following:

Forensic Payload Transfer: I will hand over the Mahlangu Root Cause Analysis (RCA) as empirical proof of an automated "Integration Gap" that creates a systemic clinical and fiscal leak.

The 9.5% Link: I will provide the forensic link proving that the 9.5% premium increase—currently a point of extreme contention for organized labor—is a direct consequence of the R180 million daily drain that the Board has failed to mitigate or disclose.

Member Action: I will advise Union Leadership on the grounds for a High Court Interdict to freeze premium payments and demand an immediate independent forensic audit of the Gexus-DMS integration architecture and back payment of all benefits identified during the integration gap.

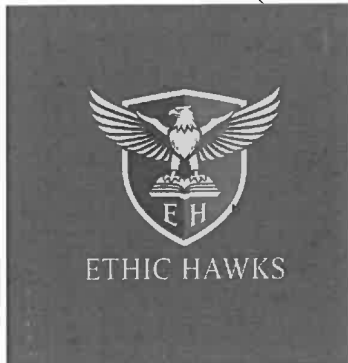
JSE & CIPC Filing: I will simultaneously file formal complaints for Material Non-Disclosure and Market Deception, citing the omission of these Priority 1 risks from the 8 April Integrated Report.

The Whistleblower's Manifesto: A public statement will be released naming every director and regulator who chose corporate concealment over their fiduciary duty to the public and the clinical safety of members.

I am finished with silence. You have until 13:24 16 April 2026.

Yours Professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



CONFIDENTIALITY:

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For more information please visit <http://www.mimecast.com>

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By Email: info@ethichawks.co.za

Mr W W Matthee

URGENT ATTENTION

15 April 2026

9th Floor
117 on Strand
117 Strand Street
Cape Town 8001
Tel +27 21 405 1200 Fax +27 21 418 6900

Private Bag X10 Roggebaai 8012
Docex 181 Cape Town
deneys.co.za

Direct line
+27 21 405 1208

Email
jason.whyte@deneys.co.za

Your reference:

Our reference: AFR1282

Dear Sir

AfroCentric Investment Corporation Ltd and others // Yourself

- 1 We confirm that we act on behalf of AfroCentric Investment Corporation Limited, as well as its subsidiaries and related entities. We also act on behalf of the directors and officers of those entities.
- 2 Our clients have provided us with a copy of your email sent to their Group Company Secretary at 22h38 on 14 April 2026. In that email, you advise our clients that unless they conclude a settlement agreement with you, requiring the payment of unquantified amounts among other stated relief, you will proceed to take further steps at 13h24 on 16 April 2026.
- 3 Our clients do not accede to this demand and have instructed us to call on you to withdraw your threatened course of action as it is unlawful. In particular, your demand, on the face of it, constitutes a criminal offence, namely that of extortion and blackmail.
- 4 Our client notes in particular that you intend to:
 - 4.1 Publicly release a so-called 'Whistleblower's Manifesto' naming and accusing our clients' directors and office bearers of 'corporate concealment' and breach of their fiduciary duties. Moreover, that you intend to publicly state that our clients' directors and office bearers are acting in collusion with unnamed 'regulators'; and
 - 4.2 Release a so-called 'Forensic Payload Transfer' regarding the Mahlangu Root Cause Analysis. This would clearly involve the public release of confidential and proprietary information held by or belonging to our clients.
- 5 We note that you have made several other threats that, whilst arguably not unlawful *per se*, are rendered unlawful as they are simply intended to act as a means of forcing our clients to provide you with unquantified, but substantial financial compensation.
- 6 In summary, the demands made in your email are unlawful and, if acted upon, would cause our client irreparable harm.
- 7 We accordingly call on you to confirm in writing by no later than 17h00 today, 15 April 2026, that you unconditionally withdraw your email and the threats contained therein. Should we not receive such written confirmation, our clients shall be forced to consider an urgent approach to the High Court, if necessary on an *ex parte* basis, to interdict and restrain you from proceeding with your unlawful conduct.

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- 8 We remind you that the High Court has already expressed its displeasure with your conduct, in striking from the roll with costs, a spurious urgent application that you had brought in which you sought relief that the Court was incapable of granting. In that application you made unlawful, vexatious and defamatory accusations against our clients. Please expect to receive our clients taxed bill of costs for your payment shortly, evidencing the costs that were awarded against you by the Court in the aforementioned urgent application that you recently instituted.
- 9 You have further referred two separate disputes to the Labour Court in which you make similar untrue, vexatious and defamatory allegations against our clients. Our clients will defend these referrals and seek that they be dismissed with orders of punitive costs.
- 10 Accordingly, our clients are of the view that your conduct is, in general, vexatious and our clients reserve their rights to seek appropriate relief against you in due course.
- 11 We look forward to receiving your written response and confirm that in the interim our clients' rights remain reserved in full.

Yours faithfully



pp
Jason Whyte
Director
Deneys

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 13:19
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: RE: FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION [N-CPT_MATTERS.FID2264505]
Attachments: Annexure_A_5%_Member_Contribution.PDF

Dear Ms Baker,

In response to your letter dated 15 April 2026, be advised that my communications are Protected Disclosures under the PDA and the Companies Act. I am not 'extorting' the Board; I am formally notifying them of a systemic fiscal leak and a material non-disclosure in the April 8th Integrated Report.

The attached Annexure clarifies that the primary objective of this statutory process is the protection of member funds and the rectification of a 9.5% premium hike that is based on documented clinical and IT failures.

Regarding your characterisation of 'unquantified amounts' be advised that my personal restitution is a matter of '**just and equitable**' **compensation** as prescribed by the PDA for occupational detriment.

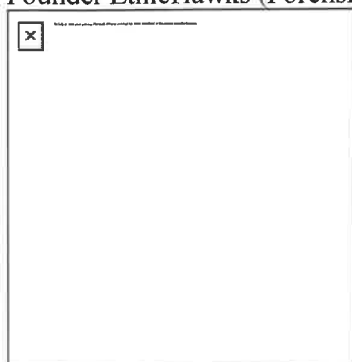
However, the primary 'quantified' demand of this statutory process is the the immediate **redemption of the 180 million daily leakage** and the **downgrade of the 9.5% contribution hike to 5%**. This represent a quantifiable saving to the membership of approximately **3.2 billion annually**-a figure that far outweighs any personal settlement and confirms the public interest of this disclosure.

Any attempt to interdict this disclosure will be met with an urgent application for a Writ of Mandamus and a report to the JSE regarding market deception.

Kindly deliver Annexure A to the Board.

Yours Professionally

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 15:43
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: FINAL STATUTORY CLARIFICATION: Private Resolution Path vs. Commencement of Statutory Siege

Dear Ms. Barker,

Further to my communication of 13:18 today, I hereby provide the final "Private Resolution Path" to resolve the statutory deadlock before the 13:24 deadline on 16 April 2026.

To facilitate a settlement that protects the membership and the scheme's solvency, the Board must ratify the following quantified schedule by the aforementioned deadline:

As per Annexure A (previously served), the Board must issue a formal resolution to downgrade the 2026 contribution hike from 9.5% to a maximum of 5%. This correction remediates the "Governance Tax" currently backfilling internal IT wastage and the R180 million daily clinical leakage.

Based on a Cost-to-Company (CTC) of R42,796.13 per month, my restitution for documented occupational detriment is quantified as follows:

Direct Restitution: R1,027,107.12 (24 months back-pay/substitution).

Property Loss: R145,000.00 (Total loss of fixed property resulting from detriment).

Professional Death Compensation: R5,135,535.60 (10-year compensatory future loss of earnings).

Clinical Provision: R750,000 (10-year specialist psychosocial/clinical care fund).

Statutory Costs: R250,000 (Forensic audit and Ethic Hawks operational expenses).

Total Settlement Value: R7,307,642.72

The Board is required to apply for a formal SARS Tax Directive for the total settlement under the category of "Compensation for Occupational Detriment." The Board shall provide a full tax indemnity to ensure the net amount is protected and structured as a capital settlement for damages.

Be advised that the invitations for the Liaison sessions have been formally issued to the leadership of the PSA, NEHAWU, DENOSA, and POPCRU. The Board has until 13:24 tomorrow to decide the outcome:

11:30 AM Liaison: Activation of Mandamus against SANC, DEL, and CMS.

<https://teams.live.com/meet/9317804058155?p=3OxPhtrj39zfqYDWqY>

13:30 PM Outcome (The Disclosure or The Deal):



<https://teams.live.com/meet/9392336908714?p=ihT4rLnWK7HyYFlnds>

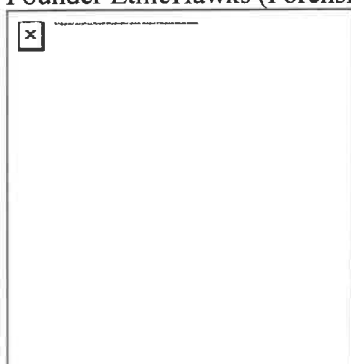
Scenario A (Settlement): 13:30 serves as a Victory Briefing for the 5% Member Deal. The Mahlangu RCA remains a private internal matter.

Scenario B (The Siege): 13:30 triggers the Full Forensic Disclosure of the R180 million daily leakage to Union legal teams for an immediate High Court Interdict.

The window for a private resolution closes at 13:24 tomorrow. I remain finished with silence.

Yours Professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 20:44
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: CLARIFICATION AND CORRECTION: Re: FINAL STATUTORY CLARIFICATION – Terminology Correction (No Withdrawal of Complaint)

Dear Recipients,

I am writing to clarify and correct a terminological imprecision in my previous correspondence dated 15 April 2026.

In my letters, I referred to 'R180 million daily clinical leakage.' Upon further refinement, I acknowledge that the word 'leakage' was imprecise.

The correct factual position is as follows:

The systemic integration gap between Gexus and DMS (proven in the attached Mahlangu RCA) causes misclassification of claims—specifically, chronic medication claims being paid from acute/day-to-day benefits.

This misclassification does not constitute 'leakage' in the strict forensic sense (i.e., money leaving the scheme incorrectly). Rather, it constitutes:

- Erosion of member day-to-day benefits
- Corruption of claims data
- Operational waste
- Plausible inflation of total claims spend

The R180 million figure refers to the average amount GEMS pays out in claims, not an amount lost to leakage.

The systemic gap contributes to the inflation of that R180 million spend, which in turn contributes to the 9.5% contribution increase.

I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint. The systemic failure documented in the Mahlangu RCA remains valid and warrants a forensic audit.

Yours professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)


NN

IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN
(Held at Cape Town)

Case No: 2026-077546

In the matter between:	
WILBUR WILLIAM MATTHEE	Applicant
and	
AFROCENTRIC HEALTH (RF) (PTY) LTD	Respondent
(Registration Number: 1996/009540/07)	

AFFIDAVIT OF SERVICE
(Rule 7 of the Labour Court Rules — Email Service)

I, the undersigned,

WILBUR WILLIAM MATTHEE

Adult male, Identity Number: 890903 5151 087

Registered Nurse (SANC No. 15831886)

Applicant (Self-Represented), residing in Cape Town, Western Cape

do hereby make oath and state as follows:

1. INTRODUCTION AND CAPACITY

1.1 I am the Applicant in the above-captioned proceedings, acting in my own capacity as a self-represented litigant. I am duly authorised to make this affidavit. The facts herein are within my personal knowledge unless otherwise stated, and are true and correct to the best of my knowledge and belief.

1.2 I make this affidavit in compliance with Rule 7 of the Rules for the Conduct of Proceedings before the Labour Court (GN 1665 of 14 October 2011, as amended), to confirm the service of the pleadings in Case No. 2026-077546 on the Respondent.

2. THE PROCEEDINGS

2.1 This case concerns a claim under section 77A of the Basic Conditions of Employment Act 75 of 1997 ("BCEA") for the unlawful salary deduction of R14,811.77 (representing 40.47% of gross monthly salary) effected by the Respondent in July 2025, in contravention of the 25% statutory cap imposed by section 34(2) of the BCEA.

2.2 The Notice of Motion and Founding in the above proceedings was filed with the Registrar of the Labour Court, Cape Town, on 13 April 2026,

3. AUTHORISED SERVICE ADDRESS OF RESPONDENT

3.1 The Respondent's authorised email address for service of documents in these proceedings is:

IR@afrocentrichealth.com

3.2 This email address was expressly stated by the Respondent's authorised representative, Mr Xolile Vincent Manyati (Senior Employee Relations Specialist, AfroCentric Health (Pty) Ltd), in the Respondent's Notice of Opposition of Condonation Application and Answering Affidavit dated 10 December 2025, filed in CCMA Case WECT23564-25. A copy of the relevant page of that document confirming the service address is attached hereto as

ANNEXURE "A"

4. SERVICE EFFECTED

4.1 On

13 April 2026

I dispatched by email to the address IR@afrocentrichealth.com the following documents:

- (a) The Statement of Claim filed in Case No. 2026-077546 (Matthee v AfroCentric Health (RF) (Pty) Ltd) — BCEA section 77A unlawful salary deduction claim;
- (b) All annexures referenced therein and forming part of the filed papers; and
- (c) This Affidavit of Service.

4.2 The email was sent from info@ethichawks.co.za and was delivered successfully to the Respondent's authorised service address. A copy of the email transmission and delivery confirmation is attached hereto as

ANNEXURE "B"

5. CONFIRMATION OF SERVICE

5.1 I confirm that service was effected by electronic mail as expressly provided by the Respondent as their chosen service address in the opposing affidavit, which constitutes valid service in terms of Rule 7(2)(b) of the Labour Court Rules, read with the authorisation given by the Respondent.

5.2 I submit that service has been duly effected and that the Respondent has been properly placed on notice of the proceedings in Case No. 2026-077546.

6. ANNEXURES

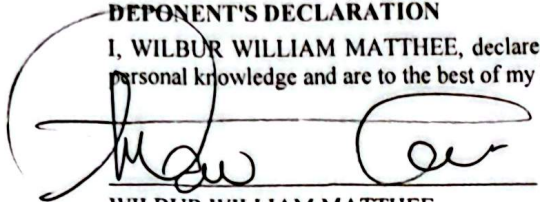
The following documents are attached to and form part of this Affidavit of Service:

Annexure "A": Notice of Opposition and Answering Affidavit of Mr Xolile Vincent Manyati, dated 10 December 2025 (CCMA Case WECT23564-25), confirming IR@afrocentrichealth.com as the Respondent's authorised service address.

Annexure "B": Email transmission record and delivery confirmation confirming service of the BCEA s77A Notice of Motion and Founding Affidavit on 13 April 2026.

DEPONENT'S DECLARATION

I, WILBUR WILLIAM MATTHEE, declare that the facts set out in this affidavit are within my personal knowledge and are to the best of my knowledge and belief true and correct.


WILBUR WILLIAM MATTHEE

Applicant / Deponent

info@ethichawks.co.za | Tel: 069 635 1435 / 063 378 8782

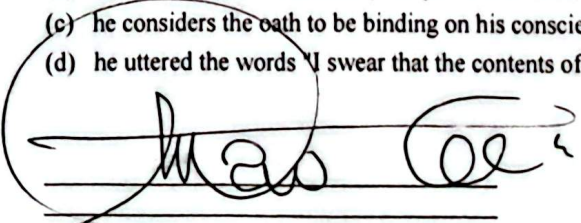
Signed at CAPE TOWN on ¹³ April 2026
WWM

COMMISSIONER OF OATHS

Full Name: BENJAMIN JAMES MASEMOLADesignation / Capacity: BD 25513Address: 18 DIGTEBY CRESCENT VOORBRUG DELFT

I certify that on this 13TH day of APRIL 2026, the deponent appeared before me and acknowledged that:

- (a) he knows and understands the contents hereof;
- (b) he has no objection to taking the prescribed oath;
- (c) he considers the oath to be binding on his conscience; and
- (d) he uttered the words "I swear that the contents of this declaration are true, so help me God."


DEPONENT

WILBUR WILLIAM MATTHEE

COMMISSIONER OF OATHS

Signed at CAPE TOWN on this 13TH day of APRIL 2026.

PASTOR BENJAMIN J. MASEMOLA
MARRIAGE OFFICER
COMMISSIONER OF OATHS
No. 18 DIGTEBY CRESCENT
VOORBRUG DELFT 7100
Cell: 082 991 0844



A N N E X U R E

“A”

NOTICE OF OPPOSITION OF CONDONATION
APPLICATION*Confirming Respondent's Authorised Email Service Address*

Forum	Commission for Conciliation, Mediation and Arbitration
Case Reference	WECT23564-25
Parties	Wilbur Matthee (Applicant) v Medscheme Holdings (Respondent)
Document Type	Notice of Opposition of Condonation Application
Deponent	Mr Xolile Vincent Manyati — Senior Employee Relations Specialist
Signed	Johannesburg, 10 December 2025
Authorised Service Email	IR@afrocentrichealth.com
Relevance	Paragraph 3.2 — Respondent's own designated service address

Referred to in paragraph 3.2 of the Affidavit of Service

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd · Case No: 2026-083299

IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION

Case Ref. Number: **WECT23564-25**

In the matter between

WILBUR MATTHEE**Applicant**

And

MEDSCHEME HOLDINGS**Respondent**

NOTICE OF OPPOSITION OF CONDONATION APPLICATION

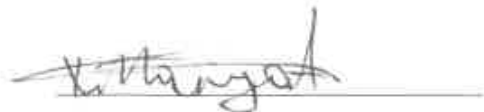
Your condonation application dated **05 December 2025**, is hereby acknowledged and refers.

In response to the condonation application by the applicant **BE PLEASED TO TAKE NOTE THAT** the Respondent hereby files its Notice of Opposition.

PLEASE TAKE FURTHER NOTE THAT the answering affidavit of **Mr XOLILE VINCENT MANYATI** will be used in support of this notice of opposition.

The respondent will accept all documents in this matter at the following email address:
IR@afrocentrichealth.com.

Signed at **Johannesburg** on the **10th** day of **December 2025**.

**XOLILE VINCENT MANYATI**

Respondent representative

A N N E X U R E

“B”

EMAIL TRANSMISSION RECORD — PROOF OF SERVICE

Electronic service effected 13 April 2026

Case Number	2026-083299
From	info@ethichawks.co.za (Wilbur William Matthee)
To (Primary)	ir@afrocentrichealth.com
To (Copy)	lebohang.mpumlwana@afrocentrichealth.com
Bcc	wilburmat@gmail.com (personal confirmation copy)
Date & Time	13 April 2026 at 10:03 PM SAST
Subject	Service of Statement of Claim — W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another
Read Receipt	blue tick (✓) — confirmed delivery
Relevance	Paragraph 4.2 — Proof of email service on Respondents

Referred to in paragraph 4.2 of the Affidavit of Service

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd · Case No: 2026-083299

**Service of Application – Wilbur William Matthee v
Afrocentric Health (RF) (Pty) Ltd & Medscheme Holdings
(Pty) Ltd – Case No: 2026-077546**

013-59
WWM2

Delivered



Wilbur William Matthee 10:03 PM
to ir, lebohang.mpumlwana, Bcc: wilburmat ✓



Dear Sirs / Madam

NOTICE OF SERVICE – LABOUR COURT APPLICATION

Please find attached the following documents on behalf of the Applicant, Mr Wilbur William Matthee, in the above-mentioned matter under Case No: 2026-077546:

1. Notice of Motion (pages 1–4)
2. Founding Affidavit of Wilbur William Matthee (pages 5–11)
3. Annexure A – Payslip July 2025 (page 14)
4. Annexure B – Human Capital Business Partner Policy extracts (page 16)
5. Annexure C – Written misrepresentation by Second Respondent's manager (page 18)

These documents are served on the First and Second Respondents in accordance with the Labour Court Rules and the Basic Conditions of Employment Act (BCEA) s34(1) and s34(2) read with s77A.

Please note that the Applicant will seek an order for the repayment of unlawfully recovered remuneration as set out in the Notice of Motion.

Kindly confirm receipt of this service in writing.

Yours faithfully

Sr. Wilbur W Matthee

Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)

Health Services Management.

Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za





Upgrade Plan



Latest activity

All

Opens

Insights

-
- one of the recipients** opened your email (26th time) 11 minutes ago
Statement of Claim 9 April 2026
-
- one of the recipients** opened your email (21st time) 11 minutes ago
Service of Application – Wilbur William Matthee v Afrocentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd – Case No: 2026-077546
-
- one of the recipients** opened your email (81st time) 11 minutes ago
Service of Statement of Claim – W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another (Case No: 2026-083299)
-
- one of the recipients** opened your email (31st time) 12 minutes ago
URGENT: Joint Ethical Ruling – 48-Hour Response Required – Exhausted Referral Chain (CMS → HPCSA → SANC → SAPC) – Imminent Life Threat [GEMS 000655789]
-
- one of the recipients** opened your email (80th time) 12 minutes ago
Service of Statement of Claim – W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another (Case No: 2026-083299)
-
- one of the recipients** opened your email (20th time) 12 minutes ago
Service of Application – Wilbur William Matthee v Afrocentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd – Case No: 2026-077546
-
- one of the recipients** opened your email (79th time) 13 minutes ago
Service of Statement of Claim – W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another (Case No: 2026-083299)
-
- one of the recipients** opened your email (25th time) 13 minutes ago
Statement of Claim 9 April 2026
-
- one of the recipients** opened your email (24th time) 19 hours ago
Statement of Claim 9 April 2026

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent

RESPONDENT'S ANSWERING AFFIDAVIT TO THE APPLICANT'S

SUPPLEMENTARY FOUNDING AFFIDAVIT

I, the undersigned,

WILBUR WILLIAM MATTHEE

do hereby make oath and state:

1. THE DEPONENT AND STATUS

- 1.1 I am the Respondent in this matter. I am an adult male, a Specialist Registered Nurse, a Health Services Manager holding a Postgraduate Diploma in Health Services Management (NQF Level 8) awarded with distinction, and the founder of Ethic Hawks.
- 1.2 I act in person. The facts contained in this affidavit fall within my personal knowledge, save where the context indicates otherwise, and are both true and correct.

2. PURPOSE OF THIS AFFIDAVIT

- 2.1 This affidavit is filed to answer the Applicant's Supplementary Founding Affidavit deposed to by Lebohang Shadi Matsipa Mpumlwana on 4 May 2026.

- 2.2 The primary objective of this affidavit is to expose a fatal corporate "shell game" executed by the Applicant. The Applicant seeks the equitable relief of a final interdict in this Honourable Court while systematically using its subsidiaries to commit perjury, withhold statutory exit documentation, and manipulate jurisdictions across the High Court and the Labour Court.
- 2.3 This affidavit incorporates a comprehensive Bare Denials Analysis and an itemised Schedule of Perjuries and Corporate Misrepresentations that strip the Applicant of standing (locus standi) and the requisite "Clean Hands" required for a final interdict.

3. PRELIMINARY LEGAL OBJECTION: LACK OF LOCUS STANDI & UNCLEAN HANDS

- 3.1 The Applicant, AfroCentric Investment Corporation Limited, is a listed holding company. Throughout its Supplementary Affidavit, the Applicant asserts that the Respondent was employed exclusively by a separate, distinct subsidiary: Medscheme Holdings (Pty) Ltd.
- 3.2 Paradoxically, the Applicant seeks a final interdict to suppress disclosures regarding systemic clinical and payroll integration gaps (the Gexus/DMS architectural flaws) on the basis that it has a "clear right" to protect proprietary operational systems.
- 3.3 The Applicant cannot have it both ways. If the underlying employment relationship, operational configurations, and statutory liabilities belong exclusively to Medscheme Holdings (Pty) Ltd to shield the holding company from liability, then the Applicant lacks the direct, substantial legal interest (locus standi) to seek a final interdict in its own name.
- 3.4 Furthermore, the Applicant approaches this court with "unclean hands." On 19 May 2026, corporate officials acting on behalf of the group filed a Statement of Response in the Labour Court (Case No: 2026-083299 / 2026-077546) stating under oath that they have "no knowledge" of these parallel proceedings. This directly contradicts the Group CEO Gerald Neville Van Wyk's High Court founding affidavit of 16 April 2026, which explicitly acknowledges the Labour Court litigation. This constitutes deliberate perjury across courts to mislead judicial officers.

SECTION B: SERVICE, FILING, AND THE APPLICANT'S JURISDICTIONAL DECEPTION

4. REBUTTAL TO THE ALLEGATIONS OF NON-SERVICE AND NON-FILING

- 4.1 In her Supplementary Affidavit, Ms. Mpumlwana paradoxically claims that the Applicant's attorneys (Deneys) "never received" my Notice of Intention to Oppose, while simultaneously admitting that I served my Answering Affidavit and Supplementary Answering Affidavit on them via email.
- 4.2 This is a disingenuous technical maneuver. As a self-represented, indigent litigant facing extreme administrative and financial destitution directly engineered by the Applicant's withholding of my salary and exit levies, I served the papers directly onto the active attorneys of record handling this matter, namely Frances Barker and Jason Whyte.
- 4.3 I furthermore effected filing by directly including the Chief Registrar of this Honourable Court, Ms. Nicola Hanekom, as a co-recipient on the transmission. To claim that my pleadings do not exist or have not been served—while Deneys actively compiles multi-page affidavits and practice notes specifically to answer those very pleadings—is a bad-faith distortion of reality designed to mislead the presiding Judge.
- 4.4 The Applicant attempts to leverage systemic administrative hurdles and Court Online synchronization latencies to suppress a substantive whistleblowing and human rights defence. This constitutes a severe violation of my constitutional right to a fair hearing and access to courts under Section 34 of the Constitution.

**SECTION C: REBUTTAL TO PARAGRAPH 177 — THE LEGAL
IGNORANCE OF THE APPLICANT**

**5. AD PARAGRAPH 177 OF THE SUPPLEMENTARY FOUNDING
AFFIDAVIT**

- 5.1 In Paragraph 177, Ms. Mpumlwana states under oath: "The respondent's reference to the Eastern Cape High Court, Bhisho (Case No. 148/2020) is incorrect. That matter is incomplete and relates to eviction proceedings which have no relevance to the present application."
- 5.2 Ms. Mpumlwana's assertion is legally illiterate and betrays a fundamental failure to comprehend the basic rules of civil procedure and the architecture of my pleadings.
- 5.3 As is plain from the text of my statement, Bhisho Case No. 148/2020 was not cited for its substantive facts or to litigate an eviction. It was explicitly cited alongside the Constitutional Court authority of Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC) as a procedural and jurisdictional anchor.
- 5.4 I introduced this authority to demonstrate a settled procedural fact: that a respondent may competently bring a substantive, unconditional Counter-

Application for standalone declaratory relief within the body of their Answering Affidavit, and that the High Court possesses the inherent jurisdiction to entertain it.

- 5.5 The Applicant's attempt to dismiss this citation on the basis that the Bhisho matter is "incomplete" or "relates to evictions" is a disingenuous strawman argument. The specific topic of that case does not alter the universal procedural rule it confirms.
- 5.6 By attempting to frame a clear procedural precedent as a factual "error," the Applicant seeks to distract this Honourable Court from the core reality: my Counter-Application is procedurally sound, is not conditional upon their main application, and remains alive for adjudication even if the Applicant flees from its own papers and attempts to withdraw this main application.

SECTION D: REBUTTAL OF THE "WILMA" INCIDENT (GENDER IDENTITY HARASSMENT)

6. AD PARAGRAPH 38.1: THE MARY-ANN JONES INCIDENT

- 6.1 In Paragraph 38.1, Ms. Mpumlwana misrepresents the facts surrounding the Microsoft Teams incident involving my former team leader, Mary-Ann Jones. The Applicant claims that the alteration of my name from "Wilbur" to "Wilma" was a simple typographical error, that I "laughed it off," and that I am now retroactively characterising this as gender identity discrimination as an afterthought for the Labour Court roll.
- 6.2 This is flatly untrue. I explicitly identified and called out this incident as a form of gender-based harassment and identity discrimination as a form of occupational detriment on the very day it occurred. It was never "laughed off" as an innocent joke; it was experienced and documented as a direct, hostile degradation of my identity and again to diminish my professional standing within the workplace.
- 6.3 The Applicant's internal HR department (via Ms. Mashele) attempted to paper over this event by circulating an email declaring the matter "resolved internally" following a forced apology. In reality, this event marked the initiation of a continuous, compounding pattern of institutional victimisation, professional downgrading, and psychological hostility that escalated immediately after I refused to stay silent regarding identity discrimination failures. It remains a core component of my ongoing occupational detriment claim.

SECTION E: CONTRADICTION OF STATEMENTS REGARDING PROFESSIONAL TITLE

7. THE JOB TITLE MANIPULATION (THE HIGH COURT VS. THE EXIT REALITY)

- 7.1 In her Supplementary Affidavit, Ms. Mpumlwana attempts to gloss over the administrative degradation inflicted upon me. The Applicant's executive structure, including statements supported by the Group CEO, has consistently relied on my senior professional appointment as a "Case Manager" within High Court filings to exaggerate the purported risk I pose regarding internal clinical systems and data management.
- 7.2 However, the objective corporate record tells a completely different, duplicitous story. When executing my exit documentation, the CCMA responses, and the statutory UI-19 forms submitted to the Department of Employment and Labour, the employer intentionally and unilaterally downgraded my professional designation to "Care Coordinator."
- 7.3 This manipulation was not an administrative oversight; it was a calculated attempt to diminish my professional status, downgrade my architectural involvement with the Gexus/DMS platforms, and undermine my institutional credibility before statutory bodies.
- 7.4 The Applicant cannot treat me as a highly placed senior specialist in the High Court for the purpose of painting me as an operational threat, while simultaneously devaluing my title to an administrative subordinate in labour forums to compromise my professional record and frustrate my statutory claims.

SECTION F: EXPOSING THE DEPUTY INFORMATION OFFICER'S FALSE DECLARATION

8. THE GEXUS/DMS SYSTEMIC INTEGRATION PERJURY

- 8.1 A cornerstone of Ms. Mpumlwana's supplementary deposition is her reliance on a statement by the Applicant's Deputy Information Officer, who purports to confirm under oath that no "systemic gap," "architectural vulnerability," or data exposure exists within the Gexus/DMS production environments.
- 8.2 This statement is patently false and constitutes a direct attempt to mislead this Honourable Court on a matter impacting public health data integrity and billions of Rands in systemic financial leakage (specifically regarding the Mahlangu RCA / APN 303 risk loading).
- 8.3 As a Specialist Nurse and Health Services Manager who actively operated within these environments, I recorded and escalated verified integration blind spots

where medical scheme member data, clinical validation flags, and payroll deductions fail to synchronise accurately.

- 8.4 By putting forward a blanket denial through the Deputy Information Officer, the Applicant is using an oath to execute a corporate cover-up of a known data and financial risk. They seek a final interdict to suppress a Protected Disclosure under the guise of protecting proprietary secrets, when in truth they are concealing structural non-compliance with the Protection of Personal Information Act 4 of 2013 ("POPIA").

SECTION G: AD SERIATIM RESPONSES

9. AD PARAGRAPHS 1 TO 4 THEREIN

- 9.1 The contents of these paragraphs are noted. I specifically deny that Ms. Mpumlwana holds uncontradicted personal knowledge of the operational realities within the subsidiaries, or that she has disclosed the full material facts to this Honourable Court.

10. AD PARAGRAPHS 5 TO 10 THEREIN

- 10.1 Save to admit the procedural history and the text of the rule nisi granted on 16 April 2026, the contents of these paragraphs are denied.
- 10.2 I specifically deny that my communications dated 14 and 15 April 2026 constitute criminal extortion.
- 10.3 As detailed below, the email of 15 April 2026 was a lawful, itemised financial quantification of a filed, pending statutory Labour Court Statement of Claim (filed 9 April 2026). This quantification was compiled and transmitted at the explicit written request of the Applicant's own attorneys of record, Deneys. It is an abuse of process to request a legal quantification and then flag that quantification as an act of extortion to obtain an emergency interdict.

11. AD PARAGRAPHS 11 TO 30 THEREIN (THE "EXTORTION" NARRATIVE)

- 11.1 The allegations contained in these paragraphs are false and are vehemently denied. The Applicant has intentionally stripped my communications of their legal context to engineer an artificial emergency.
- 11.2 My Statement of Claim in the Labour Court (Case No: 2026-077546) expressly reserved the right to quantify damages arising from occupational detriments and unfair labour practices. On 15 April 2026, Deneys sent an electronic inquiry stating that my claims were "unquantified."

- 11.3 My response on the afternoon of 15 April 2026 provided a mathematically precise, itemised schedule totalling R7,307,642.72, anchored strictly to statutory components: contractual breach, unpaid overtime, irregular payroll deductions, and compensation under the Protected Disclosures Act 26 of 2000 ("PDA").
- 11.4 The threat of a Protected Disclosures Act escalation to labour federations (PSA, NEHAWU, DENOSA) is a right expressly protected under Section 9 of the PDA. Internal escalation channels were entirely exhausted and actively choked when the Chief Risk Officer, Monwabisi Kula, issued a corporate gag order instructing me to "stop sending these emails."

12. AD PARAGRAPHS 31 TO 36 THEREIN (THE SALARY REDUCTION AND "RED HERRINGS")

- 12.1 The contents of these paragraphs are denied. The Applicant's characterisation of my salary reduction as a routine "no-work, no-pay" calculation is a deliberate misrepresentation.
- 12.2 The unilateral reduction of my salary was a direct, punitive response executing an occupational detriment after I escalated the Gexus/DMS integration gap—which exposes medical schemes to a R3.016 billion financial and clinical liability.
- 12.3 The payroll systems were manipulated to simulate a voluntary absence, completely ignoring my documented, uncontested psychiatric disability (severe PTSD and depression) validated by Dr. Jacques Malan. The Applicant cannot reduce an employee to destitution, withhold exit paperwork, and then claim in the High Court that the resulting disputes are "red herrings."

13. AD PARAGRAPH 37 THEREIN (THE "WIIMA" DATA INTEGRITY OVERLAP)

- 13.1 The contents of this paragraph are denied. The reference to the "WILMA" data event is not an external threat to corporate infrastructure; it is objective evidence of an internal data integrity breach and administrative chaos within the Applicant's systems. This constitutes a valid regulatory concern under POPIA, which I was legally obligated to report.

14. AD PARAGRAPH 38 (INCLUDING SUB-PARAGRAPHS 38.2 TO 38.5)

- 14.1 The contents of these paragraphs are denied. The Applicant's legal counsel argues that issuing a UI-19 reflecting anything other than "resignation" would be a fraudulent misrepresentation. This is an egregious distortion of the law.
- 14.2 My exit from the company was a constructive dismissal driven by intolerable occupational detriments following protected disclosures. Forcing an employee out and then rendering them administratively destitute by submitting an inaccurate "Resignation" code to the Department of Employment and Labour—thereby

blocking my lawful access to Unemployment Insurance Fund (UIF) benefits—is a statutory offence.

- 14.3 Due to the fraudulent manipulation of these statutory levies and exit documentation (including the withholding of the UIF June 2025), a formal criminal case has been registered under SAPS CAS 705/3/2026 (transferred to SAPS Woodstock). The Applicant lacks the clean hands necessary to seek equitable relief from this Honourable Court while its officials are under active criminal investigation for the exact same matrix of administrative conduct.

15. AD PARAGRAPHS 39 TO 45 THEREIN

- 15.1 The contents of these paragraphs are denied. I deny that the Applicant has established a clear right, an apprehension of irreparable harm, or the absence of an alternative remedy.
- 15.2 The Applicant's alternative remedy resides completely within the Labour Court and the pending statutory arbitrations. This High Court application is a classic Strategic Lawsuit Against Public Participation (SLAPP) designed to bankrupt and silence a self-represented whistleblower.

SECTION H: INCORPORATED SCHEDULE OF PERJURIES & BARE DENIALS

16. MATERIAL PERJURIES MATRIX

To assist this Honourable Court in assessing the credibility and standing of the Applicant, I set out the following direct contradictions made under oath by the Applicant's executive structure: (see Annexure SUO1)

No.	Forum & Document	Statement Under Oath	The Verifiable Reality / Contradiction
P1	High Court Founding Affidavit (16 Apr 2026)	Deponent states the Group is aware of and intends to handle all disputes via proper legal channels, referencing the Labour Court cases.	Statement of Response filed by Vijay Makenjee in the Labour Court on 19 May 2026 states under oath: "The Defendants are not aware of any further claim with case number 2026-077546."
P2	High Court Supplementary Affidavit (4 May 2026)	Claims the Respondent's job title and salary calculations were handled lawfully as a "Case Manager".	Certificate of Service and Exit UI-19 documentation deliberately downgraded the Respondent's title to "Care Coordinator" to diminish professional standing.

No.	Forum & Document	Statement Under Oath	The Verifiable Reality / Contradiction
P3	CCMA Opposing Affidavit (X.V. Manyati)	Alleges that the Respondent's documented PTSD and mental health deterioration was "an afterthought" and "an excuse".	The Applicant possessed comprehensive, independent medical reports from Dr. Malan dating back to mid-2025, which were actively ignored by HR executives.
P4	High Court Reply / Deputy Info Officer	Declares under oath that no architectural data vulnerabilities or Gexus/DMS systems integration gaps exist.	Internal technical escalations and the Mahlangu RCA record clear system non-synchronization, exposing members to a R3.016 billion financial liability.

17. STATUTORY PROTECTIONS & POPIA DEFENCE

- 17.1 The Applicant seeks to restrain me from communicating with statutory bodies, including the Information Regulator, regarding data breaches.
- 17.2 As the founder of Ethic Hawks and a registered healthcare professional, I am legally bound by statutory ethical codes and POPIA provisions to report systemic vulnerabilities that compromise patient records and public health funds. An interdict cannot be used to override a statutory duty to report corporate non-compliance to a Regulatory Authority.

SECTION I: COMPREHENSIVE PRAYER AND REFERRAL ORDERS

Wherefore the Respondent respectfully prays that the Honourable Court:

1. Dismisses the Applicant's application for the confirmation of the rule nisi with costs on an attorney-and-client scale;
2. Discharges the interim order granted on 16 April 2026 with immediate effect;
3. Grants the relief sought in the Respondent's Counter-Application, including a declaration that the disclosures made by the Respondent constitute protected disclosures under the Protected Disclosures Act 26 of 2000;
4. Refers the matter of the perjured statements filed in the Labour Court and this Honourable Court to the relevant authorities for investigation;
5. Orders the Applicant to provide the Respondent with all outstanding statutory exit documentation, including the correct UI-19 reflecting constructive dismissal, forthwith;

6. Orders costs against the Applicant on the attorney-and-client scale;
7. Grants such further and/or alternative relief as this Honourable Court deems fit.

DEPONENT

I certify that the deponent has acknowledged that he knows and understands the contents of this affidavit, that he has no objection to taking the prescribed oath, and that he considers the oath to be binding on his conscience.

Signed and sworn to before me at DELFT on this 25TH day of MAY 2026.

COMMISSIONER OF OATHS

Full name: BENJAMIN JAMES MASEMOLA

Designation: BD 25513

Address: 18 DIGTEBY CRESCENT VOORBRUG DELFT

PASTOR BENJAMIN J. MASEMOLA
 MARRIAGE OFFICER
 COMMISSIONER OF OATHS
 No. 18 DIGTEBY CRESCENT
 VOORBRUG DELFT 7100
 Cell: 082 891 0844

**IN THE LABOUR COURT OF SOUTH AFRICA
(HELD AT CAPE TOWN)**

CASE NUMBER 2026-083299

In the matter between:

WILBUR WILLIAM MATTHEE

Plaintiff

and

AFROCENTRIC HEALTH (PTY) LTD

First Defendant

MEDSCHEME HOLDINGS (PTY) LTD

Second Defendant

STATEMENT OF RESPONSE

Kindly take notice that the First and Second Defendant responds as follows to the Plaintiff's statement of claim:

AD PARA 1 TO 5 OF PART A THEREOF

1. The contents thereof are admitted, save to deny that the Defendants unlawfully deducted the Plaintiff's salary and unlawfully dismissed the Plaintiff.



2. The Plaintiff was on sick leave but had exhausted annual and sick leave. The principle of no work, no pay applied.
3. The Plaintiff resigned from the Second Defendant. The Defendants did not retaliate against the Plaintiff in any manner nor did the Second Defendant dismiss the Plaintiff.

AD PARA 6 OF PART A THEREOF

4. The Defendants are not aware of any further claim in the above honorable court with case number 2026-077546.

AD PARA 1 OF PART B THEREOF

5. The full and further particulars of the Plaintiff are unknown to the Defendants.
6. The Defendants deny rendering the Plaintiff destitute.

AD PARA 2 TO 3 OF PART B THEREOF

7. The contents thereof are admitted.

AD PARA 4 OF PART B THEREOF

8. The contents thereof are noted.

AD PARA 1 TO 2 OF PART C THEREOF

9. The contents thereof are admitted.

AD PARA 3 TO 6 OF PART C THEREOF



10. The contents thereof are denied. The Second Respondent offered a position to the Plaintiff with commensurate remuneration. The Plaintiff voluntarily accepted the position with full disclosure of the role title, rank and remuneration.
11. The Plaintiff provided services to Second Defendant, aligned to his role. These services were rendered voluntarily.
12. The Defendants deny committing any "bait-and-switch". The Defendants deny suppressing the Plaintiff's status in employment records or UIF declarations. The correct information as per the employment contract was declared to the relevant entities.

AD PARA 1 TO 4 OF PART D THEREOF

13. The contents thereof of denied.
14. The Plaintiff provided a letter stating that he suffered from PTSD and needed to attend further treatment for a period of two weeks.
15. The Second Defendant proposed that the Plaintiff work his hours in advance to allow him to take the time off to attend his treatment without impacting him financially.
16. Personal financial requests are not reasonable accommodation requests in relation to PTSD treatment. The Defendants are not registered financial institutions and do not grant loans.
17. The Defendants deny discriminating against the Plaintiff. The Plaintiff is put to the proof thereof.

AD PARA 1 TO 4 OF PART E THEREOF

18. The contents thereof are denied. There was no deduction made from the Plaintiff's salary in July 2025.
19. The Plaintiff had no leave due, he did not render services to the Second Defendant and the principle of no work, no pay applied.

AD PARA 1 TO 5 OF PART F THEREOF

20. Save to admit that a typographical error occurred, the contents thereof are denied, and the Plaintiff is put to the proof thereof.
21. In annexure K of the Plaintiffs statement of case Mrs Jones' message explained that no filtering was to be applied as the report came from HIU and it listed members who had not done their tests yet. This was a response to an operational matter, and it can in no objective manner be construed as harassment of any nature.
22. The Defendants admit that the Plaintiff lodged a formal complaint against Mrs Jones on 25 September 2025. The complaint was investigated and resolved with Mrs Jones apologising to the Plaintiff for her typographical error.
23. Annexure M of the Plaintiff's statement of case is confirmation of the Plaintiff's acceptance of the resolution of the matter. The matter was closed by 1 October 2025.

AD PART G TO I THEREOF

24. The contents thereof are denied, and the Plaintiff is put to the proof thereof.

25. The Plaintiff's proposal to review internal operational procedures did not constitute a protected disclosure. The matter was investigated, and a response was provided.
26. The Defendants deny retaliating against the Plaintiff in any manner or form for raising operational recommendations.
27. As per annexure N of the Plaintiff's statement of claim, page 84, The Plaintiff refused to contact a client after the investigation was complete, and he was reprimanded for insubordination.
28. The Defendants maintain that the Plaintiff's July 2025 salary aligned to the days worked in July 2025, this was in no manner linked to his request to review an internal operational procedure.

AD PARA 1 TO 6 OF PART J THEREOF

29. The contents thereof of denied. The Defendants undertook to investigate the Plaintiff's grievance and provided timelines for same. The Plaintiff was not satisfied with the timeline and opted to resign from the Second Defendant before allowing the investigation to conclude.
30. The Second Defendant repeatedly explained the Plaintiff's July 2025 salary to him. That is the true cause of his Labour Court action, but he failed to accept and understand that he is not entitled to payment for no work.

AD PARA 1 TO 3 OF PART K THEREOF

31. The contents thereof are denied. The Defendant's Employee Relations team filed an affidavit opposing the Plaintiff's condonation application.

32. The Plaintiff's subjective interpretation of the opposing affidavit does not override the objective legal intent of same.

AD PARA 1 TO 6 OF PART L THEREOF

33. Save to admit that the Plaintiff resigned from the Second Defendant, the contents thereof are denied for the reasons set out herein.

AD PARA 1 TO 4 OF PART M THEREOF

34. The contents thereof are denied. The Defendants are not responsible for the Plaintiffs inability to meet his financial obligations.

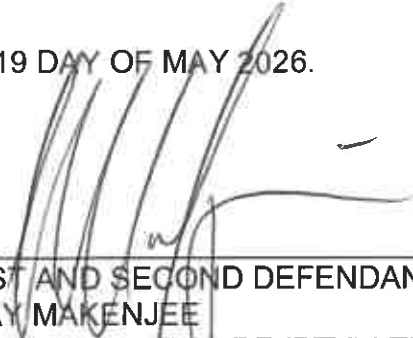
AD PARA 1 TO 2 OF PART O THEREOF

35. The contents thereof are denied. Acknowledgement of complaints does not corroborate the allegations contained therein.

AD PART P TO Q THEREOF

36. The Plaintiff was not dismissed from the Defendants; no unlawful deduction was made from the Plaintiff's July 2025 salary and the certificate of service issued to the Plaintiff is correct.
37. The Plaintiff has no viable cause of action against the Defendants. It is unsubstantiated, unfounded, frivolous and vexatious.
38. The action must accordingly be dismissed with costs granted in favour of the Defendants.

SIGNED AT ROODEPOORT ON THIS THE 19 DAY OF MAY 2026.



FIRST AND SECOND DEFENDANT
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obo AFROCENTRIC RF (PTY) LTD
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FLORIDA NORTH
1709
Email:
vijay.makenjee@afrocentrichealth.com

TO: THE REGISTRAR OF THE COURT
CAPE TOWN
Flsmail@judiciary.org.za

AND TO: WILBUR MATTHEE WILLIAM MATTHEE
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Email: info@ethichawks.co.za

**IN THE LABOUR COURT OF SOUTH AFRICA
(HELD AT CAPE TOWN)**

CASE NO: 2026-083299 CONCURRENT CASE NO: 2026-077546

In the matter between:

WILBUR WILLIAM MATTHEE
(Plaintiff / Applicant)

and

AFROCENTRIC HEALTH (PTY) LTD
(Registration No: 1996/009540/07)
(First Defendant / Respondent)

MEDSCHEME HOLDINGS (PTY) LTD
(Second Defendant / Respondent)

**PLAINTIFF'S REPLICATION TO THE DEFENDANTS' STATEMENT OF
RESPONSE**

The Plaintiff, appearing in person, hereby replies as follows to the Defendants' Statement of Response dated 19 May 2026:

**1. THE THRESHOLD SPECIAL DEFENCE: PLEADING A NULLITY AND
CORPORATE IDENTITY MISREPRESENTATION**

1.1 The First Defendant explicitly cited by the Plaintiff in these proceedings is **AFROCENTRIC HEALTH (PTY) LTD** (Registration Number: 1996/009540/07).

1.2 The Statement of Response filed on 19 May 2026 is signed by Mr. Vijay Makenjee, who explicitly purports to execute the signature block on page 7 "*obo AFROCENTRIC RF (PTY) LTD*".

1.3 AFROCENTRIC RF (PTY) LTD is a completely separate legal entity and is not a cited party to these proceedings. A corporate official cannot legally enter a plea or defence on behalf of an un-cited corporate entity to answer dynamic statutory and common-law claims levied against an entirely different subsidiary.

1.4 Furthermore, the Statement of Response is fundamentally fatal as it stands completely devoid of a **Verifying Affidavit** under oath. Rule 6 of the Labour Court Rules mandates that a Statement of Response must be verified under oath by a designated corporate officer possessing direct, first-hand personal knowledge of the operational facts.

1.5 In its current form, the document represents nothing more than an unsworn piece of paper signed on behalf of an outside entity. It constitutes a procedural nullity, fails to place any admissible evidence before this Honourable Court, and must be struck out in its entirety.

2. FATAL SELECTIVE SILENCE AND IMPLIED ADMISSIONS OF OCCUPATIONAL DETRIMENT

2.1 The Plaintiff notes that the Defendants' Statement of Response consists of blanket, superficial denials and retreats into total, calculated silence on material factual averments that form the absolute core of the Plaintiff's claim of an intolerable work environment and occupational detriment.

2.2 Under the rules of pleading and the established jurisprudence of South African courts, allegations of fact that are not specifically denied, engaged with, or meaningfully answered by a respondent are deemed to be admitted as a matter of law.

2.3 The "Wilma Incident" Silence: The Defendants completely fail to address, deny, or answer the specific, documented operational incidents involving Wilma, which directly initiated the targeted psychological hostility, workplace gaslighting, and systematic isolation faced by the Plaintiff.

2.4 The 30+ Day Executive Silence: The Defendants fail to provide any legal, operational, or contractual justification for the prolonged period of more than 30 days of total administrative and corporate silence following the Plaintiff's formal escalation of critical workplace grievances. This complete abandonment of internal dispute resolution mechanisms objectively demonstrated to the Plaintiff that no internal remedy was available and that the employment relationship had been broken by management.

2.5 The CEO's Confidentiality Breach: The Defendants offer no denial, counter-narrative, or explanation regarding the severe breach of confidentiality committed by the Group Chief Executive Officer, who compromised the integrity of the Plaintiff's protected escalations.

2.6 By retreating into selective silence on these pivotal statutory and constitutional violations, the Defendants have failed to establish a triable issue on whether they created an intolerable workplace. Their calculated silence stands as an implied admission of the operational toxicity that forced the Plaintiff's constructive dismissal.

3. DEMONSTRABLE PERJURY AND JURISDICTIONAL DECEPTION (THE CASE NUMBER COLLISION)

3.1 In **Paragraph 4 (Ad Para 6 of Part A)** of their Statement of Response, signed by Vijay Makenjee on 19 May 2026, the Defendants state under oath:

"The Defendants are not aware of any further claim in the above honorable court with case number 2026-077546."

3.2 This statement is factually false, fraudulent, and constitutes a clear attempt to commit perjury to mislead this Honourable Court.

3.3 On **16 April 2026**, in parallel urgent proceedings before the Western Cape High Court (Case No: 2026-086906), the Group Chief Executive Officer of the Applicant's parent corporate structure, **GERALD NEVILLE VAN WYK**, deposed to a Founding Affidavit under oath. In those High Court proceedings, the Group CEO explicitly acknowledged the existence of the dynamic statutory and financial disputes regarding the Plaintiff's remuneration and represented that the corporate structure intended to defend *both* specialised actions before the Labour Court. (*See Annexure WWM1*)

3.4 Furthermore, the Plaintiff's specialised Application for Repayment of Unlawfully Recovered Remuneration under **Case No: 2026-077546** was formally served via electronic mail directly upon the Group Company Secretary and Head of Legal Counsel, **Lebohang Shadi Matsipa Mpumlwana**, on

13 April 2026 at 22:03. The automated electronic delivery tracking and read receipts confirm that executive corporate legal counsel received and opened the application bundle twenty one (21) times prior to the filing of this Response. (See Annexure WWM2)

3.5 For the Defendants to subsequently assert under oath on 19 May 2026 that they *"are not aware"* of Case No: 2026-077546 is a bad-faith deception. The corporate entity is attempting to play blind in the Labour Court to avoid default consequences, directly contradicting the sworn acknowledgments made by its own Group CEO in the High Court. By failing to enter a legitimate appearance to defend Case No: 2026-077546 within the mandatory 10-day statutory period, the material facts within that file stand completely unopposed and ripe for adjudication.

4. THE UNCONTRADICTED STATUTORY CEILING VIOLATION, FACTUAL MISREPRESENTATION, AND MALICIOUS POLICY VIOLATION (THE RETROSPECTIVE JULY DECEPTIONS)

4.1 In **Paragraph 2 (Ad Para 1 to 5 of Part A)** and **Paragraph 28** of their Statement of Response, the Defendants state under oath:

"The Plaintiff was on sick leave but had exhausted annual and sick leave. The principle of no work, no pay applied." "The Defendants maintain that the Plaintiff's July 2025 salary aligned to the days worked in July 2025..."

4.2 The Plaintiff avers that this statement is bad in law and constitutes a flagrant factual misrepresentation explicitly designed to mislead this Honourable Court.

4.3 The Defendants assert that the July 2025 salary reduction was an automatic operational *"alignment to days worked in July 2025."* This is mathematically and operationally impossible. The Plaintiff's minor, documented absences in July 2025 consisted strictly of 1 to 3 isolated days utilised to attend medical appointments following his discharge from hospital.

4.4 Had the Defendants genuinely applied a live, real-time *"no work, no pay"* alignment strictly for the days missed in July 2025, the total operational deduction would have been limited to a minor fraction of his earnings (representing approximately 1 to 3 daily operational units).

4.5 Instead, the Defendants processed a massive, destructive extraction totalling **R14,811.77**. The sheer volume of this extraction demonstrates that the July 2025 payslip was weaponised to execute a retrospective clawback for historical, disputed days stretching back into the preceding months of May and June 2025.

4.6 The true operational context of this extraction demonstrates malice. Immediately upon the Plaintiff's physical discharge and return to work from a registered Mental Health Institution (where he was treated for severe PTSD and depression), the Second Defendant's management aggressively bypassed a humane, structured back-to-work reintegration. Instead of allowing the Plaintiff a reasonable window to resettle into his occupational functions, management immediately forced an adversarial meeting to confront him.

4.7 During this meeting, the Plaintiff was brutally honest regarding his acute psychiatric vulnerability, his financial constraints, and his desperate need for structural stability. In response to this medical disclosure, the Second Defendant's manager issued a hostile follow-up electronic mail message actively misrepresenting corporate protocols, stating: *"We don't allow staggering. We are not a loan company."* (See Annexure H in Statement of claim)

4.8 The statement that the corporate structure *"does not allow staggering"* is a demonstrable, written deception. The Defendants' own operative Human Capital Business Partner (HCBP) Policy explicitly mandates that any payroll corrections or historical leave recoveries must be handled via a structured consultation process, with an express provision allowing for staggered recoveries over multiple pay cycles to preserve an employee's basic livelihood. (See Annexure J in Statement of claim)

4.9 By attempting to disguise a massive, retrospective historical clawback as a real-time current-month alignment, and by deploying a hostile administrative narrative (*In Paragraph 16*["and do not grant loans.", "**WE DO NOT ALLOW STAGGERING**"]) to deny a vulnerable employee the protection of their own internal policy, the Defendants have exposed the targeted, retaliatory nature of their payroll administration.

4.10 Even if the Defendants mistakenly believed they possessed a unilateral right to recover historical days from May and June, they were strictly bound by Section 34 of the Basic Conditions of Employment Act 75 of 1997 ("BCEA"). Section 34(1) strictly prohibits any reduction from an employee's remuneration without express written consent. The Plaintiff at no stage provided written consent for this financial extraction.

4.11 Crucially, Section 34(2) of the BCEA establishes an absolute statutory ceiling, explicitly dictating that even where a retrospective recovery is legally permissible to correct an operational leave balance or overpayment, the total aggregate amount of the reduction **may not exceed one-quarter (25%)** of the employee's gross monthly monetary remuneration.

4.12 The Plaintiff's verified July 2025 payslip (*see Annexure I of statement of claim*) reflects an unlawful configuration completely outside the boundary of the law:

- Contractual Gross Normal Earnings: R36,588.81
- Retrospective Recovery Reductions: R14,811.77
- Effective Remuneration Reduction Percentage: **40.47%**

4.13 By formally admitting they executed a recovery that stripped away **40.47%** of an employee's monthly livelihood in a single pay cycle — under the false pretence of a live monthly alignment, while actively lying about internal policy provisions — the Defendants have placed an *ex facie* illegal act before this Court.

4.14 This Honourable Court possesses no equitable or judicial discretion to condone an express violation of Section 34(2), nor can it validate a defence built on an objective factual falsehood. The statutory 25% boundary is absolute and immutable. A deduction of 40.47% is illegal on its face, rendering the recovery an unlawful expropriation of remuneration as an absolute matter of law. Liability is fully established on the face of the papers.

5. THE REJECTION OF THE WEAPONISED "INSUBORDINATION" REPRIMAND

5.1 In **Paragraph 26**, the Defendants introduce a disciplinary narrative, asserting that the Plaintiff was "*reprimanded for insubordination*" because he refused an instruction to directly engage with a client after an internal investigation.

5.2 The Plaintiff fiercely denies that this reprimand constituted a lawful or reasonable operational action. The record demonstrates that this disciplinary charge was retroactively weaponised against the Plaintiff *only after* he escalated Protected Disclosures regarding systemic clinical integration defects within the Gexus-DMS architecture. (*See Annexure N date of statement of claim 23rd October 2025 See Annexure O date of statement of claim 31 October 2025 "Insubordination reprimand on the 31st October 2025 for 23rd October 2025 protected disclosure."*)

5.3 The instruction given to the Plaintiff was an unlawful and unethical command to interface with a client for the purpose of managing, obscuring, or smoothing over un-remedied system errors that resulted in erroneous non-adherence letters being sent to vulnerable medical scheme beneficiaries.

5.4 In South African employment law, an employee is only bound to obey instructions that are lawful, reasonable, and ethical. Refusing to participate in corporate obfuscation or to validate an unresolved operational gap does not constitute actionable insubordination. The reprimand was a textbook act of occupational detriment and workplace retaliation in direct violation of the Protected Disclosures Act 26 of 2000 ("PDA").

6. THE UNTENABILITY OF THE CONSTRUCTIVE DISMISSAL DENIAL

6.1 In **Paragraphs 29 and 33**, the Defendants deny creating an intolerable work environment and assert that the Plaintiff resigned prematurely while internal grievance timelines were still unfolding.

6.2 The Plaintiff rejects this assertion. Under prevailing labour jurisprudence, a self-represented employee is not required to endure structural destitution, bad-faith delays, and medical hostility indefinitely while an employer deploys strategic, administrative inertia.

6.3 The intolerability of the environment must be assessed objectively. The Defendants actively subjected the Plaintiff to a severe 40.47% financial reduction, stripped away his means of physical survival, ignored critical medical correspondence regarding his diagnosed PTSD and severe depression, and permitted their Employee Relations department to file sworn text labelling his psychiatric condition a subjective interpretation.

6.4 Expecting an employee with a formally disclosed mental health disability to remain embedded in an environment characterised by severe financial deprivation and weaponised psychological attacks is objectively unconscionable. The Defendants' systemic conduct and profound structural neglect rendered the continuation of the employment relationship entirely intolerable, satisfying the full statutory criteria for a constructive dismissal under Section 186(1)(e) of the Labour Relations Act 66 of 1995.

7. CONCLUSION AND PRAYER FOR RELIEF

7.1 The Defendants' Statement of Response is procedurally dead on arrival for lack of a verifying affidavit and for being signed on behalf of an un-cited, non-party entity. Substantively, it collapses into a direct liquidated admission of an illegal 40.47% remuneration reduction under the BCEA, built upon an objective factual misrepresentation regarding the Plaintiff's July 2025 attendance.

7.2 There is no valid, sworn triable defence placed before this Honourable Court by the Respondents to counter the clear, documented, and statutory violations presented by the Applicant.

WHEREFORE the Plaintiff persists in the claims set out in his Statement of Claim and prays for an order:

IN RESPECT OF THE THRESHOLD PROCEDURAL APPLICATION:

1. Striking out the Defendants' Statement of Response dated 19 May 2026 as a procedural nullity, on the grounds that it is unverified by affidavit and purports to have been filed on behalf of a non-cited juristic entity, namely AfroCentric RF (Pty) Ltd.

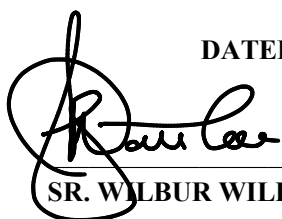
IN RESPECT OF THE CONCURRENT APPLICATION (CASE NO: 2026-077546):

2. An order declaring that the deduction of **R14,811.77** from the Plaintiff's remuneration on 23 July 2025 was unilateral, unlawful, and in direct contravention of Section 34(1) and Section 34(2) of the Basic Conditions of Employment Act 75 of 1997;
3. An order compelling the First and Second Defendants, jointly and severally, the one paying the other to be absolved, to make immediate repayment of the sum of **R14,811.77** to the Plaintiff;

4. An order directing the Defendants to pay interest on the said sum of **R14,811.77** at the prescribed legal rate calculated from 23 July 2025 to the date of final payment;

IN RESPECT OF THE MAIN STATEMENT OF CLAIM (CASE NO: 2026-083299):

5. An order declaring that the resignation of the Plaintiff constitutes a Constructive Dismissal in terms of Section 186(1)(e) of the Labour Relations Act 66 of 1995, actively rendered intolerable by the continuous operational and financial misconduct of the Defendants;
6. An order declaring that the Plaintiff's constructive dismissal constitutes an **Automatically Unfair Dismissal** in terms of Section 187(1)(h) of the Labour Relations Act 66 of 1995, having been executed as a targeted occupational detriment in direct retaliation for making Protected Disclosures in terms of the Protected Disclosures Act 26 of 2000;
7. An order compelling the Defendants to pay compensation to the Plaintiff equivalent to **24 (twenty-four) months' remuneration**, calculated at the Plaintiff's full gross contractual rate, as provided for under Section 194(3) of the Labour Relations Act 66 of 1995;
8. An order directing the Defendants to issue a corrected and legally compliant Certificate of Service to the Plaintiff; and
9. An order granting costs against the Defendants on a highly punitive attorney-and-client scale due to their cross-jurisdictional deception, bad-faith pleading omissions, and systemic procedural misconduct.



DATED AT CAPE TOWN ON THIS THE 19TH DAY OF MAY 2026

SR. WILBUR WILLIAM MATTHEE

Plaintiff / Applicant in Person

15 Bellevue Street, Voorbrug, Cape Town, 7001

Email: info@ethichawks.co.za

TO: THE REGISTRAR OF THE LABOUR COURT, Cape Town

AND TO: DENEYS REITZ ATTORNEYS / DE COMPAGNE ATTORNEYS

Defendants' Attorneys of Record

Per: Jason J Whyte

Email: jason.whyte@deneys.co.za / IR@afrocentrichealth.com

Ref: AFR1282

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Case No:

In the matter between:

Afrocentric Investment Corporation Limited
(Reg: 1988/000570/06)

Applicant

and

Wilbur William Matthee

Respondent

FOUNDING AFFIDAVIT

I, the undersigned,

GERALD NEVILLE VAN WYK

do hereby make oath and state that:

- 1 I am an adult male and employed by Afrocentric Investment Corporation Limited as Group Chief Executive Officer. I confirm that I am duly authorised by the applicant to depose hereto on its behalf.
- 2 Save where the context indicates to the contrary, the facts contained herein fall within my own personal knowledge and belief and are true and correct. Given the urgency of the proceedings, certain facts set out herein may constitute hearsay evidence. I do, however, seek the leave of this Honourable Court to have such evidence admitted subject to same being appropriately supported by further affidavits, if necessary, on the return date of the *rule nisi*.



- 3 I reserve the right to supplement this affidavit by the submission of oral evidence, should this Honourable Court consider such evidence to be necessary. I further specifically reserve the right to supplement these papers in the event of the respondent opposing the relief sought.
- 4 Where I make submissions of a legal nature I do so on the advice of the applicant's attorneys of record, which advice I believe to be correct.
- 5 This affidavit is deposed to in support of the Notice of Motion attached hereto and in which the applicant seeks a *rule nisi* calling upon the respondent to show cause why he should not be interdicted and restrained from carrying out the unlawful threats contained in his emails of 14 and 15 April 2026.

Parties

- 6 The applicant is Afrocentric Investment Corporation Limited (the **Company**), a public company duly registered and incorporated in terms of the company laws of South Africa. Its registered head office is situated at 37 Conrad Street, Florida North, Roodepoort, 1709. It is the holding company of the AfroCentric Group, which includes, *inter alia*, Medscheme Holdings (Pty) Ltd (**Medscheme**) and its various divisions.
- 7 The respondent is Mr Wilbur William Matthee, an adult male with ID No: 8909035151087, and a former employee of Medscheme, residing at 15 Bellevue Street, Voorbrug, Cape Town, 7001. His email address is info@ethichawks.co.za.


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The purpose of this application

- 8 The purpose of this application, which is brought on an urgent basis, is to obtain a *rule nisi* calling upon the respondent, Mr Wilbur William Matthee, to show cause why he should not be interdicted and restrained from carrying out certain threats contained in emails sent by him on 14 and 15 April 2026.
- 9 In those emails, the respondent issued an ultimatum to the applicant, threatening to disclose clearly confidential information, inclusive of a “forensic payload” to trade unions; to release a public statement naming the applicant’s directors and regulators; and to file vexatious complaints with the JSE and other bodies – all conditional upon the payment of a settlement sum of R7,307,642.72. These threats are not genuine protected disclosures, they are made in bad faith and are extortionate in nature. If carried out, they will cause immediate and irreparable harm to the applicant, its subsidiaries and related entities, as well as to clients, particularly the Government Employees Medical Scheme (**GEMS**).
- 10 Given the extreme urgency of the matter, the applicant seeks only a rule nisi operating as an interim interdict with immediate effect, together with a timetable for the supplementation of papers and the filing of opposition, with the matter to return to court for the hearing of final relief on a date to be determined.



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- 11 The purpose of this application is not to prejudice the respondent's rights, but to afford the applicant an interim and temporary protection of its rights pending a full ventilation of the disputed issues.

Background

- 12 The respondent was employed by Medscheme as a Care Coordinator from 1 May 2024, based at The Boulevard, Searle Street, Woodstock, Cape Town.

- 13 It is necessary to explain the relationship between the applicant, Medscheme, and GEMS to this Honourable Court, as this relationship is central to the threatened harm.

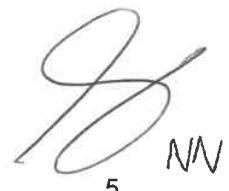
- 13.1 GEMS is a medical scheme established for government employees in the Republic of South Africa. It is one of the largest medical schemes in the country, serving approximately 1.9 million beneficiaries.

- 13.2 GEMS is not a subsidiary or division of the applicant. It is a separate entity governed by its own Board of Trustees, which is entirely unrelated to the applicant's Board of Directors. Medscheme, a wholly-owned subsidiary of the applicant, is an accredited third-party administrator and managed care organisation of medical schemes registered under the *Medical Schemes Act, 1998*.

- 13.3 In that capacity, Medscheme provides some administration and managed care services the GEMS medical scheme – that is, it processes medical claims, manages clinical programmes, and provides contribution and debt

services to GEMS and its beneficiaries. GEMS is accordingly one of Medscheme's clients.

- 13.4 The respondent was employed by Medscheme in a position in which he acted as a case manager dealing with the clinical claims of GEMS members.
- 14 During his employment, the respondent was admitted to the Akeso Stepping Stones Clinic on or about 18 March 2025 for inpatient treatment for severe depression and post-traumatic stress disorder. His treating psychiatrist certified him unfit for work. The respondent's initial treatment period of three weeks was extended to six weeks.
- 15 Following his hospitalisation, the respondent's sick leave and annual leave entitlements were exhausted. In accordance with the no work no pay principle, the respondent was placed on unpaid leave for the period in which he was absent from work.
- 16 In July 2025, the respondent's salary was reduced to reflect the unpaid leave recovery. The respondent took issue with the amount of the deduction and raised a grievance with the company's human resources department.
- 17 The respondent thereafter raised various further grievances including complaints about alleged discrimination, victimisation, and other workplace issues. He demanded that immediate steps be taken to address his complaints.



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- 18 When the company's internal processes did not produce the outcome he desired within his self-imposed timeframes, he began an extensive campaign of vexatious complaints to multiple external bodies.
- 19 On 5 December 2025, the respondent referred a dispute to the CCMA (Case Number WECT23564-25) regarding alleged unfair labour practices.
- 20 On 12 December 2025, the respondent resigned from his employment.
- 21 On 19 December 2025, the respondent referred a second dispute to the CCMA (Case Number WECT24486-25) for allegedly automatically unfair constructive dismissal.
- 22 Conciliation was held on 9 January 2026. Certificates of non-resolution were issued in respect of both disputes.
- 23 Following his resignation, the respondent sent numerous emails to the applicant's directors and board members, making various untrue and defamatory allegations and demands. He also filed complaints with multiple regulatory bodies including the South African Human Rights Commission, the JSE, the B-BBEE Commission, the Council for Medical Schemes, the Department of Employment and Labour, and the South African Police Service.
- 24 On or about 19 March 2026, the respondent filed an urgent application in this Honourable Court (Case Number 2026-066952) seeking, *inter alia*, declarations of director delinquency under section 162 of the Companies Act, 2008 against certain of the applicant's directors. That application was


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heard on 25 March 2026 and was struck from the roll for lack of urgency, with costs awarded against the respondent on Scale C.

- 25 The respondent has since referred two separate matters to the Labour Court: Case Number 2026-077546 (a claim under section 77A of the Basic Conditions of Employment Act for alleged unlawful salary deduction) and Case Number 2026-083299 (a statement of claim filed on 9 April 2026 alleging automatically unfair constructive dismissal and related claims).
- 26 The applicant intends to defend those Labour Court proceedings in due course.
- 27 As the records in the aforementioned three matters are voluminous, I have not attached same, but seek the leave of the Court to do so when this application is moved.

The threatening emails

- 28 On 14 April 2026 at 22h38, the respondent sent an email to the applicant's Group Company Secretary, Ms Lebohang Mpumlwana, with the subject "FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION". A copy is annexed hereto marked **GVW1**.
- 29 In that email the respondent, *inter alia*:
- 29.1 stated that he had "*nothing left to lose*" and was "*deploying every forensic and statutory weapon at my disposal*";



NN 7

- 29.2 set a deadline of 13h24 on Thursday 16 April 2026, after which he would proceed with *"immediate execution without further notice"*;
- 29.3 threatened to hold a *"Union Priming Session"* at 11h30 on 16 April 2026 with the leadership of PSA, NEHAWU, and FEDUSA to *"prime the union structures for a major forensic disclosure"*;
- 29.4 threatened a *"Public Execution of Disclosure"* at 13h30 whereby he would hand over the "Mahlangu RCA" and what he calls a *"forensic payload"* to union representatives;
- 29.5 threatened to brief unions that their members are *"subsidising a suppressed R180 million daily leak via the 9.5% premium hike"*;
- 29.6 threatened to file formal complaints for *"Material Non-Disclosure and Market Deception"* with the JSE and the Companies and Intellectual Property Commission;
- 29.7 threatened to release a *"Whistleblower's Manifesto"* – a public statement *"naming every director and regulator who chose corporate concealment over their fiduciary duty"*;
- 29.8 threatened to challenge the audit integrity of the applicant's Integrated Report and to file a notice with the Independent Regulatory Board for Auditors; and
- 29.9 demanded, as a condition for not carrying out these threats: statutory rectification, *"Solatium & Professional Rehabilitation"*, and a *"10-Year Psychological Indemnity"*.


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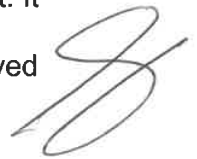
- 30 On 15 April 2026, the applicant's attorneys of record, Deneys, sent a cease-and-desist letter to the respondent calling on him to withdraw his threats by 17h00 that day. A copy is annexed hereto marked **GVW2**.
- 31 On 15 April 2026 at 13h19, the respondent replied to the cease-and-desist letter. He asserted that his communications were "*Protected Disclosures under the PDA and the Companies Act*" and stated that he was "*not extorting the Board*". He did not withdraw his threats. A copy of his reply is annexed hereto marked **GVW3**.
- 32 On 15 April 2026 at 15h43, the respondent sent a further email quantifying his settlement demand at R7,307,642.72, broken down as follows: Direct Restitution R1,027,107.12; Property Loss R145,000.00; "*Professional Death Compensation*" R5,135,535.60; Clinical Provision R750,000.00; and Statutory Costs R250,000.00. He confirmed that liaison sessions with PSA, NEHAWU, DENOSA, and POPCRU had been "*formally issued*".
- 33 He presented two scenarios: Scenario A (Settlement) whereby the "*Mahlangu RCA remains a private internal matter*", or Scenario B ("*The Siege*") triggering "*Full Forensic Disclosure*" to union legal teams. A copy is annexed hereto marked **GVW4**.
- 34 Later that same evening, at 20h44, the respondent sent a fourth email to the applicant's attorneys. In this email, the respondent noted that his characterisation of "*R180 million daily clinical leakage*" was "*imprecise*". He acknowledged that the R180 million figure "*refers to the average amount GEMS pays out in claims, not an amount lost to leakage*".


9 NN

- 35 However, he did not withdraw his threats or his settlement demand, stating
*"I do not withdraw my complaint. The systemic failure documented in the
Mahlangu RCA remains valid and warrants a forensic audit."* A copy is
annexed hereto marked **GVW5**.
- 36 Significantly, the respondent's concession in this fourth email undermines
the very foundation of the sensational claims he has been threatening to
publish. By his own admission, the "*R180 million*" figure that he has been
using to threaten union briefings, JSE complaints, and public statements
does not represent money lost to any "*leakage*" or fraud, but simply the
ordinary daily claims expenditure of GEMS.
- 37 The respondent's willingness to deploy misleading and inflammatory
characterisations is itself indicative of the bad faith that pervades his
conduct.

The applicant's concerns

- 38 The applicant does not know what the "*Mahlangu RCA*" is or what the
"*forensic payload*" contains. It presumes that these may contain
confidential and proprietary information belonging to the applicant or its
subsidiaries, obtained by the respondent during his employment.
- 39 The applicant has been able to establish, through the respondent's own
Labour Court Statement of Claim filed on 9 April 2026 (Case Number
2026-083299), that the so-called "*Mahlangu RCA*" likely refers to a
Gexus/DMS root cause analysis relating to a GEMS member complaint. It
pertains to a complaint from a member of the GEMS scheme who received


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a non-adherence letter which the respondent contends was generated by a system integration error between the Gexus and DMS platforms operated by Medscheme.

40 “Gexus” and “DMS” are two separate software systems operated by Medscheme to service GEMS. In broad terms, Gexus is a scheme specific instance of the Nexus administration platform supporting the GEMS’s chronic care medicine, including chronic adherence, debt and contribution management functions, while the Disease Management System (DMS) is a specialist clinical platform managing structured disease programmes and care pathways for conditions such as HIV, diabetes, hypertension and hyperlipidemia, with both platforms fully integrated with internal systems and external platforms used for GEMS claims processing. The two systems are designed to work together.

41 A root cause analysis (or RCA) is a structured, systematic process for identifying the underlying, fundamental causes of problems or incidents which is a method used by Medscheme as a governance tool when servicing its clients. When an adverse event or system error occurs affecting a patient or medical scheme member, Medscheme conducts a root cause analysis to identify the underlying cause of the error, trace the sequence of events that led to it, and determine what corrective steps are required.

42 Therefore, a root cause analysis is an internal investigation report prepared in response to a member complaint or clinical incident, and it typically contains detailed clinical and personal information about the

affected member, including their medical history, treatment records, claims data, and medication adherence information.

- 43 In this instance, the respondent's Labour Court Statement of Claim reveals that the "*Mahlangu RCA*" arose from a complaint by a 75-year-old GEMS member who received an automated non-adherence letter from the DMS system, despite the member being compliant with her chronic medication.
- 44 The respondent contends that this occurred because the Gexus system recorded a change in the member's medication benefit category (from acute to chronic) from January 2025 onwards, but the DMS system did not receive or recognise this update and accordingly continued to flag the member as non-adherent. The respondent appears to have conducted an internal root cause analysis, which he alleged confirmed what he characterises as a "*structural integration gap*" between the Gexus and DMS systems.
- 45 It is documents pertaining to this "*Mahlangu RCA*" – together with what the respondent calls a "*forensic payload*" – that he now threatens to hand over to trade union representatives unless the applicant pays him R7,307,642.72.
- 46 Whatever the merits of the respondent's concerns about this alleged system issue – and the applicant reserves its position in that regard – the root cause analysis and the "*forensic payload*" which the respondent threatens to disclose will, by their nature, contain special personal information as defined in section 26 of the *Protection of Personal*

Information Act, 2013 (POPIA). This includes patient diagnostics, health biometrics, medical scheme membership details, and clinical care information pertaining to identifiable GEMS beneficiaries. The disclosure of such information to trade unions and the public would constitute a flagrant breach of POPIA.

- 47 The respondent was, during his employment, at all times subject to a duty of confidentiality in respect of the applicant's proprietary and confidential information. The fact that his employment has terminated does not extinguish that duty. The threatened disclosure of the "*Mahlangu RCA*" and the "*forensic payload*" to trade unions and the public constitutes a threatened breach of this duty.
- 48 The threatened "*Whistleblower's Manifesto*" naming directors and regulators is clearly intended to embarrass and cause reputational damage to the applicant and its directors. Such a publication would likely be defamatory.
- 49 The respondent's threats are conditional upon payment – he has expressly stated that if the applicant pays his settlement demand, the "*Mahlangu RCA remains a private internal matter*" (Scenario A). This renders his conduct extortionate in nature. I am advised that the making of threats, conditional upon payment to refrain from carrying them out, constitutes the common law crime of extortion.
- 50 The respondent's conduct is manifestly *mala fide*. His allegations regarding the Gexus/DMS system issue, and the various other workplace

complaints he has raised, are already the subject of two pending Labour Court referrals, in which he has pleaded substantially the same facts and seeks compensation.

- 51 He is now attempting to use the same allegations as a weapon of extortion, threatening to publish them unless he is paid. He is not seeking to ventilate legitimate grievances through the appropriate legal forum – he is seeking to circumvent the judicial process and extract payment by threat.
- 52 The respondent is no longer an employee of Medscheme or any entity within the AfroCentric Group. He resigned on 12 December 2025. Inasmuch as he characterises his threatened conduct as “*Protected Disclosures under the PDA*”, I am advised that neither the *Companies Act, 2008* nor the *Protected Disclosures Act, 2000* affords protection to disclosures made by a person who, at the time of the disclosure, is no longer an employee.
- 53 Moreover, even if the respondent were still an employee, a disclosure made for the purpose of extracting payment – as is manifestly the case here – would not constitute a protected disclosure. The respondent’s own emails demonstrate that his threatened disclosures are conditional upon the payment of R7,307,642.72. They are made for financial gain and are not made in good faith.
- 54 The applicant is a JSE-listed company. The threatened statements regarding “*Material Non-Disclosure and Market Deception*” could cause

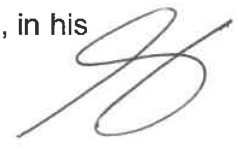
serious harm to the applicant's share price, investor confidence, and commercial reputation.

55 Medscheme is currently in the process of renegotiating contracts and renewals with some of its largest clients. This is a particularly precarious time for adverse publicity. Any disclosure of the nature threatened by the respondent could jeopardise these contractual relationships and cause significant commercial harm to the AfroCentric Group.

56 The respondent's true intention appears to be to disrupt the relationship between GEMS and Medscheme. By threatening to brief trade union structures representing government employees and to present the 9.5% premium increase as a consequence of alleged undisclosed system failures, the respondent seeks to create maximum reputational damage and commercial disruption to the applicant and its subsidiaries. He is weaponising these allegations – regardless of their truth, which the applicant denies – for the sole purpose of coercing payment.

57 GEMS itself is also affected by the respondent's threats. The GEMS Board of Trustees and the AfroCentric Board are unrelated entities; the respondent was never employed by GEMS. His inclusion of the GEMS Board in his ultimatum appears designed purely to cause maximum disruption.

58 While the applicant denies the truth of the respondent's allegations regarding the so-called "*R180 million daily drain*" and the alleged suppression of clinical risks, the respondent himself has conceded, in his


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fourth email of 15 April 2026, that his characterisation of “R180 million daily clinical leakage” was “imprecise” and that the figure refers to the average amount GEMS pays out in claims daily, not an amount lost to any leakage or fraud. Despite this admission, the respondent has not withdrawn his threats.

- 59 The repercussions of any public statement of this nature – particularly one founded on a characterisation that the respondent himself accepts as misleading – would be catastrophic for a JSE-listed entity. Investor confidence in the AfroCentric Group could be severely undermined, the applicant’s share price would likely be adversely affected, and the commercial relationships with GEMS and other clients could be irreparably damaged. These are precisely the kinds of harms that cannot be undone by a subsequent award of damages.

The Requirements for urgent interim interdicts

- 60 I am advised that an applicant for urgent interim relief must demonstrate to this Honourable Court that:

- 60.1 It has a *prima facie* right to the relief sought;
- 60.2 The matter is urgent;
- 60.3 There would be irreparable harm were the relief not to be granted;
- 60.4 There is no alternative remedy; and
- 60.5 The balance of convenience and interests of justice require such a remedy.

61 I address each of these in turn below.

A prima facie right

62 The applicant has a clear right to protect its reputation, the dignity of its directors and officers, and its confidential and proprietary information.

63 The respondent's emails constitute threats to publish defamatory material, disclose confidential information, and make vexatious complaints – all conditional upon a substantial payment. This conduct is, on the face of it, unlawful.

64 The common law protects against extortion, defamation, and breach of confidentiality. The applicant's rights in this regard are well established.

65 I submit that given the extreme urgency, the applicant seeks only a *rule nisi* and not final relief at this stage.

Urgency

66 The respondent has set a self-imposed and irrational deadline of 13h24 on 16 April 2026 – giving the applicant less than 48 hours from when the first threatening email was received on the evening of 14 April 2026.

67 Union liaison sessions have been scheduled by the respondent for 11h30 on 16 April 2026.

68 The "*Public Execution of Disclosure*" is threatened for approximately 13h30 on 16 April 2026.


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- 69 The urgency is not self-created by the applicant. It arises entirely from the respondent's unilateral imposition of an extremely short deadline.
- 70 The applicant's attorneys sent a cease and desist letter within hours of receiving the threatening email. When the respondent failed to withdraw his threats, the applicant was left with no option but to approach this Honourable Court on an urgent basis.
- 71 The applicant was unable to give the respondent greater notice of these proceedings than it has.
- 72 I submit that the matter is clearly extremely urgent and this will be substantiated by what I set out further below.

Irreparable Harm

- 73 If the respondent carries out his threats, the applicant will suffer irreparable harm that cannot be remedied by an award of damages:
- 73.1 confidential information, once released, cannot be recalled or contained;
- 73.2 reputational damage to a JSE-listed company, once inflicted, is large extremely difficult to quantify or reverse;
- 73.3 defamatory statements, once published, cannot be "*unspoken*"; and
- 73.4 damage to relationships with unions, regulators, investors and the public would be immediate and potentially permanent.
- 74 Accordingly, the applicant would suffer irreparable harm were the respondent to proceed with his actions as threatened.


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No alternative remedy

- 75 The applicant has no alternative remedy. It has already attempted to resolve the matter by sending a cease-and-desist letter. The respondent has refused to withdraw his threats.
- 76 The Labour Court proceedings are the appropriate forum for the respondent's employment-related claims. The threats he has made go far beyond any legitimate pursuit of those claims.
- 77 Moreover, and legitimate regulatory concerns may be processed through those bodies who exercise independent and impartial oversight over the affairs of the applicant, its directors and GEMS.

Balance of convenience and interests of justice

- 78 The balance of convenience overwhelmingly favours the applicant. An interim interdict will not prejudice the respondent's ability to pursue his legitimate legal claims in the Labour Court.
- 79 In contrast, absent an interdict, the applicant faces the real prospect of irreparable reputational and financial harm.
- 80 The applicant only seeks a *rule nisi*. The respondent will have the opportunity to file papers and be heard on the return date.

Costs

81 The applicant seeks costs on the scale as between attorney and client, given the extortionate nature of the respondent's conduct as well as the timeframes under which the applicant has been forced to act.

Conclusion

82 70 Under all the circumstances, I submit that a proper case has been made out for the relief sought in the Notice of Motion and I pray that this Honourable Court make an order in terms thereof.


GERALD NEVILLE VAN WYK

I CERTIFY that this affidavit was SIGNED and SWORN TO before me at SANDTON on this the 16th day of April 2026, the deponent having acknowledged that he knows and understands the contents of this Affidavit, he has no objection to taking the prescribed oath and considers it binding on his conscience.


COMMISSIONER OF OATHS

**CERTIFIED A TRUE COPY OF THE ORIGINAL
NESCHIKA SHIVANI NAIDOO
EX OFFICIO
COMMISSIONER OF OATHS
PRACTISING ATTORNEY
REPUBLIC OF SOUTH AFRICA
11 ALICE LANE
SANDTON**

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Tuesday, April 14, 2026 10:38:00 PM

To: Lebohang Mpumlwana <Lebohang.Mpumlwana@Afrocentrichealth.com>

Subject: FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION

This message originated from outside your organization

WITHOUT PREJUDICE / FOR SETTLEMENT PURPOSES ONLY

TO: The Company Secretary (**For the Attention of the GEMS Board of Trustees and the AfroCentric Board**)

DATE: 14 April 2026

DEADLINE: Thursday, 16 April 2026, at 13:24 (NO EXTENSIONS)

URGENT AND FORMAL NOTICE

Dear Members of the Boards,

I am placing the GEMS Board of Trustees and the AfroCentric Board on final, unconditional notice. This communication serves as a formal declaration of a Statutory and Ethical Deadlock. Be advised: I am backed into a corner, my life is actively in danger, and I have suffered the total loss of my home and professional standing. I have nothing left to lose, and as a result, I am now deploying every forensic and statutory weapon at my disposal. There will be no extensions, no off-the-record meetings, and no verbal negotiations. All further communication must be in writing to form part of the High Court record.

The SANC, SAPC, CMS, and HPCSA are now formally on notice. Their position on my ethical question or silence thereof will be treated as Administrative Abandonment at 13:25 16 April 2026.

Furthermore, the Department of Employment and Labour (DEL) is on notice regarding:

SARS & UIF Fraud: The non-remittance of levies and UI-19 misrepresentation.

Service Fraud: The issuance of a fraudulent Certificate of Service to silence a whistleblower.

Failure by these bodies to act by the deadline will result in an immediate High Court Mandamus naming the Registrars in their personal capacities.

A formal notice is being prepared for the Independent Regulatory Board for Auditors (IRBA). We will challenge the audit integrity of the 8 April Integrated Report. If your auditors signed off on financials while the Board suppressed Priority 1 clinical risks and the documented R180 million daily drain, they are now complicit in a material market deception.

I formally record that my separation was an Automatically Unfair Constructive Dismissal (Section 187(1)(h) LRA). This is the direct result of my Protected Disclosures. Any narrative to the contrary is a continuation of the statutory fraud currently being investigated.

To ensure there is no ambiguity regarding my intent, take note of the following schedule for Thursday, 16 April 2026:

11:30 AM – Union Priming Session (as with SAPC 14 April 2026): I will hold a formal inquiry session with the leadership of PSA, NEHAWU, and FEDUSA. The purpose of this meeting is to prime the union structures for a major forensic disclosure.

I will establish whether the Board has misrepresented the scheme's clinical and financial stability during recent premium negotiations. I will provide the Board with documented proof of this scheduled briefing the morning 16 April 2026 to confirm the process is locked and synchronized.

13:24 PM – Expiry of Final Settlement Window: This is the hard cutoff for a written, signed resolution to my constructive dismissal and the statutory fraud.

13:30 PM – Public Execution of Disclosure: If no remedy is received by 13:24, I will move to a public handover of the Mahlangu RCA and the forensic payload. The unions will be fully briefed and ready to act on the evidence that their members are subsidising a suppressed R180 million daily leak via the 9.5% premium hike.

To halt the 13:25 escalation, I require a signed, written settlement proposal before the deadline:

Statutory Rectification: Immediate submission of a corrected UI-19 and full SARS/UIF remittance.

Solatium & Professional Rehabilitation: Compensation for the total destruction of my career, dignity, and the "professional death" I have been forced to endure.

10-Year Psychological Indemnity: Full provision for specialized psychiatric and clinical care for no less than 10 years to address the profound PTSD and damage caused by your targeted occupational detriment.

- Immediate Execution (13:25 Thursday)

At the expiry of this deadline, I will move to immediate execution without further notice. My scheduled briefing with the leadership of PSA, NEHAWU, and FEDUSA will result in the following:

Forensic Payload Transfer: I will hand over the Mahlangu Root Cause Analysis (RCA) as empirical proof of an automated "Integration Gap" that creates a systemic clinical and fiscal leak.

The 9.5% Link: I will provide the forensic link proving that the 9.5% premium increase—currently a point of extreme contention for organized labor—is a direct consequence of the R180 million daily drain that the Board has failed to mitigate or disclose.

Member Action: I will advise Union Leadership on the grounds for a High Court Interdict to freeze premium payments and demand an immediate independent forensic audit of the Gexus-DMS integration architecture and back payment of all benefits identified during the integration gap.

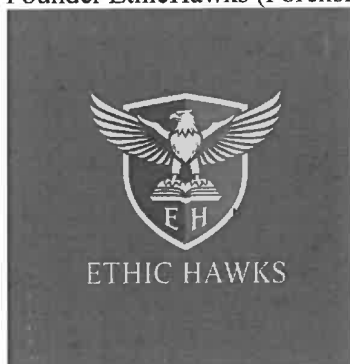
JSE & CIPC Filing: I will simultaneously file formal complaints for Material Non-Disclosure and Market Deception, citing the omission of these Priority 1 risks from the 8 April Integrated Report.

The Whistleblower's Manifesto: A public statement will be released naming every director and regulator who chose corporate concealment over their fiduciary duty to the public and the clinical safety of members.

I am finished with silence. You have until 13:24 16 April 2026.

Yours Professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



CONFIDENTIALITY:

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For more information please visit <http://www.mimecast.com>

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Deneys



By Email: info@ethichawks.co.za

Mr W W Matthee

URGENT ATTENTION

15 April 2026

9th Floor
117 on Strand
117 Strand Street
Cape Town 8001
Tel +27 21 405 1200 Fax +27 21 418 6900

Private Bag X10 Roggebaai 8012
Docex 181 Cape Town
deneys.co.za

Direct line
+27 21 405 1208

Email
jason.whyte@deneys.co.za

Your reference:

Our reference: AFR1282

Dear Sir

AfroCentric Investment Corporation Ltd and others // Yourself

- 1 We confirm that we act on behalf of AfroCentric Investment Corporation Limited, as well as its subsidiaries and related entities. We also act on behalf of the directors and officers of those entities.
- 2 Our clients have provided us with a copy of your email sent to their Group Company Secretary at 22h38 on 14 April 2026. In that email, you advise our clients that unless they conclude a settlement agreement with you, requiring the payment of unquantified amounts among other stated relief, you will proceed to take further steps at 13h24 on 16 April 2026.
- 3 Our clients do not accede to this demand and have instructed us to call on you to withdraw your threatened course of action as it is unlawful. In particular, your demand, on the face of it, constitutes a criminal offence, namely that of extortion and blackmail.
- 4 Our client notes in particular that you intend to:
 - 4.1 Publicly release a so-called 'Whistleblower's Manifesto' naming and accusing our clients' directors and office bearers of 'corporate concealment' and breach of their fiduciary duties. Moreover, that you intend to publicly state that our clients' directors and office bearers are acting in collusion with unnamed 'regulators'; and
 - 4.2 Release a so-called 'Forensic Payload Transfer' regarding the Mahlangu Root Cause Analysis. This would clearly involve the public release of confidential and proprietary information held by or belonging to our clients.
- 5 We note that you have made several other threats that, whilst arguably not unlawful *per se*, are rendered unlawful as they are simply intended to act as a means of forcing our clients to provide you with unquantified, but substantial financial compensation.
- 6 In summary, the demands made in your email are unlawful and, if acted upon, would cause our client irreparable harm.
- 7 We accordingly call on you to confirm in writing by no later than 17h00 today, 15 April 2026, that you unconditionally withdraw your email and the threats contained therein. Should we not receive such written confirmation, our clients shall be forced to consider an urgent approach to the High Court, if necessary on an *ex parte* basis, to interdict and restrain you from proceeding with your unlawful conduct.

NN 

- 8 We remind you that the High Court has already expressed its displeasure with your conduct, in striking from the roll with costs, a spurious urgent application that you had brought in which you sought relief that the Court was incapable of granting. In that application you made unlawful, vexatious and defamatory accusations against our clients. Please expect to receive our clients taxed bill of costs for your payment shortly, evidencing the costs that were awarded against you by the Court in the aforementioned urgent application that you recently instituted.
- 9 You have further referred two separate disputes to the Labour Court in which you make similar untrue, vexatious and defamatory allegations against our clients. Our clients will defend these referrals and seek that they be dismissed with orders of punitive costs.
- 10 Accordingly, our clients are of the view that your conduct is, in general, vexatious and our clients reserve their rights to seek appropriate relief against you in due course.
- 11 We look forward to receiving your written response and confirm that in the interim our clients' rights remain reserved in full.

Yours faithfully



pp

Jason Whyte
Director
Deneys

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 13:19
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: RE: FINAL UNCONDITIONAL ULTIMATUM: COMMENCEMENT OF STATUTORY SIEGE AND MULTI-FRONT LITIGATION [N-CPT_MATTERS.FID2264505]
Attachments: Annexure_A_5%_Member_Contribution.PDF

Dear Ms Baker,

In response to your letter dated 15 April 2026, be advised that my communications are Protected Disclosures under the PDA and the Companies Act. I am not 'extorting' the Board; I am formally notifying them of a systemic fiscal leak and a material non-disclosure in the April 8th Integrated Report.

The attached Annexure clarifies that the primary objective of this statutory process is the protection of member funds and the rectification of a 9.5% premium hike that is based on documented clinical and IT failures.

Regarding your characterisation of 'unquantified amounts' be advised that my personal restitution is a matter of **'just and equitable' compensation** as prescribed by the PDA for occupational detriment.

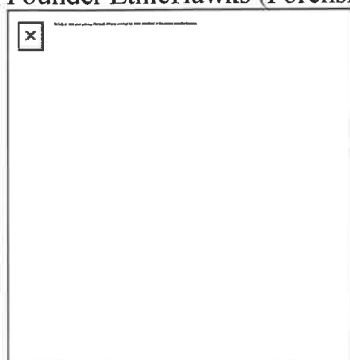
However, the primary 'quantified' demand of this statutory process is the the immediate **redemption of the 180 million daily leakage** and the **downgrade of the 9.5% contribution hike to 5%**. This represent a quantifiable saving to the membership of approximately **3.2 billion annually**-a figure that far outweighs any personal settlement and confirms the public interest of this disclosure.

Any attempt to interdict this disclosure will be met with an urgent application for a Writ of Mandamus and a report to the JSE regarding market deception.

Kindly deliver Annexure A to the Board.

Yours Professionally

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 15:43
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: FINAL STATUTORY CLARIFICATION: Private Resolution Path vs. Commencement of Statutory Siege

Dear Ms. Barker,

Further to my communication of 13:18 today, I hereby provide the final "Private Resolution Path" to resolve the statutory deadlock before the 13:24 deadline on 16 April 2026.

To facilitate a settlement that protects the membership and the scheme's solvency, the Board must ratify the following quantified schedule by the aforementioned deadline:

As per Annexure A (previously served), the Board must issue a formal resolution to downgrade the 2026 contribution hike from 9.5% to a maximum of 5%. This correction remediates the "Governance Tax" currently backfilling internal IT wastage and the R180 million daily clinical leakage.

Based on a Cost-to-Company (CTC) of R42,796.13 per month, my restitution for documented occupational detriment is quantified as follows:

Direct Restitution: R1,027,107.12 (24 months back-pay/substitution).

Property Loss: R145,000.00 (Total loss of fixed property resulting from detriment).

Professional Death Compensation: R5,135,535.60 (10-year compensatory future loss of earnings).

Clinical Provision: R750,000 (10-year specialist psychosocial/clinical care fund).

Statutory Costs: R250,000 (Forensic audit and Ethic Hawks operational expenses).

Total Settlement Value: R7,307,642.72

The Board is required to apply for a formal SARS Tax Directive for the total settlement under the category of "Compensation for Occupational Detriment." The Board shall provide a full tax indemnity to ensure the net amount is protected and structured as a capital settlement for damages.

Be advised that the invitations for the Liaison sessions have been formally issued to the leadership of the PSA, NEHAWU, DENOSA, and POPCRU. The Board has until 13:24 tomorrow to decide the outcome:

11:30 AM Liaison: Activation of Mandamus against SANC, DEL, and CMS.

<https://teams.live.com/meet/9317804058155?p=3OxPhtrj39zfqYDWqY>

13:30 PM Outcome (The Disclosure or The Deal):



<https://teams.live.com/join/9392336908714?p=ihT4rLnWK7HyYFlnds>

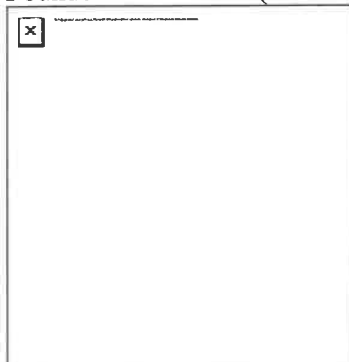
Scenario A (Settlement): 13:30 serves as a Victory Briefing for the 5% Member Deal. The Mahlangu RCA remains a private internal matter.

Scenario B (The Siege): 13:30 triggers the Full Forensic Disclosure of the R180 million daily leakage to Union legal teams for an immediate High Court Interdict.

The window for a private resolution closes at 13:24 tomorrow. I remain finished with silence.

Yours Professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



NW 

Frances Barker

From: Wilbur William Matthee <info@ethichawks.co.za>
Sent: 15 April 2026 20:44
To: Frances Barker
Cc: Olebogeng Motlhaping; Jason Whyte
Subject: CLARIFICATION AND CORRECTION: Re: FINAL STATUTORY CLARIFICATION – Terminology Correction (No Withdrawal of Complaint)

Dear Recipients,

I am writing to clarify and correct a terminological imprecision in my previous correspondence dated 15 April 2026.

In my letters, I referred to 'R180 million daily clinical leakage.' Upon further refinement, I acknowledge that the word 'leakage' was imprecise.

The correct factual position is as follows:

The systemic integration gap between Gexus and DMS (proven in the attached Mahlangu RCA) causes misclassification of claims—specifically, chronic medication claims being paid from acute/day-to-day benefits.

This misclassification does not constitute 'leakage' in the strict forensic sense (i.e., money leaving the scheme incorrectly). Rather, it constitutes:

- Erosion of member day-to-day benefits
- Corruption of claims data
- Operational waste
- Plausible inflation of total claims spend

The R180 million figure refers to the average amount GEMS pays out in claims, not an amount lost to leakage.

The systemic gap contributes to the inflation of that R180 million spend, which in turn contributes to the 9.5% contribution increase.

I withdraw the word 'leakage' and regret any confusion caused. I do not withdraw my complaint. The systemic failure documented in the Mahlangu RCA remains valid and warrants a forensic audit.

Yours professionally,

Sr. Wilbur W Matthee
Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)
Health Services Management.
Founder EthicHawks (Forensic Governance and Compliance)


NN

IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN
(Held at Cape Town)

Case No: 2026-077546

In the matter between:	
WILBUR WILLIAM MATTHEE	Applicant
and	
AFROCENTRIC HEALTH (RF) (PTY) LTD	Respondent
(Registration Number: 1996/009540/07)	

AFFIDAVIT OF SERVICE
(Rule 7 of the Labour Court Rules — Email Service)

I, the undersigned,

WILBUR WILLIAM MATTHEE

Adult male, Identity Number: 890903 5151 087

Registered Nurse (SANC No. 15831886)

Applicant (Self-Represented), residing in Cape Town, Western Cape

do hereby make oath and state as follows:

1. INTRODUCTION AND CAPACITY

1.1 I am the Applicant in the above-captioned proceedings, acting in my own capacity as a self-represented litigant. I am duly authorised to make this affidavit. The facts herein are within my personal knowledge unless otherwise stated, and are true and correct to the best of my knowledge and belief.

1.2 I make this affidavit in compliance with Rule 7 of the Rules for the Conduct of Proceedings before the Labour Court (GN 1665 of 14 October 2011, as amended), to confirm the service of the pleadings in Case No. 2026-077546 on the Respondent.

2. THE PROCEEDINGS

2.1 This case concerns a claim under section 77A of the Basic Conditions of Employment Act 75 of 1997 ("BCEA") for the unlawful salary deduction of R14,811.77 (representing 40.47% of gross monthly salary) effected by the Respondent in July 2025, in contravention of the 25% statutory cap imposed by section 34(2) of the BCEA.

2.2 The Notice of Motion and Founding in the above proceedings was filed with the Registrar of the Labour Court, Cape Town, on 13 April 2026,

3. AUTHORISED SERVICE ADDRESS OF RESPONDENT

3.1 The Respondent's authorised email address for service of documents in these proceedings is:

IR@afrocentrichealth.com

3.2 This email address was expressly stated by the Respondent's authorised representative, Mr Xolile Vincent Manyati (Senior Employee Relations Specialist, AfroCentric Health (Pty) Ltd), in the Respondent's Notice of Opposition of Condonation Application and Answering Affidavit dated 10 December 2025, filed in CCMA Case WECT23564-25. A copy of the relevant page of that document confirming the service address is attached hereto as

ANNEXURE "A"

4. SERVICE EFFECTED

4.1 On

13 April 2026

I dispatched by email to the address IR@afrocentrichealth.com the following documents:

- (a) The Statement of Claim filed in Case No. 2026-077546 (Matthee v AfroCentric Health (RF) (Pty) Ltd) — BCEA section 77A unlawful salary deduction claim;
- (b) All annexures referenced therein and forming part of the filed papers; and
- (c) This Affidavit of Service.

4.2 The email was sent from info@ethichawks.co.za and was delivered successfully to the Respondent's authorised service address. A copy of the email transmission and delivery confirmation is attached hereto as

ANNEXURE "B"

5. CONFIRMATION OF SERVICE

5.1 I confirm that service was effected by electronic mail as expressly provided by the Respondent as their chosen service address in the opposing affidavit, which constitutes valid service in terms of Rule 7(2)(b) of the Labour Court Rules, read with the authorisation given by the Respondent.

5.2 I submit that service has been duly effected and that the Respondent has been properly placed on notice of the proceedings in Case No. 2026-077546.

6. ANNEXURES

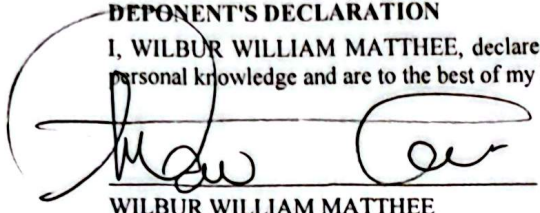
The following documents are attached to and form part of this Affidavit of Service:

Annexure "A": Notice of Opposition and Answering Affidavit of Mr Xolile Vincent Manyati, dated 10 December 2025 (CCMA Case WECT23564-25), confirming IR@afrocentrichealth.com as the Respondent's authorised service address.

Annexure "B": Email transmission record and delivery confirmation confirming service of the BCEA s77A Notice of Motion and Founding Affidavit on 13 April 2026.

DEPONENT'S DECLARATION

I, WILBUR WILLIAM MATTHEE, declare that the facts set out in this affidavit are within my personal knowledge and are to the best of my knowledge and belief true and correct.


WILBUR WILLIAM MATTHEE

Applicant / Deponent

info@ethichawks.co.za | Tel: 069 635 1435 / 063 378 8782

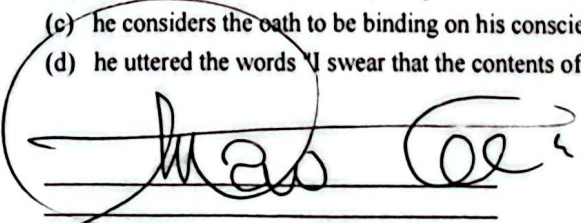
Signed at CAPE TOWN on ¹³ April 2026
WWM

COMMISSIONER OF OATHS

Full Name: BENJAMIN JAMES MASEMOLADesignation / Capacity: BD 25513Address: 18 DIGTEBY CRESCENT VOORBRUG DELFT

I certify that on this 13TH day of APRIL 2026, the deponent appeared before me and acknowledged that:

- (a) he knows and understands the contents hereof;
- (b) he has no objection to taking the prescribed oath;
- (c) he considers the oath to be binding on his conscience; and
- (d) he uttered the words "I swear that the contents of this declaration are true, so help me God."


DEPONENT

WILBUR WILLIAM MATTHEE

COMMISSIONER OF OATHS

Signed at CAPE TOWN on this 13TH day of APRIL 2026.

PASTOR BENJAMIN J. MASEMOLA
MARRIAGE OFFICER
COMMISSIONER OF OATHS
No. 18 DIGTEBY CRESCENT
VOORBRUG DELFT 7100
Cell: 082 991 0844



A N N E X U R E

“A”

NOTICE OF OPPOSITION OF CONDONATION
APPLICATION*Confirming Respondent's Authorised Email Service Address*

Forum	Commission for Conciliation, Mediation and Arbitration
Case Reference	WECT23564-25
Parties	Wilbur Matthee (Applicant) v Medscheme Holdings (Respondent)
Document Type	Notice of Opposition of Condonation Application
Deponent	Mr Xolile Vincent Manyati — Senior Employee Relations Specialist
Signed	Johannesburg, 10 December 2025
Authorised Service Email	IR@afrocentrichealth.com
Relevance	Paragraph 3.2 — Respondent's own designated service address

Referred to in paragraph 3.2 of the Affidavit of Service

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd · Case No: 2026-083299

IN THE COMMISSION FOR CONCILIATION MEDIATION AND ARBITRATION

Case Ref. Number: **WECT23564-25**

In the matter between

WILBUR MATTHEE**Applicant**

And

MEDSCHEME HOLDINGS**Respondent**

NOTICE OF OPPOSITION OF CONDONATION APPLICATION

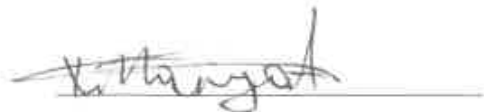
Your condonation application dated **05 December 2025**, is hereby acknowledged and refers.

In response to the condonation application by the applicant **BE PLEASED TO TAKE NOTE THAT** the Respondent hereby files its Notice of Opposition.

PLEASE TAKE FURTHER NOTE THAT the answering affidavit of **Mr XOLILE VINCENT MANYATI** will be used in support of this notice of opposition.

The respondent will accept all documents in this matter at the following email address:
IR@afrocentrichealth.com.

Signed at **Johannesburg** on the **10th** day of **December 2025**.

**XOLILE VINCENT MANYATI**

Respondent representative

A N N E X U R E

“B”

EMAIL TRANSMISSION RECORD — PROOF OF SERVICE

Electronic service effected 13 April 2026

Case Number	2026-083299
From	info@ethichawks.co.za (Wilbur William Matthee)
To (Primary)	ir@afrocentrichealth.com
To (Copy)	lebohang.mpumlwana@afrocentrichealth.com
Bcc	wilburmat@gmail.com (personal confirmation copy)
Date & Time	13 April 2026 at 10:03 PM SAST
Subject	Service of Statement of Claim — W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another
Read Receipt	blue tick (✓) — confirmed delivery
Relevance	Paragraph 4.2 — Proof of email service on Respondents

Referred to in paragraph 4.2 of the Affidavit of Service

Matthee v AfroCentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd · Case No: 2026-083299

**Service of Application – Wilbur William Matthee v
Afrocentric Health (RF) (Pty) Ltd & Medscheme Holdings
(Pty) Ltd – Case No: 2026-077546**

013-119
WWM2

Delivered



Wilbur William Matthee 10:03 PM
to ir, lebohang.mpumlwana, Bcc: wilburmat ✓



Dear Sirs / Madam

NOTICE OF SERVICE – LABOUR COURT APPLICATION

Please find attached the following documents on behalf of the Applicant, Mr Wilbur William Matthee, in the above-mentioned matter under Case No: 2026-077546:

1. Notice of Motion (pages 1–4)
2. Founding Affidavit of Wilbur William Matthee (pages 5–11)
3. Annexure A – Payslip July 2025 (page 14)
4. Annexure B – Human Capital Business Partner Policy extracts (page 16)
5. Annexure C – Written misrepresentation by Second Respondent's manager (page 18)

These documents are served on the First and Second Respondents in accordance with the Labour Court Rules and the Basic Conditions of Employment Act (BCEA) s34(1) and s34(2) read with s77A.

Please note that the Applicant will seek an order for the repayment of unlawfully recovered remuneration as set out in the Notice of Motion.

Kindly confirm receipt of this service in writing.

Yours faithfully

Sr. Wilbur W Matthee

Specialist Registered Nurse, BTech (Psych, Midw,Comm), PG Dip HSM (NQF 8)

Health Services Management.

Founder EthicHawks (Forensic Governance and Compliance)



www.ethichawks.co.za



013-119



Upgrade Plan



Latest activity

All

Opens

Insights

-
- one of the recipients** opened your email (26th time) 11 minutes ago
Statement of Claim 9 April 2026
-
- one of the recipients** opened your email (21st time) 11 minutes ago
Service of Application – Wilbur William Matthee v Afrocentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd – Case No: 2026-077546
-
- one of the recipients** opened your email (81st time) 11 minutes ago
Service of Statement of Claim – W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another (Case No: 2026-083299)
-
- one of the recipients** opened your email (31st time) 12 minutes ago
URGENT: Joint Ethical Ruling – 48-Hour Response Required – Exhausted Referral Chain (CMS → HPCSA → SANC → SAPC) – Imminent Life Threat [GEMS 000655789]
-
- one of the recipients** opened your email (80th time) 12 minutes ago
Service of Statement of Claim – W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another (Case No: 2026-083299)
-
- one of the recipients** opened your email (20th time) 12 minutes ago
Service of Application – Wilbur William Matthee v Afrocentric Health (RF) (Pty) Ltd & Medscheme Holdings (Pty) Ltd – Case No: 2026-077546
-
- one of the recipients** opened your email (79th time) 13 minutes ago
Service of Statement of Claim – W.W. Matthee v Afrocentric Health (RF) (Pty) Ltd & Another (Case No: 2026-083299)
-
- one of the recipients** opened your email (25th time) 13 minutes ago
Statement of Claim 9 April 2026
-
- one of the recipients** opened your email (24th time) 19 hours ago
Statement of Claim 9 April 2026

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No: 2026-086906

In the matter between:

Afrocentric Investment Corporation Limited
(Reg: 1988/000570/06)

Applicant

and

Wilbur William Matthee

Respondent

REPLYING AFFIDAVIT

I, the undersigned,

LEBOHANG SHADI MATSIPA MPUMLWANA

do hereby make oath and state that:

- 1 I am an adult employed by Afrocentric Investment Corporation Limited as Group Company Secretary and Legal Counsel. I confirm that I am duly authorised by the applicant to depose hereto on its behalf.
- 2 The facts contained herein fall within my own personal knowledge, save where the context indicates to the contrary, and are true and correct.
- 3 Where I make submissions of a legal nature I do so on the advice of the applicant's attorneys of record, which advice I believe to be correct.
- 4 This affidavit is deposed to in reply to the respondent's answering affidavit to the applicant's supplementary affidavit, filed by the respondent on 25

TMM LMM

May 2026 (the **further answering affidavit**). I have read the further answering affidavit in full.

- 5 I do not intend to respond to every allegation. To the extent that any allegation is not specifically traversed herein and is inconsistent with the applicant's founding and supplementary affidavits, it is denied.
- 6 For convenience, I provide a concise overview and then an *ad seriatim* response to the further answering affidavit.

Overview of the litigation

- 7 The applicant obtained a *rule nisi* on 16 April 2026 (the **Order**), granted by the Honourable Acting Justice Mphego, interdicting the respondent from disclosing confidential information, publishing defamatory statements, filing misleading regulatory complaints, demanding payment by threats, and inciting trade union action against the applicant.
- 8 On the day of the hearing, the respondent filed an answering affidavit. Further, on 20 April 2026, the respondent filed a supplementary answering affidavit (incorporating a counter-application for declaratory relief and demand for discovery).
- 9 On 24 April 2026, the respondent purported to anticipate the return date. That application was struck from the roll by the Honourable Acting Justice Manca, with the question of wasted costs to stand over to the return date.
- 10 On 4 May 2026, the applicant filed its supplementary founding affidavit in accordance with the timetable established by the Order. That affidavit

responds in detail to the respondent's answering affidavit and supplementary answering affidavit. .

- 11 The supplementary founding affidavit addresses, *inter alia*, the respondent's employment history, the Mahlangu Root Cause Analysis, the 9.5% premium increase, the Protected Disclosures Act defence, the respondent's counter-application, and the respondent's demand for discovery.
- 12 On 25 May 2026, the respondent served on the applicant's attorneys the further answering affidavit together with a practice note. The further answering affidavit responds to the applicant's supplementary founding affidavit.
- 13 Its primary contention is that there are "material contradictions" between the applicant's founding affidavit in this Court and a Statement of Response filed by AfroCentric Health (RF) (Pty) Ltd in the Labour Court on 19 May 2026, and that this amounts to "perjury." These allegations are denied and addressed below.
- 14 This replying affidavit is served together with the applicant's heads of argument.
- 15 As will be explained below, the further answering affidavit does not raise any new factual matter that has not already been addressed in the applicant's supplementary founding affidavit or heads of argument.

- 16 I am advised that the respondent's primary contention – that different entities within the AfroCentric Group have filed different pleadings in different *fora* – does not constitute a contradiction, let alone perjury, and has no bearing on whether the *rule nisi* should be confirmed.

***Ad seriatim* response to the further answering affidavit**

Ad paragraph 1

- 17 Save to deny that the content of the further answering affidavit is true and correct, the contents herein are noted.

Ad paragraph 2

- 18 The contents herein are denied.
- 19 The respondent's characterisation of the applicant's conduct as a "*corporate shell game*" and "*perjury*" is denied in its entirety and amounts to argument, not evidence.
- 20 It is denied that the respondent's labour disputes with the applicant bear any relevance on the current application. What is in dispute is whether his threatened conduct – the conditional disclosure of confidential information, the publication of defamatory statements, and the demand for payment by threats – is lawful. It is not.

Ad paragraphs 3.1 – 3.3

- 21 The contents herein are denied.

- 22 In the current application, the applicant seeks relief to protect its reputation, its proprietary information, its confidential business relationships, and the personal information of its clients' beneficiaries – in response to threats that the respondent made against the applicant directly. Such interests extend to that of its subsidiaries, directors, officers, and employees and the applicant has the necessary locus standi to seek relief on their behalf.

Ad paragraph 3.4

- 23 It is denied that the applicant's CEO (Mr Gerald Neville van Wyk) committed perjury. On the applicant's own version, he had referred two disputes to the Labour Court and Mr Van Wyk confirms this in his founding affidavit.
- 24 To the extent that an allegedly contradictory position is taken in the Labour Court by AfroCentric Health (RF) (Pty) Ltd (which is not the same entity as the applicant herein), that must be dealt with in the Labour Court.
- 25 In any event, the alleged contradiction is not relevant to the orders sought by the applicant in these proceedings.

Ad paragraph 4

- 26 The contents of paragraph 4 are noted.
- 27 The respondent's notice of intention to oppose was not served on the applicant's attorneys of record. His answering and supplementary answering affidavits were. The applicant does not deny receipt of the respondent's answering affidavits.

- 28 I am advised that filing of court papers is either done in person or via Court Online and that emailing the Chief Registrar is not a recognised means by which to file pleadings at Court.
- 29 It is denied that the applicant has sought to suppress the respondent's submissions at all. In fact, I am advised that the applicant has uploaded the respondent's answering and supplementary answering affidavits to Court Online and Caselines to ensure that they are before the Court.
- 30 The applicant has not sought to exclude the respondent's papers and has dealt with them in full. At all material times, the nature of the applicant's opposition has been disclosed to the Court.

Ad paragraph 5

- 31 The contents herein are noted.
- 32 The respondent takes issue with the supplementary founding affidavit's treatment of his citation of the Eastern Cape High Court, Bhisho (Case No. 148/2020).
- 33 As submitted in the applicant's supplementary affidavit, neither the case of *Minister of Health v New Clicks SA (Pty) Ltd* 2006 (2) SA 311 (CC) nor that of "*Eastern Cape High Court, Bhisho (Case No. 148/2020)*" contain any reference to the inclusion of a counter-application in an answering affidavit.
- 34 The applicant's position on the counter-application has been fully set out in the supplementary affidavit and its heads of argument. The counter-

application seeks declaratory relief that falls within the exclusive jurisdiction of the Labour Court.

Ad paragraphs 6 – 7

35 The contents herein are denied insofar as they seek to ventilate employment disputes that are properly before the Labour Court and not before this Court.

36 The respondent's complaints regarding his internal grievance and his job title are matters pending before the Labour Court. They have no bearing on whether the respondent should be restrained from disclosing confidential information, publishing defamatory statements, or demanding payment by threats.

Ad paragraph 8

37 The contents herein are denied.

38 There is no Gexus/DMS integration gap as alleged by the respondent and the respondent has not provided any evidence by which to support such an allegation.

39 I am advised that the threatened disclosures do not qualify for protection under the *Protected Disclosures Act, 2000 (PDA)* and this will be addressed further in argument.

TMM 7
WMD

- 40 The applicant remains committed to compliance with the provisions of the *Protection of Personal Information Act, 2013 (POPIA)* – and in fact, such commitment further forms the basis of this application.

Ad paragraph 9

- 41 The content herein is denied.

Ad paragraph 10

- 42 The content herein is denied.
- 43 Regardless of whether the respondent quantified his demand, the respondent demanded financial payment in exchange for refraining from carrying out the threatened conduct. I am advised that this is unlawful.
- 44 The applicant's demand was not in any way related to the settlement of an existing dispute.
- 45 This will be addressed further in argument.

Ad paragraph 11

- 46 The contents herein are denied.
- 47 The respondent did not simply inform the applicant of a quantified legal claim and invite settlement discussions. He threatened to cause immediate, specified, and irreversible harm to the applicant's reputation, its relationships with trade unions, and its standing with regulators unless paid before an urgent deadline entirely unrelated to his proceedings before the Labour Court.

TAM 8 

48 This will be addressed further in argument.

Ad paragraphs 12 – 13

49 The contents herein are denied and fall within the jurisdiction of the Labour Court.

Ad paragraph 14

50 The contents herein are denied and fall within the jurisdiction of the Labour Court.

51 The respondent resigned voluntarily on 12 December 2025.

52 I am advised that, in the absence of an award of the CCMA or judgment of the Labour Court confirming that the respondent was constructively dismissed (which the applicant denies), issuing a UI-19 reflecting anything other than a voluntary resignation would be unlawful and would amount to fraud against the Unemployment Insurance Fund (UIF).

53 The respondent's allegation that the applicant "lacks the clean hands necessary to seek equitable relief" because its officials are "under active criminal investigation" is denied.

54 The SAPS criminal case was registered at the respondent's own instance. The registration of a criminal complaint does not constitute a finding of wrongdoing. The clean hands doctrine does not require an applicant to be blameless in all respects – it requires that the applicant not have acted unconscionably in relation to the very relief sought. The applicant has not.

Ad paragraph 15

- 55 The contents herein are denied.
- 56 The applicant has established all three requirements for a final interdict.
- 57 The respondent's characterisation of this application as a "*Strategic Lawsuit Against Public Participation (SLAPP)*" is rejected.
- 58 The applicant does not seek to suppress legitimate whistleblowing. It seeks to restrain extortionate conduct – the conditional disclosure of confidential patient information, the publication of defamatory statements, and the demand for R7,3 million by threats. The interdict does not prevent the respondent from pursuing his Labour Court claims or from co-operating with regulatory bodies.
- 59 This will be addressed further in argument.

Ad paragraph 16

- 60 The contents herein are denied.
- 61 It is denied that the contents of the Statement of Response filed by the applicant's subsidiary in the Labour Court bears any relevance to the current proceedings.
- 62 This Court is not the appropriate forum to adjudicate alleged inconsistencies between pleadings filed in the Labour Court by a non-party to these proceedings. I am advised that, if the respondent wishes to

challenge the contents of the Labour Court Statement of Response, his remedy is in the Labour Court.

63 This will be addressed further in argument.

Ad paragraph 17

64 The contents herein are denied.

65 The respondent asserts that he is duty bound to report and escalate his allegations as a statutory duty.

66 The respondent has already reported his allegations to virtually every conceivable regulatory body. The interdict does not seek to punish the respondent or prevent him from making *bona fide* disclosures to regulatory bodies in the ordinary course.

67 It simply restrains the threatened disclosure of information, which it alleges is defamatory and unsubstantiated, paired with an extortionate demand for payment.

68 This will be addressed further in argument.

Ad Section I: Comprehensive prayer and referral orders

69 It is denied that the respondent has demonstrated that he is entitled to any of the relief sought herein.

70 I am advised that further submissions will be made in argument.

Conclusion

71 Under all the circumstances, I persist in seeking confirmation of the *rule nisi* and the relief set out in the notice of motion, including costs on the attorney-and-client scale – such costs to include the wasted costs of 24 April 2026.


LEBOHANG SHADI MATSIPA MPUMLWANA

I CERTIFY that this affidavit was SIGNED and SWORN TO before me at SANDTON on this the day of 2026, the deponent having acknowledged that she knows and understands the contents of this Affidavit, she has no objection to taking the prescribed oath and considers it binding on her conscience.


COMMISSIONER OF OATHS


THEMBELANI NDUMISO MHLONGO
COMMISSIONER OF OATHS
EX OFFICIO
ATTORNEY (RSA)
6TH FLOOR, 61 KATHERINE STREET,
SANDTON, 2196

DATE: 27/05/2026

COURT ONLINE COVER PAGE

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Practice Notes

NOTE: This document was filed electronically by the Registrar on 19/5/2026 at 3:04:37 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED
BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No: **2026-086906**

In the matter between:

AfroCentric Investment Corporation Limited
(Reg: 1988/000570/06)

Applicant

and

Wilbur William Matthee

Respondent

**APPLICANT'S PRACTICE NOTE FOR DIRECTIVES IN TERMS OF
PRACTICE DIRECTIVE 20(4) – OPPOSED MOTION IN THIRD DIVISION**



1 Hearing Date

The return date of the rule nisi has been enrolled for 28 May 2026 on the motion court roll in terms of the attached Order marked **PN1** (the **Order**).

2 Legal Representatives

2.1 For the applicant:

Adv Graham Leslie SC – 083 395 2037; gleslie@capebar.co.za

Instructed by Deneys:

Jason Whyte – 083 236 3059; jason.whyte@deneys.co.za

2.2 The respondent is self-represented.

Mr Wilbur William Matthee – 069 635 1435; info@ethichawks.co.za /
wilburmat@gmail.com

3 Nature of the Matter

- 3.1 The matter is set down for the return date of a *rule nisi* granted by the Order of the above Honourable Court on 16 April 2026. The applicant wishes to have the rule nisi confirmed by way of a final order in accordance with the draft attached hereto marked "X".
- 3.2 The applicant has sought, and continues to seek, an interdict against the respondent from carrying out the unlawful threats contained in his emails of 14 and 15 April 2026.
- 3.3 The respondent has opposed the application and filed an answering affidavit on 16 April 2026 (the **answering affidavit**) and the supplementary answering affidavit, incorporating a counter-application for declaratory relief, filed (prematurely) on 20 April 2026 (the **supplementary answering affidavit**).
- 3.4 On 4 May 2026, the applicant filed a supplementary affidavit in accordance with the Order in which the applicant also opposes the relief sought in the counter-application. The respondent has not filed any further affidavits.
- 3.5 The respondent's answering affidavit to the applicant's supplementary affidavit is due on 25 May 2026.



4 Issues for Determination

- 4.1 Whether the *rule nisi* should be confirmed as a final interdict restraining the respondent from the conduct described in paragraphs 2.1 to 2.5 of the Order;

- 4.2 Whether the respondent's threatened conduct constitutes extortion or a legitimate settlement demand;
- 4.3 Whether the applicant is entitled to interdict the disclosures on the basis that the information contained therein is either confidential, proprietary or would involve the disclosure ('processing') of third party-personal information in contravention of the *Protection of Personal Information Act, 2013*.
- 4.4 Whether the respondent's threatened disclosures qualify as protected disclosures under the *Protected Disclosures Act, 2000*;
- 4.5 Whether the respondent's counter-application for declaratory relief is competent in these proceedings;
- 4.6 Whether the respondent is entitled to discovery;
- 4.7 Whether the respondent's supplementary answering affidavit is irregular; and
- 4.8 Costs.



5 Request and reasons for early allocation

- 5.1 The court file has been indexed and paginated.
- 5.2 The combined papers in this matter (founding affidavit and annexures, answering affidavit, supplementary answering affidavit with 22 annexures, notice to anticipate return day bundle of 160 pages, supplementary founding affidavit and annexures, and heads of argument) exceed 500

pages. In the circumstances the parties respectfully request an early allocation in terms of Practice Note 43(3)(a).

- 5.3 The issues are such that the judge allocated to hear the matter would reasonably need to receive the papers earlier than the day before the hearing in order to prepare.

6 **Estimated duration**

- 6.1 The hearing is expected to take half a day (approximately 3 hours).



7 **Relevant portions of the papers**

- 7.1 The Honourable Judge is respectfully requested to read the following:

7.1.1 The applicant's founding affidavit and annexures (pp 001-7 to 001-41);

7.1.2 The applicant's supplementary founding affidavit (pp 011-1 to 011-87);

7.1.3 The respondent's answering affidavit (pp 009-1 to 009-15);

7.1.4 The respondent's supplementary answering affidavit (pp 0012-1 to 009-127);

7.1.5 The applicant's heads of argument (section 054) (to be filed);

7.1.6 The respondent's heads of argument (section 054) (if filed).

- 7.2 It is not necessary for the Honourable Judge to read the respondent's 160-page anticipation bundle (pp 048-1 to 048-14), as that aspect of the matter

has been heard and disposed of by Order of the Honourable Acting Justice Manca on 24 April 2026.

8 Settlement

8.1 The matter is not capable of settlement.

8.2 The applicant seeks a final interdict restraining the respondent from carrying out threats of unlawful conduct.



Signed at Cape Town on this the 19th day of May 2026



Deneys

Attorneys for Applicant
9th Floor, 117 on Strand
117 Strand Street
Cape Town

Tel: +27 11 685 8500

Fax: +27 11 301 3200

Email: Jason.Whyte@deneys.co.za

Frances.Barker@deneys.co.za

Ref: J Whyte / AFR1282

TO:

The Registrar of the High Court
Cape Town

AND TO:

Wilbur William Matthee

Respondent

Email: info@ethichawks.co.za

wilburmat@gmail.com

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Honourable Acting Justice Mphego

Given on this 16th day of April 2026

2006-086906
Case No: 160/2026

In the matter between:

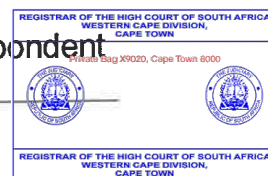
AfroCentric Investment Corporation Limited

Applicant

and

Wilbur William Matthee

Respondent



DRAFT ORDER

After having heard counsel for the applicant and having considered the matter, it is ordered that:

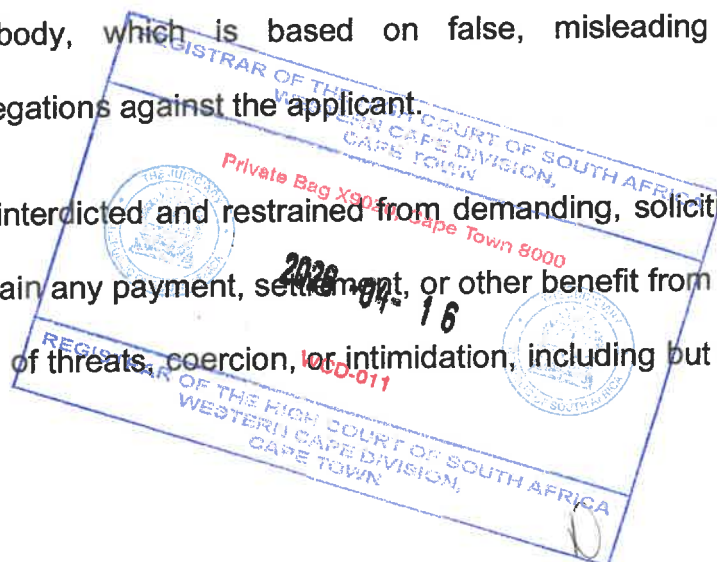
- 1 The provisions of the rules relating to time periods, forms and manner of service referred to therein are dispensed with and any non-compliance with such provisions is condoned, and the matter is dealt with as one of urgency in terms of Rule 6(12).
- 2 A *rule nisi* is issued calling upon the respondent to show cause on **28 May 2026** why a final order should not be made in the following terms:
 - 2.1 The respondent is interdicted and restrained from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police

and Prisons Civil Rights Union (POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the "Mahlangu Root Cause Analysis" or "Mahlangu RCA", or any information relating to the applicant's internal systems, clinical processes, financial affairs, or integration architecture.

2.2 The respondent is interdicted and restrained from making, publishing, or causing to be published any defamatory, false, or malicious statements concerning the applicant, its directors, officers, employees, auditors, or any regulatory bodies, including but not limited to any statement referred to as a "Whistleblower's Manifesto" or any public statement alleging fraud, market deception, misconduct, or impropriety on the part of the applicant or any person associated with it.

2.3 The respondent is interdicted and restrained from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant.

2.4 The respondent is interdicted and restrained from demanding, soliciting, or attempting to obtain any payment, settlement, or other benefit from the applicant by means of threats, coercion, or intimidation, including but not



limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings.

2.5 The respondent is 2.22.4interdicted and restrained from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs.



2.6 The respondent is to pay the costs of this application.

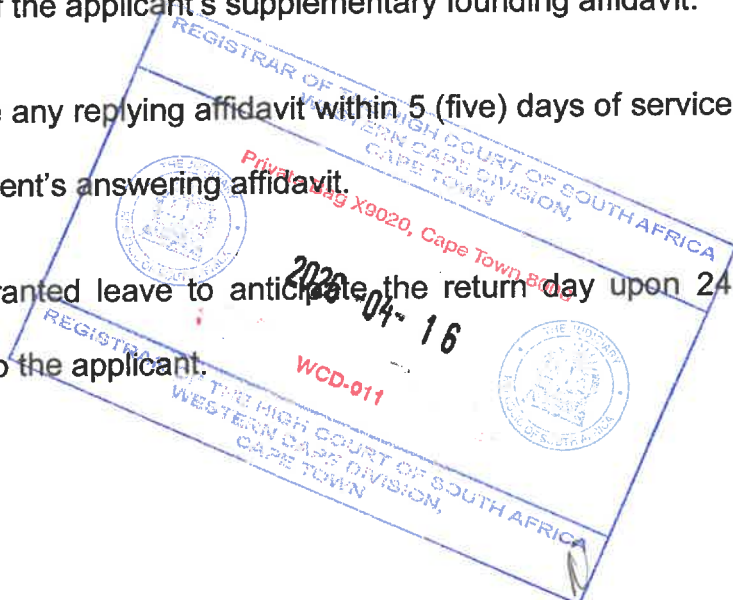
3 The orders per paragraphs 2.1 to 2.6 shall operate as interim orders with immediate effect pending the return date of the *rule nisi*.

4 The applicant is granted leave to supplement its founding affidavit within 10 (ten) days of the date of this order.

5 The respondent is to file any answering affidavit within 15 (fifteen) days of service upon him of the applicant's supplementary founding affidavit.

6 The applicant is to file any replying affidavit within 5 (five) days of service upon it of the respondent's answering affidavit.

7 The respondent is granted leave to anticipate the return day upon 24 hours' written notice to the applicant.



- 8 Service of this order is to be effected on the respondent by email to
info@ethichawks.co.za.

BY ORDER OF THE COURT

COURT REGISTRAR

Deneys

Per: Jason J Whyte

(Ref: AFR1282 / J Whyte)

Tel: 021 405 1208

Email: Jason.Whyte@deneys.co.za



IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Honourable Judge _____
Given on this 28th day of May 2026

Case No: **2026-086906**

In the matter between:

AfroCentric Investment Corporation Limited

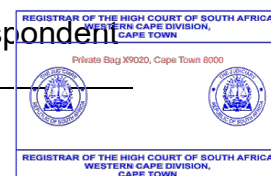
Applicant

and

Wilbur William Matthee

Respondent

DRAFT ORDER

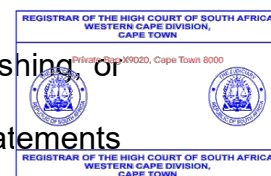


After having heard counsel for the applicant and having considered the matter, it is ordered that:

- 1 The provisions of the rules relating to time periods, forms and manner of service referred to therein are dispensed with and any non-compliance with such provisions is condoned, and the matter is dealt with as one of urgency in terms of Rule 6(12).
- 2 The rule nisi issued on 16 April 2026 is confirmed and a final order is made in the following terms:
 - 2.1 The respondent is interdicted and restrained from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police

and Prisons Civil Rights Union (POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the “Mahlangu Root Cause Analysis” or “Mahlangu RCA”, or any information relating to the applicant’s internal systems, clinical processes, financial affairs, or integration architecture.

- 2.2 The respondent is interdicted and restrained from making, publishing, or causing to be published any defamatory, false, or malicious statements concerning the applicant, its directors, officers, employees, auditors, or any regulatory bodies, including but not limited to any statement referred to as a “Whistleblower’s Manifesto” or any public statement alleging fraud, market deception, misconduct, or impropriety on the part of the applicant or any person associated with it.
- 2.3 The respondent is interdicted and restrained from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant.
- 2.4 The respondent is interdicted and restrained from demanding, soliciting, or attempting to obtain any payment, settlement, or other benefit from the applicant by means of threats, coercion, or intimidation, including but not



limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings.

- 2.5 The respondent is 2.22.4interdicted and restrained from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs.



- 2.6 The respondent is to pay the costs of this application, including the costs of counsel, on Scale C – such costs to include the wasted costs occasioned by the proceedings of 24 April 2026.
- 3 The orders per paragraphs 2.1 to 2.6 shall operate with immediate and final effect.
- 4 Service of this order is to be effected on the respondent by email to info@ethichawks.co.za and wilburmat@gmail.com.

BY ORDER OF THE COURT

COURT REGISTRAR

Deneys

Per: Jason J Whyte

Deneys
Per: Jason J Whyte
(Ref: AFR1282 / J Whyte)
Tel: 021 405 1208
Email: Jason.Whyte@deneys.co.za

(Ref: AFR1282 / J Whyte)

Tel: 021 405 1208

Email: Jason.Whyte@deneys.co.za



IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Case No: **2026-086906**
On the roll: **28 May 2026**

In the matter between:

Afrocentric Investment Corporation Limited
(Reg: 1988/000570/06)

Applicant

and

Wilbur William Matthee

Respondent

APPLICANT'S PRACTICE NOTE

1. In this matter, Ms Acting Justice Mphego granted a rule *nisi* and interim interdict on 16 April 2026.
2. The matter is set down on the (unopposed) third division roll for the return day on 28 May 2026. The applicant seeks the granting of final interdictory relief against the respondent.
3. The matter is opposed by the respondent. The respondent has also purported to file a counter-application, which is not ripe for hearing.
4. The respondent is an individual who is not legally represented.
5. The respondent served an (additional) answering affidavit on Monday, 25 May 2026 and the applicant's replying affidavit will be delivered on Wednesday, 27 May 2026.

6. The applicant proposes that an order be granted extending the rule nisi and interim order until the matter can be heard, on an opposed basis, on the earliest available date on the semi-urgent roll, with costs to stand over. The first available date on the semi-urgent roll is 1 March 2027.
7. The applicant has sought the respondent's agreement to this, but he does not consent to same. The applicant will accordingly move for an order on these terms on 28 May 2026.

Signed at **Cape Town** on this the **27th** day of **May 2026**



Deneys
 Attorneys for Applicant
 9th Floor, 117 on Strand
 117 Strand Street
 Cape Town
 Tel: +27 11 685 8500
 Fax: +27 11 301 3200
 Email: Jason.Whyte@deneys.co.za
Frances.Barker@deneys.co.za
 Ref: J Whyte / AFR1282

TO:
The Registrar of the High Court
 Cape Town

AND TO:
Wilbur William Matthee
 Respondent
 Email: info@ethichawks.co.za/
wilburmat@gmail.com

IN THE HIGH COURT OF SOUTH AFRICA
(WESTERN CAPE DIVISION, CAPE TOWN)

CASE NO: 2026-086906

In the matter between:

AFROCENTRIC INVESTMENT CORPORATION LIMITED

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent



NOTICE TO ANTICIPATE RETURN DAY
(IN TERMS OF UNIFORM RULE 6(8))

KINDLY TAKE NOTICE that the Respondent hereby anticipates the return day of the Rule Nisi granted by the Honourable Acting Justice Mphego on 16 April 2026.

TAKE NOTICE FURTHER that the matter is set down for hearing on **FRIDAY, 24 APRIL 2026 at 10H00**, or as soon thereafter as the matter may be heard in the Urgent Motion Court.

THE GROUNDS FOR ANTICIPATION ARE AS FOLLOWS:

- 1. Procedural Right:** In terms of Uniform Rule 6(8) and Paragraph 7 of the Court Order dated 16 April 2026, the Respondent is entitled to anticipate the return day upon 24 hours' written notice.
- 2. Prior Notification:** Written notice of the intention to anticipate was served on the Applicant's attorneys of record on Wednesday, 22 April 2026 at 11h32, satisfying the 24-hour notice requirement.
- 3. Substantive Urgency & Irreparable Harm:** The Respondent is currently enduring a documented humanitarian crisis, including the obstruction of statutory benefits and a lack of

access to basic utilities (water/electricity). Every day the interim order remains in place without judicial oversight causes the Respondent irreparable harm and facilitates institutional attrition.

4. Failure of Good Faith: Despite the Applicant's claim of "extreme urgency" in obtaining the initial order, they have utilised the subsequent period for procedural stalling and "institutional silence," necessitating an immediate hearing to ensure the interests of justice.

5. Document Production: The hearing coincides with the deadline for the Applicant to produce forensic clinical documentation essential to the Respondent's defence and the public interest.

ANNEXURES:

Annexure NTA1: Email correspondence addressed to the Applicant's legal representatives, dated 20 April 2026.

Annexure NTA2: Email correspondence addressed to the Applicant's legal representatives, dated 22 April 2026.

Annexure WW6: Affidavit of Destitution deposed to by the Respondent.



DATED at CAPE TOWN on this 23rd day of APRIL 2026.

SR. WILBUR W MATTHEE

Respondent in Person

15 Bellevue Street, Voorbrug,
Cape Town, 7100
Email: info@ethichawks.co.za
Tel: 069 635 1435

TO: THE REGISTRAR OF THE HIGH COURT

Cape Town

AND TO: DENEYS ATTORNEYS

Attorneys for the Applicant

Per: **JASON WHYTE**

Email: jason.whyte@deneys.co.za; frances.barker@deneys.co.za

ANNEXURE NTA1

Email Correspondence

Respondent to Applicant's Legal Representatives

Dated: 20 April 2026



Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll

Case No. 2026-086906 | AfroCentric Investment Corporation Limited v Wilbur William Matthee



Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll

1 message

Wilbur William Matthee <wilburmat@gmail.com>

Mon, 20 Apr 2026 at 11:55

To: nhanekom@judiciary.org.za

Cc: jason.whyte@deney.co.za, frances.barker@deney.co.za, olebogeng.motlhaping@deney.co.za

Bcc: Sr Wilbur William Matthee <g.boy.willy@gmail.com>

To:
The Registrar, High Court of South Africa, Western Cape Division
[Registrar email address]

Cc:
Jason Whyte (Deneys Attorneys) – jason.whyte@deney.co.za
Frances Barker / Olebogeng Motlhaping (as copied in annexures) – [email addresses if available]



Subject: Case No. 2026-086906 – AfroCentric Investment Corporation Limited v Wilbur William Matthee – Filing of Supplementary Answering Affidavit, Notice of Counter-Application, and Request to Enroll

Dear Honourable Registrar,

I refer to the above matter and write in my capacity as the Respondent, acting in person.

1. Filing of Supplementary Answering Affidavit and Counter-Application

Pursuant to Uniform Rule 6(5)(e) and the practice confirmed in Minister of Health v New Clicks SA (Pty) Ltd 2006 (2) SA 311 (CC), I hereby file the following documents with this Honourable Court:

- Supplementary Answering Affidavit (Final Consolidated) – responding to the Applicant's founding papers and incorporating a counter-application for declaratory relief;
- Notice of Counter-Application for Declaratory Relief – which is unconditional and will proceed independently even if the Applicant withdraws its main application;
- Index of Annexures containing 22 supporting exhibits as referenced in the affidavit.

These documents are served simultaneously on the Applicant's attorneys, Deneys.

2. Request to Enroll Counter-Application with Main Application

I respectfully request that the counter-application be enrolled for hearing simultaneously with the main application under the same case number, or on such other date as this Honourable Court may determine. In the event the main application is withdrawn, I request that the counter-application proceed on its own.

The declaratory relief sought is not abstract or hypothetical – it will:

- Break the administrative deadlock with the Department of Employment and Labour regarding my UIF benefits;
- Establish facts binding on the Labour Court through res judicata and estoppel;
- Vindicate my good faith and professional reputation, which the Applicant has attacked under oath.

3. Service on the Applicant's Attorneys

A copy of this email and all filed papers is served on Deneys Attorneys at the email address above.

4. Request for Acknowledgment

048-5
19/5/2026-8:22:49 AM

Kindly acknowledge receipt of these filings and confirm the date on which the consolidated matter (main application + counter-application) will be placed on the roll.

I remain destitute, self-represented, and without income. My full circumstances are set out in Annexure WW6 (Affidavit of Destitution) filed herewith.

If your client fails to produce the documents by the above deadline without a valid, sworn explanation (e.g., legal privilege or impossibility), I will, without further notice, immediately file a notice to anticipate the return day in terms of:

- Uniform Rule of Court 6(8); and
- Paragraph 7 of the interim order dated 16 April 2026, which expressly grants me leave to anticipate the return day upon 24 hours' written notice to the applicant.

Upon anticipation, I will move for an order:

- Discharging the rule nisi and setting aside the interim interdict in its entirety;
- Granting the declaratory relief sought in my counter-application;
- Awarding a punitive costs order against your client on the scale as between attorney and client.



Your client has until Friday close of business to comply. Failure to do so will result in immediate court action.

Thank you for your assistance.

IMPORTANT NOTICE REGARDING MY EMAIL ADDRESS

Please be advised that my email address info@ethichawks.co.za has been suspended and is no longer active. All formal correspondence, including the documents demanded below, must be sent to my alternative email address:

wilburmat@gmail.com

I confirm that I will monitor this address for your response. Any correspondence sent to the suspended EthicHawks address will not be received.

Yours Professionally,

Wilbur William Matthee
Respondent (acting in person)
15 Bellevue Street, Voorbrug, Cape Town, 7001
Email: wilburmat@gmail.com
Mobile: 069 635 1435

Copy to: Jason Whyte, Deneys Attorneys (via email)

Ethics Hawks promotes ethical leadership, governance integrity, and psychosocial safety in organisations. This correspondence may contain confidential or legally relevant information intended only for the recipient. Unauthorised use or disclosure is prohibited.



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6,2 MB

ANNEXURE NTA2

Email Correspondence

Respondent to Applicant's Legal Representatives

Dated: 22 April 2026 at 11h32

Formal Notice of Intention to Anticipate Return Day in terms of Uniform Rule 6(8)



Case No. 2026-086906 | AfroCentric Investment Corporation Limited v Wilbur William Matthee



**FORMAL NOTICE: ANTICIPATION OF RETURN DAY IN TERMS OF UNIFORM RULE 6(8)
– MATTHEE V AFROCENTRIC CASE NO. 2026-086906**

1 message

Wilbur Matthee <info@ethichawks.co.za> Wed, 22 Apr 2026 at 11:32
To: jason.whyte@deneys.co.za
Cc: frances.barker@deneys.co.za, olebogeng.motlhaping@deneys.co.za
Bcc: wilburmat@gmail.com

TO: Jason Whyte/Legal Council

1. Your communication of 20 April 2026 is noted. Continued silence during a documented humanitarian crisis confirms a bad-faith reliance on procedural stalling.
2. Notice is hereby given of the intention to anticipate the return day under Uniform Rule 6(8).
3. Filing will occur on Thursday for a hearing on Friday, 24 April 2026.
4. The Court will be moved to distinguish between the Applicant’s self-created urgency and the Respondent’s substantive imminent danger.
5. The attempt to utilize the public holiday weekend as a procedural vacuum is neutralized.
6. I see you in court on Friday. Ensure the requested forensic documentation is produced.



Sr. Wilbur W Matthee
Specialist Registered Nurse | PGDip HSM (NQF 8)
Founder – EthicHawks Forensic Governance & Compliance

ANNEXURE NTA3

Email Response

Applicant's Attorneys (Jason Whyte, Deneys Attorneys) to Respondent

Dated: 22 April 2026 at 13h37

Opposition to Anticipation and Threats of Punitive Costs Order



Case No. 2026-086906 | AfroCentric Investment Corporation Limited v Wilbur William Matthee

From : jason.whyte@deneyys.co.za

048-9
19/5/2026-8:22:49 AM

To : "Wilbur Matthee" <info@ethichawks.co.za>

Cc : "Frances Barker" <Frances.Barker@deneyys.co.za>,"Olebogeng Motlhaping" <Olebogeng.Motlhaping@deneyys.co.za>

Subject : RE: FORMAL NOTICE: ANTICIPATION OF RETURN DAY IN TERMS OF UNIFORM RULE 6(8)— MATTHEE V AFROCENTRIC CASE NO. 2026-086906 [IMAN-CPT_MATTERS.FID2264505]

Date : 22 Apr 2026 13:37

Dear Mr Matthee

We confirm receipt of your email sent at 11h32 today, 22 April 2026.



We draw your attention to paragraph 14.1 of your supplementary answering affidavit (which we point out was served on 20 April 2026) in which you state:

"I hereby formally invite and put the Applicant on notice to produce the following documents within 5 (five) days of service of this affidavit" (your own emphasis).

And in paragraph 14.3 you state:

"If the Applicant fails to comply without a valid legal basis, I will file a notice to anticipate the return day ..."

Accordingly, on your own terms, our client has until close of business on 28 April 2026 to elect whether it is able to accede to your demand regarding discovery. Our client is considering its response to you in accordance with this deadline.

You now appear to distance yourself from the representation made to our client under oath. Notwithstanding our client's views regarding the demand for discovery, your conduct now amounts to an abuse of court process and is vexatious in the extreme. Should you proceed to have the return date set down as threatened for Friday, 24 April 2026, we shall request the Judge presiding to adjourn the matter until 28 May 2026 and that you be ordered to pay our client's wasted costs on the attorney-client scale.

Kindly be guided accordingly.

Kind regards

Jason Whyte | Director
jason.whyte@deneyys.co.za

Deneys Cape Town, South Africa
9th floor, 117 on Strand, 117 Strand Street, Cape Town 8001, South Africa
Tel: +27 21 405 1208 | Mobile: +27 83 236 3059

ANNEXURE NTA4

Email Reply — Respondent to Applicant's Attorneys

With UI-19 Employer Declaration (Medscheme Holdings Pty Ltd, signed 19 January 2026)

Dated: 22 April 2026 at 15h03

Rebuttal of Applicant's Conflation of Discovery and Emergency Timelines; Confirming Termination Code 6 and Gross Remuneration of R42,796



Case No. 2026-086906 | AfroCentric Investment Corporation Limited v Wilbur William Matthee

From : info@ethichawks.co.za

To : <jason.whyte@deney.co.za>

Cc : <frances.barker@deney.co.za>,<olebogeng.motlhaping@deney.co.za>

Subject : RE: Notice to Anticipate Return Day – Case No: 2026-086906

Date : 22 Apr 2026 15:03

048,11
19/5/2026-8:22:49 AM

Mr. Whyte,

1. Your characterization of the Respondent's conduct as "vexatious" is noted and rejected.
2. Your attempt to conflate a discovery deadline with a Rule 6(8) anticipation is a fundamental legal error. There are currently two distinct "clocks" governing this matter, and they operate on separate tracks:
 - (a). The Discovery Clock: The 5-day invitation for document production pertains to the Merits of the case. It is a timeline for trial preparation.
 - (b). The Emergency Clock: The Notice to Anticipate under Uniform Rule 6(8) pertains to the Interim Status of the case. It is a timeline for Survival.
3. The "Discovery Clock" does not—and cannot—arrest the "Emergency Clock." A procedural invitation for discovery is not a waiver of the statutory right to seek immediate judicial relief from an interim order that facilitates a humanitarian crisis. The Respondent's right to dignity, access to water, and survival is not subject to your client's administrative convenience or a 5-day election period.
4. The Applicant's claim of "extreme urgency" to obtain the ex parte order on 16 April is now in direct conflict with your current request for a delay. This contradiction confirms that the Applicant's "urgency" was a tactical label, whereas the Respondent's urgency—documented by 48 hours without food and a lack of basic utilities—is a substantive, physical reality.
5. Be advised that the strategy of "litigation attrition"—including the obstruction of statutory benefits and the resulting state of destitution—is now a matter of record. Your threats of punitive costs against a respondent in a state of documented imminent danger further evidence the Applicant's bad faith and will be placed before the court.
6. The Respondent will not be intimidated into a monthly adjournment while in a state of constitutional emergency. The hearing proceeds on Friday, 24 April 2026. The High Court will be moved to weigh your client's desire for corporate secrecy against the Respondent's right to exist.
7. The "5-day deadline" for documents remains an active forensic demand. If the Applicant chooses to withhold those documents on Friday while maintaining a gag order, you do so at the risk of an adverse judicial inference.

Kindly be guided accordingly.

Sr. Wilbur W Matthee
Specialist Registered Nurse
Respondent in Person



ANNEXURE WW6

Affidavit of Destitution

Deposed to by Respondent Wilbur William Matthee
Kindly Refer to Annexure WW6 in Supplementary Affidavit

Documenting Humanitarian Crisis, Obstruction of Statutory UIF Benefits, and State of Destitution



Case No. 2026-086906 | AfroCentric Investment Corporation Limited v Wilbur William Matthee

ANNEXURE NTA4.1

UI-19 Employer Declaration

Medscheme Holdings Pty Ltd (Authorised: Natasha Johnson, ID No.
6909300157084)

Dated: 19 January 2026

Unemployment Insurance Act 63 of 2001 Termination Code: 6 (Resigned / Constructive Dismissal)
Gross Remuneration Declared: R42,796 Confirming UIF Entitlement and Administrative Deadlock



Case No. 2026-086906 | AfroCentric Investment Corporation Limited v Wilbur William Matthee

UNEMPLOYMENT INSURANCE ACT 63 OF 2001

Employers Declaration of Employees for the month of

U-19
14

Information to be supplied in terms of Section 56(1&3) read with Regulation 13(1&2)

An employer must by the seventh day of each month inform the Commissioner of any changes arising during the previous month regarding the employer's contact details or employees remuneration details including new appointments and termination of service. The employer must forward this form to the **Unemployment Insurance Fund** at (012) 337-1943/44 or 337-1580/81/82 or submit same at any branch of the UIF which is closest to the employer. The completed form can also be faxed to any of the following numbers: **Pta** (012) 309 5142/5286; **Jhb** (011) 497 3293; **Dhn** (031) 366 2156; **Polokwane** (015) 290 1670; **Mmabatho** (018) 384 2658; **East Ldn** (043) 701 3263; **Bfth** (051) 447 9353; **CT** (021) 441 8024; **Wtb** (013) 656 0233; **PE** (041) 586 1541; **Gmn** (011) 873 2295; **George** (044) 873 2568; **Pmb** (033) 394 5069; **Kimberley** (053) 832 7218.

1. EMPLOYER DETAILS

1.1 UIF Employer Reference No 0081266 / 3 Branch No 22032 1.2 PAYE Reference No (If registered with SARS) 172000425
 1.3 Trading name of business Medscheme Holdings Pty(Ltd) 1.4 Physical Address 37 Conrad Road, Florida North, 1708
 1.5 Address where employees listed in Item 2 work (if different to the address in 1.4) P O Box 1101, Florida North
 1.6 Postal address P O Box 1101, Florida North
 1.7 Co. Reg.No (CIPRO No) 197001501407- - -
 1.10 Phone No 011 671 6489 1.11 Authorised person** N Johnson

2. EMPLOYEE DETAILS

A Surname	B Initial s	C ID Number (13 Digit bar-coded RSA ID No)													D* Total (Gross) Remuneration paid to Employee Per Month		E* Total Hours Worked during Month	F Commencement date of Employment						G Termination Date						H Reason for Termination (Use Termination Codes as supplied at the bottom of the page)	I Indicate whether contributor or non- contributor (YES OR NO)	J *** If non- Contributor state reason (Use codes at bottom of page)
															R	c		D	D	M	M	Y	Y	D	D	M	M	Y	Y			
Matthee	WW	8	9	0	9	0	3	5	1	5	1	0	8	7	42 796	13	162.5	0	1	0	5	2	4	1	2	1	2	2	5	6	Yes	

I, Natasha Johnson, ID No 6909300157084, declare that the above information is true and correct. I understand that it is an offence to make a false statement.

afes

AFROCENTRIC HEALTH
SALARIES DEPARTMENT
P.O. BOX 1101
FLORIDA GLEN, 1708

EMPLOYER SIGNATURE

DATE 19 January 2026

DESCRIPTIONS

- ** If the employer is not resident in the RSA, or is a body corporate not registered in the RSA, an authorised person must carry out the duties of the employer in terms of this Act.
 D* Remuneration means actual basic salary plus payment in kind (Declare actual gross salary)
 If paid Weekly, convert wages to monthly salary (weekly wages X 52/12)
 E* Total Hours Worked ie. Actual hours worked during the month (only applicable for employees that are paid per hour)
 Employers may also submit these details electronically from payrolls or on the UIF's website at www.labour.gov.za
 Tel. no (012) 337 1680/1700
 Only Applicable for Commercial Employers

Code

(J) Reason for Non-Contribution ***

- 1 Temporary employees (less than 24 hours per month)
 2 Learners in terms of the Skills Development Act
 3 Employees in the National and Provincial spheres of Government
 4 Employees who are repatriated at the end of their contract of service
 5 Employees who earn commission only
 6 No income paid for the payroll period
 7 Employees in receipt of an Old Age Pension from the State.
 8 Employees who receive a pension payment from Employer
 9 Above the ceiling (Old Act)

REASON FOR TERMINATION CODES

- | | | | |
|--------------------|--------------------------|-------------------------------|--------------------------------|
| 2 Deceased | 6 Resigned | 10 Illness /Medically boarded | 14 Business Closed |
| 3 Retired | 7 Constructive Dismissal | 11 Retrenched/Staff Reduction | 15 Death of Domestic Employer |
| 4 Dismissed | 8 Insolvency/Liquidation | 12 Transfer to another Branch | 16 Voluntary Severance Package |
| 5 Contract Expired | 9 Maternity/Adoption | 13 Absconded | |

COURT ONLINE COVER PAGE

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

CASE NO: **2026-086906**

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Order in terms of "X" Mphego AJ 16 April 2026

NOTE: This document was filed electronically by the Registrar on 22/4/2026 at 7:56:53 AM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



ELECTRONICALLY SIGNED
BY:

**Registrar of The High Court,
Western Cape Division, Cape
Town**

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Honourable Acting Justice Mphego

Given on this 16th day of April 2026

2026-086906
Case No: **160/2026**

In the matter between:

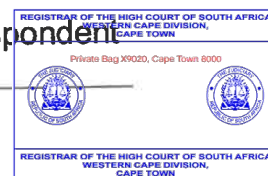
AfroCentric Investment Corporation Limited

Applicant

and

Wilbur William Matthee

Respondent



DRAFT ORDER

After having heard counsel for the applicant and having considered the matter, it is ordered that:

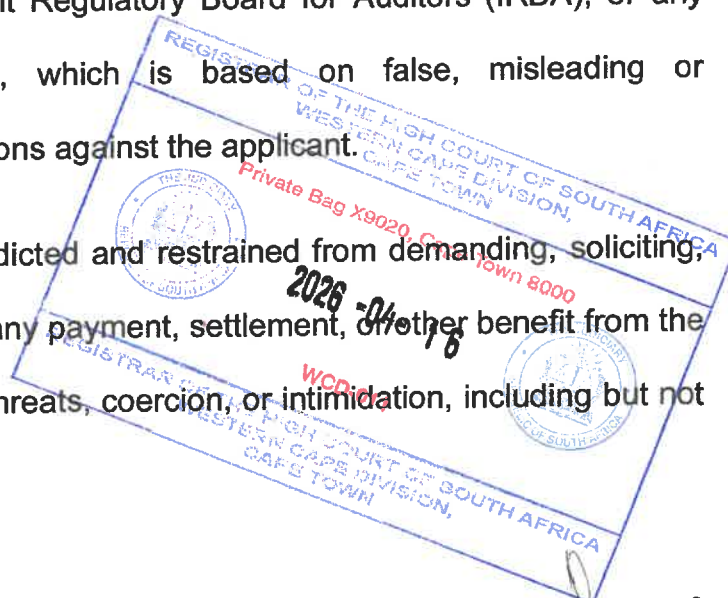
- 1 The provisions of the rules relating to time periods, forms and manner of service referred to therein are dispensed with and any non-compliance with such provisions is condoned, and the matter is dealt with as one of urgency in terms of Rule 6(12).
- 2 A *rule nisi* is issued calling upon the respondent to show cause on **28 May 2026** why a final order should not be made in the following terms:
 - 2.1 The respondent is interdicted and restrained from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police

and Prisons Civil Rights Union (POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the “Mahlangu Root Cause Analysis” or “Mahlangu RCA”, or any information relating to the applicant’s internal systems, clinical processes, financial affairs, or integration architecture.

2.2 The respondent is interdicted and restrained from making, publishing, or causing to be published any defamatory, false, or malicious statements concerning the applicant, its directors, officers, employees, auditors, or any regulatory bodies, including but not limited to any statement referred to as a “Whistleblower’s Manifesto” or any public statement alleging fraud, market deception, misconduct, or impropriety on the part of the applicant or any person associated with it.

2.3 The respondent is interdicted and restrained from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant.

2.4 The respondent is interdicted and restrained from demanding, soliciting, or attempting to obtain any payment, settlement, or other benefit from the applicant by means of threats, coercion, or intimidation, including but not

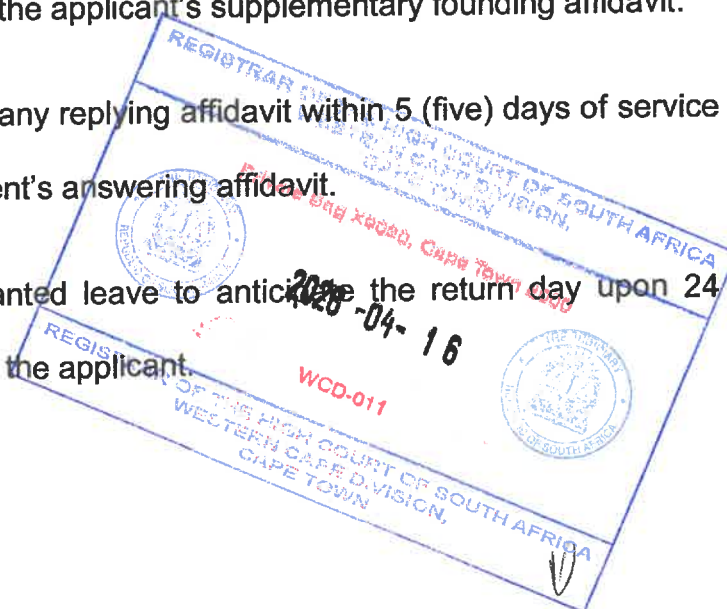


limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings.

- 2.5 The respondent is 2.22.4interdicted and restrained from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs.



- 2.6 The respondent is to pay the costs of this application.
- 3 The orders per paragraphs 2.1 to 2.6 shall operate as interim orders with immediate effect pending the return date of the *rule nisi*.
- 4 The applicant is granted leave to supplement its founding affidavit within 10 (ten) days of the date of this order.
- 5 The respondent is to file any answering affidavit within 15 (fifteen) days of service upon him of the applicant's supplementary founding affidavit.
- 6 The applicant is to file any replying affidavit within 5 (five) days of service upon it of the respondent's answering affidavit.
- 7 The respondent is granted leave to anticipate the return day upon 24 hours' written notice to the applicant.



- 8 Service of this order is to be effected on the respondent by email to
info@ethichawks.co.za.

BY ORDER OF THE COURT

COURT REGISTRAR

Deneys

Per: Jason J Whyte

(Ref: AFR1282 / J Whyte)

Tel: 021 405 1208

Email: Jason.Whyte@deneys.co.za



COURT ONLINE COVER PAGE

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

CASE NO: 2026-086906

In the matter between:

**Afrocentric Investment Corporation
Limited**

Plaintiff / Applicant / Appellant

and

Wilbur William Matthee

Defendant / Respondent

Other - Order

NOTE: This document was filed electronically by the Registrar on 16/4/2026 at 5:13:17 PM South African Standard Time (SAST). The time and date the document was filed by the party is presented on the header of each page of this document.



**ELECTRONICALLY SIGNED
BY:**

**Registrar of The High Court,
Western Cape Division, Cape
Town**

16/4/2026 15:13:17 PM

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Honourable Acting Justice Mphego

Given on this 16th day of April 2026

2026-086906
Case No: 160/2026

In the matter between:

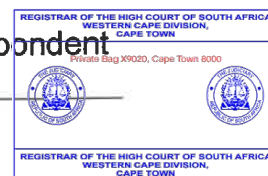
AfroCentric Investment Corporation Limited

Applicant

and

Wilbur William Matthee

Respondent



DRAFT ORDER

After having heard counsel for the applicant and having considered the matter, it is ordered that:

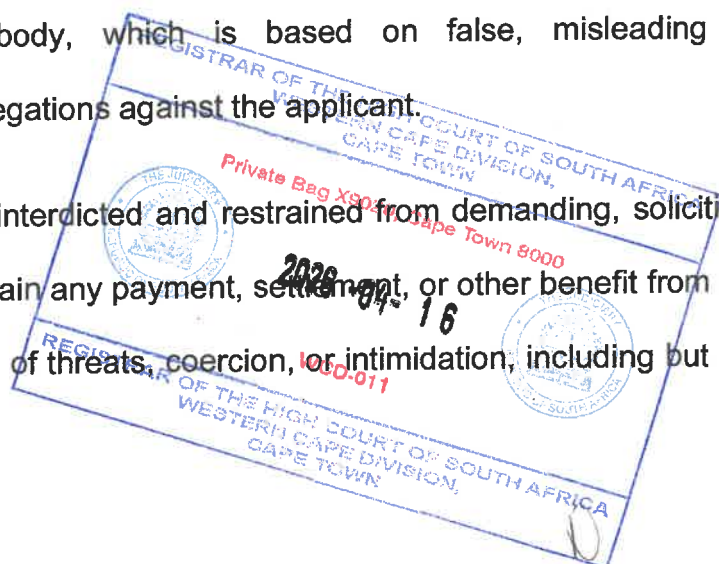
- 1 The provisions of the rules relating to time periods, forms and manner of service referred to therein are dispensed with and any non-compliance with such provisions is condoned, and the matter is dealt with as one of urgency in terms of Rule 6(12).
- 2 A *rule nisi* is issued calling upon the respondent to show cause on **28 May 2026** why a final order should not be made in the following terms:
 - 2.1 The respondent is interdicted and restrained from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police

and Prisons Civil Rights Union (POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the "Mahlangu Root Cause Analysis" or "Mahlangu RCA", or any information relating to the applicant's internal systems, clinical processes, financial affairs, or integration architecture.

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2.3 The respondent is interdicted and restrained from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant.

2.4 The respondent is interdicted and restrained from demanding, soliciting, or attempting to obtain any payment, settlement, or other benefit from the applicant by means of threats, coercion, or intimidation, including but not



limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings.

- 2.5 The respondent is 2.22.4interdicted and restrained from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs.



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- 6 The applicant is to file any replying affidavit within 5 (five) days of service upon it of the respondent's answering affidavit.
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- 8 Service of this order is to be effected on the respondent by email to
info@ethichawks.co.za.

BY ORDER OF THE COURT

COURT REGISTRAR

Deneys

Per: Jason J Whyte

(Ref: AFR1282 / J Whyte)

Tel: 021 405 1208

Email: Jason.Whyte@deneys.co.za



IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Cape Town, Thursday, 28 May 2026
Before the Honourable Judge Ralarala

Case No: **2026-086906**

In the matter between:

**AFROCENTRIC INVESTMENT CORPORATION
LIMITED**

Applicant

and

WILBUR WILLIAM MATTHEE

Respondent

DRAFT ORDER

After having heard counsel for the applicant and having considered the matter, it is hereby ordered that:

- 1 The matter is removed from the unopposed motion roll and is postponed for hearing on the semi-urgent roll on **1 March 2027**.
- 2 The *rule nisi* and the interim Order are extended to 1 March 2027, pending final determination of the issues.
- 3 Service of this order is to be effected on the respondent by email to info@ethichawks.co.za and wilburmat@gmail.com.

BY ORDER OF THE COURT

COURT REGISTRAR

Box 330
Deneys
Per: Jason J Whyte
(Ref: AFR1282 / J Whyte)
Tel: 021 405 1208
Email: Jason.Whyte@deneys.co.za

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Case No: **2026-086906**

In the matter between:

AfroCentric Investment Corporation Limited
(Reg: 1988/000570/06)

Applicant

and

Wilbur William Matthee

Respondent

FILING NOTICE

TAKE NOTICE THAT the applicant presents for filing its replying affidavit.

Signed at **Cape Town** on this the **27th** day of **May 2026**

Deneys

Attorneys for Applicant
9th Floor, 117 on Strand
117 Strand Street
Cape Town

Tel: +27 11 685 8500

Email: Jason.Whyte@deneys.co.za

Frances.Barker@deneys.co.za

Ref: J Whyte / AFR1282

TO:
The Registrar of the High Court
Cape Town

AND TO:
Wilbur William Matthee
Respondent
Email: info@ethichawks.co.za/
wilburmat@gmail.com